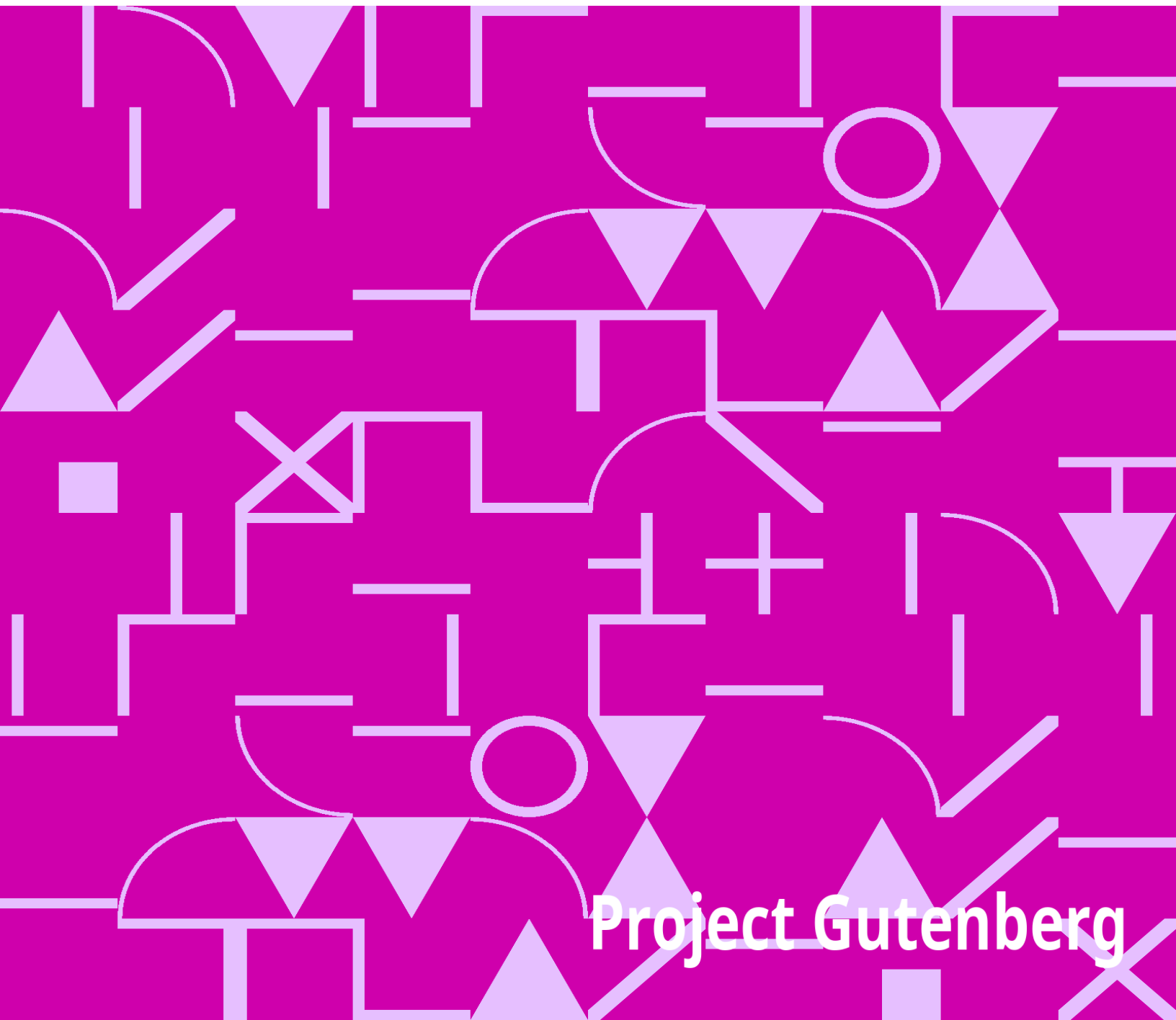


History of the Jews in Russia and Poland, Volume 2 [of 3]

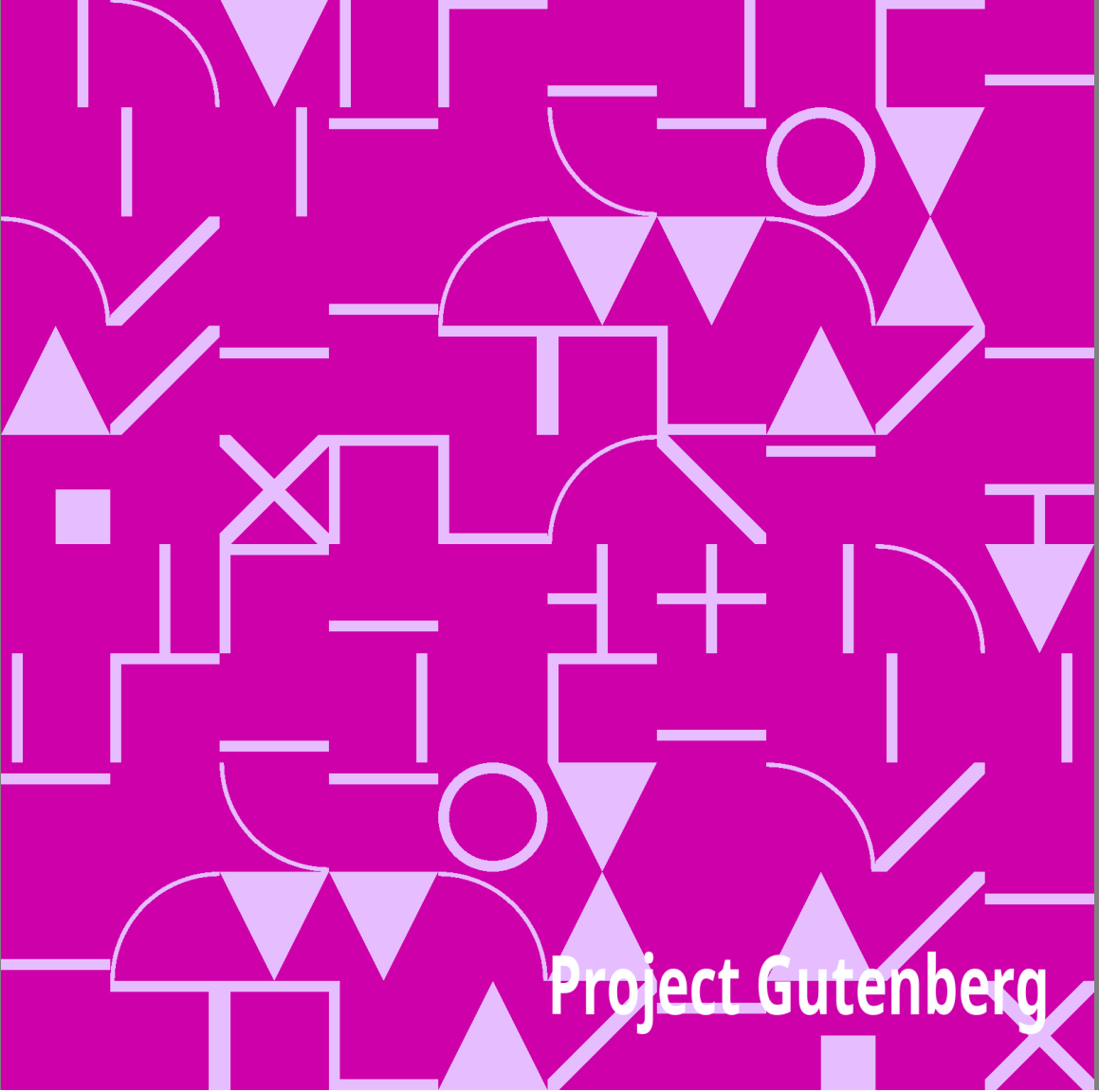
Simon Dubnow



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History of the Jews in Russia and Poland, Volume 2 [of 3]

Simon Dubnow



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HISTORY OF THE JEWS IN RUSSIA AND POLAND

FROM THE EARLIEST TIMES UNTIL THE PRESENT DAY

BY S.M. DUBNOW

TRANSLATED FROM THE RUSSIAN BY I. FRIEDLAENDER

VOLUME II

FROM THE DEATH OF ALEXANDER I. UNTIL THE DEATH OF
ALEXANDER III. (1825-1894)

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TRANSLATOR'S PREFACE

It was originally proposed to give the history of Russian Jewry after 1825—the year with which the first volume concludes—in a single volume. This, however, would have resulted in producing a volume of unwieldy dimensions, entirely out of proportion to the one preceding it. It has, therefore, become imperative to divide Dubnow's work into three, instead of into two, volumes. The second volume, which is herewith offered to the public, treats of the history of Russian Jewry from the death of Alexander I. (1825) until the death of Alexander III. (1894). The third and concluding volume will deal with the reign of Nicholas II., the last of the Romanovs, and will also contain the bibliographical apparatus, the maps, the index, and other supplementary material. This division will undoubtedly recommend

itself to the reader. The next volume is partly in type, and will follow as soon as circumstances permit.

Of the three reigns described in the present volume, that of Alexander III., though by far the briefest, is treated at considerably greater length than the others. The reason for it is not far to seek. The events which occurred during the fourteen years of his reign laid their indelible impress upon Russian Jewry, and they have had a determining influence upon the growth and development of American Israel. The account of Alexander III.'s reign is introduced in the Russian original by a general characterization of the anti-Jewish policies of Russian Tzardom. Owing to the rearrangement of the material, to which reference was made in the preface to the first volume, this introduction, which would have interrupted the flow of the narrative, had to be omitted. But a few passages from it, written in the characteristic style of Mr. Dubnow, may find a place here:

Russian Tzardom began its consistent role as a persecutor of the Eternal People when it received, by way of bequest, the vast Jewish population of disintegrated Poland. At the end of the eighteenth century, when Western Europe had just begun the emancipation of the Jews, the latter were subjected in the East of Europe to every possible medieval experiment.... The reign of Alexander II., who slightly relieved the civil disfranchisement of the Jews by permitting certain categories among them to live outside the Pale and by a few other measures, forms a brief interlude in the Russian policy of oppression. His tragic death in 1881 marks the beginning of a new terrible reaction which has superimposed the system of wholesale street pogroms upon the policy of disfranchisement, and has again thrown millions of Jews into the dismal abyss of medievalism.

Russia created a lurid antithesis to Jewish emancipation at a time when the latter was consummated not only in Western Europe, but also in the semi-civilized Balkan States.... True, the rise of Russian Judaeophobia—the Russian technical term for Jew-hatred—was paralleled by the appearance of German anti-Semitism in which it found a congenial companion. Yet, the anti-Semitism of the West was after all only a weak aftermath of the infantile disease of Europe—the medieval Jew-hatred—whereas culturally retrograde Russia was still suffering from the same infection in its acute, "childish" form. The social and cultural anti-Semitism of the West did not undermine the modern foundations of Jewish civil equality. But Russian Judaeophobia, more governmental than social, being fully in accord with the entire régime of absolutism, produced a system aiming not only at the disfranchisement, but also at the direct physical annihilation of the Jewish people. The policy of the extermination of Judaism was stamped upon the forehead of Russian reaction, receiving various colors at various periods, assuming the hue now of economic, now of national and religious, now of bureaucratic oppression. The year 1881 marks the starting-point of this systematic war against the Jews, which has continued until our own days, and is bound to reach a crisis upon the termination of the great world struggle.

Concerning the transcription of Slavonic names, the reader is referred to the explanations given in the preface to the first volume. The foot-notes added by the translator have been placed in square brackets. The poetic quotations by the author have been reproduced in English verse, the translation following both in content and form the original languages of the quotations as closely as possible. As in the case of the first volume, a number of editorial changes have become necessary. The material has been re-arranged and the headings have been supplied in accordance with the general plan of the work. A number of pages have been added, dealing with

the attitude of the American people and Government toward the anti-Jewish persecutions in Russia. These additions will be found on pp. 292-296, pp. 394-396, and pp. 408-410. I am indebted to Dr. Cyrus Adler for his kindness in reading the proof of this part of the work.

The dates given in this volume are those of the Russian calendar, except for the cases in which the facts relate to happenings outside of Russia.

As in the first volume, the translator has been greatly assisted by the Hon. Mayer Sulzberger, who has read the proofs with his usual care and discrimination, and by Professor Alexander Marx, who has offered a number of valuable suggestions.

I.F.

NEW YORK, February 25, 1918.

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CHAPTER XIII

THE MILITARY DESPOTISM OF NICHOLAS I.

1. MILITARY SERVICE AS A MEANS OF DE-JUDAIZATION

The era of Nicholas I. was typically inaugurated by the bloody suppression of the Decembrists and their constitutional demands, [1] proving as it subsequently did one continuous triumph of military despotism over the liberal movements of the age. As for the emancipation of the Jews, it was entirely unthinkable in an empire which had become Europe's bulwark against the inroads of revolutionary or even moderately liberal tendencies. The new despotic regime, overflowing with aggressive energy, was bound to create, after its likeness, a novel method of dealing with the Jewish problem. Such a method was contrived by the iron will of the Russian autocrat.

[Footnote 1: See Vol. I, p. 410, n. 1.]

Nicholas I., who was originally intended for a military career, was placed on the Russian throne by a whim of fate.[1] Prior to his accession, Nicholas had shown no interest in the Jewish problem. The Jewish masses had flitted across his vision but once—in 1816—when, still a young man, he traveled through Russia for his education. The impression produced upon him by

this strange people is recorded by the then grand duke in his diary in a manner fully coincident with the official views of the Government:

[Footnote 1: After the death of Alexander I. the Russian crown fell to his eldest brother Constantine, military commander of Poland. Accordingly, Constantine was proclaimed emperor, and was recognized as such by Nicholas. Constantine, however, who had secretly abdicated some time previously, insisted on resigning, and Nicholas became Tzar.]

The ruin of the peasants of these provinces [1] are the Zhyds. [2] As property-holders they are here second in importance to the landed nobility. By their commercial pursuits they drain the strength of the hapless White Russian people.... They are everything here: merchants, contractors, saloon-keepers, mill-owners, ferry-holders, artisans.... They are regular leeches, and suck these unfortunate governments [3] to the point of exhaustion. It is a matter of surprise that in 1812 they displayed exemplary loyalty to us and assisted us wherever they could at the risk of their lives.

[Footnote 1: Nicholas is speaking of White Russia. Compare Vol. I, pp. 329 and 406.]

[Footnote 2: See on this term Vol. I, p. 320, n. 2.]

[Footnote 3: See on this term Vol. I, p. 308, n. 1.]

The characterization of merchants, artisans, mill-owners, and ferry-holders as "leeches" could only spring from a conception which looked upon the Jews as transient foreigners, who, by pursuing any line of endeavor, could only do so at the expense of the natives and thus abused the hospitality offered to them. No wonder then that the future Tzar was

puzzled by the display of patriotic sentiments on the part of the Jewish population at the fatal juncture in the history of Russia.

This inimical view of the Jewish people was retained by Nicholas when he became the master of Russian-Jewish destinies. He regarded the Jews as an "injurious element," which had no place in a Slavonic Greek-Orthodox monarchy, and which therefore ought to be combated. The Jews must be rendered innocuous, must be "corrected" and curbed by such energetic military methods as are in keeping with a form of government based upon the principles of stern tutelage and discipline. As a result of these considerations, a singular scheme was gradually maturing in the mind of the Tzar: to detach the Jews from Judaism by impressing them into a military service of a wholly exceptional character.

The plan of introducing personal military service, instead of the hitherto customary exemption tax, [1] had engaged the attention of the Russian Government towards the end of Alexander I's reign, and had caused a great deal of alarm among the Jewish communities. Nicholas I. was now resolved to carry this plan into effect. Not satisfied with imposing a civil obligation upon a people deprived of civil rights, the Tzar desired to use the Russian military service, a service marked by most extraordinary features, as an educational and disciplinary agency for his Jewish subjects: the barrack was to serve as a school, or rather as a factory, for producing a new generation of de-Judaized Jews, who were completely Russified, and, if possible, Christianized.

[Footnote 1: See Vol. I, p. 318.]

The extension of the term of military service, marked by the ferocious discipline of that age, to a period of twenty-five years, the enrolment of immature lads or practically boys, their prolonged separation from a Jewish environment, and finally the employment of such methods as were likely to

produce an immediate effect upon the recruits in the desired direction—all this was deemed an infallible means of dissolving Russian Jewry within the dominant nation, nay, within the dominant Church. It was a direct and simplified scheme which seemed to lead in a straight line to the goal. But had the ruling spheres of St. Petersburg known the history of the Jewish people, they might have realized that the annihilation of Judaism had in past ages been attempted more than once by other, no less forcible, means and that the attempt had always proved a failure.

In the very first year of the new reign, the plan of transforming the Jews by "military" methods was firmly settled in the emperor's mind. In 1826 Nicholas instructed his ministers to draft a special statute of military service for the Jews, departing in some respects from the general law. In view of the fact that the new military reform was intended to include the Western region [1], which was under the military command of the Tzar's brother, Grand Duke Constantine [2], the draft was sent to him to Warsaw for further suggestions and approval, and was in turn transmitted by the grand duke to Senator Nicholas Novosiltzev, his co-regent [3], for investigation and report. As an experienced statesman, who had familiarized himself during his administrative activity with the Jewish conditions obtaining in the Western region, Novosiltzev realized the grave risks involved in the imperial scheme. In a memorandum submitted by him to the grand duke, he argued convincingly that the sudden imposition of military service upon the Jews was bound to cause an undesirable agitation among them, and that they should, on the contrary, be slowly "prepared for such a radical transformation."

[Footnote 1: The official designation for the territories of Western Russia which were formerly a part of the Polish Empire.]

[Footnote 2: Constantine was appointed by his brother Alexander I, Commander-in-chief of the Polish army after the restoration of Poland in 1815. He remained in this post until his death in 1831. See also above, p. 13, n. 2.]

[Footnote 3: He was the imperial Russian Commissary in Warsaw, and was practically in control of the affairs in Poland. See below, p. 92 et seq.]

Novosiltzev was evidently well informed about the state of mind of the Jewish masses. No sooner had the rumor of the proposed ukase reached the Pale of Settlement than the Jews were seized by a tremendous excitement. It must be borne in mind that the Jewish population of Western Russia had but recently been incorporated into the Russian Empire. Clinging with patriarchal devotion to their religion, estranged from the Russian people, and kept, moreover, in a state of civil rightlessness, the Jews of that region could not be reasonably expected to gloat over the prospect of a military service of twenty-five years' duration, which was bound to alienate their sons from their ancestral faith, detach them from their native tongue, their habits and customs of life, and throw them into a strange, and often hostile, environment. The ultimate aim of the project, which, imbedded in the mind of its originators, seemed safely hidden from the eye of publicity, was quickly sensed by the delicate national instinct, and the soul of the people was stirred to its depths. Public-minded Jews strained every nerve to avert the calamity. Jewish representatives journeyed to St. Petersburg and Warsaw to plead the cause of their brethren. Negotiations were entered into with dignitaries of high rank and with men of influence in the world of officialdom. Rumor had it that immense bribes had been offered to Novosiltzev and several high officials in St. Petersburg for the purpose of receiving their co-operation. But even the intercession of leading dignitaries was powerless to change the will of the Tzar. He chafed under the red-tape formalities which obstructed the realization of his favorite scheme. Without

waiting for the transmission of Novosiltzev's memorandum, the Tzar directed the Minister of the Interior and the Chief of the General Staff to submit to him for signature an ukase imposing military service upon the Jews. The fatal enactment was signed on August 26, 1827.

2. The Recruiting Ukase of 1827 and Juvenile Conscription

The ukase announces the desire of the Government "to equalize military duty for all estates," without, be it noted, equalizing them in their rights. It further expresses the conviction that "the training and accomplishments, acquired by the Jews during their military service, will, on their return home after the completion of the number of years fixed by law (fully a quarter of a century!), be communicated to their families and make for greater usefulness and higher efficiency in their economic life and in the management of their affairs."

However, the "Statute of Conscription and Military Service," subjoined to the ukase, was a lurid illustration of a tendency utterly at variance with the desire "to equalize military duty." Had the Russian Government been genuinely desirous of rendering military duty uniform for all estates, there would have been no need of issuing separately for the Jews a huge enactment of ninety-five clauses, with supplementary "instructions," consisting of sixty-two clauses, for the guidance of the civil and military authorities. All that was necessary was to declare that the general military statute applied also to the Jews. Instead, the reverse stipulation is made: "The general laws and institutions are not valid in the case of the Jews" when at variance with the special statute (Clause 3).

The discriminating character of Jewish conscription looms particularly large in the central portion of the statute. Jewish families were stricken with terror on reading the eighth clause of the statute prescribing that "the Jewish

conscripts presented by the [Jewish] communes shall be between the ages of twelve and twenty-five." This provision was supplemented by Clause 74: "Jewish minors, i.e., below the age of eighteen, shall be placed in preparatory establishments for military training."

True, the institution of minor recruits, called *cantonists*, [1] existed also for Christians. But in their case it was confined to the children of soldiers in active service, by virtue of the principle laid down by Arakcheyev [2] that children born of soldiers were the property of the Military Department, whereas the conscription of Jewish minors was to be absolute and to apply to all Jewish families without discrimination. To make things worse, the law demanded that the years of preparatory training should not be included in the term of active service, the latter to start only with the age of eighteen (Clause 90); in other words, the Jewish *cantonists* were compelled to serve an additional term of six years over and above the obligatory twenty-five years. Moreover, at the examination of Jewish conscripts, all that was demanded for their enlistment was "that they be free from any disease or defect incompatible with military service, but the other qualifications required by the general rules shall be left out of consideration" (Clause 10).

[Footnote 1: From *Canton*, a word applied in Prussia in the eighteenth century to a recruiting district. In Russia, beginning with 1805, the term "cantonists" is applied to children born of soldiers and therefore liable to conscription.]

[Footnote 2: See Vol. I, p. 395, n. 1.]

The duty of enlisting the recruits was imposed upon the Jewish communes, or *Kahals*, which were to elect for that purpose between three and six executive officers, or "trustees," in every city. The community as such was held responsible for the supply of a given number of recruits from its own midst. It was authorized to draft into military service any Jew guilty

"of irregularity in the payment of taxes, of vagrancy, and other misdemeanors." In case the required number of recruits was not forthcoming within a given term, the authorities were empowered to obtain them from the derelict community "by way of execution." [1] Any irregularity on the part of the recruiting "trustees" was to be punished by the imposition of fines or even by sending them into the army.

[Footnote 1: The term "execution" (*ekzekutzia*) is used in Russian to designate a writ empowering an officer to carry a judgment into effect, in other words, to resort to forcible seizure.]

The following categories of Jews were exempted from military duty: merchants holding membership in guilds, artisans affiliated with trade-unions, mechanics in factories, agricultural colonists, rabbis, and the Jews, few and far between at that time, who had graduated from a Russian educational institution. Those exempted from military service in kind were required to pay "recruiting money," one thousand rubles for each recruit. The general law providing that a regular recruit could offer as his substitute a "volunteer" was extended to the Jews, with the proviso that the volunteer must also be a Jew.

The "Instructions" to the civil authorities, appended to the statute, specify the formalities to be followed both at the recruiting stations and in administering the oath of allegiance to the conscripts in the synagogues. The latter ceremony was to be marked by gloomy solemnity. The recruit was to be arrayed in his prayer-shawl (Tallith) and shroud (Kittel). With his phylacteries wound around his arm, he should be placed before the Ark and, amidst burning candles and to the accompaniment of shofar blasts, made to recite a lengthy awe-inspiring oath. The "Instructions" to the military authorities accompanying the statute prescribe that every batch of Jewish conscripts "shall be entrusted to a special officer to be watched over, prior

to their departure for their places of destination, and shall be kept apart from the other recruits." Both in the places of conscription and on the journey the Jewish recruits were to be quartered exclusively in the homes of Christian residents.

The promulgated "military constitution" surpassed the very worst apprehension of the Jews. All were staggered by this sudden blow, which descended crushingly upon the mode of life, the time-honored traditions, and the religious ideals of the Jewish people. The Jewish family nests became astir, trembling for their fledglings. Barely a month after the publication of the military statute, the central Government in St. Petersburg was startled by the report that the Volhynian town of Old-Constantine had been the scene of "mutiny and disorders among the Jews" on the occasion of the promulgation of the ukase. Benckendorff, the Chief of the Gendarmerie, [1] conveyed this information to the Tzar, who thereupon gave orders that "in all similar cases the culprits be court-martialed". Evidently, the St. Petersburg authorities apprehended a whole series of Jewish mutinies, as a result of the dreadful ukase, and they were ready with extraordinary measures for the emergency.

[Footnote 1: Since 1827 the Gendarmerie served as the executive organ of the political police, or of the so-called Third Section, dreaded throughout Russia on account of its relentless cruelty in suppressing the slightest manifestation of liberal thought. The Third Section was nominally abolished in 1880.]

However, their apprehensions were unfounded. Apart from the incident referred to, there were no cases of open rebellion against the authorities. As a matter of fact, even in Old-Constantine, the "mutiny" was of a nature little calculated to be dealt with by a court-martial. According to the local tradition, the Jewish residents, Hasidim almost to a man, were so

profoundly stirred by the imperial ukase that they assembled in the synagogues, fasting and praying, and finally resolved to adopt "energetic" measures. A petition reciting their grievances against the Tzar was framed in due form and placed in the hands of a member of the community who had just died, with the request that the deceased present it to the Almighty, the God of Israel. This childlike appeal to the heavenly King from the action of an earthly sovereign and the emotional scenes accompanying it were interpreted by the Russian authorities as "mutiny." Under the patriarchal conditions of Jewish life prevailing at that time a political protest was a matter of impossibility. The only medium through which the Jews could give vent to their burning national sorrow was a religious demonstration within the walls of the synagogue.

3. MILITARY MARTYRDOM

The ways and means by which the provisions of the military statute were carried into effect during the reign of Nicholas I. we do not learn from official documents, which seem to have drawn a veil over this dismal strip of the past. Our information is derived from sources far more communicative and nearer to truth—the traditions current among the people. Owing to the fact that every Jewish community, at the mutual responsibility of all its members, was compelled by law to supply a definite number of recruits, and that no one was willing to become a soldier of his own volition, the Kahal administration and the recruiting "trustees," who had to answer to the authorities for any shortage in recruits, were practically forced to become a sort of police agents, whose function it was to "capture" the necessary quota of recruits. Prior to every military conscription, the victims marked for prey, the young men and boys of the burgher class, [1] very generally took to flight, hiding in distant cities, outside the zone of

their Kahals, or in forests and ravines. A popular song in Yiddish refers to these conditions in the following words;

[Footnote 1: Compare on the status of the burgher in Russian law Vol. I, p. 308, n. 2. Nearly all the higher estates were exempt.]

*Der Ukas is arobgekumen auf judische Selner,
Seinen mir sich zuloften in die puste Wälder.....
In alle puste Wälder seinen mir zuloften,
In puste Gruber seinen mir verloften..... Oi weih, oi weih!_....[1]*

[Footnote 1:

When the ukase came down about Jewish soldiers,
We all dispersed over the lonesome forests;
Over the lonesome forests did we disperse,
In lonesome pits did we hide ourselves.... Woe me, Woe!]

The recruiting agents hired by the Kahal or its "trustees," who received the nickname "hunters" or "captors," [1] hunted down the fugitives, trailing them everywhere and capturing them for the purpose of making up the shortage. In default of a sufficient number of adults, little children, who were easier "catch," were seized, often enough in violation of the provision of the law. Even boys under the required age of twelve, sometimes no more than eight years old, were caught and offered as conscripts at the recruiting stations, their age being misstated. [2] The agents perpetrated incredible cruelties. Houses were raided during the night, and children were torn from the arms of their mothers, or lured away and kidnapped.

[Footnote 1: More literally "catchers"; in Yiddish *Khappers*.]

[Footnote 2: This was the more easy, as regular birth-registers were not yet in existence.]

After being captured, the Jewish conscripts were sent into the recruiting jail where they were kept in confinement until their examination at the recruiting station. The enlisted minors were turned over to a special officer to be dispatched to their places of destination, mostly in the Eastern provinces including Siberia. For it must be noted that the cantonists were stationed almost to a man in the outlying Russian governments, where they could be brought up at a safe distance from all Jewish influences. The unfortunate victims who were drafted into the army and deported to these far-off regions were mourned by their relatives as dead. During the autumnal season, when the recruits were drafted and deported, the streets of the Jewish towns resounded with moans. The juvenile cantonists were packed into wagons like so many sheep and carried off in batches under a military convoy. When they took leave of their dear ones it was for a quarter of a century; in the case of children it was for a longer term, too often it was good-bye for life.

How these unfortunate youngsters were driven to their places of destination we learn from the description of Alexander Herten, [1] who chanced to meet a batch of Jewish cantonists on his involuntary journey through Vyatka, in 1835. At one of the post stations in some God-forsaken village of the Vyatka government he met the escorting officer. The following dialogue ensued between the two:

[Footnote 1: Herten, a famous Russian writer (d. 1870), was exiled to the government of Vyatka for propagating liberal doctrines.]

"Whom do you carry and to what place?"

"Well, sir, you see, they got together a bunch of these accursed Jewish youngsters between the age of eight and nine. I suppose they are meant for the fleet, but how should I know? At first the command was to drive them to Perm. Now there is a change. We are told to drive them to Kazan. I have had them on my hands for a hundred versts or thereabouts. The officer that turned them over to me told me they were an awful nuisance. A third of them remained on the road (at this the officer pointed with his finger to the ground). Half of them will not get to their destination," he added.

"Epidemics, I suppose?", I inquired, stirred to the very core.

"No, not exactly epidemics; but they just fall like flies. Well, you know, these Jewish boys are so puny and delicate. They can't stand mixing dirt for ten hours, with dry biscuits to live on. Again everywhere strange folks, no father, no mother, no caresses. Well then, you just hear a cough and the youngster is dead. Hello, corporal, get out the small fry!"

The little ones were assembled and arrayed in a military line. It was one of the most terrible spectacles I have ever witnessed. Poor, poor children! The boys of twelve or thirteen managed somehow to stand up, but the little ones of eight and ten.... No brush, however black, could convey the terror of this scene on the canvas.

Pale, worn out, with scared looks, this is the way they stood in their uncomfortable, rough soldier uniforms, with their starched, turned-up collars, fixing an inexpressibly helpless and pitiful gaze upon the garrisoned soldiers, who were handling them rudely. White lips, blue lines under the eyes betokened either fever or cold. And these poor children, without care, without a caress, exposed to the wind which blows unhindered from the Arctic Ocean, were marching to their death. I

seized the officer's hand, and, with the words: "Take good care of them!", threw myself into my carriage. I felt like sobbing, and I knew I could not master myself....

The great Russian writer saw the Jewish cantonists on the road, but he knew nothing of what happened to them later on, in the recesses of the barracks into which they were driven. This terrible secret was revealed to the world at a later period by the few survivors among these martyred Jewish children.

Having arrived at their destination, the juvenile conscripts were put into the cantonist battalions. The "preparation for military service" began with their religious re-education at the hands of sergeants and corporals. No means was neglected so long as it bade fair to bring the children to the baptismal font. The authorities refrained from giving formal instructions, leaving everything to the zeal of the officers who knew the wishes of their superiors. The children were first sent for spiritual admonition to the local Greek-Orthodox priests, whose efforts, however, proved fruitless in nearly every case. They were then taken in hand by the sergeants and corporals who adopted military methods of persuasion.

These brutal soldiers invented all kinds of tortures. A favorite procedure was to make the cantonists get down on their knees in the evening after all had gone to bed and to keep the sleepy children in that position for hours. Those who agreed to be baptized were sent to bed, those who refused were kept up the whole night till they dropped from exhaustion. The children who continued to hold their own were flogged and, under the guise of gymnastic exercises, subjected to all kinds of tortures. Those that refused to eat pork or the customary cabbage soup prepared with lard were beaten and left to starve. Others were fed on salted fish and then forbidden to drink, until the little ones, tormented by thirst, agreed to embrace Christianity.

The majority of these children, unable to endure the tortures inflicted on them, saved themselves by baptism. But many cantonists, particularly those of a maturer age (between fifteen and eighteen), bore their martyrdom with heroic patience. Beaten almost into senselessness, their bodies striped by lashes, tormented to the point of exhaustion by hunger, thirst, and sleeplessness, the lads declared again and again that they would not betray the faith of their fathers. Most of these obstinate youths were carried from the barracks into the military hospitals to be released by a kind death. Only a few remained alive.

Alongside of this passive heroism there were cases of demonstrative martyrdom. One such incident has survived in the popular memory. The story goes that during a military parade [1] in the city of Kazan the battalion chief drew up all the Jewish cantonists on the banks of the river, where the Greek-Orthodox priests were standing in their vestments, and all was ready for the baptismal ceremony. At the command to jump into the water, the boys answered in military fashion "Aye, aye!" Whereupon they dived under and disappeared. When they were dragged out, they were dead. In most cases, however, these little martyrs suffered and died noiselessly, in the gloom of the guard-houses, barracks, and military hospitals. They strewed with their tiny bodies the roads that led into the outlying regions of the Empire, and those that managed to get there were fading away slowly in the barracks which had been turned into inquisitorial dungeons. This martyrdom of children, set in a military environment, represents a singular phenomenon even in the extensive annals of Jewish martyrology.

[Footnote 1: A variant of the legend speaks of a review by the Tzar himself.]

Such was the lot of the juvenile cantonists. As for the adult recruits, who were drafted into the army at the normal age of conscription (18-25), their

conversion to Christianity was not pursued by the same direct methods, but their fate was not a whit less tragic from the moment of their capture till the end of their grievous twenty-five years' service. Youths, who had no knowledge of the Russian language, were torn away from the heder or yeshibah, often from wife and children.

In consequence of the early marriages then in vogue, most youths at the age of eighteen were married. The impending separation for a quarter of a century, added to the danger of the soldier's apostasy or death in far-off regions, often disrupted the family ties. Many recruits, before entering upon their military career, gave their wives a divorce so as not to doom them to perpetual widowhood.

At the end of 1834 rumors began to spread among the Jewish masses concerning a law which was about to be issued forbidding early marriages but exempting from conscription those married prior to the promulgation of the law. A panic ensued. Everywhere feverish haste was displayed in marrying off boys from ten to fifteen years old to girls of an equally tender age. Within a few months there appeared in every city hundreds and thousands of such couples, whose marital relations were often confined to playing with nuts or bones. The misunderstanding which had caused this senseless matrimonial panic or *beholoh*,^[1] as it was afterwards popularly called, was cleared up by the publication, on April 13, 1835, of the new "Statute on the Jews." To be sure, the new law contained a clause forbidding marriages before the age of eighteen, but it offered no privileges for those already married, so that the only result of the *beholoh* was to increase the number of families robbed by conscription of their heads and supporters.

[Footnote 1: A Hebrew word, also used in Yiddish, meaning *fright*, *panic*.]

The years of military service were spent by the grown-up Jewish soldiers amidst extraordinary hardships. They were beaten and ridiculed because of their inability to express themselves in Russian, their refusal to eat *trefa*, and their general lack of adaptation to the strange environment and to the military mode of life. And even when this process of adaptation was finally accomplished, the Jewish soldier was never promoted beyond the position of a non-commissioned under-officer, baptism being the inevitable stepping-stone to a higher rank. True, the Statute on Military Service promised those Jewish soldiers who had completed their term in the army with distinction admission to the civil service, but the promise remained on paper so long as the candidates were loyal to Judaism. On the contrary, the Jews who had completed their military service and had in most cases become invalids were not even allowed to spend the rest of their lives in the localities outside the Pale, in which they had been stationed as soldiers. Only at a later period, during the reign of Alexander II., was this right accorded to the "Nicholas soldiers" [1] and their descendants.

[Footnote 1: In Russian, *Nikolayevskiye soldaty*, i.e., those that had served in the army during the reign of Nicholas I.]

The full weight of conscription fell upon the poorest classes of the Jewish population, the so-called burgher estate, [1] consisting of petty artisans and those impoverished tradesmen who could not afford to enrol in the mercantile guilds, though there are cases on record where poor Jews begged from door to door to collect a sufficient sum of money for a guild certificate in order to save their children from military service. The more or less well-to-do were exempted from conscription either by virtue of their mercantile status or because of their connections with the Kahal leaders who had the power of selecting the victims.

[Footnote 1: See above, p. 23, n. 1.]

4. THE POLICY OF EXPULSIONS

In all lands of Western Europe the introduction of personal military service for the Jews was either accompanied or preceded by their emancipation. At all events, it was followed by some mitigation of their disabilities, serving, so to speak, as an earnest of the grant of equal rights. Even in clerical Austria, the imposition of military duty upon the Jews was preceded by the *Toleranz Patent*, this would-be Act of Emancipation. [1]

[Footnote 1: Military service was imposed upon the Jews of Austria by the law of 1787. Several years previously, on January 2, 1782, Emperor Joseph II. had issued his famous Toleration Act, removing a number of Jewish disabilities and opening the way to their assimilation with the environment. Nevertheless, most of the former restrictions remained in force.]

In Russia the very reverse took place. The introduction of military conscription of a most aggravating kind and the unspeakable cruelties attending its practical execution were followed, in the case of the Jews, by an unprecedented recrudescence of legislative discrimination and a monstrous increase of their disabilities. The Jews were lashed with a double knout, a military and a civil. In the same ill-fated year which saw the promulgation of the conscription statute, barely three months after it had received the imperial sanction, while the moans of the Jews, fasting and praying to God to deliver them from the calamity, were still echoing in the synagogues, two new ukases were issued, both signed on December 2, 1827—the one decreeing the transfer of the Jews from all villages and village inns in the government of Grodno into the towns and townlets, the other ordering the banishment of all Jewish residents from the city of Kiev.

The expulsion from the Grodno villages was the continuation of the policy of the *rural* liquidation of Jewry, inaugurated in 1823 in White Russia. [1] The Grodno province was merely meant to serve as a starting point. Grand Duke Constantine, [2] who had brought up the question, was ordered "*at first* to carry out the expulsion in the government of Grodno alone," and to postpone for a later occasion the application of the same measure to the other "governments entrusted to his command." Simultaneously considerable foresight was displayed in instructing the grand duke to wait with the expulsion of the Jews "until the conclusion of the military conscription going on at present." Evidently there was some fear of disorders and complications. It was thought wiser to seize the children for the army first and then to expel the parents—to get hold of the young birds and then to destroy the nest.

[Footnote 1: It may be remarked here that the principal enactments of that period, down to 1835, were, drafted in their preliminary stage by the "Jewish Committee" established in 1823. See Vol. I, p. 407 *et seq.*]

[Footnote 2: Commander-in-Chief of the former Polish provinces. See p. 16, n. 2.]

The expulsion from Kiev was of a different order. It marked the beginning of a new system, the narrowing down of the *urban* area allotted to the Jews within the Pale of Settlement. Since 1794 [1] the Jews had been allowed to settle in Kiev freely. They had formed there, with official sanction, an important community and had vastly developed commerce and industry. Suddenly, however, the Government discovered that "their presence is detrimental to the industry of this city and to the exchequer in general, and is, moreover, at variance with the rights and privileges conferred at different periods upon the city of Kiev." The discovery was followed by a grim rescript from St. Petersburg, forbidding not only the

further settlement of Jews in Kiev but also prescribing that even those settled there long ago should leave the city within one year, those owning immovable property within two years. Henceforward only the temporary sojourn of Jews, for a period not exceeding six months, was to be permitted and to be limited, moreover, to merchants of the first two guilds who arrive "in connection with contracts and fairs" or to attend to public bids and deliveries.

[Footnote 1: See Vol. I, p. 317.]

In 1829 the whip of expulsion cracked over the backs of the Jews dwelling on the shores of the Baltic and the Black Sea. In Courland and Livonia measures were taken "looking to the reduction of the number of Jews" which had been considerably swelled by the influx of "newcomers"—of Jews not born in those provinces and therefore having no right to settle there. The Tzar endorsed the proposal of the "Jewish Committee" to transfer from Courland all Jews not born there into the cities in which their birth was registered. Those not yet registered in a municipality outside the province were granted a half-year's respite for that purpose. If within the prescribed term they failed to attend to their registration, they were to be sent to the army, or, in case of unfitness for military service, deported to Siberia.

In the same year an imperial ukase declared that "the residence of civilian Jews in the cities of Sevastopol and Nicholayev was inconvenient and injurious," in view of the military and naval importance of these places, and therefore decreed the expulsion of their Jewish residents: those owning real property within two years, the others within one year. By a new ukase issued in 1830 the Jews were expelled from the villages and hamlets of the government of Kiev. Thus were human beings hurled about from village to

town, from city to city, from province to province, with no more concern than might be displayed in the transportation of cattle.

This process of "mobilization" had reached its climax when the Polish insurrection of 1830-1831 broke out, affecting the whole Western region. [1] Fearing lest the persecuted Jews might be driven into the arms of the Poles, the Government decided on a strategic retreat. In February, 1831, in consequence of the representations of the local military commander, who urged the Government "to take into consideration the present political circumstances, in which they (the Jews) may occasionally prove useful," the final expulsion of the Jews from Kiev was postponed for three years. At the end of the three years, the governor of Kiev made similar representations to St. Petersburg, emphasizing the desirability of allowing the Jews to remain in the city, even though it might become necessary to segregate them in a special quarter, "this (i.e., their remaining in the city) being found useful also in this respect that, on account of their temperate and simple habits of life, they are in a position to sell their goods considerably cheaper, whereas in the case of their expulsion many articles and manufactures will rise in price." Nicholas I. rejected this plea, and only agreed to postpone the expulsion until February, 1835, for the reason that the new "Statute Concerning the Jews," then in preparation, which was to define the general legal status of Russian Jewry, was expected to be ready by that time. Similar short reprieves were granted to the Jews about to be exiled from Nicholayev, from the villages of the government of Kiev, and from other places.

[Footnote 1: See above, p. 16, n. 1.]

5. THE CODIFICATION OF JEWISH DISABILITIES

No sooner had the conscription ukase been issued than the bureaucrats of St. Petersburg began to apply themselves in the hidden recesses of their chancelleries to a new civil code for the Jews, which was to supersede the antiquated Statute of 1804. The work passed through a number of departments. The projected enactment was framed by the "Jewish Committee," which had been established in 1823 for the purpose of bringing about "a reduction of the number of Jews in the monarchy," and consisted of cabinet ministers and the chiefs of departments. [1] Originally the department chiefs had elaborated a draft covering 1230 clauses, a gigantic code of disabilities; evidently founded on the principle that in the case of Jews everything is forbidden which, is not permitted by special legislation. The dimensions of the draft were such that even the Government was appalled and decided to turn it over to the ministerial members of the Committee.

[Footnote 1: See Vol. I, p. 407 et seq.]

Modified in shape and reduced in size, the code was submitted in 1834 to the Department of Laws forming part of the Council of State, and after careful discussion by the Department of Laws was brought up at the plenary sessions of the Council. The "ministerial" draft, though smaller in bulk, was marked by such severity that the Department of Laws found it necessary to tone it down. The ministers, with the exception of the Minister of Finance, had proposed to transfer all Jews, within a period of three years, from the villages to the towns and townlets. The Department of Laws considered this measure too risky, pointing to the White Russian expulsion of 1823, which had failed to produce the expected results, and, "while it has ruined the Jews, it does not in the least seem to have improved the condition of the villagers." [1] The plenum of the Council agreed with the Department of Laws that "the proposed expulsion of the Jews (from the villages), being extremely difficult of execution and being of problematic benefit, should be

eliminated from the Statute and should be stopped even there where it had been decreed but not carried into effect."

[Footnote 1: Compare Vol. I, p. 407.]

The report was laid before the Tzar, who attached to it the following "resolution": [1] "Where this measure (of expulsion) has been started, it is inconvenient to repeal it; but it shall be postponed for the time being in the governments in which no steps towards it have as yet been made." For a number of years this "resolution" hung like the sword of Damocles over the heads of rural Jewry.

[Footnote 1: See on the meaning of the term "resolution" Vol. I, p. 253, n. 1.]

Less yielding was the Tzar's attitude on the question of the partial enlargement of the Pale of Settlement. The Department of Laws had suggested to grant the merchants of the first guild the right of residence in the Russian interior in the interest of the exchequer and big business. At the general meeting of the Council of State only a minority (thirteen) voted for the proposal. The majority (twenty-two) argued that they had no right to violate the time-honored tradition, "dating from the time of Peter the Great," which bars the Jews from the Russian interior; that to admit them "would produce a very unpleasant impression upon our people, which, on account of its religious notions and its general estimate of the moral peculiarities of the Jews, has become accustomed to keep aloof from them and to despise them;" that the countries of Western Europe, which had accorded full citizenship to the Jews, "cannot serve as an example for Russia, partly because of the incomparably larger number of Jews living here, partly because our Government and people, with all their well-known tolerance, are yet far from that indifference with which certain other nations look upon religious matters." After marking his approval of the last words

by the marginal exclamation "Thank God!", the Tzar disposed of the whole matter in the following brief resolution: "This question has been determined by Peter the Great. I dare not change it; I completely share the opinion of the twenty-two members."

While on this occasion the Tzar endorsed the opinion of the Council as represented by its majority, in cases in which it proved favorable to the Jews he did not hesitate to set it aside. Thus the Department of Laws, as part of the Council of State, and, following in its wake, the Council itself had timidly suggested to Nicholas to comply in part with the plea of the Jews for a mitigation of the rigors of conscription, [1] but the imperial verdict read: "To be left as heretofore." Nicholas remained equally firm on the question of the expulsions from Kiev. The Department of Laws, guided by the previously-mentioned representations of the local governor, favored the postponement of the expulsion, and fourteen members of the plenary Council agreed with the suggestion of the Department, and resolved to recommend it to the "benevolent consideration of his Majesty," in other words to request the Tzar to revoke the baneful ukase. But fifteen, members rejected all such propositions on the ground that, as far as that question was concerned, the imperial will was unmistakable, the Tzar having decided the matter in a sense unfavorable to the Jews. In a similar manner, numerous other decisions of the Council of State were dictated not so much by inner conviction as by fear of the clearly manifested imperial will, which no one dared to cross.

[Footnote 1: The Kahal of Vilna, in a memorandum submitted in 1835, pleaded for the abolition of the dreadful institution of cantonists, and begged that the age limit of Jewish recruits be raised from 12-15 to 20-35.]

Under these circumstances, the entire draft of the statute passed through the Council of State. In its session of March 28, 1835, the Council voted to

submit it to the emperor for his signature. On this occasion a solitary and belated voice was raised in defence of the Jews, without evoking an echo. A member of the Council, Admiral Greig, who was brave enough to swim against the current, submitted a "special opinion" on the proposed statute, in which he advocated a number of alleviations in the intolerable legal status of the Jews. Greig put the whole issue in a nut-shell: "Are the Jews to be suffered in the country, or not?" If they are, then we must abandon the system "of hampering them in their actions and in their religious customs" and grant them at least "equal liberty of commerce with the others," for in this case "we may anticipate more good from their gratitude than from their hatred." Should, however, the conclusion be reached that the Jews ought not to be tolerated in Russia, then the only thing to be done is "to banish them all without exception from the country into foreign lands." This might be "more useful than to allow this estate to remain in the country and to keep it in a position which is bound to arouse in them continual dissatisfaction and resentment." It need scarcely be added that the voice of the "queer" admiral found no hearing.

Nor did the Jewish people manage to get a hearing. Stunned by the uninterrupted succession of blows and moved by the spirit of martyrdom, Russian Jewry kept its peace during those dismal years. Yet, when the news of an impending general regulation of the Jewish legal status began to leak out, a section of Russian Jewry became astir. For to anticipate a blow is more excruciating than to receive one, and it was quite natural that an attempt should be made to stay the hand which was lifted to strike. Towards the end of 1833 the Council of State received, as part of the material bearing on the Jewish question, two memoranda, one from the Kahal of Vilna, signed by six elders, and another from Litman Feigin of Chernigov, well known in administrative circles as merchant and public contractor.

The Kahal of Vilna declared that the repressive policy, pursued during the last few years by the "Jewish Committee," had thrown a large part of the Jewish people "into utmost disorder," and had made the Jews "shiver and shudder at the thought that a general Jewish statute had been drafted by the same Committee and had now been submitted to the Council of State for revision." The petitioners go on to say that, weighed down by a succession of cruel discriminations affecting not only their rights but also their mode of discharging military service, the Jews would succumb to utter despair, did they not repose their hopes in the benevolence of the Tzar, who, on his recent trip through the Western provinces, had expressed to the deputies of the Jewish communes his imperial satisfaction with the loyalty to the throne displayed by the Jews during the Polish insurrection of 1831. The Kahal of Vilna, therefore, implored the Council of State "to turn its attention to this unfortunate and maligned people" and to stop all further persecutions.

A more emphatic note of protest is sounded in the memorandum of Feigin. By a string of references to the latest Government measures he demonstrates the fact that "the Jewish people is hunted down, not because of its moral qualities but because of its faith."

The Jews, faced by the new statute, have lost all hope for a better lot, inasmuch as the Government has embarked upon this measure without having solicited the explanations or justifications of this people, whereas, according to common legal procedure, even an individual may not be condemned without having been called upon to justify himself.

The rebuke had no effect. The Government preferred to render its verdict *in absentia*, without listening to counsel for the defence and without any safeguards of fair play. In line with this attitude, it also denied the petition of the Vilna Kahal to be allowed "to send at least four deputies to the capital as spokesmen of the entire Jewish people for the purpose of submitting to

the Government their explanations and propositions concerning the reorganization of the Jews, after having been presented with a draft of the statute." The final verdict was pronounced in the spring of 1835, and in April the new "Statute concerning the Jews" received the signature of the Tzar.

This "Charter of Disabilities," which was destined to operate for many decades, represents a combination of the Russian "ground laws" concerning the Jews and the restrictive by-laws issued after 1804. The Pale of Settlement was now accurately defined: it consisted of Lithuania [1] and the South-western provinces, [2] without any territorial restrictions, White Russia [3] minus the Villages, Little Russia [4] minus the crown hamlets, New Russia [5] minus Nicholayev and Sevastopol, the government of Kiev minus the city of Kiev, the Baltic provinces for the old settlers only, while the rural settlements on the entire fifty-verst zone along the Western frontier were to be closed to newcomers. As for the interior provinces, only temporary "furloughs" (limited to six weeks and to be certified by gubernatorial passports) were to be granted for the execution of judicial and commercial affairs, with the proviso that the travellers should wear Russian instead of Jewish dress. The merchants affiliated with the first and second guilds were allowed, in addition, to visit the two capitals, [6] the sea-ports, as well as the fairs of Nizhni-Novgorod, Kharkov, and other big fairs for wholesale buying or selling. [7]

[Footnote 1: The present governments of Kovno, Vilna, Grodno, and Minsk.]

[Footnote 2: The governments of Volhynia and Podolia.]

[Footnote 3: The governments of Vitebsk and Moghilev.]

[Footnote 4: The governments of Chernigov and Poltava.]

[Footnote 5: The governments of Kherson, Yekaterinoslav, Tavrida, and Bessarabia.]

[Footnote 6: St. Petersburg and Moscow.]

[Footnote 7: The time-limit was six months for the merchants of the first guild and three months for those of the second.]

The Jews were further forbidden to employ Christian domestics for permanent employment. They could hire Christians for occasional services only, on condition that the latter live in separate quarters. Marriages at an earlier age than eighteen for the bridegroom and sixteen for the bride were forbidden under the pain of imprisonment—a prohibition which the defective registration of births and marriages then in vogue made it easy to evade. The language to be employed by the Jews in their public documents was to be Russian or any other local dialect, but "under no circumstances the Hebrew language."

The function of the Kahal, according to the Statute, is to see to it that the "instructions of the authorities" are carried out precisely and that the state taxes and communal assessments are "correctly remitted." The Kahal elders are to be elected by the community every three years from among persons who can read and write Russian, subject to their being ratified by the gubernatorial administration. At the same time the Jews are entitled to participation in the municipal elections; those who can read and write Russian are eligible as members of the town councils and magistracies—the supplementary law of 1836 fixed the rate at one-third, [1] excepting the city of Vilna where the Jews were entirely excluded from municipal self-government.

[Footnote 1: Compare Vol. I, p. 368.]

Synagogues may not be built in the vicinity of churches. The Russian schools of all grades are to be open to Jewish children, who "are not compelled to change their religion" (Clause 106)—a welcome provision in view of the compulsory methods which had then become habitual. The coercive baptism of Jewish children was provided for in a separate enactment, the Statute on Conscription, which is declared "to remain in force." In this way the Statute of 1835 reduces itself to a codification of the whole mass of the preceding anti-Jewish legislation. Its only positive feature was that it put a stop to the expulsion from the villages which had ruined the Jewish population during the years 1804-1830.

6. THE RUSSIAN CENSORSHIP AND CONVERSIONIST ENDEAVORS

With all its discriminations, the promulgation of this general statute was far from checking the feverish activity of the Government. With indefatigable zeal, its hands went on turning the legislative wheel and squeezing ever tighter the already unbearable vise of Jewish life. The slightest attempt to escape from its pressure was punished ruthlessly. In 1838 the police of St. Petersburg discovered a group of Jews in the capital "with expired passports," these Jews having extended their stay there a little beyond the term fixed for Jewish travellers, and the Tzar curtly decreed: "to be sent to serve in the penal companies of Kronstadt." [1] In 1840 heavy fines were imposed upon the landed proprietors in the Great Russian governments for "keeping over" Jews on their estates.

[Footnote 1: A fortress in the vicinity of St Petersburg.]

Considerable attention was bestowed by the Government on placing the spiritual life of the Jews under police supervision. In 1836 a censorship campaign was launched against Hebrew literature. Hebrew books, which

were then almost exclusively of a religious nature, such as prayer-books, Bible and Talmud editions, rabbinic, cabalistic, and hasidic writings, were then issuing from the printing presses of Vilna, Slavuta, [1] and other places, and were subject to a rigorous censorship exercised by Christians or by Jewish converts. Practically every Jewish home-library consisted of religious works of this type. The suspicions of the Government were aroused by certain Jewish converts who had insinuated that the foreign editions of these works and those that had appeared in Russia itself prior to the establishment of a censorship were of an "injurious" character. As a result, all Jewish home-libraries were subjected to a search. Orders were given to deliver into the hands of the local police, in the course of that year, all foreign Hebrew prints as well as the uncensored editions, published at any previous time in Russia, and to entrust their revision to "dependable" rabbis. These rabbis were instructed to put their stamp on the books approved by them and return the books not approved by them to the police for transmission to the Ministry of the Interior. The regulation involved the entire ancient Hebrew literature printed during the sixteenth, seventeenth, and eighteenth centuries, prior to the establishment of the Russian censorship. In order to "facilitate the supervision" over new publications or reprints from older editions, all Jewish printing presses which existed at that time in various cities and towns were ordered closed, and only those of Vilna and Kiev, [2] to which special censors were attached, were allowed to remain.

[Footnote 1: A town in Volhynia.]

[Footnote 2: The printing-press of Kiev was subsequently transferred to Zhitomir.]

As the Hebrew authors of antiquity or the Middle Ages did not fully anticipate the requirements of the Russian censors, many classic works

were found to contain passages which were thought to be "at variance with imperial enactments." By the ukase of 1836 all books of this kind, circulating in tens of thousands of copies, had to be transported to St. Petersburg under a police escort to await their final verdict. The procedure, however, proved too cumbersome, and, in 1837, the emperor, complying with the petitions of the governors, was graciously pleased to command that all these books be "delivered to the flames on the spot." This *auto-da-fé* was to be witnessed by a member of the gubernatorial administration and a special "dependable" official dispatched by the governor for the sole purpose of making a report to the central Government on every literary conflagration of this kind and forwarding to the Ministry of the Interior one copy of each "annihilated" book.

But even this was not enough to satisfy the lust of the Russian censorship. It was now suspected that even the "dependable" rabbis might pass many a book as "harmless," though its contents were subversive of the public weal. As a result, a new ukase was issued in 1841, placing the rabbinical censors themselves under Government control. All uncensored books, including those already passed as "harmless," were ordered to be taken away from the private libraries and forwarded to the censorship committees in Vilna and Kiev. The latter were instructed to attach their seals to the approved books and "deliver to the flames" the books condemned by them. Endless wagonloads of these confiscated books could be seen moving towards Vilna and Kiev, and for many years afterwards the literature of the "People of the Book," covering a period of three milleniums, was still languishing in the gaol of censorship, waiting to be saved from or to be sentenced to a fiery death by a Russian official.

It is almost unnecessary to add that the primitive method of solving the Jewish problem by means of conversion, was still the guiding principle of the Government. The Russian legislation of that period teems with

regulations concerning apostasy. The surrender of the Synagogue to the Church seemed merely a question of time. In reality, however, the Government itself believed but half-heartedly in the sincerity of the converted Jews. In 1827 the Tzar put down in his own handwriting the following resolution: "It is to be strictly observed that the baptismal ceremony shall take place unconditionally on a Sunday, and with all possible publicity, so as to remove all suspicion of a pretended adoption of Christianity." Subsequently, this watchfulness had to be relaxed in the case of those "who avoid publicity in adopting Christianity," more especially in the case of the cantonists, "who have declared their willingness to embrace the orthodox faith"—under the effect, we may add, of the tortures in the barracks. Sincerity under these circumstances was out of the question, and, in 1831, the battalion chaplains were authorized to baptize these helpless creatures, even "without applying for permission to the ecclesiastical authorities."

The barrack missionaries were frequently successful among these unfortunate military prisoners. In the imperial rescripts of that period the characteristic expression "privates from among the Jews *remaining in the above faith*" figures as a standing designation for that group of refractory and incorrigible soldiers who disturbed the officially pre-established harmony of epidemic conversions by remaining loyal to Judaism. But among the "civilian" Jews, who had not been detached from their Jewish environment, apostasy was extraordinarily rare, and law after law was promulgated in vain, offering privileges to converts or leniency to criminals who were ready to embrace the orthodox creed. [1]

[Footnote 1: Under Clause 157 of the Russian Penal Code of 1845, the penalty of the law was softened, not only in degree but also in kind, for those criminals who had embraced the Greek-Orthodox faith during the investigation or trial.]

CHAPTER XIV

COMPULSORY ENLIGHTENMENT AND INCREASED OPPRESSION

1. ENLIGHTENMENT AS A MEANS OF ASSIMILATION

There was a brief moment of respite when, in the phrase of the Russian poet, "the fighter's hand was tired of killing." The Russian Government suddenly felt the need of passing over from the medieval forms of patronage to more enlightened and perfected methods. Among the leading statesmen of Russia were men, such as the Minister of Public Instruction, Sergius Uvarov, who were well acquainted with Western European ways and fully aware of the fact that the reactionary governments of Austria and Prussia had invented several contrivances for handling the Jewish problem which might be usefully applied in their own country. Though anxious to avoid all contact with the "rotten West," and being in constant fear of European political movements, the Russian Government was nevertheless ready to seize upon the relics of "enlightened absolutism" which were still stalking about, particularly in Austria, in the early decades of the nineteenth century. As far as Prussia was concerned, the abundance of assimilated and converted Jews in that country and their attempts at religious reform, which to a missionary's imagination were identical with a change of front in favor of Christianity, had a fascination of its own for the Russian dignitaries. No wonder then that the Government yielded to the temptation to use some of

the contrivances of Western European reaction, while holding in reserve the police knout of genuine Russian manufacture.

In 1840 the Council of State was again busy discussing the Jewish question, this time from a theoretic point of view. The reports of the provincial administrators, in particular that of Bibikov, governor-general of Kiev, dwelled on the fact that even the "Statute" of 1835 had not succeeded in "correcting" the Jews. The root of the evil lay rather in their "religious fanaticism and separatism," which could only be removed by changing their inner life. The Ministers of Public Instruction and of the Interior, Uvarov and Stroganov, took occasion to expound the principles of their new system of correction before the Council of State. The discussions culminated in a remarkable memorandum submitted by the Council to Nicholas I.

In this document the Government confesses its impotence in grappling with the "defects" of the Jewish masses, such as "the absence of useful labor, their harmful pursuit of petty trading, vagrancy, and obstinate aloofness from general civic life." Its failure the Government ascribes to the fact that the evil of Jewish exclusiveness has hitherto not been attacked at its root, the latter being imbedded in the religious and communal organization of the Jews. The fountain-head of all misfortunes is the Talmud, which "fosters in the Jews utmost contempt towards the nations of other faiths," and implants in them the desire "to rule over the rest of the world." As a result of the obnoxious teachings of the Talmud, "the Jews cannot but regard their presence in any other land except Palestine as a sojourn in captivity," and "they are held to obey their own authorities rather than a strange government." This explains "the omnipotence of the Kahals," which, contrary to the law of the state, employ secret means to uphold their autonomous authority both in communal and judicial matters, using for this purpose the uncontrolled sums of the special Jewish revenue, the meat tax. The education of the Jewish youth is entrusted to melammeds, "a class of

domestic teachers immersed in profoundest ignorance and superstition," and, "under the influence of these fanatics, the children imbibe pernicious notions of intolerance towards other nations." Finally, the special dress worn by the Jews helps to keep them apart from the surrounding Christian population.

The Russian Government "had adopted a series of protective measures against the Jews," without producing any marked effect. Even the Conscription Statute "had succeeded to a limited extent only in altering the habits of the Jews." Mere promotion of agriculture and of Russian schooling had been found inadequate. The expulsions from the villages had proved equally fruitless; "the Jews, to be sure, have been ruined, but the condition of the rustics has shown no improvement."

It is evident, therefore—the Council declares—that restrictions which go only half way or are externally imposed by the police are not sufficient to direct this huge mass of people towards useful occupations. With the patience of martyrs the Jews of Western Europe had endured the most atrocious persecutions, and had yet succeeded in keeping their national type intact until the governments took the trouble to inquire more deeply into the causes separating the Jews from general civic life, so as to be able to attack the causes themselves.

After blurting out the truth that the Government's ultimate aim was the obliteration of the Jewish individuality, and modestly yielding the palm in inflicting "the most atrocious persecutions" upon the Jews to Western Europe, where after all they were receding into the past, while in Russia they were still the order of the day, the Council of State proceeds to consider "the example set by foreign countries," and lingers with particular affection over the Prussian Regulation of 1797 issued by that country for its recently occupied Polish provinces—the Prussian Emancipation Edict of

1812 the memorandum very shrewdly passes over in silence—and on the system of compulsory schooling adopted by Austria.

Taking its clue from the West, the Council delineates three ways of bringing about "a radical transformation of this people":

1: *Cultural reforms*, such as the establishment of special secular schools for the Jewish youth, the fight against the old-fashioned heders and melammeds, the transformation of the rabbinate, and the prohibition of Jewish dress.

2. *Abolition of Jewish autonomy*, consisting in the dissolution of the Kahals and the modification of the system of special Jewish taxation.

3. *Increase of Jewish disabilities*, by segregating from their midst all those who have no established domicile and are without a definite financial status, with a view of subjecting them to disciplinary correction through expulsions, legal restrictions, intensified conscription, and similar police measures.

In this manner—the memorandum concludes—it may be hoped that by co-ordinating all the particulars of this proposition with the fundamental idea of reforming the Jewish people, and *by taking compulsory measures to aid*, the goal of the Government will be attained.

As a result of this *exposé* of the Council of State, an imperial rescript was issued on December 27, 1840, calling for the establishment of a "Committee for Defining Measures looking to the Radical Transformation of the Jews of Russia." Count Kiselev, Minister of the Crown Domains, was appointed chairman. The other members included the Ministers of Public Instruction and the Interior, the Assistant-Minister of Finance, the Director

of the Second Section of the imperial chancellery, and the Chief of the Political Police, or the dreaded "Third Section." [1] The latter was entrusted with the special task "to keep a watchful eye on the intrigues and actions which may be resorted to by the Jews during the execution of this matter."

[Footnote 1: See p. 21, n. 1.]

Moreover, the *exposé* of the Council of State, which was to serve as the program of the new Committee, was sent out to the governors-general of the Western region [1] "confidentially_, for personal information and consideration." The reformatory campaign against the Jews was thus started without any formal declaration of war, under the guise of secrecy and surrounded by police precautions. The procedure to be followed by the Committee was to consider the project in the order indicated in the memorandum: first "enlightenment," then abolition of autonomy, and finally disabilities.

[Footnote 1: See above, p. 16, n. 1.]

2. UVAROV AND LILIENTHAL

An elaborate *exposé* on the question of enlightenment was composed and laid before the Committee by the Minister of Public Instruction, Sergius Uvarov. Having acquired the *bon ton* of Western Europe, Uvarov prefaces his statement by the remark that the European governments have abandoned the method of "persecution and compulsion" in solving the Jewish question and that "this period has also arrived for us." "Nations," observes Uvarov, "are not exterminated, least of all the nation which stood at the foot of Calvary." From what follows, it seems evident that the Minister is still in hopes that the gentle measures of enlightenment may attract the Jews towards the religion which derives its origin from Calvary.

The best among the Jews—he states—are conscious of the fact that one of the principal causes of their humiliation lies in the perverted interpretation of their religious traditions, that ... the Talmud demoralized and continues to demoralize their co-religionists. But nowhere is the influence of the Talmud so potent as among us (in Russia) and in the Kingdom of Poland. [1] This influence can be counteracted only by enlightenment, and the Government can do no better than to act in the spirit that animates the handful of the best among them.... The re-education of the learned section among the Jews involves at the same time the purification of their religious conceptions.

[Footnote 1: See on the meaning of the latter term Vol. I, p. 390, n. 1.]

What "purification" the author of the memorandum has in mind may be gathered from his casual remark that the Jews, who maintain their separatism, are rightly afraid of reforms: "for is not the religion of the Cross the purest symbol of universal citizenship?" This, however, Uvarov cautiously adds, should not be made public, for "it would have no other effect except that of arousing from the very beginning the opposition of the majority of the Jews against the (projected) schools."

Officially the reform must confine itself to the opening in all the cities of the Jewish Pale of elementary and secondary schools in which Jewish children should be taught the Russian language, secular sciences, Hebrew, and "religion, according to the Holy Writ." The instruction should be given in Russian, though, owing to the shortage in teachers familiar with this language, the use of German is to be admitted temporarily. The teachers in the low-grade schools shall provisionally be recruited from among melammeds who "can be depended upon"; those in the higher-grade schools shall be chosen from among the modernized Jews of Russia and Germany.

The Committee endorsed Uvarov's scheme in its principal features, and urgently recommended that, in order to prepare the Jewish masses for the impending reform, a special propagandist be sent into the Pale of Settlement for the purpose of acquainting this obstreperous nation with "the benevolent intentions of the Government." Such a propagandist was soon found in the person of a young German Jew, Dr. Max Lilienthal, a resident of Riga.

Lilienthal; who was a native of Bavaria (he was born in Munich in 1815) and a German university graduate, was a typical representative of the German Jewish intellectuals of that period, a champion of assimilation and of moderate religious reform. Lilienthal had scarcely completed his university course, when he was offered by a group of educated Jews in Riga the post of preacher and director of the new local Jewish school, one of the three modern Jewish schools then in existence in Russia.[1] In a short time Lilienthal managed to raise the instruction in secular and Jewish subjects to such a high standard of modernity that he elicited a glowing tribute from Uvarov. The Minister was struck by the idea that the Riga school might serve as a model for the net of schools with which he was about to cover the whole Pale of Settlement, and Lilienthal seemed the logical man for carrying out the planned reforms.

[Footnote 1: The other two schools were located in Odessa and in Kishinev.]

In February, 1841, Lilienthal was summoned to St. Petersburg, where he had a prolonged conversation with Uvarov. According to the testimony of the official Russian sources, he tried to persuade the Minister to abolish all "private schools," the heders, and to forbid all private teachers, the melammeds, to teach even temporarily in the projected new schools, and to import, instead, the whole teaching staff from Germany. Lilienthal himself

tells us in his Memoirs that he made bold to remind the Minister that all obstacles in the path of the desired re-education of the Russian Jews would disappear, were the Tzar to grant them complete emancipation. To this the Minister retorted that the initiative must come from the Jews themselves who first must try to "deserve the favor of the Sovereign." At any rate, Lilienthal accepted the proffered task. He was commissioned to tour the Pale of Settlement, to organize there the few isolated progressive Jews, "the lovers of enlightenment," or Maskilim, as they styled themselves, and to propagate the idea of a school-reform among the orthodox Jewish masses.

While setting out on his journey, Lilienthal himself did not fully realize the difficulties of the task he had undertaken. He was to instill confidence in the "benevolent intentions of the Government" into the hearts of a people which by an uninterrupted series of persecutions and cruel restrictions had been reduced to the level of pariahs. He was to make them believe that the Government was a well-wisher of Jewish children, those same children, who at that very time were hunted like wild beasts by the "captors" in the streets of the Pale, who were turned by the thousands into soldiers, deported into outlying provinces, and belabored in such a manner that scarcely half of them remained alive and barely a tenth remained within the Jewish fold. Guided by an infallible instinct, the plain Jewish people formulated their own simplified theory to account for the step taken by the Government: up to the present their children had been baptized through the barracks, in the future they would be baptized through the additional medium of the school.

Lilienthal arrived in Vilna in the beginning of 1842, and, calling a meeting of the Jewish Community, explained the plan conceived by the Government and by Uvarov, "the friend of the Jews." He was listened to with unveiled distrust.

The elders—Lilienthal tells us in his Memoirs [1]—sat there absorbed in deep contemplation. Some of them, leaning on their silver-adorned staffs or smoothing their long beards, seemed as if agitated by earnest thoughts and justifiable suspicions; others were engaging in a lively but quiet discussion on the principles involved; such put to me the ominous question: "Doctor, are you fully acquainted with the leading principles of our government? You are a stranger; do you know what you are undertaking? The course pursued against all denominations but the Greek proves clearly that the Government intends to have but one Church in the whole Empire; that it has in view only its own future strength and greatness and not our own future prosperity. We are sorry to state that we put no confidence in the new measures proposed by the ministerial council, and that we look with gloomy foreboding into the future."

[Footnote 1: I quote from *Max Lilienthal, American Rabbi, Life and Writings*, by David Philipson, New York, 1915, p, 264.]

In his reply Lilienthal advanced an impressive array of arguments:

What will you gain by your resistance to the new measures? It will only irritate the Government, and will determine it to pursue its system of repression, while at present you are offered an opportunity to prove that the Jews are not enemies of culture and deserve a better lot.

When questioned as to whether the Jewish community had any guarantee that the Government plan was not a veiled attempt to undermine the Jewish religion, Lilienthal, by way of reply, solemnly pledged himself to throw up his mission the moment he would find that the Government associated with it secret intentions against Judaism. [1] The circle of "enlightened" Jews in Vilna pledged its support to Lilienthal, and he left full of faith in the success of his enterprise.

[Footnote 1: Op. Cit. p. 266.]

A cruel disappointment awaited him in Minsk. Here the arguments which the opponents advanced in a passionate debate at a public meeting were of a utilitarian rather than of an idealistic nature.

So long as the Government does not accord equal rights to the Jew, general culture will only be his misfortune. The plain uneducated Jew does not balk at the low occupation of factor [1] or peddler, for, drawing comfort and joy from his religion, he is reconciled to his miserable lot. But the Jew who is educated and enlightened, and yet has no means of occupying an honorable position in the country, will be moved by a feeling of discontent to renounce his religion, and no honest father will think of giving an education to his children which may lead to such an issue. [2]

[Footnote 1: The Polish name for agent. See Vol. I, p. 170, n. 1.]

[Footnote 2: Quoted from Lilienthal's own account in *Die Allgemeine Zeitung des Judentums*, 1842, No. 41, p. 605b.]

The opponents of official enlightenment in Minsk were not content with advancing arguments that appealed to reason. Both at the meeting and in the street, Lilienthal was the target of insulting remarks from the crowd.

On his return to St. Petersburg, Lilienthal presented Uvarov with a report which convinced the Minister that the execution of the school-reform was a difficult but not a hopeless task.

On June 22, 1842, an imperial rescript was issued, placing all Jewish schools, including the heders and yeshibahs, under the supervision of the Ministry of Public Instruction. Simultaneously it was announced that the

Government had summoned a Commission of four Rabbis to meet in St. Petersburg for the purpose of "supporting the efforts of the Government" in the realization of the school-reform. This Committee was to serve Russian Jewry as a security that the school-reforms would not be directed against the Jewish religion.

At the same time Lilienthal was ordered to proceed again to the Pale of Settlement. He was directed to tour principally through the South-western and New-Russian governments and exert his influence upon the Jewish masses in accordance with the instructions received from the ministry. Before setting out on his journey, Lilienthal published a Hebrew pamphlet under the title *Maggid Yeshu'ah* ("Herald of Salvation") which called upon the Jewish communities to comply readily with the wishes of the Government. In his private letters, addressed to prominent Jews, Lilienthal expressed the assurance that the school ukase was merely the forerunner of a series of measures for the betterment of the civic status of the Jews.

This time Lilienthal met with a greater measure of success than on his first journey. In several large centers, such as Berdychev, Odessa, Kishinev, he was accorded, a friendly welcome and assured of the co-operation of the communities in making the new school system a success. Filled with fresh hopes, Lilienthal returned in 1843 to St. Petersburg to participate in the work of the "Rabbinical Commission" which had been convoked by the Government and was now holding its sessions in the capital from May till August.

The make-up of the Rabbinical Commission did not fully justify its appellation. Only two "ecclesiastics" were on it, the president of the Talmudic Academy of Volozhin, [1] Rabbi Itzhok (Isaac) Itzhaki, and the leader of the White Russian Hasidim, Rabbi Mendel Shneorsohn, [2] while the South-western region and New Russia had sent two laymen: the banker

Halperin of Berdychev, and the director of the Jewish school in Odessa, Bezalel Stern. The two representatives of the "clergy" put up a warm defence for the traditional Jewish school, the heder, endeavoring to save it from the ministerial "supervision," which aimed at its annihilation. Finally a compromise was effected: the traditional heder was to be left intact for the time being, but the proposed Crown school was to be given full scope in competing with it. The Commission even went so far as to work out a program of Jewish studies for the new type of school.

[Footnote 1: In the government of Vilna. See Vol I, p. 380, et seq.]

[Footnote 2: The grandson of Rabbi Shneur Zalman, the founder of that faction. See Vol. I, p. 372.]

The labors of the Rabbinical Commission were submitted to the Jewish Committee, under the chairmanship of Kiselev, and discussed by it in connection with the general plan of a Russian school-reform. It was necessary to find the resultant between two opposing forces: between the desire of the Government to substitute the Russian Crown school for the old-fashioned Jewish school and the determination of Russian Jewry to preserve its own school as a bulwark against the official institutions foisted upon it. The Government was bent on carrying out its policy, and found itself compelled to resort to diplomatic contrivances.

On November 13, 1844, Nicholas signed two enactments, the one a public ukase relating to "the Education of the Jewish Youth." the other a confidential rescript addressed to the Minister of Public Instruction. The public enactment called for the establishment of Jewish schools of two grades, corresponding to the courses of instruction in the parochial and county schools, and ordered the opening of two rabbinical institutes for the training of rabbis and teachers. The teaching staff in the Jewish Crown schools was to consist both of Jews and Christians. The graduates of these

schools were granted a reduction in the term of military service. The execution of the school reforms in the respective localities was placed in the hands of "School Boards," composed of Jews and Christians, which were to be appointed provisionally for that purpose.

In the secret rescript the tone was altogether different. There it was stated that "the aim pursued, in the training of the Jews is that of bringing them nearer to the Christian population and eradicating the prejudices fostered in them by the study of the Talmud"; that with the opening of the new schools the old ones were to be gradually closed or reorganized, and that as soon as the Crown schools have been established in sufficient numbers, attendance at them would become obligatory; that the superintendents of the new schools should only be chosen from among Christians; that every possible effort should be made "to put obstacles in the way of granting teaching licenses" to the melammeds who lacked a secular education; that after the lapse of twenty years no one should hold the position of teacher or rabbi without having obtained his degree from one of the official rabbinical schools.

It was not long, however, before the secret came out. The Russian Jews were terror-stricken at the thought of being robbed of their ancient school autonomy, and decided to adopt the well-tried tactics of passive resistance to all Government measures. The school-reform was making slow progress. The opening of the elementary schools and of the two rabbinical institutes in Vilna and Zhitomir did not begin until 1847, and for the first few years they dragged on a miserable existence. Lilienthal himself disappeared from the scene, without waiting for the consummation of the reform plan. In 1845 he suddenly abandoned his post at the Ministry of Public Instruction, and left Russia for ever. A more intimate acquaintance with the intentions of the leading Government circles had made Lilienthal realize that the apprehensions voiced in his presence by the old men of the Vilna

community were well-founded, and he thought it his duty to fulfill the pledge given by him publicly. From the land of serfdom, where, to use Lilienthal's own words, the only way for the Jew to make peace with the Government was "by bowing down before the Greek cross," he went to the land of freedom, the United States of America. There he occupied important pulpits in New York and Cincinnati where he died in 1882.

3. THE ABOLITION OF JEWISH AUTONOMY AND RENEWED PERSECUTIONS

No sooner had the school reform, which was tantamount to the abrogation of Jewish school autonomy, been publicly announced than the Government took steps to realize the second article of its program, the annihilation of the remnants of Jewish communal autonomy. An ukase published on December 19, 1844, ordered "the placing of the Jews in the cities and countries under the jurisdiction of the general (i.e., Russian) administration, with the abolition of the Kahals." By this ukase all the administrative functions of the Kahals were turned over to the police departments, and those of an economic and fiscal character to the municipalities and town councils; the old elective Kahal administration was to pass out of existence.

Carried to its logical conclusions, this "reform" would necessarily have led, as it actually did lead in Western Europe, to the abolition of the Jewish community, outside the narrow limits of a synagogue parish, had the Jews of Russia been placed at the same time on a footing of equality in regard to *taxation*. But such European consistency was beyond the mental range of Russian autocracy. It was neither willing to abandon the special, and for the Jews doubly burdensome, method of conscription, nor to forego the extra levies imposed upon the Jews, over and above the general state taxes, for needs which, properly speaking, should have been met by the exchequer. Thus it came about that for the sake of maintaining Jewish disabilities in the

matter of conscription and taxation, the Government itself was obliged to mitigate the blow at Jewish autonomy by allowing the institutions of Jewish "conscription trustees" and tax-collectors, elected by the Jewish communes "from among the most dependable men," to remain in force. The Government, moreover, found it necessary to establish a special department for Jewish affairs at each municipality and town council. In this way the law managed to destroy the self-government of the Kahal and yet preserve its rudimentary function as an autonomous fiscal agency which was to be continued under the auspices of the municipality. In point of fact, the Kahal, which, through its "trustees" and "captors," had acted the part of a Government tool in carrying out the dreadful military conscription, had long become thoroughly demoralized and had lost its former prestige as a great Jewish institution. Its transformation into a purely fiscal agency was merely the formal ratification of a sad fact.

Having disposed of the Kahal as a vehicle of Jewish "separatism," the Government next attacked the special Jewish "system of taxation," not to abolish it, of course, but rather to place it under a more rigorous control for the purpose of preventing it from serving in the hands of the Jews as an instrument for the attainment of specific Jewish ends. It is significant that on the same day on which the Kahal ukase was made public was also issued the new "Regulation Concerning the Basket Tax." [1] The revenue from this tax which had for a long time been imposed upon Kosher meat was originally placed at the free disposal of the Kahals, though subject, since 1839, to the combined control of the administration and municipality. According to the new enactment, the proceeds from the meat tax which was to be let to the highest bidder were to be left entirely in the hands of the gubernatorial administration. The latter was instructed to see to it that the income from the tax should first be applied to cover the fiscal arrears of the Jews, then to provide for the maintenance of the Crown schools and the

official promotion of agriculture among Jews, and only as a last item to be spent on the local charities.

[Footnote 1: The tax is called in Russian *korobochny sbor*, or, for short, *korobka*, a word related to German *Korb*. It was partly in use already under the Polish régime.]

In addition to the general basket tax, imposed upon all Jews who use Kosher meat, an "auxiliary basket tax" was instituted to be levied on immovable property as well as on business pursuits and bequests. Moreover, following the Austrian model, the Government instituted, or rather reinstituted, the "candle tax," a toll on Sabbath candles. The proceeds from this impost on a religious ceremony were to go specifically towards the organization of the Jewish Crown schools, and were placed entirely at the disposal of the Ministry of Public Instruction.

Thus in exact proportion to the curtailment of communal autonomy, voluntary self-taxation was gradually supplanted by compulsory Government taxation, a circumstance which not only increased the financial burden of the Jewish masses, but also tended to aggravate it from a moral point of view. The "tax," as the meat tax was called for short, became in the course of time one of the scourges of Jewish communal life, that same life which the "measures" of the Government had merely succeeded in disorganizing.

Anxious as the Government was to act diplomatically and, for fear of intensifying the distrust of Russian Jewry towards the new scheme, to stem the flood of restrictions during the execution of the school reform, it could not long restrain itself. The third plank in the platform of the Jewish Committee, the increase of Jewish disabilities, which had hitherto been kept in reserve, was now pressing forward, and issued forth from the recesses of the chancelleries somewhat earlier than tactical considerations might have

dictated. On April 20, 1843, while the "enlightenment" propaganda was in full swing, there suddenly appeared, in the form of a resolution appended by the Tzar's own hand to the report of the Council of Ministers, the following curt ukase:

All Jews living within the fifty verst zone along the Prussian and Austrian frontier are to be transferred into the interior of the (border) governments. Those possessing their own houses are to be granted a term of two years within which to sell them. *To be carried out without any excuses.*

On the receipt of this grim command, the Senate was at first puzzled as to whether the imperial order was a mere repetition of the former law concerning the expulsion of the Jews from the villages and hamlets on the frontier,[1] or whether it was a new law involving the expulsion of all Jews on the border, without discrimination, including those in the cities and towns. Swayed by the harsh and emphatic tone of the imperial resolution, the Senate decided to interpret the new order in the sense of a complete and absolute expulsion. This interpretation received the Tzar's approbation, except that the time-limit for the expulsion of real estate owners was extended for two years more and the ruined exiles were promised temporary relief from taxation.

[Footnote 1: See above, p. 40.]

The new catastrophe which descended upon tens of thousands of families, particularly in the government of Kovno, caused a cry of horror, not only throughout the border-zone but also abroad. When the Jews doomed to expulsion were ordered by the police to state the places whither they intended to emigrate, nineteen communities refused to comply with this demand, and declared that they would not abandon their hearths and the graves of their forefathers and would only yield to force. Public opinion in

Western Europe was running high with indignation. The French, German, and English papers condemned in no uncertain terms the policy of "New Spain." Many Jewish communities in Germany petitioned the Russian Government to revoke the terrible expulsion decree. There was even an attempt at diplomatic intervention. During his stay in England, Nicholas I. was approached on behalf of the Jews by personages of high rank. Yet the Government would scarcely have yielded to public protests, had it not become patent that it was impossible to carry out the decree without laying waste entire cities and thereby affecting injuriously the interests of the exchequer. The fatal ukase was not officially repealed, but the Government did not insist on its execution.

In the meantime the "Jewish Committee" kept up a correspondence with the governors-general in regard to the ways and means of carrying into effect the third article of its program, the "assortment," or "classification" of the Jews. The plan called for the division of all Russian Jews into two categories, into useful and useless ones. The former category was to consist of merchants affiliated with guilds, artisans belonging to trade-unions, agriculturists, and those of the burgher class who owned immovable property with a definite income. All other burghers who could not claim such a financial status and had no definite income, in other words, the large mass of petty tradesmen and paupers, were to be labelled as "useless" or "detrimental," and subjected to increased disabilities.

The inquiry of the Ministry of the Interior regarding the feasibility of such an "assortment" met with a strongly-worded rebuttal from the governor-general of New Russia, Vorontzov. While on a leave of absence in London, this Russian dignitary, who had evidently been affected by English ideas, prepared a memorandum and sent it, in October, 1843, to St. Petersburg with the request to have it submitted to the Tzar.

I venture to think—quoth Vorontzov with reference to the projected segregation of the "useless" Jews—that the application of the term "useless" to several hundred thousand people who by the will of the Almighty have lived in this Empire from ancient times is in itself both cruel and unjust. The project labels as "useless" all those numerous Jews who are engaged either in the retail purchase of goods from their original manufacturers for delivery to wholesale merchants, or in the useful distribution among the consumers of the merchandise obtained from the wholesalers. Judging impartially, one cannot help wondering how these numerous tradesmen can be regarded as useless and consequently as detrimental, if one bears in mind that by their petty and frequently maligned pursuits they promote not only rural but also commercial life.

The atrocious scheme of "assorting" the Jews is nailed down by Vorontzov as "a bloody operation over a whole class of people," which is threatened "not only with hardships, but also with annihilation through poverty."

I venture to think—with these words Vorontzov concludes his memorandum—that this measure is both harmful, and cruel. On the one side, hundreds of thousands of hands which assist petty industry in the provinces will be turned aside, when there is no possibility, and for a long time there will be none, of replacing them. On the other side, the cries and moans of such an enormous number of unfortunates will serve as a reproach to our Government not only in our own country but also beyond the confines of Russia.

Since the time of Speranski and the like-minded members of the "Jewish Committee" of 1803 and 1812[1] the leading spheres of St. Petersburg had had no chance to hear such courageous and truthful words. Vorontzov's objections implied a crushing criticism of the whole fallacious economic

policy of the Government in branding the petty tradesmen and middlemen as an injurious element and building thereon a whole system of anti-Jewish persecutions and cruelties. But St. Petersburg was not amenable to reason. The only concession wrested from the "Jewish Committee" consisted in replacing the term "useless" as applied to small tradesmen by the designation "not engaged in productive labor."

[Footnote 1: See Vol. I, p. 340.]

The cruel project continued to engage the attention of the "Jewish Committee" for a long time. In April, 1815, the chairman of the Committee, Kiselev, addressed a circular to the governors-general in which he pointed out that after the promulgation of the laws concerning the establishment of Crown schools and the abolition of the Kahals—laws-which were aimed at "the weakening of the influence of the Talmud" and the destruction of all institutions "fostering the separate individuality of the Jews"—the turn had come for carrying into effect, by means of the proposed classification, the measures directed towards "the transfer of the Jews to useful labor." Of the regulations tending to affect the Jews "culturally" the circular emphasizes the prohibition of Jewish dress to take effect after the lapse of five years.

All the regulations alluded to—Kiselev writes—have been issued and will be issued separately, *in order to conceal their interrelation and common aim from the fanaticism, of the Jews*. For this reason his Imperial Majesty has been graciously pleased to command me to communicate all the said plans to the Governors-General *confidentially*.

It would seem, however, that the Russian authorities had grossly underestimated the political sense of the Jews. They were not aware of the fact that St. Petersburg's conspiracy against Judaism had long been exposed in the Pale of Settlement, if only for the reason that the conspirators were

not clever enough to hide even for a time the chastising knout beneath the cloak of "cultural" reforms.

4. INTERCESSION OF WESTERN EUROPEAN JEWRY

The mask of the Russian Government was soon torn down also before the eyes of Western Europe. In the initial stage of Lilienthal's campaign, public-minded Jews of Western Europe were inclined to believe that a happy era was dawning upon their coreligionists in Russia. At the instance of Uvarov, Lilienthal had entered into correspondence with Philippson, Geiger, Crémieux, Montefiore, and other leaders of West-European Jewry, bespeaking their moral support on behalf of the school-reform and going so far as to invite them to participate in the proceedings of the Rabbinical Commission convened at St. Petersburg. The replies from these prominent Jews were full of complimentary references to Uvarov's endeavors. The *Allgemeine Zeitung des Judentums*,^[1] in the beginning of the forties, voiced the general belief that the era of persecutions in Russia had come to an end.

[Footnote 1: A weekly founded by Dr. Ludwig Philippson in 1837. It still appears in Berlin.]

The frontier expulsions of 1843 acted like a cold douche on these enthusiasts. They realized that the pitiless banishment of thousands of families from home and hearth was not altogether compatible with "benevolent intentions." A sensational piece of news made its rounds through Germany: the well-known painter Oppenheim of Frankfurt-on-the-Main had given up working at the large picture ordered by the leaders of several Jewish communities for presentation to the Tzar. The painting had been intended as an allegory, picturing a sunrise in a dark realm, but the happy anticipations proved a will o' the wisp, and the plan had to be given

up. Instead, Western Europe was resounding with moans from Russia, betokening new persecutions and even more atrocious schemes of restrictions. The sufferings of the Russian Jews suggested the thought that it was the duty of the influential Jews of the West to intercede on behalf of their persecuted brethren before the emperor of Russia.

The choice fell on the famous Jewish philanthropist in London, Sir Moses Montefiore, who stood in close relations to the court of Queen Victoria. Having established his fame by championing the Jewish cause in Turkey during the ritual murder trial of Damascus in 1840, Montefiore resolved to make a similar attempt in the land of the Tzar. In the beginning of 1846 he set out for Russia, ostensibly in the capacity of a traveler desirous of familiarizing himself with the condition of his coreligionists. Montefiore, who was the bearer of a personal recommendation from Queen Victoria to the Russian emperor, was received in St. Petersburg with great honors. During an audience granted to Montefiore in March, 1846, the Tzar expressed his willingness to receive from him, through the medium of the "Jewish Committee," suggestions bearing on the condition of the Russian Jews, based on the information to be gathered by him on his travels. Montefiore's journey through the Pale of Settlement, including a visit to Vilna, Warsaw, and other cities, was marked by great solemnity. He was courteously received by the highest local officials, who acted according to instructions from St. Petersburg, and he met everywhere with an enthusiastic welcome from the Jewish masses, who expected great results from his intercession before the Tzar.

Needless to say, these expectations were not realized. On his return to London, Montefiore addressed various petitions to Kiselev, the chairman of the Jewish Committee, to Minister Uvarov and to Paskevich, the then viceroy of Poland. Everywhere he pleaded for a mitigation of the harsh laws which were pressing upon his unfortunate brethren, for the restoration of

the recently abolished communal autonomy, for the harmonization of the school-reform with the religious traditions of the Jewish masses. The Tzar was informed of the contents of these petitions, but it was all of no avail.

In the same year another influential foreigner made an unsuccessful attempt to improve the condition of the Russian Jews by emigration. A rich Jewish merchant of Marseille, named Isaac Altaras, came to Russia with a proposal to transplant a certain number of Jews to Algiers, which had recently passed under French rule. Fortified by letters of recommendation from Premier Guizot and other high officials in France, Altaras entered into negotiations with the Ministers Nesselrode and Perovski in St. Petersburg and with Viceroy Paskevich in Warsaw, for the purpose of obtaining permission for a certain number of Jews to emigrate from Russia.[1] He gave the assurance that the French Government was ready to admit into Algiers, as full-fledged citizens, thousands of destitute Russian Jews, and that the means for transferring them would be provided by Rothschild's banking house in Paris. At first, while in St. Petersburg, Altaras was informed that permission to leave Russia would be granted only on condition that a fixed ransom be paid for every emigrant.

In Warsaw, however, which city he visited later, in October, 1846, he was notified that the Tzar had decided to waive the ransom. For some unexplained reason Altaras left Russia suddenly, and the scheme of a Jewish mass emigration fell through.

[Footnote 1: A law on the Russian statute books forbids the emigration of Russian citizens abroad. See later, p. 285, n. 1.]

5. THE ECONOMIC PLIGHT OF RUSSIAN JEWRY AND AGRICULTURAL EXPERIMENTS

The attempt at thinning the Jewish population by emigration having failed, the congested Jewish masses continued to gasp for air in their Pale of Settlement. The slightest effort to penetrate beyond the Pale into the interior was treated as a criminal offence. In December, 1847, the Council of State engaged in a protracted and earnest discussion about the geographical point up to which the Jewish coachmen of Polotzk should be allowed, to drive the inmates of the local school of cadets on their annual trips to the Russian capital. The discussion arose out of the fact that the road leading from Polotzk to St. Petersburg is crossed by the line separating the Pale from the prohibited interior. A proposal had been made to permit the coachmen to drive their passengers as far as Pskov. But when the report was submitted to the Tzar, he appended the following resolution: "Agreeable; though not to Pskov, but to Ostrov"—the town nearest to the Pale. Of this trivial kind were Russia's methods in curtailing Jewish rights three months before the great upheaval which in adjoining Germany and Austria dealt the death-blow to absolutism and inaugurated the era of the "Second Emancipation."

As for the economic life of the Jews, it had been completely undermined by the system of ruthless tutelage, which the Government had employed for a quarter of a century in the hope of "reconstructing" it. All these drumhead methods, such as the hurling of masses of living beings from villages into towns and from the border-zone into the interior, the prohibition of certain occupations and the artificial promotion of others, could not but result in economic ruin, instead of leading to economic reform.

Nor was the governmental system of encouraging agriculture among Jews attended by greater success. In consequence of the expulsion of tens of thousands of Jews from the villages of White Russia in 1823, some two thousand refugees had drifted into the agricultural colonies of New Russia, but all they did was to replace the human wastage from increased mortality, which, owing to the change of climate and the unaccustomed conditions of

rural life, had decimated the original settlers. During the reign of Nicholas, efforts were again made to promote agricultural colonization by offering the prospective immigrants subsidies and alleviations in taxation. Even more valuable was the privilege relieving the colonists from military service for a term of twenty-five to fifty years from the time of settlement. Yet only a few tried to escape conscription by taking refuge in the colonies. For the military regime gradually penetrated into these colonies as well. The Jewish colonist was subject to the grim tutelage of Russian "curators" and "superintendents," retired army men, who watched his every step and punished the slightest carelessness by conscription or expulsion.

In 1836 the Government conceived the idea of enlarging the area of Jewish agricultural colonization. By an imperial rescript certain lands in Siberia, situated in the government of Tobolsk and in the territory of Omsk, were set aside for this purpose. Within a short time 1317 Jews declared their readiness to settle on the new lands; many had actually started on their way in batches. But in January, 1837, the Tzar quite unexpectedly changed his mind. After reading the report of the Council of Ministers on the first results of the immigration, he put down the resolution: "The transplantation of Jews to Siberia is to be stopped." A few months later orders were issued to intercept those Jews who were on their way to Siberia and transfer them to the Jewish colonies in the government of Kherson. The unfortunate emigrants were seized on the way and conveyed, like criminals, under a military escort into places in which they were not in the least interested. Legislative whims of this kind, coupled with an uncouth system of tutelage, were quite sufficient to crush in many Jews the desire of turning to the soil.

Nevertheless, the colonization made slow progress, gradually spreading from the government of Kherson to the neighboring governments of Yekaterinoslav and Bessarabia. Stray Jewish agricultural settlements also appeared in Lithuania and White Russia. But a comparative handful of

some ten thousand "Jewish peasants" could not affect the general economic make-up of millions of Jews. In spite of all shocks, the economic structure of Russian Jewry remained essentially the same. As before, the central place in this structure was occupied by the liquor traffic, though modified in a certain measure by the introduction of a more extensive system of public leases. Above the rank and file of tavern keepers, both rural and urban, there had arisen a class of wealthy tax-farmers, who kept a monopoly on the sale of liquor or the collection of excise in various governments of the Pale. They functioned as the financial agents of the exchequer, while the Jewish employees in their mills, store-houses, and offices acted as their sub-agents, forming a class of "officials" of their own. The place next in importance to the liquor traffic was occupied by retail and wholesale commerce. The crafts and the spiritual professions came last. Pauperism was the inevitable companion of this economic organization, and "people without definite occupations" were counted by the hundreds of thousands.

6. THE RITUAL MURDER TRIAL OF VELIZH

The "ordinary" persecutions under which the Jews in Russia were groaning were accompanied by afflictions of an extraordinary kind. The severest among these were the ritual murder trials which became of frequent occurrence, tending to deepen the medieval gloom of that period. True, ritual murder cases had occurred during the reign of Alexander I., but it was only under Nicholas that they assumed a malign and dangerous form. In the year 1816, shortly before Passover, a dead body was found in the vicinity of Grodno and identified as that of the four year old daughter of a Grodno resident, Mary Adamovich. Rumors were spread among the superstitious Christian populace to the effect that the girl had been killed for ritual purposes, and the police, swayed by these rumors, set about to find the culprit among the Jews. Suspicion fell on a member of the Grodno Kahal,

Shalom Lapin, whose house adjoined that of the Adamovich family. The only "evidence" against him were a hammer and a pike found in his house. A sergeant, named Savitzki, a converted Jew, appeared as a material witness before the Commission of Inquiry, and delivered himself of a statement full of ignorant trash, which was intended to show that "Christian blood is exactly what is needed according to the Jewish religion"—here the witness referred to the Bible story of the Exodus and to two mythical authorities, "the philosopher Rossié and the prophet Azariah." He further deposed that "every rabbi is obliged to satisfy the whole Kahal under his jurisdiction by smearing with same (with Christian blood) the lintels of every house on the first day of the feast of Passover." Prompted by greed and by the desire to distinguish himself, the sergeant declared himself ready to substantiate his testimony from Jewish literature, "if the chief Government will grant him the necessary assistance."

The results of this "secret investigation" were laid before the governor of Grodno and reported by him to St. Petersburg. In reply, Alexander I. issued a rescript in February, 1817, ordering that the "secret investigation be cut short and the murderer be found out" intimating thereby that search be made for the criminal and not for the tenets of the Jewish religion. However, all efforts to discover the culprit failed, and the case was dismissed.

This favorable issue was in no small measure due to the endeavors of the "Deputies of the Jewish People," [1] in particular to Sonnenberg, the deputy from Grodno. These deputies, who were present in St. Petersburg at that time, addressed themselves to Golitzin, the Minister of Ecclesiastical Affairs, protesting against the ritual murder libel. The trial at Grodno and the ritual murder accusations which simultaneously cropped up in the Kingdom of Poland made the Minister of Ecclesiastical Affairs realize that there was in the Western region a dangerous tendency of making the Jews

the scapegoats for every mysterious murder case and of fabricating lawsuits of the medieval variety by bringing popular superstition into play. Golitzin, a Christian pietist, who was nevertheless profoundly averse to narrow ecclesiastic fanaticism, decided to strike at the root of this superstitious legend which was disgracing Poland in her period of decay and was about to fall as a dark stain upon Russia. He succeeded in impressing this conviction upon his like-minded sovereign Alexander I. In the same month in which the ukase concerning "the Society of Israelitish Christians" was published [2] Golitzin sent out the following circular to the governors, dated March 6, 1817:

[Footnote 1: See Vol. I, p. 394.]

[Footnote 2: Compare Vol. I, p. 396.]

In view of the fact that in several of the provinces acquired from Poland, cases still occur in which the Jews are falsely accused of murdering Christian children for the alleged purpose of obtaining blood, his Imperial Majesty, taking into consideration that similar accusations have on previous numerous occasions been refuted by impartial investigations and royal charters, has been graciously pleased to convey to those at the head of the governments his Sovereign will: that henceforward the Jews shall not be charged with murdering Christian children, without any evidence and purely as a result of the superstitious belief that they are in need of Christian blood.

One might have thought that this emphatic rescript would suffice to put a stop to the efforts of ignorant adventurers to resuscitate the bloody myth. And, for several years, indeed, the sinister agitation kept quiet. But towards the end of Alexander's reign it came to life again, and gave rise to the monstrous Velizh case.

In the year 1823, on the first day of the Christian Passover, a boy of three years, Theodore Yemelyanov, the son of a Russian soldier, disappeared in the city of Velizh, in the government of Vitebsk. Ten days later the child's body was found in a swamp beyond the town, stabbed all over and covered with wounds. The medical examination and the preliminary investigation were influenced by the popular belief that the child had been tortured to death by the Jews. This belief was fostered by two Christian fortune-tellers, a prostitute beggar-woman, called Mary Terentyeva, and a half-witted old maid, by the name of Yeremyeyeva, who by way of divination made the parents of the child believe that its death was due to the Jews. At the judicial inquiry, Terentyeva implicated two of the most prominent Jews of Velizh, the merchant Shmerka [1] Berlin, and Yevzik [2] Zetlin, a member of the local town council.

[Footnote 1: A popular form of the name Shemariah.]

[Footnote 2: The Russian form of *Yozel*, a variant of the name Joseph.]

Protracted investigations failed to substantiate the fabrications of Terentyeva, and in the autumn of 1884 the Supreme Court of the government of Vitebsk rendered the following verdict:

To leave the accidental death of the soldier boy to the will of God; to declare all the Jews, against whom the charge of murder has been brought on mere surmises, free from all suspicion; to turn over the soldier woman Terentyeva, for her profligate conduct, to a priest for repentance.

However, in view of the exceptional gravity of the crime, the Court recommended to the gubernatorial administration to continue its investigations.

Despite the verdict of the court, the dark forces among the local population, prompted by hatred of the Jews, bent all their efforts on putting the investigation on the wrong track. The low, mercenary Terentyeva became their ready tool. When in September, 1825, Alexander I. was passing through Velizh, she submitted a petition to him, complaining about the failure of the authorities to discover the murderer of little Theodore, whom she unblushingly designated as her own child and declared to have been tortured to death by the Jews. The Tzar, entirely oblivious of his ukase of 1817,[1] instructed the White-Russian governor-general, Khovanski, to start a new rigorous inquiry.

[Footnote 1: See above, p. 74.]

The imperial order gave the governor-general, who was a Jew-hater and a believer in the hideous libel, unrestricted scope for his anti-Semitic instincts. He entrusted the conduct of the new investigation to a subaltern, by the name of Strakhov, a man of the same ilk, conferring upon him the widest possible powers. On his arrival in Velizh, Strakhov first of all arrested Terentyeva, and subjected her to a series of cross-examinations during which he endeavored to put her on what he considered the desirable track. Stimulated by the prosecutor, the prostitute managed to concoct a regular criminal romance. She deposed that she herself had participated in the crime, having lured little Theodore into the homes of Zetlin and Berlin. In Berlin's house, and later on in the synagogue, a crowd of Jews of both sexes had subjected the child to the most horrible tortures. The boy had been stabbed and butchered and rolled about in a barrel. The blood squeezed out of him had been distributed on the spot among those present, who thereupon proceeded to soak pieces of linen in it and to pour it out in bottles.[1] All these tortures had been perpetrated in her own presence, and with the active participation both of herself and the Christian servant-girls of the two families.

[Footnote 1: According to her testimony, the Jews are in the habit of using Christian blood to smear the eyes of their new-born babies, since "the Jews are always born blind," also to mix it with the flour in preparing the unleavened bread for Passover.]

It may be added that Terentyeva did not make these statements at one time, but at different intervals, inventing fresh details at each new examination and often getting muddled in her story. The implicated servant-girls at first denied their share in the crime, but, yielding to external pressure—like Terentyeva, they, too, were sent for frequent "admonition" to a local priest, called Tarashkevich, a ferocious anti-Semite—they were gradually led to endorse the depositions of the principal material witness.

On the strength of these indictments Strakhov placed the implicated Jews under arrest, at first two highly esteemed ladies, Slava Berlin and Hannah Zetlin, later on their husbands and relatives, and finally a number of other Jewish residents of Velizh. In all forty-two people were seized, put in chains, and thrown into jail. The prisoners were examined "with a vengeance"; they were subjected to the old-fashioned judicial procedure which approached closely the methods of medieval torture. The prisoners denied their guilt with indignation, and, when confronted with Terentyeva, denounced her vehemently as a liar. The excruciating cross-examinations brought some of the prisoners to the verge of madness. But as far as Strakhov was concerned, the hysterical fits of the women, the angry speeches of the men, the remarks of some of the accused, such as: "I shall tell everything, but only to the Tzar," served in his eyes as evidence of the Jews' guilt. In his reports he assured his superior, Khovanski, that he had got on the track of a monstrous crime perpetrated by a whole Kahal, with the assistance of several Christian women who had been led astray by the Jews.

In communicating his findings to St. Petersburg, the White Russian governor-general presented the case as a crime committed on religious grounds. In reply he received the fatal resolution of Emperor Nicholas, dated August 16, 1828, to the following effect:

Whereas the above occurrence demonstrates that the Zhyds[1] make wicked use of the religious tolerance accorded to them, therefore, as a warning and as an example to others, let the Jewish schools (the synagogues) of Velizh be sealed up until farther orders, and let services be forbidden, whether in them or near them.

[Footnote 1: Compare Vol. I, p, 320, n. 2.]

The imperial resolution was couched in the fierce language of the new reign which had begun in the meantime. It rose in the bloody mist of the Velizh affair. The fatal consequences of this synchronism were not limited to the Jews of Velizh. Judging by the contents and the harsh wording of the resolution, Nicholas I. was convinced at that time of the truth of the ritual murder libel. The mysterious and unloved tribe rose before the vision of the new Tzar as a band of cannibals and evil-doers. This sinister notion can be traced in the conscription statute which was then in the course of preparation in St. Petersburg and was soon afterwards to stir Russian Jewry to its depths, dooming their little ones to martyrdom.

While punishment was to be meted out to the entire Jewish population of Russia, the fate of the Velizh community was particularly tragic. It was subjected to the terrors of a unique state of siege. The whole community was placed under suspicion. All the synagogues were shut up as if they were dens of thieves, and the hapless Jews could not even assemble in prayer to pour out their hearts before God. All business was at a standstill; the shops were closed, and gloomy faces flitted shyly across the streets of the doomed city.

The stern command from St. Petersburg ordering that the case be "positively probed to the bottom" and that the culprits be apprehended gladdened only the heart of Strakhov, the chairman of the Commission of Inquiry, who was now free to do as he pleased. He spread out the net of inquiry in ever wider circles. Terentyeva and the other female witnesses, who were fed well while in prison, and expected not only amnesty but also remuneration for their services, gave more and more vent to their imagination. They "recollected" and revealed before the Commission of Inquiry a score of religious crimes which they alleged had been perpetrated by the Jews prior to the Velizh affair, such as the murder of children in suburban inns, the desecration of church utensils and similar misdeeds.

The Commission was not slow in communicating the new revelations to the Tzar who followed vigilantly the developments in the case. But the Commission had evidently overreached itself. The Tzar began to suspect that there was something wrong in this endlessly growing tangle of crimes. In October, 1827, he attached to the report of the Commission the following resolution: "It is absolutely necessary to find out who those unfortunate children were; this ought to be easy if the whole thing is not a miserable lie." His belief in the guilt of the Jews had evidently been shaken.

In its endeavors to make up for the lack of substantial evidence, the commission, personified by Khovanski, put itself in communication with the governors of the Pale, directing them to obtain information concerning all local ritual murder cases in past years. The effect of these inquiries was to revive the Grodno affair of 1818 which had been "left to oblivion." A certain convert by the name of Gradlnski from the townlet of Bobovnya, in the government of Minsk, declared before the Commission of Inquiry that he was ready to point out the description of the ritual murder ceremony in a "secret" Hebrew work. When the book was produced and the incriminated passage translated, it was found that it referred to the Jewish rite of

slaughtering animals. The apostate, thus caught red-handed, confessed that he had turned informer in the hope of making money, and was by imperial command sent into the army. The confidence of St. Petersburg in the activity of the Velizh Commission of Inquiry vanished more and more. Khovanski was notified that "his Majesty the Emperor, having observed that the Commission bases its deductions mostly on surmises, by attaching significance to the fits and gestures of the incriminated during the examinations, is full of apprehension lest the Commission, carried away by zeal and anti-Jewish prejudice, act with a certain amount of bias and protract the case to no purpose."

Soon afterwards, in 1830, the case was taken out of the hands of the Commission which had become entangled in a mesh of lies—Strakhov had died in the meantime—, and was turned over to the Senate.

Weighed down by the nightmare proportions of the material, which the Velizh Commission had managed to pile up, the members of the Fifth Department of the Senate which was charged with the case were inclined to announce a verdict of guilty and to sentence the convicted Jews to deportation to Siberia, with the application of the knout and whip (1831). In the higher court, the plenary session of the Senate, there was a disagreement, the majority voting guilty, while three senators, referring to the ukase of 1817, were in favor of setting the prisoners at liberty, but keeping them at the same time under police surveillance.

In 1834 the case reached the highest court of the Empire, the Council of State, and here for the first time the real facts came to light. Truth found its champion in the person of the aged statesman, Mordvinov, who owned some estates near Velizh, and, being well-acquainted with the Jews of the town, was roused to indignation by the false charges concocted against them. In his capacity as president of the Department of Civil and

Ecclesiastical Affairs of the Council of State, Mordvinov, after sifting the evidence carefully, succeeded in a number of sessions to demolish completely the Babel tower of lies erected by Strakhov and Khovanski and to adduce proofs that the governor-general, blinded by anti-Jewish prejudice, had misled the Government by his communications. The Department of Civil and Ecclesiastical Affairs was convinced by the arguments of Mordvinov and other champions of the truth, and handed down a decision that the accused Jews be set at liberty and rewarded for their innocent sufferings, and that the Christian women informers be deported to Siberia.

The plenary meeting of the Council of State concurred in the decision of the Department, rejecting only the clause providing for the reward of the sufferers. The verdict of the Council of State was submitted to the Tzar and received his endorsement on January 18, 1835. It read as follows:

The Council of State, having carefully considered all the circumstances of this complex and involved case, finds that the depositions of the material female witnesses, Terentyeva, Maximova, and Koslovskaya, containing as they do numerous contradictions and absurdities and lacking all positive evidence and indubitable conclusions, cannot be admitted as legal proof to convict the Jews of the grave crimes imputed to them, and, therefore, renders the following decision:

1. The Jews accused of having killed the soldier boy Yemelyanov and of other similar deeds, which are implied in the Velizh trial, no indictment whatsoever having been found against them, shall be freed from further judgment and inquiry.

2. The material witnesses, the peasant woman Terentyeva, the soldier woman Maximova, and the Shiakhta woman[1] Kozlovskaya, having been

convicted of uttering libels, which they have not in the least been able to corroborate, shall be exiled to Siberia for permanent residence.

3. The peasant maid Yeremyeyeva, having posed among the common people as a soothsayer, shall be turned over to a priest for admonition.

[Footnote 1: i.e., a member of the Polish nobility; comp. Vol. I, p. 58, n. 1.]

After attaching his signature to this verdict. Nicholas I. added in his own handwriting the following characteristic resolution, which was not to be made public:

While sharing the view of the Council of State that in this case, owing to the vagueness of the legal deductions, no other decision than the one embodied in the opinion confirmed by me could have been reached, I deem it, however, necessary to add that I do not have, and, indeed, cannot have, the inner conviction that the murder has not been committed by the Jews. Numerous examples of similar murders.... go to show that among the Jews there probably exist fanatics or sectarians who consider Christian blood necessary for their rites. This appears the more possible, since unfortunately even among us Christians there sometimes exist such sects which are no less horrible and incomprehensible. In a word, I do not for a moment think that this custom is common to all Jews, but I do not deny the possibility that there may be among them fanatics just as horrible as among us Christians.

Having taken this idea into his head, Nicholas I. refused to sign the second decision of the Council of State, which was closely allied with the verdict: that all governors be instructed to be guided in the future by the ukase of 1817, forbidding to stir up ritual murder cases "from prejudice

only." While rejecting this prejudice in its full-fledged shape, the Tzar acknowledged it in part, in a somewhat attenuated form.

Towards the end of January of 1835 an imperial ukase reached the city of Velizh, ordering the liberation of the exculpated Jews, the reopening of the synagogues, which had been sealed since 1826, and the handing back to the Jews of the holy scrolls which had been confiscated by the police. The dungeon was now ready to give up its inmates, whose strength had been sapped by the long confinement, while several of them had died during the imprisonment. The synagogues, which had not been allowed to resound with the moans of the martyrs, were now opened for the prayers of the liberated. The state of siege which for nine long years had been throttling the city was at last taken off; the terror which had haunted the ostracized community came to an end. A new leaf was added to the annals of Jewish martyrdom, one of the gloomiest, in spite of its "happy" finale.

7. THE MSTISLAVL AFFAIR

The ritual murder trials did not exhaust the "extraordinary" afflictions of Nicholas' reign. There were cases of wholesale chastisements inflicted on more tangible grounds, when misdeeds of a few individuals were puffed up into communal crimes and visited cruelly upon entire communities. The conscription horrors of that period, when the Kahals were degraded to police agencies for "capturing" recruits, had bred the "informing" disease among the Jewish communities. They produced the type of professional informer, or *moser*[1], who blackmailed the Kahal authorities of his town by threatening to disclose their "abuses," the absconding of candidates for the army and various irregularities in carrying out the conscription, and in this way extorted "silence money" from them. These scoundrels made life intolerable, and there were occasions when the people took the law into

their own hands and secretly dispatched the most objectionable among them.

[Footnote 1: The Hebrew and Yiddish equivalent for "informer."]

A case of this kind came to light in the government of Podolia in 1836. In the town Novaya Ushitza two *mosers*, named Oxman and Schwartz, who had terrorized the Jews of the whole province, were found dead. Rumor had it that the one was killed in the synagogue and the other on the road to the town. The Russian authorities regarded the crime as the collective work of the local Jewish community, or rather of several neighboring Jewish communities, "which had perpetrated this wicked deed by the verdict of their own tribunal."

About eighty Kahal elders and other prominent Jews of Ushitza and adjacent towns, including two rabbis, were put on trial. The case was submitted to a court-martial which resolved "to subject the guilty to an exemplary punishment." Twenty Jews were sentenced to hard labor and to penal military service, with a preliminary "punishment by *Spiessruten* through five hundred men." [1] A like number were sentenced to be deported to Siberia; the rest were either acquitted or had fled from justice. Many of those who ran the gauntlet died under the strokes, and are remembered by the Jewish people in Russia as martyrs.

[Footnote 1: Both the word and the penalty were introduced by Peter the Great from Germany. The culprit was made to run between two lines of soldiers who whipped his bare shoulders with rods. The penalty was abolished in 1863.]

The scourge of informers was also responsible for the Mstislavl affair. In 1844, a Jewish crowd in the market-place of Mstislavl, a town in the government of Moghilev, came into conflict with a detachment of soldiers

who were searching for contraband goods in a Jewish warehouse. The results of the fray were a few bruised Jews and several broken rifles. The local police and military authorities seized this opportunity to ingratiate themselves with their superiors, and reported to the governor of Moghilev and the commander of the garrison that the Jews had organized a "mutiny." The local informer, Arye Briskin, a converted Jew, found this incident an equally convenient occasion to wreak vengeance on his former coreligionists for the contempt in which he was held by them, and allowed himself to be taken into tow by the official Jew-baiters.

In January, 1844, alarming communications concerning a "Jewish mutiny" reached St. Petersburg. The matter was reported to the Tzar, and a swift and curt resolution followed: "To court-martial the principal culprits implicated in this incident, and, in the meantime, as a punishment for the turbulent demeanor of the Jews of that city, to take from them one recruit for every ten men." Once more the principles of that period were applied: one for all; first punishment, then trial.

The ukase arrived in Mstislavl on the eve of Purim, and threw the Jews into consternation. During the Fast of Esther the synagogues resounded with wailing. The city was in a state of terror: the most prominent leaders of the community were thrown into jail, and had to submit to disfigurement by having half of their heads and beards shaved off. The penal recruits were hunted down, without any regard to age, since, according to the Tzar's resolution, a tenth of the population had to be impressed into military service. Pending the termination of the trial, no Jew was allowed to leave the city, while natives from Mstislavl in other places were captured and conveyed to their native town. A large Jewish community was threatened with complete annihilation.

The Jews of Mstislavl, through their spokesmen, petitioned St. Petersburg to wait with the penal conscription until the conclusion of the trial, and endeavored to convince the central Government that the local administration had misrepresented the character of the incident. To save his brethren, the popular champion of the interests of his people, the merchant Isaac Zelikin, of Monastyrchina, [1] called affectionately Rabbi Itzele, journeyed to the capital. He managed to get the ear of the Chief of the "Third Section" [2] and to acquaint him with the horrors which were being perpetrated by the authorities in Mstislavl.

[Footnote 1: A townlet in the neighborhood of Mstislavl.]

[Footnote 2: See above, p. 21, n. 1.]

As a result, two commissioners were dispatched from St. Petersburg in quick succession. On investigating the matter on the spot, they discovered the machinations of the over-zealous officials and apostasized informers who had represented a street quarrel as an organized uprising. The new commission of inquiry, of which one of the St. Petersburg commissioners, Count Trubetzkoy, was member, disclosed the fact that the Jewish community as such had had nothing whatsoever to do with what had occurred. The findings of the commission resulted in an "Imperial Act of Grace": the imprisoned Jews were set at liberty, the penal conscripts were returned from service, several local officials were put on trial, and the governor of Moghilev was severely censured.

This took place in November, 1844, after the Mstislavl community had for nine long months tasted the horrors of a state of siege. The synagogues were filled with Jews praising God for the relief granted to them. The community decreed to commemorate annually the day before Purim, on which the ukase inflicting severe punishment on the Jews of Mstislavl was promulgated, as a day of fasting and to celebrate the third day of the month

of Kislev, on which the cruel ukase was revoked, as a day of rejoicing. Had all the disasters of that era been perpetuated in the same manner, the Jewish calendar would consist entirely of these commemorations of national misfortunes, whether in the form of "ordinary" persecutions or "extraordinary" afflictions.

CHAPTER XV

THE JEWS IN THE KINGDOM OF POLAND

1. PLANS OF JEWISH EMANCIPATION

Special mention must be made of the position occupied by the Jews in the vast province which had been formed in 1815 out of the territory of the former duchy of Warsaw and annexed by Russia under the name of "Kingdom of Poland." [1] This province which from 1815 to 1830 enjoyed full autonomy, with a local government in Warsaw and a parliamentary constitution, handled the affairs of its large Jewish population, numbering between three hundred to four hundred thousand souls, independently and without regard to the legislation of the Russian Empire. Even after the insurrection of 1830, when subdued Poland was linked more closely with the Empire, the Jews continued to be subject to a separate provincial legislation. The Jews of the Kingdom remained under the tutelage of local guardians who were assiduously engaged in solving the Jewish problem during the first part of this period.

[Footnote 1: Compare Vol. I, p. 390, n. 1.]

The initial years of autonomous Poland were a time of storm and stress. After having experienced the vicissitudes of the period of partitions and the hopes and disappointments of the Napoleonic era, the Polish people

clutched eagerly at the shreds of political freedom which were left to it by Alexander I. in the shape of the "Constitutional Regulation" of 1815.[1] The Poles brought to bear upon the upbuilding of the new kingdom all the ardor of their national soul and all their enthusiasm for political regeneration. The feverish organizing activity between 1815 and 1820 was attended by a violent outburst of national sentiment, and such moments of enthusiasm were always accompanied in Poland by an intolerant and unfriendly attitude towards the Jews. With a few shining exceptions, the Polish statesmen were far removed from the idea of Jewish emancipation. They favored either "correctional" or punitive methods, though modelled after the pattern of Western European rather than of primitive Russian anti-Semitism.

[Footnote 1: The author refers to the Constitution granted by Alexander I., on November 15, 1815, to the Polish territories ceded to him by the Congress of Vienna. The Constitution vouchsafed to Poland an autonomous development under Russian auspices. It was withdrawn after the insurrection of 1830.]

In 1815 the Provisional Government in Warsaw appointed a special committee, under the chairmanship of Count Adam Chartoryski, to consider the agrarian and the Jewish problem. The Committee drew up a general plan of Jewish reorganization which was marked by the spirit of enlightened patronage. In theory the Committee was ready to concede to the Jews human and civil rights, even to the point of considering the necessity of their final emancipation. But "in view of the ignorance, the prejudices and the moral corruption to be observed among the lower classes of the Jewish and the Polish people"—the patrician members of the Committee in charge of the agrarian and Jewish problem accorded an equal share of compliments to the Jews and the Polish peasants—immediate emancipation was, in their opinion, bound to prove harmful, since it would confer upon the Jews freedom of action to the detriment of the country. It was, therefore,

necessary to demand, as a prerequisite for Jewish emancipation, the improvement of the Jewish masses which was to be effected by removal from the injurious liquor trade and inducement to engage in agriculture, by abolishing the Kahals, i.e., their communal autonomy, and by changing the Jewish school system to meet the civic requirements. In order to gain the confidence of the Jews for the proposed reforms, the Committee suggested that the Government should invite the "enlightened" representatives of the Jewish people to participate in the discussion of the projected measures of reform.

Turning their eyes towards the West, where Jewish assimilation had already begun its course, the Polish Committee decided to approach the Jewish reformer David Friedländer, of Berlin, who was, so to speak, the official philosopher of Jewish emancipation, and to solicit his opinion concerning the ways and means of bringing about a reorganization of Jewish life in Poland. The bishop of Kuyavia,[1] Malchevski, addressed himself in the name of the Polish Government to Friedländer, calling upon him, as a pupil of Mendelssohn, the educator of Jewry, to state his views on the proposed Jewish reforms in Poland. Flattered by this invitation, Friedländer hastened to compose an elaborate "Opinion on the Improvement of the Jews in the Kingdom of Poland." [2]

[Footnote 1: A former Polish province, compare Vol. I, p. 75, n. 2.]

[Footnote 2: It was written in February, 1816, and published later in 1819.]

According to Friedländer, the Polish Jews had in point of culture remained far behind their Western coreligionists, because their progress had been hampered by their talmudic training, the pernicious doctrine of Hasidism, and the self-government of their Kahals. All these influences ought, therefore, to be combated. The Jewish school should be brought into

closer contact with the Polish school, the Hebrew language should be replaced by the language of the country, and altogether assimilation and religious reform should be encouraged. While promoting religious and cultural reforms, the Government, in the opinion of Friedländer, ought to confirm the Jews in the belief that they would "receive in time civil rights if they were to endeavor to perfect themselves in the spirit of the regulations issued for them."

This flunkeyish notion of the necessity of *deserving* civil rights coincided with the views of the official Polish Committee in Warsaw. Soon afterwards a memorandum, prepared by the Committee, was submitted through its Chairman, Count Chartoryski, to the Polish viceroy Zayonchek. [1] Formerly a comrade of Koszciuszko, Zayonchek later turned from a revolutionary into a reactionary, who was anxious to curry favor with the supreme commander of the province, Grand Duke Constantine Pavlovich. [2] No wonder, therefore, that the plan of the Committee, conservative though it was, seemed too liberal for his liking. In his report to Emperor Alexander I., dated March 8, 1816, he wrote as follows:

[Footnote 1: He was appointed viceroy in 1815, after the formation of the Kingdom of Poland, and continued in this office until his death in 1826.]

[Footnote 2: He was the military commander of the province. See above, p. 13, n. 2.]

The growth of the Jewish population in your Kingdom of Poland is becoming a menace. In 1790 they formed here a thirteenth part of the whole population; to-day they form no less than an eighth. Sober and resourceful, they are satisfied with little; they earn their livelihood by cheating, and, owing to early marriages, multiply beyond measure. Shunning hard labor, they produce nothing themselves, and live only at the expense of the working classes which they help to ruin. Their

peculiar institutions keep them apart within the state, marking them as a foreign nationality, and, as a result, they are unable in their present condition to furnish the state either with good citizens or with capable soldiers. Unless means are adopted to utilize for the common weal the useful qualities of the Jews, they will soon exhaust all the sources of the national wealth and will threaten to surpass and suppress the Christian population.

In the same year, 1816, a scheme looking to the solution of the Jewish question was proposed by the Russian statesman Nicholas Novosiltzev, the imperial commissioner attached to the Provincial Government in Warsaw. [1] Novosiltzev, who was not sympathetic to the Poles, showed himself in his project to be a friend of the Jews. Instead of the principle laid down by the official Committee: "correction first, and civil rights last," he suggests another more liberal procedure: the immediate bestowal of civil and in part even political rights upon the Jews, to be accompanied by a reorganization, of Jewish life along the lines of European progress and a modernized scheme of autonomy. All communal and cultural affairs shall be put in charge of "directorates," one central directorate in Warsaw and local ones in every province of the Kingdom, after the pattern of the Jewish consistories of France. These directorates shall be composed of rabbis, elders of the community, and a commissioner representing the Government; in the central directorate this commissioner shall be replaced by a "procurator" to be appointed directly by the king.

[Footnote 1: See above, p. 16.]

This whole organization shall be placed under the jurisdiction of the Minister of Public Instruction, who shall also exercise the right of confirming the rabbis nominated by the directorates. The functions of the directorates shall include the registration of the Jewish population, the

management of the communal finances, the dispensation of charity, and the opening of secular schools for Jewish children. A certificate of graduation from such a school shall be required from every young man who applies for a marriage license or for a permit to engage in a craft or to acquire property. "All Jews fulfilling the obligations imposed by the present statute shall be accorded full citizenship," while those who distinguish themselves in science an art may even be deemed worthy of political rights, not excluding membership in the Polish Diet. For the immediate future Novosiltzev advises to refrain from economic restrictions, such as the prohibition of the liquor traffic, though he concedes the advisability of checking its growth, and advocates the adoption of a system of economic reforms by stimulating crafts and agriculture among the Jews. In the beginning of 1817 Novosiltzev's project was laid before the Polish Council of State. It was opposed with great stubbornness by Chartoryski, the Polish viceroy Zayonchek, Stashitz, and other Polish dignitaries, whose hostility was directed not so much against the pro-Jewish plan as against its Russian author. The Council of State appointed a special committee which, after examining Novosiltzev's project, arrived at the following conclusions:

1. It is impossible to carry out a reorganization of Jewish life through the Jews themselves.
2. The establishment of a separate cultural organization for the Jews will only stimulate their national aloofness.
3. The complete civil and political emancipation of the Jews is at variance with the Polish Constitution which vouchsafes special privileges to the professors of the dominant religion.

In the plenary session of the Polish Council of State the debate about Novosiltzev's project was exceedingly stormy. The Polish members of the Council scented in the project "political aims in opposition to the national

element of the country." They emphasized the danger which the immediate emancipation of the Jews would entail for Poland. "Let the Jews first become real Poles," exclaimed the referee Kozhmyan, "then will it be possible to look upon them as citizens." When the same gentleman declared that it was impossible to accord citizenship to hordes of people who first had to be accustomed to cleanliness and cured from "leprosy and similar diseases," Zayonchek burst out laughing and shouted: "Hear, hear! These sluts won't get rid of their scab so easily." After such elevating "criticism," Novosiltzev's project was voted down. The Council inclined to the belief that "the psychological moment" for bringing about a radical reorganization of the inner life of the Jews had not yet arrived, and, therefore, resolved to limit itself to isolated measures, principally of a "correctional" and repressive character.

2. POLITICAL REACTION AND LITERARY ANTI-SEMITISM

Such "measures" were not long in coming. The only restriction the Government of Warsaw failed to carry through was the enforcement of the law of 1812 forbidding the Jews to deal in liquor. This drastic measure was vetoed by Alexander I., owing to the representations of the Jewish deputies in St. Petersburg, and in 1816 the Polish viceroy was compelled to announce the suspension of this cruel law which had hung like the sword of Damocles over the heads of hundreds of thousands of Jews.

On the other hand, the Polish Government managed in the course of a few years (1816-1823) to put into operation a number of other restrictive laws. Several cities which boasted of the ancient right *de non tolerandis Judaeis*[1] secured the confirmation of this shameful privilege, with the result that the Jews who had settled there during the existence of the duchy of Warsaw were either expelled or confined to separate districts. In Warsaw

a number of streets were closed to Jewish residents, and all Jewish visitors to the capital were forced to pay a heavy tax for their right of sojourn, the so-called "ticket impost," amounting to fifteen kopecks (7½c) a day. Finally the Jews were forbidden to settle within twenty-one versts of the Austrian and Prussian frontiers. [2]

[Footnote 1: See Vol. I, pp. 85 and 95.]

[Footnote 2: The law in question was passed by the Polish Government on January 31, 1823, barring the Jews from nearly one hundred towns. It was repealed by Alexander II. in 1862. See below, p. 181.]

At the same time, the Polish legislators were fair-minded enough to refrain from forcing the Jews, these disfranchised pariahs, into military service. In 1817 an announcement was made to the effect that, so long as the Jews were barred from the enjoyment of civil rights, they would be released from personal military service in Poland, in lieu whereof they were to pay a fixed conscription tax. About the same time, during the third decade of the nineteenth century, was also realized the old-time policy of curtailing the Jewish Kahal autonomy, though, as will be seen later, this "reform" did not proceed from the Government spheres, but was rather the product of contemporary social movements among the Poles and the Jews.

The political literature of Poland manifested at that time a tendency similar to the one which had prevailed during the Quadrennial Diet.[1] Scores of pamphlets and magazine articles discussed with polemical ardor the Jewish problem, the burning question of the day. The old Jew-baiter Stashitz, a member of the Warsaw Government who served on the Commission of Public Instruction and Religious Denominations, resumed his attacks on Judaism. In 1816 he published an article under the title "Concerning the Causes of the Obnoxiousness of the Jews," in which he asserted that the Jews were responsible for Poland's decline. They

multiplied with incredible rapidity, forming now no less than an eighth of the population. Should this process continue, the Kingdom of Poland would be turned into a "Jewish country" and become "the laughing-stock of the whole of Europe." The Jewish religion is antagonistic to Catholicism: we call them "Old Testament believers," [2] while they brand us as "pagans." It being impossible to expel the Jews from Poland, they ought to be isolated like carriers of disease. They should be concentrated in separate quarters in the cities to facilitate the supervision over them. Only well-deserving merchants and craftsmen, who have plied their trade honestly for five or ten years, should be allowed to reside outside the ghetto. The same category of Jews, in addition to those married to Christian women, should also be granted the right of acquiring landed property. The ghetto on the one end of the line, and baptism on the other—this medieval policy did not in the least abash the patriotic reformers of the type of Stashitz.

[Footnote 1: Compare Vol. I, p. 279 et seq.]

[Footnote 2: Referring to the term *Starozakonni*, the Polish designation for Jews.]

Stashitz's point of view was supported by certain publicists and opposed by others, but all were agreed on the necessity of a system of correction for the Jews. The discussion became particularly heated in 1818, after the convocation and during the sessions of the first [1] Polish Diet in Warsaw. Three different tendencies asserted themselves: a moderate, an anti-Jewish, and a pro-Jewish tendency. The first was represented by General Vincent Krasinski, a member of the Diet. In his "Observations on the Jews of Poland," he proceeds from the following twofold premise: "The voice of the whole nation is raised against the Jews, and it demands their transformation." This titled publicist declares himself an opponent of the Jews as they are at present. He shares the popular dread of their

multiplication, the fear of a "Jewish Poland," and is somewhat sceptical about their being corrigible. Nevertheless he proposes liberal methods of correction, such as the encouragement of big Jewish capital, the promotion of agriculture and handicrafts among the Jewish masses, and the bestowal of the rights of citizenship upon those worthy of it.

[Footnote 1: i.e., the first to be convoked after the reconstitution of Poland in 1815.]

Krasinski was attacked by an anonymous writer in an anti-Semitic pamphlet entitled "A Remedy against the Jews." Proceeding from the conviction that no reforms, however well conceived, could have any effect on the Jews, the writer puts the question in a simplified form: "Shall we sacrifice the welfare of three million Poles to that of 300,000 Jews, or *vice versa*?" His answer is just as simple: the Jews should be forced to leave Poland. Emperor Alexander I., "the benefactor of Poland," ought to be petitioned to rid the country of the Jews by transferring them to the uninhabited steppes in the South of Russia or even "on the borders of Great Tartary." The 300,000 Jews might be divided into 300 parties and settled there in the course of one year. The means for expelling and settling the Jews should be furnished by the Jews themselves.

This barbarous project aroused the ire of a noble-minded Polish army officer, Valerian Lukasinski, a radical in politics, who subsequently landed in the dungeon of the Schlueselburg fortress. [1] In his "Reflections of an Army Officer Concerning the Need of Organizing the Jews," published in 1818, Lukasinski advances the thought that the oppression and disfranchisement of the Jews are alone responsible for their demoralized condition. They were useful citizens in the golden age of Casimir the Great and Sigismund the Old [2] when they were treated with kindness. The author lashes the hypocrisy of the Shlakhta who hold the Jews to account

for ruining the peasants by selling them alcohol in those very taverns which are leased to them by the noble pans. Lukasinski contends that the Jews will become good citizens once they will be allowed to participate in the civil life of Poland, when that life will be founded on democratic principles.

[Footnote 1: In the government of St. Petersburg.]

[Footnote 2: i.e., Sigismund I. (1506-1548). See on his attitude towards the Jews Vol. I, p. 71 et seq.]

The choir of Polish voices was but faintly disturbed by the opinions expressed by the Jews. An otherwise unknown rabbi, who calls himself Moses ben Abraham, echoes in his pamphlet "The Voice of the People of Israel" the sentiments of Jewish orthodoxy. He begs the Poles not to meddle in the inner affairs of Judaism: "You refuse to recognize us as brothers; then at least respect us as fathers! Look at your genealogical tree with the branches of the New Testament, and you will find the roots in us." Polish culture cannot be foisted upon the Jews. Barbarous as may appear the plan of expelling the Jews from Poland, the persecuted tribe will rather submit to this alternative than renounce its faith and its ancestral customs.

The views of the progressive Jews of Poland were voiced by a young pedagogue in Warsaw, subsequently the well-known champion of assimilation, Jacob Tugenhold. In a treatise entitled "Jerubbaal, or a Word Concerning the Jews," Tugenhold contends that the Jews have already begun to assimilate themselves to Polish culture. It was now within the power of the Government to strengthen this movement by admitting "distinguished Jews to civil service."

While this literary feud concerning the problem of Judaism was raging, an unhealthy movement against the Jews started among the dregs of the Polish population. In several localities of the Kingdom there suddenly

appeared "victims of ritual murder" in the shape of dead bodies of children, the discovery of which was followed by a series of legal trials against the Jews (1815-1816). Innocent people were thrown into prison, where they languished for years, and were subjected to cross-examinations, though without the inquisitorial apparatus of ancient Poland. It is impossible to say whither this orgy of superstition might have led, had it not been stopped by a word of command from St. Petersburg. In 1817, as a result of the energetic representations of "the Deputies of the Jewish People," [1] Sonnenberg and his fellow-workers, the Minister of Ecclesiastical Affairs, Golitzin, gave orders that the ukase which had just been issued by him, forbidding the arbitrary injection of a ritual element into criminal cases, be strictly enforced in the Kingdom of Poland. This action saved the lives of scores of prisoners, and put a stop to the obscure agitation which endeavored to revive the medieval spectre.

[Footnote 1: Compare Vol. I, p. 394, and above, p. 74.]

The Polish Diet of 1818 reflected the same state of mind which had previously found expression in political literature: an unmistakable preponderance of the anti-Jewish element. Some of the deputies appealed to Alexander I. in their speeches and openly called upon him to give orders to lay before the next session of the Diet "a project of Jewish reform, with a view to saving Poland from the excessive growth of the Hebrew tribe, which now forms a seventh of all the inhabitants, and in a few years will surpass in numbers the Christian population of the country." For the immediate future the deputies recommend the enforcement of the suspended law barring the Jews from the liquor traffic [1] and their subjection to military conscription.

[Footnote 1: Compare Vol. I, p. 304, and above, p. 94.]

One might have thought that the Diet had no need of extra measures to "curb" the Jews. It was quite enough that it tacitly sanctioned the prolongation of the ten years term of Jewish rightlessness which had been fixed by the Government of the Varsovian duchy in 1808. [1] This term ended in 1818, while the first Diet of the Kingdom of Poland was holding its sessions, but neither the Polish Diet nor the Polish Council of State gave any serious thought to the question whether the Government of the province had a right to prolong the disfranchisement of the Jews. This right was taken for granted by the Polish legislators who were planning even harsher restrictions for the unloved tribe of Hebrews.

[Footnote 1: Compare Vol. I, p. 299.]

3. ASSIMILATIONIST TENDENCIES AMONG THE JEWS OF POLAND

In the beginning of the third decade of the nineteenth century the noise caused by the Jewish question had begun to subside both in Polish political circles and in Polish literature. Instead, the agitation within the Jewish ranks became more vigorous. That group of Jews already assimilated or thirsting for assimilation, which on an earlier occasion, during the existence of the Varsovian duchy, had segregated itself from the rest of Jewry, assuming the label of "Old Testament believers," [1] occupied a very influential position within the Jewish community of the Polish capital. It was made up of wealthy bankers and merchants and boasted of a few men with a European education. The members of this group were hankering after German models and were anxious to renounce the national separatism of the Jews which was a standing rebuke in the mouths of their enemies. To these "Old Testament believers" the abolition of the Kahal and the limitation of communal self-government to the narrow range of synagogue interests appeared the surest remedy against anti-Semitism. Behind the abrogation of

communal autonomy they saw the smiling vision of a Jewish school-reform, leading to the Polonization of Jewish education, while in the far-off distance they could discern the promised land of equal citizenship.

[Footnote 1: See above, p. 96, n. 1.]

The efforts of the Jewish reformers of Warsaw were now systematically directed towards this goal. In 1820 there appeared an anonymous pamphlet under the title "The Petition, or Self-defence, of the Members of the Old Testament Persuasion in the Kingdom of Poland." The main purpose of this publication is to show that the root of the evil lies in the Kahal organization, in the elders, rabbis, and burial societies, who expend enormous sums of taxation money without any control—i.e., without the control of the Polish municipality—who oppress the people by their *herems* (excommunications), and altogether abuse their power. It is, therefore, necessary to abolish this power of the Kahals and transfer it to the Polish municipalities, or even, police authorities; only then will order be established in the Jewish communities, and the Jews will be transformed into "useful citizens."

The Government spheres of Poland were greatly pleased by these utterances of the "Old Testament believers" of Warsaw. They had long contemplated the curtailment of the autonomy of the Kahals, and now "the very Jews" clamored for it. In consequence, there appeared in 1821 a series of edicts by the viceroy and various rescripts by the Commission of Public Instruction and Religious Denominations, resulting in the demolition of the ancient communal scheme, in which certain forms of self-government, but by no means its underlying fundamental principles, had become obsolete.

These measures were sanctioned by an imperial ukase dated December 20, 1821, [1] decreeing the abolition of the Kahals and their substitution by "Congregational Boards," whose scope of activity was strictly limited to

religious matters, while all civil and fiscal affairs were placed under the jurisdiction of the local Polish administration. The Congregational Boards were to consist of the rabbi, his assistant or substitute, and three trustees or supervisors.

[Footnote 1: Corresponding to January 1, 1822, of the West-European calendar.]

At first, the majority of Jewish communities in Poland were indignant at this curtailment of their autonomy, and adopted a hostile attitude towards the new communal organization. The "supervisors" elected on the Congregational Boards often refused to serve, and the authorities were compelled to appoint them. But in the course of time the communities became reconciled to the new scheme of congregations, or *Gminas*,^[1] whose range of activity was gradually widened. In 1830 the suffrage of the Polish Jews within the Jewish communities was restricted by a new law to persons possessed of a certain amount of property. The result was particularly noticeable in Warsaw where the new state of things helped to strengthen the influence of the group of the "Old Testament believers" and enabled them to gain control of the affairs of the metropolitan community. The leaders of Warsaw Jewry managed soon to establish intimate relations with the Polish Government, and co-operated with it in bringing about the "cultural reforms" of the Jews of Poland.

[Footnote 1: *Gmina* is the Polish word for community, derived from the German *Gemeinde*.]

In 1825 the Polish Government appointed a special body to deal with Jewish affairs. It was called "Committee of Old Testament Believers," though composed in the main of Polish officials. It was supplemented by an advisory council consisting of five public-spirited Jews and their alternates. Among the members of the Committee, which included several prominent

Jewish merchants of Warsaw, such as Jacob Bergson, M. Kavski, Solomon Posner, T. Teplitz, was also the well-known mathematician Abraham Stern, one of the few cultured Jews of that period who remained a steadfast upholder of Jewish tradition. The "Committee of Old Testament Believers" embarked upon the huge task of civilizing the Jews of Poland and purging the Jewish religion of its superstitious excrescences.

The first step taken by the Committee was the establishment of a Rabbinical Seminary in Warsaw for the training of modernized rabbis, teachers, and communal workers. The program of the school was arranged with a view to the Polonization of its pupils. The language of instruction was Polish, and the teachers of many secular subjects were Christians. No wonder then that when the Seminary was opened in 1826, Stern refused to accept the post of director which had been offered to him, and yielded his place to Anton Eisenbaum, a radical assimilator. The tendency of the school may be gauged from the fact that the department of Hebrew and Bible was entrusted to Abraham Buchner, who had gained notoriety by a German pamphlet entitled *Die Nichtigkeit des Talmuds*, "The Worthlessness of the Talmud." [1]

[Footnote 1: He was also the author of a Jewish catechism in Hebrew, entitled *Yesode ha-Dat*, "The Fundamental Principles of the Jewish Religion."]

Characteristically enough, Buchner had been recommended by the ferocious Jew-baitor Abbé Chiarini, a member of the "Committee of Old Testament Believers," which, one might almost suspect, was charged with the supervision of Jewish education for no other reason, than that to spite the Jews. Chiarini was professor of Oriental Languages at the University of Warsaw. As such he considered himself an expert in Hebrew literature, and cherished the plan of translating the Talmud into French to unveil the

secrets of Judaism before the Christian world. In 1828 Chiarini suggested to the "Committee of Old Testament Believers" to arrange a course in Hebrew Archaeology at the Warsaw University for the purpose of acquainting Christian students with rabbinic literature and thus equipping prospective Polish officials with a knowledge of things Jewish. The plan having been approved by the Government, Chiarini began to deliver a course of lectures on Judaism. The fruit of these lectures was a French publication, issued in 1829 under the title *Theorie du Judaïsme*. It was an ignorant libel upon the Talmud and rabbinism, a worthy counterpart of Eisenmenger's "Judaism Exposed." [1] Chiarini did not even shrink from repeating the hideous lie about the use of Christian blood by the Jews. He was taken to task by Jacob Tugenholt in Warsaw and by Jost and Zunz in Germany. Yet the evil seed had sunk into the soil. Polish society, which had long harbored unfriendly sentiments against the Jews, became more and more permeated with anti-Semitic bias, and this bias found tangible expression during the insurrection of 1830-1831.

[Footnote 1: The book of a famous anti-Semitic writer who lived in Germany in the seventeenth century. *Entdecktes Judentum*, the book referred to in the text, appeared in 1700.]

4. THE JEWS AND THE POLISH INSURRECTION OF 1831

When, under the effect of the July revolution in Paris, the "November insurrection" of 1830 broke out in Warsaw, it put on its mettle that section of Polish Jewry who hoped to improve the Jewish lot by their patriotic ardor. In the month of December one of the "Old Testament believers," Stanislaw Hernish, [1] addressed himself to the Polish dictator, Khlopitzki, in the name of a group of Jewish youths, assuring him of their eagerness to form a special detachment of volunteers to help in the common task of

liberating their fatherland. The dictator replied that, inasmuch as the Jews had no civil rights, they could not be permitted to serve in the army. The Minister of War Moravski delivered himself on this occasion of the following characteristic utterance: "We cannot allow that Jewish blood should mingle with the noble blood of the Poles. What will Europe say when she learns that in fighting for our liberty we have not been able to get along without Jewish help?"

[Footnote 1: Polish patriot and publicist. He subsequently fled to France. See later, p. 109.]

The insulting refusal did not cool the ardor of the Jewish patriots. Joseph Berkovich, the son of Berek Yoselovitch, who had laid down his life for the Polish cause, decided to repeat his father's experiment [1] and issued a proclamation to the Jews, calling upon them to join the ranks of the fighters for Polish independence. The "National Government" in Warsaw could not resist this patriotic pressure. It addressed itself to the "Congregational Board" of Warsaw, inquiring about the attitude of the Jewish community towards the projected formation of a separate regiment of Jewish volunteers. The Board replied that the community had already given proofs of its patriotism by contributing 40,000 Gulden towards the revolutionary funds, and by collecting further contributions towards the equipment of volunteers. The formation of a *special* Jewish regiment the Board did not consider advisable, inasmuch as such action was not in keeping with the task of uniting all citizens in the defence of the fatherland. Instead, the Board favored the distribution of the Jewish volunteers over the whole army.

[Footnote 1: Compare Vol. I, p. 293 et seq.]

From now on the Jews were admitted to military service, but more into the militia than into the regular army. The commander of the National

Guard in Warsaw, Anton Ostrovski, one of the few rebel leaders who were not swayed by the anti-Semitic prejudices of the Polish nobility, admitted into his militia many Jewish volunteers on condition that they shave off their beards. Owing to the religious scruples of many Jewish soldiers, the latter condition had to be abandoned, and a special "bearded" detachment of the metropolitan guard was formed, comprising 850 Jews.

The Jewish militia acquitted itself nobly of its duty in the grave task of protecting the city of Warsaw against the onrush of the Russian troops. The sons of wealthy families fought shoulder to shoulder with children of the proletariat. The sight of these step-children of Poland fighting for their fatherland stirred the heart of Ostrovski, and he subsequently wrote: "This spectacle could not fail to make your heart ache. Our conscience bade us to attend to the betterment of this most down-trodden part of our population at the earliest possible moment."

It is worthy of note that the wave of Polish-Jewish patriotism did not spread beyond Warsaw. In the provincial towns the inhabitants of the ghetto were, as a rule, unwilling to serve in the army on the ground that the Jewish religion forbade the shedding of human blood. This indifference aroused the ire of the Polish population, which threatened to wreak vengeance upon the Jews, suspecting them of pro-Russian sympathies. Ostrovski's remark with reference to this situation deserves to be quoted: "True," he said, "the Jews of the provinces may possibly be guilty of indifference towards the revolutionary cause, but can we expect any other attitude from those we oppress?" [1] It may be added that soon afterwards the question of military service as affecting the Jews was solved by the Diet. By the law of May 30, 1831, the Jews were released from conscription on the payment of a tax which was four times as large as the one paid by them in former years.

[Footnote 1: In the Western provinces outside the Kingdom of Poland, in Lithuania, Volhynia, and Podolia, the Jewish population held itself aloof from the insurrectionary movement. Here and there the Jews even sympathized with the Russian Government, despite the fact that the latter threw the Polish rulers into the shade by the extent of its Jewish persecutions. In some places the Polish insurgents made the Jews pay with their lives for their pro-Russian sympathies.]

When the "aristocratic revolution," having failed to obtain the support of the disinherited masses, had met with disaster, the revolutionary leaders, who saved themselves by fleeing abroad, indulged in remorseful reflections. The Polish historian Lelevel, who lived in Paris as a refugee, issued in 1832 a "Manifesto to the Israelitish Nation," calling upon the Jews to forget the insults inflicted upon them by present-day Poland for the sake of the sweet reminiscences of the Polish Republic in days gone by and of the hopes inspired by a free Poland in days to come. He compares the flourishing condition of the Jews in the ancient Polish commonwealth with their present status on the same territory, under the yoke of "the Viennese Pharaohs," [1] or in the land "dominated by the Northern Nebuchadnezzar," [2] where the terror of conscription reigns supreme, where "little children, wrenched from the embraces of their mothers, are hurled into the ranks of a debased soldiery," "doomed to become traitors to their religion and nation."

[Footnote 1: Referring to Galicia.]

[Footnote 2: Nicholas I.]

The reign of nations—exclaims Lelevel—is drawing nigh. All peoples will be merged into one, acknowledging the one God Adonai. The rulers have fed the Jews on false promises; the nations will grant them liberty. Soon Poland will rise from the dust. Let then the Jews living on her soil go hand in hand with their brother-Poles. The Jews will then be sure to

obtain their rights. Should they insist on returning to Palestine, the Poles will assist them in realizing this consummation.

Similar utterances could be heard a little later in the mystic circle of Tovyanski and Mitzkevitch in Paris, [1] in which the historic destiny of the two martyr nations, the Poles and the Jews, and their universal Messianic calling were favorite topics of discussion. But alongside of these flights of "imprisoned thought" one could frequently catch in the very same circle the sounds of the old anti-Semitic slogans. The Parisian organ of the Polish refugees, *Nowa Polska*, "New Poland," occasionally indulged in anti-Semitic sallies, calling forth a passionate rebuttal from Hernish, [2] an exiled journalist, who reminded his fellow-journalists that it was mean to hunt down people who were the "slaves of slaves." Two other Polish-Jewish revolutionaries, Lubliner and Hollaenderski, shared all the miseries of the refugees and, while in exile, indulged in reflections concerning the destiny of their brethren at home. [3]

[Footnote 1: Andreas Tovyanski (In Polish *Towianski*, 1799-1878), a Christian mystic, founded in Paris a separate community which fostered the belief in the restoration of the Polish and the Jewish people. The community counted among its members several Jews. The famous Polish poet Adam Mitzkevich (in Polish *Mickiewicz*, 1798-1855) joined Tovyanski in his endeavors, and on one occasion even appeared in a Paris synagogue on the Ninth of Ab to make an appeal to the Jews.]

[Footnote 2: See above, p. 105.]

[Footnote 3: Lubliner published *Des Juifs en Pologne*, Brussels, 1839; Hollaenderski wrote *Les Israélites en Pologne*, Paris, 1846.]

In pacified Poland, which, deprived of her former autonomous constitution, was now ruled by the iron hand of the Russian viceroy,

Paskevich, the Jews at first experienced no palpable changes. Their civil status was regulated, as heretofore, by the former Polish legislation, not by that of the Empire. It was only in 1843 that the Polish Jews were in one respect equalized with their Russian brethren. Instead of the old recruiting tax, they were now forced to discharge military service in person. However, the imperial ukase extending the operation of the Conscription Statute of 1827 to the Jews of the Kingdom contained several alleviations. Above all, its most cruel provision, the conscription of juveniles or cantonists, was set aside. The age of conscription was fixed at twenty to twenty-five, while boys between the age of twelve and eighteen were to be drafted only when the parents themselves wished to offer them as substitutes for their elder sons who were of military age. Nevertheless, to the Polish Jews, who had never known of conscription, military service lasting a quarter of a century, to be discharged in a strange Russian environment, seemed a terrible sacrifice. The "Congregational Board" of Warsaw, having learned of the ukase, sent a deputation to St. Petersburg with a petition to grant the Jews of the Kingdom equal rights with the Christians, referring to the law of 1817 which distinctly stated that the Jews were to be released from personal military service so long as they were denied equal civil rights. The petition of course proved of no avail; the very term "equal rights" was still missing in the Russian vocabulary.

Only in point of disabilities were the Jews of Poland gradually placed on an equal footing with their Russian brethren. In 1845 the Russian law imposing a tax on the traditional Jewish attire [1] was extended in its operation to the Polish Jews, descending with the force of a real calamity upon the hasidic masses of Poland. Fortunately for the Jews of Poland, the other experiments, in which St. Petersburg was revelling during that period, left them unscathed. The crises connected with the problems of Jewish autonomy and the Jewish school, which threatened to disrupt Russian Jewry in the forties, had been passed by the Jews of Poland some twenty years

earlier. Moreover, the Polish Jews had the advantage over their Russian brethren in that the abrogated Kahal had after all been replaced by another communal organization, however curtailed it was, and that the secular school was not forced upon them in the same brutal manner in which the Russian Crown schools had been imposed upon the Jews of the Empire. Taken as a whole, the lot of the Polish Jews, sad though it was, might yet be pronounced enviable when compared with the condition of their brethren in the Pale of Settlement, where the rightlessness of the Jews during that period bordered frequently on martyrdom.

[Footnote 1: A law to that effect had been passed on February 1, 1843. It was preparatory to the entire prohibition of Jewish dress. See below, p. 143 et seq.]

CHAPTER XVI

THE INNER LIFE OF RUSSIAN JEWRY DURING THE PERIOD OF MILITARY DESPOTISM

1. THE UNCOMPROMISING ATTITUDE OF RABBINISM

The Russian Government had left nothing undone to shatter the old Jewish mode of life. Despotic Tzardom, whose ignorance of Jewish life was only equalled by its hostility to it, lifted its hand to strike not merely at the obsolete forms but also at the sound historic foundations of Judaism. The system of conscription which annually wrenched thousands of youths and lads from the bosom of their families, the barracks which served as mission houses, the method of stimulating and even forcing the conversion of recruits, the establishment of Crown schools for the same covert purpose, the abolition of communal autonomy, civil disfranchisement, persecution and oppression, all were set in motion against the citadel of Judaism. And the ancient citadel, which had held out for thousands of years, stood firm again, while the defenders within her walls, in their endeavor to ward off the enemies' blows, had not only succeeded in covering up the breaches, but also in barring the entrance of fresh air from without. If it be true that, in pursuing its system of tutelage and oppression, the Russian Government was genuinely actuated by the desire to graft the modicum of European culture, to which the Russia of Nicholas I. could lay claim, upon the Jews, it certainly achieved the reverse of what it aimed at. The hand which dealt out

blows could not disseminate enlightenment; the hammer which was lifted to shatter Jewish separatism had only the effect of hardening it. The persecuted Jews clutched eagerly at their old mode of life, the target of their enemies' attacks; they clung not only to its permanent foundations but also to its obsolete superstructure. The despotism of extermination from without was counterbalanced by a despotism of conservation from within, by that rigid discipline of conduct to which the masses submitted without a murmur, though its yoke must have weighed heavily upon the few, the stray harbingers of a new order of things.

The Government had managed to disrupt the Jewish communal organization and rob the Kahal of all its authority by degrading it to a kind of posse for the capture of recruits and extortion of taxes. But while the Jewish masses hated the Kahal elders, they retained their faith in their spiritual leaders, the rabbis and Tzaddiks. [1] Heeding the command of these leaders, they closed their ranks, and offered stubborn resistance to the dangerous cultural influences threatening them from without. Life was dominated by rigidly conservative principles. The old scheme of family life, with all its patriarchal survivals, remained in force. In spite of the law, embodied in the Statute of 1835, which fixed the minimum age of the bridegroom at eighteen (and that of the bride at sixteen), the practice of early marriages continued as theretofore. Parents arranged marriages between children of thirteen and fifteen. Boys of school age often became husbands and fathers, and continued to attend heder or yeshibah after their marriage, weighed down by the triple tutelage of father, father-in-law, and teacher. The growing generation knew not the sweetness of being young. Their youth withered under the weight of family chains, the pressure of want or material dependence. The spirit of protest, the striving for rejuvenation, which asserted itself in some youthful souls, was crushed in the vise of a time-honored discipline, the product of long ages. The slightest deviation from a custom, a rite, or old habits of thought met with severe

punishment. A short jacket or a trimmed beard was looked upon as a token of dangerous free-thinking. The reading of books written in foreign languages, or even written in Hebrew, when treating of secular subjects, brought upon the culprit untold hardships. The scholastic education resulted in producing men entirely unfit for the battle of life, so that in many families energetic women took charge of the business and became the wage earners, [2] while their husbands were losing themselves in the mazes of speculation, somewhere in the recesses of the rabbinic *Betha-Midrash* or the hasidic *Klaus*.

[Footnote 1: See on the latter term, Vol. I, p. 227.]

[Footnote 2: This type of Jewish woman, current in Russia until recent times, was called *Eshet Hayil*, "a woman of valour," with allusion to Prov. 31.10.]

In Lithuania the whole mental energy of the Jewish youth was absorbed by Talmudism. The synagogue served as a "house of study" outside the hours fixed for prayers. There the local rabbi or a private scholar gave lectures on the Talmud which were listened to by hosts of *yeshibah bahurs*. [1] The great yeshibahs of Volozhin, Mir, [2] and other towns sent forth thousands of rabbis and Talmudists. Mentality, erudition, dialectic subtlety were valued here above all else. Yet, as soon as the mind, whetted by talmudic dialectics, would point its edge against the existing order of things, or turn in the direction of living knowledge, of "extraneous sciences," [3] it was checked by threats of excommunication and persecution. Many were the victims of this petrified milieu, whose protests against the old order of things and whose strivings for a newer life were nipped in the bud.

[Footnote 1: On the *bahur* or Talmud student see Vol. I, p. 116 et seq.]

[Footnote 2: On the yeshibah in Volozhin, in the government of Vilna, see Vol. I, p. 380 et seq. Mir is a townlet in the government of Minsk.]

[Footnote 3: An old Hebrew expression for secular learning.]

Instructive in this respect is the fate of one of the most remarkable Talmudists of his time, Rabbi Menashe Ilyer. Ilyer spent most of his life in the townlets of Smorgoni and Ilya (whence his surname), in the government of Vilna, and died of the cholera, in 1831. While keeping strictly within the bounds of rabbinical orthodoxy, whose adepts respected him for his enormous erudition and strict piety, Menashe assiduously endeavored to widen their range of thought and render them more amenable to moderate freedom of research and a more sober outlook on life. But his path was strewn with thorns. When on one occasion he expounded before his pupils the conclusion, which he had reached after a profound scientific investigation, that the text of the Mishnah had in many cases been wrongly interpreted by the Gemara,[1] he was taken to task by a conference of Lithuanian rabbis and barely escaped excommunication.

[Footnote 1: The Mishnah is a code of laws edited about 200 C.E. by Rabbi Judah ha-Nasi. The Gemara consists largely of the comments of the talmudic authorities, who lived after that date, on the text of this code.]

Having conceived a liking for mathematics, astronomy, and philosophy, Menashe decided to go to Berlin to devote himself to these studies, but on his way to the German capital, while temporarily sojourning in Koenigsberg, he was halted by his countrymen, who visited Prussia on business, and was cowed by all kinds of threats into returning home. By persistent private study, this native of a Russian out-of-the-way townlet managed to acquire a fair amount of general culture, which, with all its limitations, yielded a rich literary harvest. In 1807 he made his *début* with the treatise *Pesher Dabar* ("The Solution of the Problem"), [1] in which he

gave vent to his grief over the fact that the spiritual leaders of the Jewish people kept aloof from concrete reality and living knowledge. While the book was passing through the press in Vilna, Lithuanian fanatics threatened the author with severe reprisals. Their threats failed to intimidate him. When the book appeared, many rabbis threw it into the flames, and made every possible effort to arrest its circulation, with the result that the voice of the "heretic" was stifled.

[Footnote 1: Literally, "The Interpretation of a Thing," from Eccl. 8.1.]

Ten years later, while residing temporarily in Volhynia, the hot-bed of hasidism, Menashe began to print his religio-philosophic treatise *Alfe Menassheh* ("The Teachings of Manasseh"). [1] But the first proof-sheets sufficed to impress the printer with the "heretical" character of the book, and he threw them together with the whole manuscript into the fire. The hapless author managed with difficulty to restore the text of his "executed" work, and published it at Vilna in 1822. Here the rabbinical censorship pounced upon him. The book had not yet left the press, when the rabbi of Vilna, Saul Katzenellenbogen, learned that in one passage the writer deduced from a verse in Deuteronomy (17.9) the right of the "judges" or spiritual leaders of each generation to modify many religious laws and customs in accordance with the requirements of the time. The rabbi gave our author fair warning that, unless this heretical argument was withdrawn, he would have the book burned publicly in the synagogue yard. Menashe was forced to submit, and, contrary to his conviction, weakened his heterodox argument by a number of circumlocutions.

[Footnote 1: With a clever allusion to the Hebrew text of Deut. 33.17.]

These persecutions, however, did not smother the fire of protest in the breast of the excommunicated rural philosopher. In the last years of his life he published two pamphlets, [1] in which he severely lashed the

shortcomings of Jewish life, the early marriages, the one-sided school training, the repugnance to living knowledge and physical labor. However, the champions of orthodoxy took good care to prevent these books from reaching the masses. Exhausted by his fruitless struggle, Menashe died, unappreciated and almost unnoticed by his contemporaries.

[Footnote 1: One of these, entitled *Samme de-Hayye* ("Elixir of Life"), was written in Yiddish, being designed by the author for the lower classes.]

2. THE STAGNATION OF HASIDISM

A critical attitude toward the existing order of things could on occasions assert itself in the environment of Rabbinism, where the mind, though forced into the mould of scholasticism, was yet working at high speed. But such "heretical" thinking was utterly inconceivable in the dominant circles of Hasidism, where the intellect was rocked to sleep by mystical lullabies and fascinating stories of the miraculous exploits of the Tzaddiks. The era of political and civil disfranchisement was a time of luxuriant growth for Hasidism, not in its creative, but rather in its stationary, not to say stagnant, phase.

The old struggle between Hasidism and Rabbinism had long been fought out, and the Tzaddiks rested on their laurels as teachers and miracle-workers. The Tzaddik dynasties were now firmly entrenched. In White Russia the sceptre lay in the hands of the Shneorsohn dynasty, the successors of the "Old Rabbi," Shneor Zalman, the progenitor of the Northern Hasidim. [1] The son of the "Old Rabbi," Baer, nicknamed "the Middle Rabbi" (1813-1828), and the latter's son-in-law Mendel Lubavicher [2] (1828-1866) succeeded one another on the hasidic "throne" during this period, with a change in their place of residence. Under Rabbi Zalman the townlets of Lozno and Ladi served as "capitals"; under his successors, they

were Ladi and Lubavichi. The three localities are all situated on the borderline of the governments of Vitebsk and Moghilev, in which the Hasidim of the *Habad* persuasion [3] formed either a majority, as was the case in the former government, or a substantial minority, as was the case in the latter.

[Footnote 1: See Vol. I, p. 372.]

[Footnote 2: From the townlet Lubavichi. See later in the text.]

[Footnote 3: Compare Vol. I, p. 234, n. 2.]

Rabbi Baer, the son and successor of the "Old Rabbi," did not inherit the creative genius of his father. He published many books, made up mostly of his Sabbath discourses, but they lack originality. His method is that of the talmudic *pilpul*, [1] transplanted upon the soil of Cabala and Hasidism, or it consists in expatiating upon the ideas contained in the *Tanyo*. [2] The last years of Rabbi Baer were darkened by the White Russian catastrophes, the expulsion from the villages in 1823, and the ominous turn in the ritual murder trial of Velizh. On his death-bed he spoke to those around him about the burning topic of the day, the conscription ukase of 1827.

[Footnote 1: i.e., Dialectics. Comp. Vol. I, p. 122.]

[Footnote 2: The title of the philosophic treatise of Rabbi Shneor Zalman. See Vol. I, p. 372, n. 1.]

His successor Rabbi Mendel Lubavicher proved an energetic organizer of the hasidic masses. He was highly esteemed not only as a learned Talmudist—he wrote rabbinical *_novellae* and response—and as a preacher of Hasidism, but also as a man of great practical wisdom, whose advice was sought by thousands of people in family matters no less than in communal and commercial affairs. This did not prevent him from being a decided

opponent of the new enlightenment. In the course of Lilienthal's educational propaganda in 1843, Rabbi Mendel was summoned by the Government to participate in the deliberations of the Rabbinical Committee at St. Petersburg. There he found himself in a tragic situation. He was compelled to give his sanction to the Crown schools, although he firmly believed that they were subversive of Judaism, not only because they were originated by Russian officials, but also because they were intended to impart secular knowledge. The hasidic legend narrates that the Tzaddik pleaded before the Committee passionately, and often with tears in his eyes, not only to retain in the new schools the traditional methods of Bible and Talmud instruction, but also to make room in their curriculum for the teaching of the Cabala. Nevertheless, Rabbi Mendel was compelled to endorse against his will the "godless" plan of a school reform, and a little later to prefix his approbation to a Russian edition of Mendelssohn's German Bible translation. His attitude toward contemporary pedagogic methods may be gauged from the epistle addressed by him in 1848 to Leon Mandelstamm, Lilienthal's successor in the task of organizing the Jewish Crown schools. In this epistle Rabbi Mendel categorically rejects all innovations in the training of the young. In reply to a question concerning the edition of an abbreviated Bible text for children, he trenchantly quotes the famous medieval aphorism:

The Pentateuch was written by Moses at the dictation of God. Hence every word in it is sacred. There is no difference whatsoever between the verse "And Timna was the concubine" (Gen. 36. 12) and "Hear, O Israel: the Lord our God, the Lord is one" (Deut 6. 4). [1]

[Footnote 1: See Maimonides' exposition of the dogma of the divine origin of the Torah in his Mishnah Commentary, *Sanhedrin*, chapter X.]

Withal, the leaders of the Northern Hasidim were, comparatively speaking, "men of the world," and were ready here and there to make

concessions to the demands of the age. Quite different were the Tzaddiks of the South-west. They were horrified by the mere thought of such concessions. They were surrounded by immense throngs of Hasidim, unenlightened, ecstatic, worshipping saints during their lifetime.

The most honored among these hasidic dynasties was that of Chernobyl. [1] It was founded in the Ukraina toward the end of the eighteenth century by an itinerant preacher, or Maggid, called Nahum. [2] His son Mordecai, known under the endearing name "Rabbi Motele" (died in 1837), attracted to Chernobyl enormous numbers of pilgrims who brought with them ransom money, or *pidyons*. [3] Mordecai's "Empire" fell asunder after his death. His eight sons divided among themselves the whole territory of the Kiev and Volhynia province.

[Footnote 1: A townlet in the government of Kiev.]

[Footnote 2: See Vol. I, p. 382.]

[Footnote 3: The term is used in the Bible to denote a sum of money which "redeems" or "ransoms" a man from death, as in the case of a person guilty of manslaughter (Ex. 22. 30) or that of the first-born son (Ex. 13. 13; 34. 20). The Hasidim designate by this term the contributions made to the Tzaddik, in the belief that such contributions have the power of averting from the contributor impending death or misfortune.]

Aside from the original center in Chernobyl, seats of Tzaddiks were established in the townlets of Korostyshev, Cherkassy, Makarov, Turisk, Talno, Skvir and Rakhmistrovka. This resulted in a disgraceful rivalry among the brothers, and still more so among their hasidic adherents. Every Hasid was convinced that reverence was due only to his own "Rebbe," [1] and he brushed aside the claims of the other Tzaddiks. Whenever the adherents of the various Tzaddiks met, they invariably engaged in

passionate "party" quarrels, which on occasions, especially after the customary hasidic drinking bouts, ended in physical violence.

[Footnote 1: Popular pronunciation of the word "rabbi," A hasidic Tzaddik is designated as "Rebbe," in distinction from the rabbi proper, or the *Rav* (in Russia generally pronounced *Rov*), who discharges the rabbinical functions within the community.]

The whole Chernobyl dynasty found a dangerous rival in the person of the Tzaddik Israel Ruzhiner (of Ruzhin), the great-grandson of Rabbi Baer, the apostle of Hasidism, known as the "Mezhricher Maggid." [1] Rabbi Israel settled in Ruzhin, a townlet in the government of Kiev, about 1815, and rapidly gained fame as a saint and miracle-worker. His magnificent "court" at Ruzhin was always crowded with throngs of Hasidim. Their onrush was checked by special "gentlemen in waiting," the so-called *gabba'im*, who were very fastidious in admitting the people into the presence of the Tzaddik—dependent upon the size of the proffered gifts. Israel drove out in a gorgeous carriage, surrounded by a guard of honor. The gubernatorial administration of Kiev, presided over by the ferocious Governor-General Bibikov, received intimations to the effect "that the Tzaddik of Ruzhin wielded almost the power of a Tzar" among his adherents, who did not stir without his advice. The police began to watch the Tzaddik, and at length found an occasion for a "frame-up."

[Footnote 1: On Rabbi Baer see Vol. I, p. 229 et seq.]

When, in 1838, the Kahal of Ushitza, in the government of Podolia, was implicated in the murder of an informer, [1] Rabbi Israel of Ruzhin was arrested on the charge of abetting the murder. The hasidic "Tzar" languished in prison for twenty-two months. He was finally set free and placed under police surveillance. But he soon escaped to Austria, and settled in 1841 in the Bukovina, in the townlet of Sadagora, near Chernovitz, where he

established his new "court." Many Hasidim in Russia now made their pilgrimage abroad to their beloved Tzaddik; in addition, new partisans were won among the hasidic masses of Galicia and the Bukovina. Rabbi Israel died in 1850, but the "Sadagora dynasty" branched out rapidly, and proved a serious handicap to modern progress during the stormy epoch of emancipation which followed in Austria soon afterwards.

[Footnote 1: See above, p. 84 et seq.]

Another hot-bed of the Tzaddik cult was Podolia, the cradle of Hasidism. In the old residence of Besht, [1] in Medzhibozh, the sceptre was held by Rabbi Joshua Heshel Apter, who succeeded Besht's grandson, Rabbi Borukh of Tulchyn. [2] For a number of years, between 1810 and 1830, the aged Joshua Heshel was revered as the nestor of Tzaddikism, the haughty Israel of Ruzhin being the only one who refused to acknowledge his supremacy. Heshel's successor was Rabbi Moyshe Savranski, who established a regular hasidic "court," after the pattern of Chernobyl and Ruzhin.

[Footnote 1: See Vol. I, p. 222 et seq.]

[Footnote 2: See Vol. I, p. 384.]

The only Tzaddik to whom it was not given to be the founder of a dynasty was the somewhat eccentric Rabbi Nahman of Bratzlav, [1] a great-grandson of Besht. After his death, the Bratzlav Hasidim, who followed the lead of his disciple Rabbi Nathan, suffered cruel persecutions at the hands of the other hasidic factions. The "Bratzlavers" adopted the custom of visiting once a year, during the High Holidays, the grave of their founder in the city of Uman, in the government of Kiev, and subsequently erected a house of prayer near his tomb. During these pilgrimages they were often the target of the local Hasidim who reviled and often maltreated them. The

"Bratzlavers" were the Cinderella among the Hasidim, lacking the powerful patronage of a living Tzaddik. Their heavenly patron, Rabbi Nahman, could not hold his own against his living rivals, the earthly Tzaddiks—all too earthly perhaps, in spite of their saintliness.

[Footnote 1: A town in Podolia. See Vol. I, p. 382 et seq.]

The Tzaddik cult was equally diffused in the Kingdom of Poland. The place of Rabbi Israel of Kozhenitz and Rabbi Jacob-Isaac of Lublin, who together marshalled the hasidic forces during the time of the Varsovian duchy, was taken by founders and representatives of new Tzaddik dynasties. The most popular among these were the dynasty of Kotzk, [1] established by Rabbi Mendel Kotzker (1827-1859), and that of Goora Kalvaria, [2] or Gher, [3] founded by Rabbi Isaac Meier Alter [4] (about 1830-1866). The former reigned supreme in the provinces, the latter in the capital of Poland, in Warsaw, which down to this day has remained loyal to the Gher dynasty.

[Footnote 1: A town not far from Warsaw. Comp. Vol. I, p. 303, n. 1.]

[Footnote 2: In Polish, *Góra Kalwarya*, a town on the left bank of the Vistula, not far from Warsaw.]

[Footnote 3: This form of the name is used by the Jews.]

[Footnote 4: Called popularly in Poland *Reb Itche Meier*, a name still frequently found among the Jews of Warsaw, who to a large extent are adherents of the "Gher dynasty."]

The Polish "Rebbes" [1] resembled by the character of their activity the type of the Northern, or *Habad*, Tzaddiks rather than those of the Ukraina. They did not keep luxurious "courts," did not hanker so greedily after donations, and laid greater emphasis on talmudic scholarship.

[Footnote 1: See p. 120, n. 1.]

Hasidism produced not only leaders but also martyrs, victims of the Russian police regime. About the time when the Tzaddik of Ruzhin fell under suspicion, the Russian Government began to watch the Jewish printing-press in the Volhynian townlet of Slavuta. The owners of the press were two brothers, Samuel-Abba and Phinehas Shapiro, grandsons of Besht's companion, Rabbi Phinehas of Koretz. The two brothers were denounced to the authorities as persons issuing dangerous mystical books from their press, without the permission of the censor. This denunciation was linked up with a criminal case, the discovery in the house of prayer, which was attached to the printing-press, of the body of one of the compositors who, it was alleged, had intended to lay bare the activities of the "criminal" press before the Government. After a protracted imprisonment of the two Slavuta printers in Kiev, their case was submitted to Nicholas I. who sentenced them to *Spiessruten* [1] and deportation to Siberia. During the procedure of running the gauntlet, while passing through the lines of whipping soldiers, one of the brothers had his cap knocked off his head. Unconcerned by the hail of lashes from which he was bleeding, he stopped to pick up his cap so as to avoid going bare-headed, [2] and then resumed his march between the two rows of executioners. The unfortunate brothers were released from their Siberian exile during the reign of Alexander II.

[Footnote 1: See above, p. 85, n. 1.]

[Footnote 2: According to an ancient Jewish notion, which is current throughout the Orient, baring the head is a sign of frivolity and disrespect towards God.]

Hasidic life exhibited no doubt many examples of lofty idealism and moral purity. But hand in hand with it went an impenetrable spiritual

gloom, boundless credulity, a passion for deifying men of a mediocre and even inferior type, and the unwholesome hypnotizing influence of the Tzaddiks. Spiritual self-intoxication was accompanied by physical. The hasidic rank and file, particularly in the South-west, began to develop an ugly passion for alcohol. Originally tolerated as a means of producing cheerfulness and religious ecstasy, drinking gradually became the standing feature of every hasidic gathering. It was in vogue at the court of the Tzaddik during the rush of pilgrims; it was indulged in after prayers in the hasidic "Shtiblach," [1] or houses of prayer, and was accompanied by dancing and by the ecstatic narration of the miraculous exploits of the "Rebbe." [2] Many Hasidim lost themselves completely in this idle revelry and neglected their business affairs and their starving families, looking forward in their blind fatalism to the blessings which were to be showered upon them through the intercession of the Tzaddik.

[Footnote 1: The word, which is a diminutive of German *Stube*, "room," denotes, like the word *Klaus*, the room, or set of rooms, in which the Hasidim assemble for prayer, study, and recreation.]

[Footnote 2: See above, p, 120, n. 1.]

It would be manifestly unjust to view the hasidic indulgence in alcohol in the same light as the senseless drunkenness of the Russian peasant, transforming man into a beast. The Hasid drank, and in moderate doses at that, "for the soul," "to banish the grief which blunteth the heart," to arouse religious exultation and enliven his social intercourse with his fellow believers. Yet the consequences were equally sad. For the habit resulted in drowsiness of thought, idleness and economic ruin, insensibility to the outside world and to the social movements of the age, as well as in stolid opposition to cultural progress in general. It must be borne in mind that during the era of external oppression and military inquisition the

reactionary force of Hasidism acted as the only antidote against the reactionary force from the outside. Hasidism and Tzaddikism were, so to speak, a sleeping draught which dulled the pain of the blows dealt out to the unfortunate Jewish populace by the Russian Government. But in the long run the popular organism was injuriously affected by this mystic opium. The poison rendered its consumers insensible to every progressive movement, and planted them firmly at the extreme pole of obscurantism, at a time when the Russian ghetto resounded with the first appeals calling its inmates toward the light, toward the regeneration and the uplift of inner Jewish life.

3. THE RUSSIAN MENDELSSOHN (ISAAC BAER LEVINSOHN)

It was in the hot-bed of the most fanatical species of Hasidism that the first blossoms of Haskalah [1] timidly raised their heads. Isaac Baer Levinsohn, from Kremenetz in Podolia (1788-1860), had associated in his younger days with the champions of enlightenment in adjacent Galicia, such as Joseph Perl, [2] Nahman Krochmal, [3] and their followers. When he came back to his native land, it was with the firm resolve to devote his energies to the task of civilizing the secluded masses of Russian Jewry. In lonesome quietude, carefully guarding his designs from the outside world which was exclusively hasidic, he worked at his book *Te'udah, be-Israel* ("Instruction in Israel"), which after many difficulties he managed to publish in Vilna in 1828. In this book our author endeavored, without trespassing the boundaries of orthodox religious tradition, to demonstrate the following elementary truths by citing examples from Jewish history and sayings of great Jewish authorities:

[Footnote 1: A Hebrew term meaning "enlightenment." It is a translation of the German *Aufklaerung*, and was first applied to the endeavors made in

the time of Moses Mendelssohn (died 1786) to introduce European culture among the Jews of the ghetto.]

[Footnote 2: Died 1839. He became famous through his anti-hasidic parody *Megalle Temirin*, "Revealing Hidden Things," written in the form of letters in imitation of the hasidic style. Peri's book has been frequently compared with the medieval *Epistolae obscurorum vivorum*, which are ascribed to Ulrich von Hutten (d. 1523). See P. 127.]

[Footnote 3: Died 1840. Famous as the author of *More Nebuke ha-Zeman*, "Guide of the Perplexed of (Our) Time," a profound treatise, dealing with Jewish theological and historical problems.]

1. The Jew is obliged to study the Bible as well as Hebrew grammar and to interpret the biblical text in accordance with the plain grammatical sense.

2. The Jewish religion does not condemn the knowledge of foreign languages and literatures, especially of the language of the country, such knowledge being required both in the personal interest of the individual Jew and in the common interest of the Jewish people.

3. The study of secular sciences is not attended by any danger for Judaism, men of the type of Maimonides having remained loyal Jews, in spite of their extensive general culture.

4. It is necessary from the economic point of view to strengthen productive labor, such as handicrafts and agriculture, at the expense of commerce and brokerage, also to discourage early marriages between persons who are unprovided for and have no definite occupation.

These commonplaces sounded to that generation like epoch-making revelations. They were condemned as rank heresies by the all-powerful obscurantists and hailed as a gospel of the approaching renaissance by that handful of progressives who dreamt of a new Jewish life and, cowed by the fear of persecution, hid these thoughts deep down in their breasts.

A similar fear compelled Levinsohn to exercise the utmost reserve and caution in criticizing the existing order of things. The same consideration forced him to shield himself behind a pseudonym in publishing his anti-hasidic satire *Dibre Tzaddikim*, "The Words of the Tzaddiks," [1] (Vienna, 1830), a rather feeble imitation of *Megalle Temirin*, the Hebrew counterpart of the "Epistles of Obscure Men," by Joseph Perl. [2] His principal work, entitled *Bet Yehudah*, "The House of Judah," a semi-philosophic, semi-publicistic review of the history of Judaism, remained for a long time in manuscript. Levinsohn was unable to publish it for the reason that even the printing-press of Vilna, the only one to issue publications of a non-religious character, was afraid of bringing out a book which had failed to receive the approbation of the local rabbis. Several years later, in 1839, the volume finally came out, clothed in the form of a reply to inquiries addressed to the author by a high Russian official.

[Footnote 1: Literally, "The Words of the Righteous," with reference to Ex. 23. 8:]

[Footnote 2: See the preceding page, n. 1.]

From the point of view of Jewish learning, *Bet Yehudah* can claim but scanty merits. It lacks that depth of philosophic-historic insight which distinguishes so brilliantly the "Guide of the Perplexed of Our Time" of the Galician thinker Krochmal. [1] The writer's principal task is to prove from history his rather trite doctrine that Judaism had at no time shunned secular culture and philosophy.

[Footnote 1: See the preceding page, n. 2.]

For the rest, the author fights shy of the difficult problems of religious philosophy, and is always on the lookout for compromises. Even with reference to the Cabala, with which Levinsohn has but little sympathy, he says timidly: "It is not for us to judge these lofty matters" (Chapter 135). Fear of the orthodox environment compels him to observe almost complete silence with reference to Hasidism, although, in his private correspondence and in his anonymous writings he denounces it severely. Levinsohn concludes his historic review of Judaism with a eulogy upon the Russian Government for its kindness toward the Jews (Ch. 151) and with the following plan of reform suggested to it for execution (Ch. 146):

To open elementary schools for the teaching of Hebrew and the tenets of the Jewish religion as well as of Russian and arithmetic, and to establish institutions of higher rabbinical learning in the larger cities; to Institute the office of Chief Rabbi, with a supreme council under him, which should be in charge of Jewish spiritual and communal affairs in Russia; to allot to a third of the Russian-Jewish population parcels of land for agricultural purposes; to prohibit luxury in dress and furniture in which even the impecunious classes are prone to indulge.

Levinsohn was not satisfied to propagate his ideas by purely literary means. He anticipated meagre results from a literary propaganda among the broad Jewish masses, in which the mere reading of such "licentious" books was considered a criminal offence. He had greater faith in his ability to carry out the regeneration of Jewish life with the powerful help of the Government. As a matter of fact, Levinsohn had long before this begun to knock at the doors of the Russian Government offices. Far back in 1823 he had presented to the heir-apparent Constantine Pavlovich [1] a memorandum concerning Jewish sects and a project looking to the

establishment of a system of Jewish schools and seminaries. Moreover, before publishing his first work *Te'udah*, he had submitted the manuscript to Shishkov, the reactionary Minister of Public Instruction, applying for a Government subsidy towards the publication of a work which demonstrates the usefulness of enlightenment and agriculture, "instills love for the Tzar as well as for the people with which we share our life, and recounts the innumerable favors which they have bestowed upon us."

[Footnote 1: Being the eldest brother of Alexander I., Constantine was the legitimate heir to the Russian throne. He resigned in favor of his younger brother Nicholas. See above, p. 13, n. 2.]

These words were penned on December 2, 1827, three months after the promulgation of the baneful conscription ukase ordering the compulsory enlistment of under-aged cantonists! The request was complied with. A year later the humble Volhynian *littérateur* received by imperial command an "award" of 1000 rubles (\$500) "for a work having for its object the moral transformation of the Jews." This "award" came when the volume had already appeared in print, in the terrible year 1828 which was marked by the first conscription of Jewish recruits, the ominous turn in the ritual murder trial of Velizh and the constant tightening of the knot of disabilities.

But these events failed to cure the political *naïveté* of Levinsohn. In 1831 he laid before Lieven, the new Minister of Public Instruction, a memorandum advocating the necessity of modifications in Jewish religious life. Again in 1833 he came forward with the dangerous proposal to close all Jewish printing-presses, except those situated in towns in which there was a censorship. The project was accompanied by a "list of ancient and modern Hebrew books, indicating those that may be considered useful and those that are harmful"—the hasidic works were declared to belong to the latter category. Levinsohn's project was partly instrumental in prompting

the grievous law of 1836, which raised a cry of despair in the Pale of Settlement, ordering a revision of the entire Hebrew literature by Russian censors. [1]

[Footnote 1: See above, p. 42 et seq.]

Levinsohn's action would have been ignoble had it not been naive. The recluse of Kremenetz, passionately devoted to his people but wanting in political foresight, was calling Russian officialdom to aid in his fight against the bigotry of the Jewish masses, in the childish conviction that the Russian authorities had the welfare of the Jews truly at heart, and that compulsory measures would do away with the hostility of the Jewish populace toward enlightenment. He failed to perceive, as did also some of his like-minded contemporaries, that the culture which the Russian Government of his time was trying to foist upon the Jews was only apt to accentuate their distrust, that, so long as they were the target of persecution, the Jews could not possibly accept the gift of enlightenment from the hands of those who lured them to the baptismal font, pushed their children on the path of religious treason, and were ruthless in breaking and disfiguring their whole mode of life.

In his literary works Levinsohn was fond of emphasizing his relations with high Government officials. This probably saved him from a great deal of unpleasantness on the part of the fanatic Hasidim, but it also had the effect of increasing his unpopularity among the orthodox. The only merit the latter were willing to concede to Levinsohn was that of an apologist who defended Judaism against the attacks of non-Jews. During the epidemic of ritual murder trials, the rabbis of Lithuania and Volhynia addressed a request to Levinsohn to write a book against this horrid libel. At their suggestion he published his work *Efes Damim*, "No Blood!" (Vilna,

1837), [1] in the form of a dialogue between a Jewish sage and a Greek-Orthodox patriarch in Jerusalem.

[Footnote 1: With a clever allusion to the geographic name Ephesdammim,
I Sam. 17. 1.]

Somewhat later Levinsohn wrote other apologetic treatises, defending the Talmud against the attacks contained in the book *Netivot 'Olam* [1] published in 1839 by the London missionary M'Caul. Levinsohn's great apologetic work *Zerubbabel*, which appeared several years after his death, was equally dedicated to the defence of the Talmud. It has, moreover, considerable scientific merit, being one of the first research works in the domain of talmudic theology. A number of other publications by Levinsohn deal with Hebrew philology and lexicography. All these efforts support Levinsohn's claim to the title of Founder of a modern Jewish Science in Russia, though his scholarly achievements cannot be classed with those of his German and Galician fellow-writers, such as Rapoport, Zunz, Jost and Geiger.

[Footnote 1: "Old Paths," with reference to Jer. 6. 16.]

Levinsohn stood entirely aloof from the propaganda of bureaucratic enlightenment which was carried on by Lilienthal in the name of Uvarov. The Volhynian hermit was completely overshadowed by the energetic young German. Even when Lilienthal, after realizing that a union between Jewish culture and Russian officialdom was altogether unnatural, had disappeared from the stage, Levinsohn still persisted in cultivating his relations with the Government. But by that time the bureaucrats of St. Petersburg had no more use for the Jewish friends of enlightenment. Broken in health, chained to his bed for half a lifetime, without means of subsistence, lonely amidst a hostile orthodox environment, Levinsohn time

and again addressed to St. Petersburg humiliating appeals for monetary assistance, occasionally receiving small pittances, which were booked under the heading "Relief in Distress," accepted subventions from various Jewish Mæcenases, and remained a pauper till the end of his life. The pioneer of modern culture among Russian Jews, the founder of Neo-Hebraic literature, spent his life in the midst of a realm of darkness, shunned like an outcast, appreciated by a mere handful of sympathizers. It was only after his death that he was crowned with laurels, when the intellectuals of Russian Jewry were beginning to press forward in close formation.

4. THE RISE OF NEO-HEBRAIC CULTURE

The Volhynian soil proved unfavorable for the seeds of enlightenment. The Haskalah pioneers were looked upon as dangerous enemies in this hot-bed of Tzaddikism. They were held in disgrace and were often the victims of cruel persecutions, from which some saved themselves by conversion. A more favorable soil for cultural endeavors was found in the extreme south of the Pale of Settlement as well as in its northern section: Odessa, the youthful capital of New Russia, and Vilna, the old capital of Lithuania, both became centers of the Haskalah movement.

As far as Odessa was concerned, the seeds of enlightenment had been carried hither from neighboring Galicia by the Jews of Brody, who formed a wealthy merchant colony in that city. As early as 1826 Odessa saw the opening of the first Jewish school for secular education, which was managed at first by Sittenfeld and later on by the well-known public worker Bezalel Stern. Among the teachers of the new school was Simha Pinsker, who subsequently became the historian of Karaism. This school, the only educational establishment of its kind during that period, served in Odessa as

a center for the "Friends of Enlightenment." Being a new city, unfettered by traditions, and at the same time a large sea-port, with a checkered international population, Odessa outran other Jewish centers in the process of modernization, though it must be confessed that it never went beyond the externalities of civilization. As far as the period under discussion is concerned, the Jewish center of the South can claim no share in the production of new Jewish values.

While yielding to Odessa in point of external civilization, Vilna surpassed the capital of the South by her store of mental energy. The circle of the Vilna Maskilim, which came into being during the fourth decade of the nineteenth century, gave rise to the two founders of the Neo-Hebraic literary style: the prose writer Mordecai Aaron Ginzburg (1796-1846) and the poet Abraham Baer Lebensohn (1794-1878).

Ginzburg, born in the townlet Salant, in the Zhmud region, [1] lived for some time in Courland, and finally settled in Vilna. He managed to familiarize himself with German literature, and was so fascinated by it that he started his literary career by translating and adapting German works into Hebrew. His translation of Campe's "Discovery of America" and Politz' Universal History, as well as his own history of the Franco-Russian War of 1812, compiled from various sources, were, as far as Russia is concerned, the first specimens of secular literature in pure Hebrew, which boldly claimed their place side by side with rabbinic and hasidic writings. In that juvenile stage of the Hebrew renaissance, when the mere treatment of language and style was considered an achievement, even the appearance of such elementary books was hailed as epoch-making.

[Footnote 1: Zhmud, or Samogitia, is part of the present government of Kovno. Compare Vol. I, p. 293, n. 1.]

The profoundest influence on the formation of the Neo-Hebraic style must be ascribed to two other works by the same author, *Kiriai Sefer*, [1] an epistolary manual containing specimens of personal, commercial, and other forms of correspondence (Vilna, 1835, and many later editions), and *Debir*, [2] a miscellaneous collection of essays, consisting for the most part of translations and compilations (Vilna, 1844). Ginzburg's premature death in 1846 was mourned by the Vilna Maskilim as the loss of a leader in the struggle for the Neo-Hebraic renaissance, and they gave expression to these sentiments in verse and prose. Ginzburg's autobiography (*Abi-ezer*, 1863) and his letters (*Debir*, Vol. II., 1861) portray the milieu in which our author grew up and developed.

[Footnote 1: See next note.]

[Footnote 2: Both titles are derived from the message in Josh. 15. 15, according to which *Debir*, a city in the territory of the tribe of Judah, was originally called *Kiriat Sefer*, "Book City."]

Abraham Baer Lebensohn, [1] a native of Vilna, awakened the dormant Hebrew lyre by the sonorous rhymes of his "Songs in the Sacred Tongue" (*Shire Sefat Kodesh*, Vol. I., Leipsic, 1842). In this volume solemn odes celebrating events of all kinds alternate with lyrical poems of a philosophical content. The unaccustomed ear of the Jew of that period was struck by these powerful sounds of rhymed biblical speech which exhibited greater elegance and harmony than the Mosaïd of Wessely, the Jewish Klopstock. [2] His compositions, which are marked by thought rather than by feeling, suited to perfection the taste of the contemporary Jewish reader, who was ever on the lookout for "intellectuality," even where poetry was concerned. Philosophic and moralizing lyrics are a characteristic feature of Lebensohn's pen. The general human sorrow, common to all individuals, stirs him more deeply than national grief. His only composition of a

nationalistic character, "The Wailing of the Daughter of Judah," seems strangely out of harmony with the accompanying odes which celebrate the coronation of Nicholas I. and similar patriotic occasions, although the "Wailing" is shrewdly prefaced by a note, evidently meant for the censor, to the effect that the poem refers to the Middle Ages. At any rate, the principal merit of the "Songs in the Sacred Tongue" is not to be sought in their poetry but rather in their style, for it was this style which became the basis of Neo-Hebraic poetic diction, perfected more and more by the poets of the succeeding generations.

[Footnote 1: He assumed the pen-name "Adam," the initials of Abraham Dob (Hebrew equivalent for Baer) Mikhailishker (from the town of Mikhailishok, in the government of Vilna, where he resided for a number of years). See later, p. 226.]

[Footnote 2: The author refers to Naphtali Hirz Wessely (d. 1805), an associate of Mendelssohn in his cultural endeavors. He wrote *Shire Tiferet*, "Songs of Glory," an epic in five parts dealing with the Exodus. The poem was patterned after the epic *Der Messias* of his famous German contemporary Gottlieb Friedrich Klopstock, who, in turn, was influenced by Milton.]

Ginzburg and Lebensohn were the central pillars of the Vilna Maskilim circle, which also included men of the type of Samuel Joseph Fünf, the historian, Mattathiah Strashun, the Talmudist, the censor Tugendhold, the bibliographer Ben-jacob, N. Rosenthal, in a word, the "radicals" of that era—for the mere striving for the restoration of biblical Hebrew and for elementary secular education was looked upon as bold radicalism. The same circle made an attempt to create a scientific periodical after the pattern of similar publications in Galicia and Germany, In 1841 and 1843 two

issues of the magazine *Pirhe Tzafon*, "Flowers of the North," appeared in Vilna, under Fün̈n's editorship. The volumes contained scientific and publicistic articles as well as poems, contributed by the feeble literary talents which were then active in the Hebrew literary and educational revival in Russia—all of them efforts of not very high merit. But even these poor hot-house flowers were fated to be nipped in the Northern chill. The ruthless Russian censorship scented in the unassuming magazine of the Vilna Maskilim a criminal attempt to publish a Hebrew periodical. Such an undertaking required an official license from the central Government in St. Petersburg, and the latter was not in the habit of granting licenses for such purposes.

In Vilna, as in Odessa, the coterie of local Maskilim formed the mainstay of Lilienthal, the apostle of enlightenment, in, his struggle with the orthodox. In the year 1840, prior to Lilienthal's arrival, when the first intimation of Uvarov's plans reached the city of Vilna, the local Maskilim responded to the call of the Government in a circular letter, in which the following four cardinal reforms were emphasized:

1. The transformation of the Rabbinate through the establishment of rabbinical seminaries, the appointment of graduates from German universities as rabbis, and the formation of consistories after the pattern of Western Europe.
2. The reform of school education through the opening of secular schools after the model of Odessa and Riga and the training of new teachers from among the Maskilim.
3. The struggle with the fiends of obscurantism, who stifle every endeavor for popular enlightenment.

4. The improvement of Jewish economic life by intensifying agricultural colonization, the establishment of technical and arts and crafts schools, and similar measures.

Several years later the authors of this circular had reason to share Lilienthal's disillusionment over the "benevolent intentions" of the Government. This, however, was not strong enough to uproot the original sin of the Haskalah: its constant readiness to lean for support upon "enlightened absolutism." The despotism of the orthodox and the intolerance of the unenlightened masses forced the handful of Maskilim to fall back upon those who in the eyes of the Jewish populace were the source of its sorrow and tears. There was a profound tragedy in this incongruity.

The culture movement in Russia of the second quarter of the nineteenth century corresponds in its complexion to the early stage of the Mendelssohnian enlightenment in Germany, the period of the *Me'assefim*. [1] But there were also essential differences between the two. The beginning of German enlightenment was accompanied by a strong drift toward assimilation which led to the elimination of the national language from literature. In Russia the initial period of Haskalah was not marked by any sudden social and cultural upheavals.

[Footnote 1: So named after the Hebrew periodical *ha-Me'assef* "The Collector," which was founded in Berlin in 1784. Compare Vol. I, p. 386, n. 3.]

On the contrary, it laid the foundations for a national literary renaissance which in the following period was destined to become an important social factor.

5. THE JEWS AND THE RUSSIAN PEOPLE

As for the Russian people, an impenetrable wall continued as theretofore to keep it apart from the Jewish population. To the inhabitants of the two Russian capitals and of the interior of the Empire the Pale of Settlement seemed as distant as China, while among the Russians living within the Pale the sparks of former historic conflagrations, the prejudices of the ages and the unenlightened notions of days gone by were still glimmering beneath the ashes. The ignorance of some and the vicious prejudices of others could not very well manifest themselves in periodical literature, for the simple reason that in pre-reformatory Russia, throttled by the hand of the censorship, none was in existence. Only in Russian fiction one might see the shadow of the Jew moving across. In the imagination of the great Russian poet Pushkin this shadow wavered between the "despised Jew" of the street (in the "Black Shawl," 1820) and the figure of the venerable "old man reading the Bible under the shelter of the night" (in the "Beginning of a Novel," 1832). On the other hand, in Gogol's "Taras Bulba" (1835-1842) the Jew bears the well-defined features of an inhuman fiend. In the delineation of the hideous figure of "Zhyd Yankel," a mercenary, soulless, dastardly creature, Gogol, the descendant of the haidamacks, [1] gave vent to his inherited hatred of the Jew, the victim of Khmelnitzki [2] and the haidamacks. In these dismal historic tragedies, in the figures of the Jewish martyrs of old Ukraina, Gogol can only discern "miserable, terror-stricken creatures." Thus one of the principal founders of Russian fiction set up in its very center the repelling scarecrow of a Jew, an abomination of desolation, which poured the poison of hatred into the hearts of the Russian readers and determined to a certain extent the literary types of later writers.

[Footnote 1: Name of the Ukrainian rebels who rose in the seventeenth century against the tyranny of their Polish masters. Compare Vol. I, p. 182, n. 3.]

[Footnote 2: Compare Vol. I, p. 144 et seq.]

In the back-yards of Russian literature, which were then most of all patronized by the reading public, the literary slanderer Thaddeus Bulgarin delineated in his novel "Ivan Vyzhigin" (1829) the type of a Lithuanian Jew by the name of Movsha (Moses), who appears as the embodiment of all mortal sins. The product of an untalented and tainted pen, Bulgarin's novel was soon forgotten. Yet it contributed its share toward instilling Jew-hatred into the minds of the Russian people.

CHAPTER XVII

THE LAST YEARS OF NICHOLAS I.

1. THE "ASSORTMENT" OF THE JEWS

The beginning of the "Second Emancipation" of 1848 in Western Europe synchronized with the last phase of the era of oppression in Russia. That phase, representing the concluding seven years of pre-reformatory Russia, was a dark patch in the life of the country at large, doubly dark in the life of the Jews. The power of absolutism, banished by the March revolution from the European West, asserted itself with intensified fury in the land of the North, which had about that time earned the unenviable reputation of the "gendarme of Europe." Thrown back on its last stronghold, absolutism concentrated its energy upon the suppression of all kinds of revolutionary movements. In default of such a movement in Russia itself, this energy broke through the frontier line and found an outlet in the punitive expedition sent to support the Austrians in the pacification of mutinous Hungary. The triumphant passwords of political freedom which were given out on the other side of the Western frontier only intensified the reactionary rage on this side. Since it was impossible to punish action—for under the vigilant eye of the terrible "Third Section" [1] revolutionary endeavors were a matter of impossibility—word and thought were subject to punishment. Censorship ran riot in the subdued literature of Russia, tearing out by the roots anything that did not fit into the mould of the bureaucratic way of

thinking. The quiet precincts of the Russian *intelligenzia*, who, in the retirement of their homes, ventured to dream of a better political and social order, were invaded by political detectives who snatched thence numerous victims for the scaffold, the galleys, and conscription. Such were the contrivances employed during the last years of pre-reformatory Russia to hold together the old order of things in the land of officialdom and serfdom, in that Russia which the poet Khomyakov, though patriot and Slavophile, branded thus:

[Footnote 1: Compare above, p. 21, n. 1.]

Blackened in court with falsehood's blackness,
And stained by the yoke of slavery,
Full of godless flattery, of vicious lying,
And ev'ry possible knavery.

But the full weight of "the yoke of slavery" and "falsehood's blackness," by which pre-reformatory Russia was marked, fell upon the shoulders of the most hapless section of Russian subjects, the Jews. The tragic gloom of the end of Nicholas' reign finds its only parallel in Jewish annals in the beginning of the same reign. The would-be "reforms" proposed in the interval, in the beginning of the forties, did not deceive the popular instinct. The Jews of the Pale saw not only the hand which was holding forth the charter of enlightenment but also the other hand which hid a stone in the form of new cruel restrictions. Soon the Government threw off the mask of enlightenment, and set out to realize its reserve program, that of "correcting" the Jews by police methods.

It will be remembered that the principal item in this program was "the assortment of the Jews," i.e., the segregation from among them of all persons without a certain status as to property or without definite occupations, for the purpose of proceeding against them as criminal

members of society. As far back as 1846 the Government forewarned the Jews of the imminent "bloody operation over a whole class," against which Governor-General Vorontzov had vainly protested. [1] All Jews were ordered to register at the earliest possible moment among the guilds and estates assigned to them, "with the understanding that in case this measure should fail, the Government would of itself carry out the assortment," to wit: "it will set apart the Jews who are not engaged in productive labor, and will subject them, as burdensome to society, to various restrictions." The threat fell flat, for it was rather too much to expect that fully a half of the Jewish population, doomed by civil disabilities and general economic conditions to a life of want and distress, could obtain at a stroke the necessary "property status" or "definite occupations."

[Footnote 1: See above, p. 64 et seq.]

Accordingly, on November 23, 1851, the Tzar gave his sanction to the "Temporary Rules Concerning the Assortment of the Jews." All Jews were divided into five categories: merchants, agriculturists, artisans, settled burghers, and unsettled burghers. The first three categories were to be made up of those who were enrolled among the corresponding guilds and estates. "Settled burghers" were to be those engaged in "burgher trade" [1] with business licenses, also the clergy and the learned class. The remaining huge mass of the proletariat was placed in the category of "unsettled burghers," who were liable to increased military conscription and to harsher legal restrictions as compared with the first four tolerated classes of Jews. This hapless proletariat, either out of work or only occasionally at work, was to bear a double measure of oppression and persecution, and was to be branded as despised pariahs.

[Footnote 1: i.e., petty trade, as distinguished from the more comprehensive business carried on by the merchants who were enrolled in

the mercantile guilds.]

By April 1, 1852, the Jews belonging to the four tolerated categories were required to produce their certificates of enrolment before the local authorities. Those who had failed to do so were to be entered in the fifth category, the criminal class of "unsettled burghers." Within the brief space allotted to them the Jews found themselves unable to obtain the necessary documents, and, thanks to the representations of the governors-general of the Western governments, the term was extended till the autumn of 1852, but even then the "assortment" had not yet been accomplished. The Government was fully prepared to launch a series of Draconian laws against the "parasites," including police inspection and compulsory labor. But while engaged in these charitable projects, the law-givers were taken aback by the Crimean War, which, with its disastrous consequences for Russia, diverted their attention from their war against the Jews. Yet for a successive number of years the law concerning the "assortment," or *razryaden*, as it was popularly styled by the Jews, hung like the sword of Damocles over the heads of hundreds of thousands of Jews, and the anxiety of the suffering masses was poured out in sad popular ditties:

Ach, a tzore, a gzeire mit die razryaden! [1]

[Footnote 1: "Alas! What misfortune and persecution there is in the assortment!"]

2. COMPULSORY ASSIMILATION

As for the measures of compulsory assimilation long ago foreshadowed by the Government, such as the substitution of the Russian or German style of dress for the traditional Jewish attire, the long coats of the men, they were without any effect on Jewish life, and merely resulted in confusion and

consternation. A curt imperial ukase issued on May 1, 1850, prohibited "all over (the Empire) the use of a distinct Jewish form of dress, beginning with January 1, 1851," though the governors-general were given the right of permitting aged Jews to wear out their old garments on the payment of a definite tax. The prohibition extended to the earlocks, or *peies*, of the men.

A year later, in April, 1851, the Government made a further step in advance and proceeded to deal with the female attire. "His Imperial Majesty was graciously pleased to command that Jewish women be forbidden to shave their heads upon entering into marriage." [1] In October, 1852, this ukase was supplemented by the regulation that a married Jewess guilty of shaving her head was liable to a fine of five rubles (\$2.50), and the rabbi abetting the crime was to be prosecuted. Since neither the Jews nor the Jewesses were willing to submit to imperial orders, the former from habit, the latter from religious scruples, the provincial authorities entered upon a regular warfare against these "rebels." Both the governors-general and the governors subordinate to them displayed extraordinary enthusiasm in this direction. The officials tracked with utmost zeal not only the women culprits but also their accomplices the rabbis who attended the wedding ceremony, even including the barbers who were called in to shave the heads of the Jewish ladies. Jewish women were examined at the police stations to find out whether they still wore their own hair beneath their kerchiefs or wigs. Frequently the struggle manifested itself in tragic-comic and even repulsive forms. In some places the police adopted the practice of cutting the *peies* or shortening the long coats of the Jews by force.

[Footnote 1: In accordance with orthodox Jewish practice, married women are not allowed to expose their own hair. Apart from the wearing of a wig, or *Sheitel*, it was also customary for women to cut or shave their hair before their wedding and cover their heads with a kerchief.]

The opposition to the authorities was particularly vigorous in the Kingdom of Poland where the rank and file of Hasidim were ready to suffer martyrdom for any Jewish custom, however obsolete. The fight was drawn out for a long time and even reached into the following reign, but the victory remained with the obstreperous masses. Though at a later period, as the result of general cultural tendencies, the traditional Jewish costume made way in certain sections of Jewry for the European form of dress, it was not in obedience to police measures, but in spite of them. Compulsory assimilation was as little successful now as had been compulsory isolation in the Middle Ages. The medieval rulers had imposed upon the Jews a distinct form of garment and a "yellow badge" to keep them apart from the Christians. Nicholas I. employed forcible means to make the Jews by their style of dress appear similar to the Christians. The violence resorted to in both cases, though different in form, sprang from the same motive.

3. NEW CONSCRIPTION HORRORS

There was yet one domain in which the squeezing and pressing power of Tzardom could fully employ its destructive energy. We refer to military conscription. This genuine creation of the imperial brain became more and more intolerable, serving in Jewish life as a penal and correctional agency, with its "capture" of old and young, its inquisitorial régime of cantonists, its deportation for a quarter of a century and longer into far-off regions. Even the Russian peasants were stricken with terror at the thought of Nicholas' conscription, which in the reminiscences of the portrayers of that period is pictured as life-long deportation, and they frequently shirked military duty by fleeing from the land-owners and hiding themselves in the woods. How much more terrible must then conscription have been for the Jew, whose family was robbed both of a young father and a tender son. No means was left unused to evade this atrocious obligation. The reports of the governors

refer to the "immeasurable difficulties in carrying out the conscription among the Jews."

Apart from innumerable cases of self-mutilation—to quote the words of one of these reports written in 1850—the disappearance, without exception, of all able-bodied Jews has become so general that in some communities, outside of those unfit for military service because of age or physical defects, not a single person can be found during conscription who might be drafted into the army. Some flee abroad, whilst others hide in adjacent governments.

Those in hiding were hunted down like wild beasts. Their life, as a contemporary witness testifies, was worse than that of galley slaves, for the slightest indiscretion brought ruin upon them. Many resorted to self-mutilation to render themselves unfit for military service. They chopped off their fingers or toes, damaged their eyesight, and perpetrated every possible form of maiming to evade a military service which was in effect penal servitude. "The most tender-hearted mother," to quote a contemporary, "would place the finger of her beloved son under the kitchen knife of a home-bred quack surgeon."

This evasion resulted in immense shortages which pressed heavily upon the Jewish communities, since the latter were held collectively responsible for supplying the full quota of recruits. The reports about the unsatisfactory conscription results among the Jews filled the Government in St. Petersburg with rage. The persistent reluctance of human beings to be parted almost for life from those near and dear to them, or to see their little ones carried off to an early grave or to the baptismal font, was regarded as a manifestation of criminal self-will. Accordingly, the former measures of "cutting short" and "curbing" this self-will were improved upon by new ones. In December, 1850, the Tzar gave orders that for every missing Jewish recruit in a given

community three men of the minimum age of twenty from the same community and one more recruit for every two thousand rubles (\$1000) of tax arrears should be impressed into service. A year later the following atrocious measures were issued for the purpose "of cutting short the concealment of Jews from military service": the fugitives were to be captured, flogged, and drafted into the army over and above the required quota of recruits. The communities in which they were hidden were to be fined. The relatives of a recruit who failed to present himself in proper time were to be taken in his stead, even if these relatives happened to be heads of families. The official representatives of the communities were equally liable to being sent into the army if found convicted of any inaccuracy in carrying out the conscription.

A reign of terror followed in the Jewish communities upon the promulgation of these laws. The Kahal elders—it will be remembered that they continued to exist after the abrogation of the Kahals, acting as the fiscal agents of the Government [1]—now faced a terrible alternative: to become, in the words of a contemporary, "either murderers of martyrs," i.e., either to capture and send into the army any youth or boy, without discrimination, or themselves to don the gray uniform and be impressed into military services as "penal" recruits. In consequence, a fiendish hunt after human beings was set afoot in the Pale of Settlement. Adults were seized and, regardless of their being the only mainstay of their families, were taken captive, and children of eight were captured and presented to the recruiting authorities as being of the obligatory age of twelve. But despite all this hunting, many communities were not able to furnish their quota of soldiers, and the number of "penal" recruits from among the Kahal elders was very considerable.

[Footnote 1: See above, p. 60.]

Weeping and moaning resounded in the neighborhood of the recruiting stations in the Jewish towns where parents and relatives took leave from their dear ones who were doomed to a perpetual barrack life. And yet the fury of the Government was not satisfied. In 1853 new "temporary rules" were issued, "by way of experiment," whereby not only communities but also individuals among Jews were granted the right of offering as their substitutes any fellow-Jew from another city than his own who was caught without a passport. Any Jew who happened to absent himself from his place of residence without a passport could be seized and drafted into service as a substitute for a regular recruit due from the family of the captor. The "captive," regardless of age, was made a soldier, and the captor was given a receipt for one recruit.

A new ferocious hunt began. The official "captors" employed by the Kahals were no longer the only ones to prowl after living prey. The chase was now taken up by every private individual who wished to find a substitute for a member of his family, or who simply wanted to turn a penny by selling his recruiting receipt. Hordes of Jewish bandits sprang up who infested the roads and the inns, and by trickery or force made the travellers part with their passports and then dragged them to the recruiting stations as "captives" to be sent into the army. Never before had the Jewish masses, yielding to pressure from above, sunk to such depths of degradation. The Jew became a beast of prey to his fellow-Jew. Jews were afraid of budging an inch from their native cities. Every passer-by was suspected of being a captor or a bandit. The recruiting inquisition of Nicholas inflicted upon the Jews the utmost limit of martyrdom. It set Jew against Jew, called forth "a war of all against all," threw the tortured and the torturers into one heap, and sullied the Jewish soul.

All this took place while the Crimean War was going on. The Russian army, on the altar of which so many human sacrifices had been offered in

the course of thirty years, marched to save "the honor of Russia," in truth, to save the old régime. Squadron upon squadron issued from the inner recesses of Russia, and marched towards the battlefields of the South, marched to the slaughter, into the mouths of the cannons of the English and French, who knew how to conquer without penal conscriptions and without inflicting tortures upon tender-aged cantonists. The "gendarme of Europe," who, armed to his teeth, had contemptuously threatened to "finish the enemy with his soldier caps," could not hold out against the army of the "rotten West." Hundreds of thousands of Russian soldiers fell beneath the walls of Sevastopol, upon the heights of Inkerman. Thousands of Jewish soldiers were laid among them in "brotherly graves." The Jews, enslaved by pre-reformatory Russia, died for a fatherland which treated them as pariahs, which had bestowed upon them a monstrous conscription, the unexampled institutions of cantonists, penal recruits, and "captives." However, it soon became clear that those who had fallen under the walls of Sevastopol had sealed by their death not the honor but the dishonor of the old régime of blood and iron. Beneath the rotting corpse of an obsolete statecraft, built upon serfdom and maintained by soldiery and police, the germ of a new and better Russia began to stir.

4. THE RITUAL MURDER TRIAL OF SARATOV

One more detail was lacking to complete the dismal picture and to bring out the full symmetry between the end of Nicholas' reign and its ominous beginning: a medieval ritual murder trial after the pattern of the Velizh case. And a trial of this nature did not fail to come. In December, 1852, and in January, 1853, two Russian boys from among the lower classes disappeared in the city of Saratov, in central Russia. Their bodies were found two or three months later in the Volga, covered with wounds and bearing the traces of circumcision. The latter circumstance led the coroners to believe that the

crime had been perpetrated by Jews. Saratov, a city situated outside the Pale of Settlement, harbored at that time a small Jewish settlement consisting of some forty soldiers of the local garrison and several civilian Jewish tradesmen and artisans who lived in the prohibited Volga town by the grace of the police. There were also a few converts.

The vigilant eyes of the coroners were riveted on this settlement. An official by the name of Durnovo, who had been dispatched from St. Petersburg to take charge of the case, began at once to direct the inquiry into the channel of a ritual murder case. Needless to say there were soon found material witnesses from among the ignorant or criminal class who were under the hypnotic influence of the ritual murder myth. A private, called Bogdanov, who had been convicted of vagrancy, and an intoxicated gubernatorial official by the name of Krueger testified that they were present at the time when the Jews squeezed out the blood from the bodies of the murdered boys. They also mentioned by name the principal perpetrators of the murder, the "circumcision expert" in the local Jewish settlement, a soldier called Shlieferman, and a furrier named Yankel Yushkevicher, a devout Jew. The incriminated Jews were thrown into prison, but, despite excruciating cross-examinations, they and the other defendants indignantly denied not only their complicity in the murder but also the ritual murder accusation as a whole.

The investigation became more and more involved, drawing into its net a constantly growing number of persons, until in July, 1854, a special "Judicial Commission" was appointed by order of Nicholas I. for the purpose of disclosing not only the particular crime committed at Saratov but also "of investigating the dogmas of the religious fanaticism of the Jews." The latter task, being of a theoretic nature, was entrusted, in 1855, to a special commission under the auspices of the Ministry of the Interior. Among the theologians and Hebraists who were members of that

Commission was also the baptized professor Daniel Chwolson who had scientifically disproved the ritual legend. In 1856, after a protracted inquiry of two years, the judicial commission, having failed to discover evidence against the accused, decided to set them at liberty, but "to leave them under strong suspicion."

In the meantime, Alexander II. had ascended the throne of the Tzars, and the dawn of Russian renaissance began to disperse the nightmares of the past era. Yet so deeply ingrained were the old prejudices in many bureaucratic minds that when the conclusion reached by the judicial commission was submitted to the Senate the votes were divided. The case was transferred to the Council of State, and there the high dignitaries managed to effect a compromise between their medieval prejudices and their involuntary concessions to the spirit of the age. They refused to enter into a discussion of "the still unsolved question as to the use of Christian blood by the Jews," but they "unhesitatingly recognized the existence of the crime itself," which had been perpetrated at Saratov—this in spite of the fact that the only ground on which the crime was ascribed to alleged fanatical practices and laid at the door of the Jews were the traces of circumcision on the dead bodies. Ignoring this inner contradiction and setting aside the weighty objections of the liberal Minister of Justice Zamyatin, the Council of State brought in a verdict of guilty against the impeached Jews, the soldier Shlieferman and the two Yushkevichers, senior and junior, sentencing them to penal servitude.

The sentence was confirmed by Alexander II. in May, 1860. The representatives of the St. Petersburg community, Baron Joseph Günzburg and others, petitioned the Tzar to postpone the verdict until the scholarly commission of experts should have rendered its decision with regard to the compatibility of ritual murder with the teachings of Judaism. But the president of the Council of State, Count Orlov, presented the matter to the

Tzar in a different light, asserting that all that the Jews intended by their petition was "to keep off for an indefinite period the decision on a case in which their coreligionists are involved." He, therefore, insisted on the immediate execution of the sentence, and the Tzar yielded.

After eight long years of incarceration, in the course of which two of the impeached Jews committed suicide, the principal "perpetrators" were found to be physical wrecks and no longer able to discharge their penal servitude. The innocent sufferer, old Yushkevicher, languished in prison for seven more years, and was finally liberated in 1867 by order of Alexander II., who had been petitioned by Adolph Crémieux, the president of the Alliance Israélite Universelle, to pardon the unhappy man. In this way the heritage of the dark past protruded into the increasing brightness of the new Russia, which in the beginning of the sixties was passing through the era of "Great Reforms."

CHAPTER XVIII

THE ERA OF REFORMS UNDER ALEXANDER II.

1. THE ABOLITION OF JUVENILE CONSCRIPTION

When after the Crimean War, which had exposed the rottenness of the old order of things, a fresh current of air swept through the atmosphere of Russia, and the liberation of the peasantry and other great reforms were coming to fruition, the Jewish problem, too, was in line of being placed in the forefront of these reforms. For, after having done away with the institution of serfdom, the State was consistently bound to liberate its three million of Jewish serfs who had been ruthlessly oppressed and persecuted during the old régime.

Unfortunately the Jewish question, which was nothing more nor less than the question of equal citizenship for the Jews, was not placed in the line of the great reforms, but was pushed to the rear and solved fragmentarily—on the instalment plan, as it were—and within narrowly circumscribed limits. Like all the other officially inspired reforms of that period, which proceeded up to a certain point and halted before the prohibited zone of constitutional and political liberties, so, too, the solution of the Jewish problem was not allowed to pass beyond the border-line. For the crossing of that line would have rendered the whole question null and void by the simple recognition of the equality of all citizens. The regenerated Russia of Alexander II.,

stubborn in its refusal of political freedom and civil equality, could only choose the path of half-measures. Nevertheless, the transition from the pre-reformatory order of things to the new state of affairs signified a radical departure both in the life of Russia in general and in Jewish life in particular. It did so not because the new conditions were perfect, but because the old ones were so inexpressibly ugly and unbearable, and the mere loosening of the chains of servitude was hailed as a pledge of complete liberation.

Far more intense than in the political life of Russia was the crisis in its social life. While a chilling wind was still blowing from the wintry heights of Russian officialdom, while a grim censorship was still holding down the flight of the printed word, the released social energy was whirling and swirling in all classes of Russian society, sometimes breaking the fetters of police restraint. The outbursts of young Russia ran far ahead of the slow progress of the reforms inspired from above. It blazed the path for political freedom which the West of Europe had long traversed, and which was to prove in Russia tortuous and thorny.

The phase of Jewish life which claimed the first thought of Alexander II.'s Government was the military conscription. Prior to the conclusion of the Crimean War, the Committee on Jewish Affairs [1] called the Tzar's attention to the necessity of modifying the method of Jewish conscription, with its fiendish contrivances of seizing juvenile cantonists and enlisting "penal" and "captive" recruits. Nevertheless the removal of this crying evil was postponed for a year, until the promulgation of the Coronation Manifesto [2] of August 26, 1856, when it was granted as an act of grace.

[Footnote 1: See above, p. 49.]

[Footnote 2: On the meaning of Manifesto see later, p. 246, n. 1.]

Prompted by the desire—the Manifesto reads—of making it easier for the Jews to discharge their military duty and of averting the inconveniences attached thereto, we command as follows:

1. Recruits from among the Jews are to be drafted in the same way as from among the other estates, primarily from among those unsettled and not engaged in productive labor. [1] Only in default of able-bodied men among these, the shortage is to be made up from among the category of Jews who by reason of their engaging in productive labor are recognized as useful.

2. The drafting of recruits from among other estates and of those under age is to be repealed.

3. In regard to the making up of the shortage of recruits, the general laws are to be applied, and the exaction of recruits from Jewish communities as a penalty for arrears is to be repealed.

4. The temporary rules, enacted by way of experiment in 1853, granting Jewish communities and Jewish individuals the right of presenting as recruits in their own stead coreligionists seized without passports [2] are to be repealed.

[Footnote 1: See on these designations pp. 64 and 142.]

[Footnote 2: See above, p. 148 et seq.]

The abolition of juvenile conscription followed automatically upon the annulment, by virtue of the same Coronation Manifesto, of the general Russian institution of "cantonists" and "soldier children," who were now ordered to be returned to their parents and relatives. Only in the case of the Jews a rider was attached to the effect that those Jewish children who had

embraced Christianity during their term of military service should not be allowed to go back to their parents and relatives, if the latter remained in their old faith, and should be placed exclusively in Christian families.

The Coronation Manifesto of 1856 marks the end of the recruiting inquisition, which had lasted for nearly thirty years, adding a unique page to the annals of Jewish martyrdom. In the matter of conscription, at least, the Jews were, in a certain measure, granted equal rights. The operation of the general statute concerning military service was extended to them, with a few limitations which were the heritage of the past. The old plan of the "assortment of the Jews" is reflected in the clause of the Manifesto, providing for increased conscription from among "those unsettled and not engaged in productive labor," i.e., of the mass of the proletariat, as distinct from the more or less well-to-do classes. Nor was the old historic crime made good: the Jewish cantonists who had been forcibly converted to the Greek-Orthodox faith were not allowed to return to their kindred. As heretofore, baptism remained a *conditio sine qua non* for the advancement of a Jewish soldier, and only in 1861 was permission given to promote a Jewish private to the rank of a sergeant for general merit, without special distinction on the battlefield which had been formerly required. Beyond this rank no Jew could hope to advance.

2. "HOMEOPATHIC" EMANCIPATION AND THE POLICY OF "FUSION"

Following upon the removal of the "black stain" of conscription came the question of lightening the "yoke of slavery," that heavy burden of rightlessness which pressed so grievously upon the outcasts of the Jewish Pale. Already in March, 1856, Count Kiselev, a semi-liberal official and formerly the president of the "Jewish Committee" which had been appointed in 1840 [1] and which was composed of the heads of the various

ministries, submitted a memorandum to Alexander II. in which he took occasion to point out that "the attainment of the goal indicated in the imperial ukase of 1840, that of bringing about the fusion of the Jews with the general population, is hampered by various provisionally enacted restrictions which, when taken in conjunction with the general laws, contain contradictions and engender confusion."

[Footnote 1: See above, p. 49 et seq.]

The result was an imperial order, dated March 31, 1856, "to revise all existing regulations affecting the Jews so as to bring them into harmony with the general policy of fusing this people with the original inhabitants, as far as the moral status of the Jews may render it possible." The same ministers who had taken part in the labors of the Jewish Committee were instructed to draft a plan looking to the modification of the laws affecting the Jews and to submit their suggestions to the Tzar.

In this way the inception of the new reign was marked by a characteristic slogan: the fusion of the Jews with the Russian people, to be promoted by alleviations in their legal status. The way leading to this "fusion" was, in the judgment of Russian officialdom, blocked by the historic unity of the Jewish nation, a unity which in governmental phraseology was styled "Jewish separatism" and interpreted as the effect of the inferior "moral status" of the Jews. At the same time it was implied that Jews with better "morals," i.e., those who have shown a leaning toward Russification, might be accorded special legal advantages over their retrograde coreligionists.

From that moment the bureaucratic circles of St. Petersburg became obsessed with the idea of picking out special groups from among the Jewish population, distinguished by financial or educational qualifications, for the purpose of bestowing upon them certain rights and privileges. It was the old coin—Nicholas' idea of the "assortment" of the Jews—with a new legend

stamped upon it. Formerly it had been intended to penalize the "useless" or "unsettled burghers" by intensifying their rightlessness; now this plan gave way to the policy of rewarding the "useful" elements by enlarging their rights or reducing their rightlessness. The objectionable principle upon which this whole system was founded, the division of a people into categories of favorites and outcasts, remained in full force. There was only a difference in degree: the threat of legal restrictions for the disobedient was replaced by holding out promises of legal alleviations for the obedient.

A small group of influential Jewish merchants in St. Petersburg, which stood in close relations to the highest official spheres, the purveyor and banker Baron Joseph Yozel Günzburg [1] and others, seized eagerly upon this idea which bade fair to shower privileges upon the well-to-do classes. In June, 1856, this group addressed a petition to Alexander II., complaining about the disabilities which weighed so heavily upon all Jews, "from the artisan to the first guild merchant, from the private soldier to the Master of Arts, and forced them down to the level of a degraded, suspected, untolerated tribe." At the same time they assured the Tzar that, were the Government to give a certain amount of encouragement to the Jews, the latter would gladly meet it half-way and help in the realization of its policy to draw the Jews nearer to the original inhabitants and turn them in the direction of productive labor.

[Footnote 1: Popularly known by his middle name as *Yozel*.]

Were—the petitioners declare—the new generation which has been brought up in the spirit and under the control of the Government, were the higher mercantile class which for many years has diffused life, activity, and wealth in the land, were the conscientious artisans who earn their bread in the sweat of their brow, to receive from the Government, as a mark of distinction, larger rights than those who have done nothing

to attest their well-meaningness, usefulness, and industry, then the whole Jewish people, seeing that these few favored ones are the object of the Government's righteousness and benevolence and models of what it desires the Jews to become, would joyfully hasten to attain the goal marked out by the Government. Our present petition, therefore, is to the effect that our gracious sovereign may bestow his kindness upon us, and, by distinguishing the grain from the chaff, may be pleased to accord a few moderate privileges to the most educated among us, to wit:

1. "Equal rights with the other (Russian) subjects or with the Karaite Jews [1] to the educated and well-deserving Jews who possess the title of Honorary Citizens, to the merchants affiliated for a number of years with the first or second guild and distinguished by their business integrity, to the soldiers who have served irreproachably in the army."

2. The right of residence outside the Pale of Settlement "to the best among the artisans" who possess laudatory certificates from the trade-unions. The privileges thus accorded to "the best among us" will help to realize the consummation of the Government "that the sharply marked traits which distinguish the Jews from the native Russians should be levelled, and that the Jews should in their way of thinking and acting become akin to the latter." Once placed outside their secluded "Pale," the Jews "will succeed in adopting from the genuine Russians the praiseworthy qualities, by which they are distinguished, and the striving for culture and useful endeavor will become universal."

[Footnote 1: On the emancipation of the Karaites see Vol. I, p. 318.]

The petition reflects the humiliating attitude of men who were standing on the boundary line between slavery and freedom, whose cast of mind had been formed under the régime of oppression and caprice. Pointing to the example of the West where the bestowal of equal rights had contributed to

the success of Jewish assimilation, the St. Petersburg petitioners were not even courageous enough to demand equal rights as the price of assimilation, and professed, perhaps from diplomatic considerations, to content themselves with miserable crumbs of rights and privileges for "the best among us." They failed to realize the meanness of their suggestion to divide a nation into best and worst, into those worthy of a human existence and those unworthy of it.

3. THE EXTENSION OF THE RIGHT OF RESIDENCE

After some wavering, the Government decided to adopt the method of "picking" the best. The intention of the authorities was to apply the gradual relaxation of Jewish rightlessness not to groups of restrictions, but to groups of persons. The Government entered upon the scheme of abolishing or alleviating certain restrictions not for the whole Jewish population but merely for a few "useful" sections within it. Three such sections were marked off from the rest: merchants of the first guild, university graduates, and incorporated artisans.

The resuscitated "Committee for the Amelioration of the Jews" [1] displayed an intense activity during that period (1856-1863). For fully two years (1857-1859) the question of granting the right of permanent residence in the interior governments to merchants of the first guild occupied the attention of that Committee and of the Council of State. The Committee had originally proposed to restrict this privilege by imposing a series of exceedingly onerous conditions. Thus, the merchants intending to settle in the Russian interior were to be required to have belonged to the first guild within the Pale for ten years previously, and they were to be allowed to leave the Pale only after securing in each case a permit from the Ministers of the Interior and of Finance. But the Council of State found that,

circumscribed in this manner, the privilege would benefit only a negligible fraction of the Jewish merchant class—there were altogether one hundred and eight Jewish first-guild merchants within the Pale—and, therefore, considered it necessary to reduce the requirements for settling in the interior.

[Footnote 1: Compare above, p. 49.]

A long succession of meetings of this august body was taken up with the perplexing problem how to attract big Jewish capital into the central governments and at the same time safeguard the latter against the excessive influx of Jews, who, for the sake of settling there, would register in the first guild and, under the disguise of relatives, would bring with them, as one of the members of the Council put it, "the whole tribe of Israel." After protracted discussions, a resolution was adopted which was in substance as follows:

The Jewish merchants who have belonged to the first guild for not less than two years prior to the issuance of the present law shall be permitted to settle permanently in the interior governments, accompanied by their families and a limited number of servants and clerks. These merchants shall be entitled to live and trade on equal terms with the Russian merchants, with the proviso that, after the settlement, they shall continue their membership in the first guild as well as their payment of the appertaining membership dues for no less than ten years, failing which they shall be sent back into the Pale. Big Jewish merchants and bankers from abroad, "noted for their social position," shall be allowed to trade in Russia under a special permit to be secured in each case from the Ministers of the Interior and of Finance.

The resolution of the Council of State was sanctioned by the Tzar on March 16, 1859, and thus became law.

In this manner the way was opened for big Jewish capital to enter the two Russian capitals and the tabooed interior. The advent of the big capitalists was followed by the influx of their less fortunate brethren, who, driven by material want from the Pale, were forced to seek new domiciles, and in the shape of first guild dues paid for many years a heavy toll for their right of residence and commerce. The position of these merchants offers numerous points of contact with the status of the "tolerated" Jewish merchants in Vienna and Lower Austria prior to 1848.

Toleration having been granted to the Jews with a proper financial status, the Government proceeded to extend the same treatment to persons with educational qualifications. The latter class was the subject of protracted debates in the Jewish Committee as well as in the Ministries and in the Council of State. As early as in 1857 the Minister of Public Instruction Norov had submitted a memorandum to the Jewish Committee in which he argued that "religious fanaticism and prejudice among the Jews" could only be exterminated by inducing the Jewish youth to enter the general educational establishments, "which end can only be obtained by enlarging their civil rights and by offering them material advantages." Accordingly, Norov suggested that the right of residence in the whole Russian Empire should be granted to the graduates of the higher and secondary educational institutions. [1] Those Jews who should have failed to attend school were to be restricted in their right of entering the mercantile guilds. The Jewish Committee refused to limit the rights of those who did not attend the general schools, and proposed, instead, as a bait for the Jews who shunned secular education, to confer special privileges in the discharge of military service upon those Jews who had attended the *gymnazia* [2] or even the Russian district schools, [3] or the Jewish Crown schools, [4] more exactly, to grant them the right of buying themselves off from conscription by the payment of one hundred to two hundred rubles (1859). But the Military Department vetoed this proposal on the ground that education would thus

bestow privileges upon Jews which were denied even to Christians. The suggestion, relating to military privileges was therefore abandoned, and the promotion of education among Jews reduced itself to an extension of the right of residence.

[Footnote 1: The latter category comprises primarily the *gymnazia* (see next note) in which the classic languages are taught, and the so-called *real gymnazia* in which emphasis is laid on science. The higher educational institutions, or the institutions of higher learning, are the universities and the professional schools, on which see next page, n. 4.]

[Footnote 2: The name applies on the European continent to secondary schools. A Russian *gymnazia* (and similarly a German *gymnazium*) has an eight years' course. Its curriculum corresponds roughly to a combined high school and college course in America.]

[Footnote 3: *i.e.*, schools found in the capitals of districts (or counties), preparatory to the *gymnazia*.]

[Footnote 4: See above, p.58 and below, p.174.]

In this connection the Jewish Committee warmly debated the question as to whether the right of residence outside the Pale should be accorded to graduates of the higher and secondary educational institutions, or only to those of the higher. The Ministers of the Interior and Public Instruction (Lanskoy and Kovalevski) advocated the former more liberal interpretation. But the majority of the Committee members, acting "in the interests of a graduated emancipation," rejected the idea of bestowing the universal right of residence upon the graduates of *gymnazia*, and *lyceums* and even upon those of universities and other institutions of higher learning, [1] with the exception of those who had received a learned degree, Doctor, Magister, or Candidate. [2] The Committee was willing, on the other hand, to permit the

possessors of a learned degree not only to settle in the interior but also to enter the civil service. The Jewish university graduate was thus expected to submit a scholarly paper or even a doctor dissertation for two purposes, for procuring the right of residence in some Siberian locality and for the right of serving the State. Particular "circumspection" was recommended by the Committee with reference to Jewish medical men: a Jewish physician, without the degree of M.D., was not to be permitted to pass beyond the Pale.

[Footnote 1: Such as technological, veterinary, dental, and other professional schools, which are independent of the universities.]

[Footnote 2: *Magister* in Russia corresponds roughly to the same title in England and America. It is inferior to the doctor degree and precedes it. *Candidate* is a title, now mostly abolished, given to the best university students who have completed their course and have presented a scholarly paper, without having passed the full examination.]

In this shape the question was submitted to the Council of State in 1861. Here opinions were evenly divided. Twenty members advocated the necessity of "bestowing" the right of residence not only on graduates of universities but also of *gymnazia*, advancing the argument that even in the case of a Jewish *gymnazist* [1] "it is in all likelihood to be presumed that the gross superstitions and prejudices which hinder the association of the Jews with the original population of the Empire will be, if not entirely eradicated, at least considerably weakened, and a further sojourn among Christians will contribute toward the ultimate extermination of these sinister prejudices which stand in the way of every moral improvement."

[Footnote 1: *i.e.*, the pupil of a *gymnazium*.]

Such was the opinion of the "liberal" half of the Council of State. The conservative half argued differently. Only those Jews deserve the right of residence who have received "an education such as may serve as a pledge of their having renounced the errors of fanaticism. "The wise measures adopted" as a precaution against the influx of Jews into the interior governments" would lose their efficacy, "were permission to settle all over Russia to be granted suddenly to all Jews who have for a short term attended a *gymnazium* in the Western and South-western region, for no other purpose, to be sure, than that of pursuing on a larger scale their illicit trades and other harmful occupations." Hence only Jews with a "reliable education," i.e., the graduates of higher educational institutions, who have obtained a learned degree, should be permitted to pass the boundary of the Pale.

Alexander II. endorsed the opinion of the conservative members of the Council of State. The law, promulgated on November 37, 1861, reads as follows:

Jews possessing certificates of the learned degree of Doctor of Medicine and Surgery, or Doctor of Medicine, and likewise of Doctor, Magister, or Candidate of other university faculties, are admitted to serve In all Government offices, without their being confined to the Pale established for the residence of Jews. They are also permitted to settle permanently in all the provinces of the Empire for the pursuit of commerce and Industry.

In addition, the law specifies that, apart from the members of their families, these Jews shall be permitted to keep, as a maximum, "two domestic servants from among their coreligionists."

The promulgation of this law brought about a curious state of affairs, the upshot of the genuinely Russian homoeopathic system of emancipation, A

handful of Jews who had obtained learned degrees from universities were permitted not only to reside in the interior of the Empire, but were also admitted here and there to Government service, in the capacity of civil and military physicians. Yet both of these rights were denied to all other persons with the same university education, "Physicians and Active Students," [1] who had not obtained learned degrees. On one occasion the Minister of Public Instruction put before the Council of State the following legal puzzle: A Jewish student, while attending the university of the Russian capital, enjoys the right of residence there. But when he has successfully finished his course and has obtained the customary certificate, without the learned degree, he forfeits this right and must return to the Pale.

[Footnote 1: Both titles are given at the conclusion of the prescribed university course; the former to medical students, the latter to students of other faculties.]

Yet the Government in its stubbornness refused to make concessions, and when it was forced to make them, it did so rather in its own interest than in that of the Jews. Owing to the scarcity of medical help in the army and in the interior, ukases issued in 1865 and 1867 declared Jewish physicians, even without the title of Doctor of Medicine, to be admissible to the medical corps and later on to civil service in all places of the Empire, except the capitals St. Petersburg and Moscow. Nevertheless, the extension of the plain right of domicile, without admission to civil service, remained for a long time dependent on a learned degree. It was only after two decades of hesitation that the law of January 19, 1879, conferred the right of universal residence on *all* categories of persons with a higher education, regardless of the nature of the diploma, and also including pharmacists, dentists, *feldshers*, [1] and midwives.

[Footnote 1: From the German *Feldscherer*, a sort of combination of leech, first-aid, and barber, who frequently gave medical advice.]

The privileges bestowed upon the big merchants and "titled" intellectuals affected but a few small groups of the Jewish population. The authorities now turned their attention to the mass of the people, and, in accordance with its rules of political homoeopathy, commenced to pick from it a handful of persons for better treatment. The question of admitting Jewish artisans into the Russian interior occupied the Government for a long time. In 1856 Lanskoy, the Minister of the Interior, entered into an official correspondence concerning this matter with the governors-general and governors of the Western provinces. Most of the replies were favorable to the idea of conferring upon Jewish artisans the right of universal residence. Of the three governors-general whose opinion had been invited the governor-general of Vilna was the only one who thought that the present situation needed no change. His colleague of Kiev, Count Vasilchikov, was, on the contrary, of the opinion that it would be a rational measure to transfer the surplus of Jewish artisans who were cooped up within the Pale and had been pauperized by excessive competition to the interior governments where there was a scarcity of skilled labor. [1]

[Footnote 1: The official statistics of that time (about the year 1860) brought out the fact that the number of Jews in the fifteen governments of the Pale of Settlement, exclusive of the Kingdom of Poland, but Inclusive of the Baltic region, amounted to 1,430,800, forming 8% of the total population of that territory. The number of artisans in the "Jewish" governments was far greater than in the Russian interior. Thus in the government of Kiev there were to be found 2.06 artisans to every thousand inhabitants, against 0.8 in the near-by government of Kursk, i.e., 2% times more. In reality, the number of Jews in the Western region, without the

Kingdom of Poland, exceeded considerably 1 and one-half millions, there being no regular registration at that time.]

A surprisingly liberal pronouncement came from, the governor-general of New Russia, Count Stroganov. In the world of Russian officialdom professing the dogma of "gradation" and "caution" in the question of Jewish rights he was the only one who had the courage to raise his voice on behalf of complete Jewish emancipation. He wrote:

The existence in our times of restrictions in the rights of the Jews as compared with the Christian population in any shape or form is neither in accord with the spirit and tendency of the age nor with the policy of the Government looking towards the amalgamation of the Jews with the original population of the Empire.

The count therefore concluded that it was necessary "to permit the Jews to live in all the places of the Empire and engage without any restrictions and on equal terms with all Russian subjects in such crafts and industries as they themselves may choose, in accordance with their habits and abilities." It is scarcely necessary to add that the bold voice of the Russian dignitary, who in a lucid interval spoke up in a manner reminiscent of the civilized West, was not listened to by the bureaucrats of St. Petersburg. Nevertheless, as far as the specific question of Jewish artisans was concerned, the favorable replies were bound to have a decisive effect.

However, red-tape sluggishness managed to retard the decision for several years. In 1863 the question was referred back to the Jewish Committee, only a short time before the dissolution of that body, which for a quarter of a century had perpetrated every conceivable experiment over the "amelioration of the Jews." Thence the matter was transferred to the Committee of Ministers and finally to the Council of State.

In the ministerial body, Valuyev, Minister of the Interior, favored the idea of granting the right of settling outside the Pale to Jewish artisans and mechanics, dependent on certain conditions, "by practising caution and endeavoring to avert the rapid influx into the midst of the population of the interior governments of an element hitherto foreign to it." In reply to Baron Korff, who had advocated the admission of the Jewish artisans beyond the Pale not only with their families but also with Jewish domestics, Valuyev argued that this privilege "will enable Jewish business men of all kinds to reside in the interior governments, under the guise of employes of their coreligionists." "The Jews," according to Valuyev, "will endeavor to transfer their activity to a field economically more favorable to them, and it goes without saying that they will not fail to seize the first best opportunity of exploiting the places of the Empire hitherto inaccessible to them." The Council of State passed the law in the formulation of the Ministry of the Interior, adding the necessary precautions against the entirely legitimate endeavor of Jewish business men "to transfer their activity to a field economically more favorable to them."

After nine years of preparation, on June 28, 1865, Alexander II. finally gave his sanction to the law permitting Jewish artisans, mechanics and distillers, including apprentices, to reside all over the Empire. Both in the wording of the law and in its subsequent application the privilege was hedged about by numerous safeguards. Thus, the artisan who wished to settle outside the Pale had to produce not only a certificate from his trade-union testifying to his professional ability but also a testimony from the police that he was not under trial. At stated intervals he had to procure a passport from his native town in the Pale, since outside the Pale his status was that of a temporary resident. In his new place of residence he was permitted to deal only in the wares of his own workmanship. If he happened to be out of work, he was to be sent back to the Pale.

While opening a valve in the suffocating Pale, the Government took good care to prevent the artificially pent-up Jewish energy from rushing through it. However, heaving cooped up for so long, the Jews began to press through the opening. In the wake of the artisans, who, on account of the indicated restrictions of the law or because of the lack of travelling expenses, emigrated in comparatively small numbers, followed the commercial proletariat, using the criminal disguise of artisans, in order to transfer their energies to a "field economically more favorable to them." The position of these people was tragic. The fictitious artisans became the tributaries of the local police, depending entirely on its favor or disfavor. The detection of such "criminals" outside the Pale was followed by their expulsion and the confiscation of their merchandise.

As a matter of fact, the Russian Government did everything in its power to stem the influx of Jews into the interior. Only with the greatest reluctance did it widen the range of the "privileged" Jewish groups. The Tzar himself, held in the throes of the old Muscovite tradition, frequently put his veto upon the proposals to enlarge the area of Jewish residence. A striking illustration of this attitude may be found in the case of the retired Jewish soldiers, who, after discharging their galley-like army service of a quarter of a century, were expelled from the places where they had been stationed and sent back into the Pale. To the report submitted in 1858 by the Jewish Committee, pointing out the necessity of granting the right of universal residence to these soldiers, the Tzar attached the resolution: "I decidedly refuse to grant it." When petitions to the same effect became more insistent, all he did was to permit in 1860, "by way of exemption," a group of retired soldiers who had served in St. Petersburg in the body-guard to remain in the capital. Ultimately, however, he was obliged to yield, and in 1867 he revoked the law prohibiting retired Jewish soldiers to live outside the Pale. Thus after long wavering the right of domicile was finally bestowed upon the so-called "Nicholas soldiers" and their offspring—a rather niggardly

reward for having served the fatherland under the terrible hardships of the old form of conscription.

4. FURTHER ALLEVIATIONS AND ATTEMPTS AT RUSSIFICATION

Nevertheless, the liberal spirit of the age did its work slowly but surely, and partial legal alleviations were granted by the Government or wrested from it by the force of circumstances. The barriers which had been erected for the Jews within the Pale itself were done away with. Thus the right of residence was extended to the cities of Nicholayev and Sevastopol, which, though geographically situated within the Pale, had been legally placed outside of it. The obstructions in the way of temporary visits to the holy city of Kiev were mitigated. The disgraceful old-time privilege of several cities, such as Zhitomir and Vilna, entitling them to exclude the Jews from certain streets, [1] was revoked. Moreover, by the law of 1862, the Jews were permitted to acquire land in the rural districts on those manorial estates in which after the liberation of the peasants the binding relation of the peasants to the landed proprietors had been completely discontinued. Unfortunately, what the Jews thus gained through the liberation of the peasants, they lost to a large extent soon afterwards through the Polish insurrection of 1863, forfeiting the right of acquiring immovable property outside the cities in the greater part of the Pale. For in 1864, after quelling the Polish insurrection, the Government undertook to Russify the Western region, and both Poles and Jews were strictly barred from acquiring estates in the nine governments forming the jurisdiction of the governors-general of Vilna and Kiev.

[Footnote 1: On the medieval privilege *de non tolerandis Judaeis* see Vol. I, pp. 85 and 95.]

The two other great reforms, that of rural self-government and the judiciary, were not stained by the ignominious label *kromye Yevreyev*, "excepting the Jews," so characteristic of Russian legislation. The "Statute concerning Zemstvo Organizations," [1] issued in 1864, makes no exceptions for Jews, and those among them with the necessary agrarian or commercial qualifications are granted the right of active and passive suffrage within the scheme of provincial self-government. In fact, in the Southern governments the Jews began soon afterwards to participate in the rural assemblies, and were occasionally appointed to rural offices. Nor did the liberally conceived Judicial Regulations of 1864 [2] contain any important discriminations against Jews. Within a short time Jewish lawyers attained to prominence as members of the Russian bar, although their admission to the bench was limited to a few isolated cases.

[Footnote 1: A system of local self-government carried on by means of elective assemblies and its executive organs. There is an assembly for each district (or county) and another for each government.]

[Footnote 2: Among other reforms they instituted the Russian bar as a separate organization.]

Little by little, another dismal spectre of the past, the missionary activity of the Government, began to fade away. In the beginning of Alexander's reign, the conversion of Jews was still encouraged by the grant of monetary assistance to converts. The law of 1859 extended these stipends to persons embracing any other Christian persuasion outside of Greek Orthodoxy. But in 1864 the Government came to the conclusion that it was not worth its while to reward deserters and began a new policy by discontinuing its allowances to converts serving in the army. A little later it repealed the law providing for a mitigation of sentence for criminal offenders who embrace Christianity during the inquiry or trial. [1]

[Footnote 1: See above, p. 45.]

In encouraging "the fusion of the Jews with the original population," the Government of Alexander II. had in mind civil and cultural fusion rather than religious assimilation, which even the inquisitorial contrivances of Nicholas' conscription scheme had failed to accomplish. But as far as the cultural fusion or, for short, the Russification of the Jews was concerned, the Government even now occasionally indulged in practices which were borrowed from the antiquated system of enlightened absolutism.

The official enlightenment, which had been introduced during the forties, was slow in taking root. The year 1848 was the first scholastic year in the two enlightenment nurseries, the rabbinical schools of Vilna and Zhitomir. Beginning with that year a number of elementary Crown schools for Jewish children were opened in various cities of the Pale. The cruel persecutions of the outgoing regime affected the development of the schools in a twofold manner. On the one hand, the Jewish population could not help turning away with disgust from the gift of enlightenment which its persecutors held out to it. On the other hand, the horrors of conscription induced many a Jewish youth, to seek refuge in the new rabbinical schools which saved their inmates from the soldier's uniform. Many a parent who regarded both the barracks and the Crown schools as training grounds for converts preferred to send his children to the latter, where, at least, they were spared the martyrdom of the barracks. The pupils of the rabbinical schools came from the poorest classes, those that carried on their shoulders the whole weight of conscription. True, the distrustful attitude towards the official schools was gradually weakening as the new Government of Alexander II. was passing from the former policy of oppression to that of reforms. By and by, the compulsory attendance at these schools became a voluntary one, prompted by the desire for general culture or for a special training as rabbi or teacher. Nevertheless the expectation of the Russian Government under

Nicholas I. that the new schools would take the place of the time-honored educational Jewish institutions, the heder and yeshibah, remained unfulfilled. Only an insignificant percentage of Jewish children went to the Crown schools, and even these children did so only after having received their training at the heder or yeshibah.

Realizing this, the Government decided to combat the traditional school as the rival of the new. Immediately upon his accession to the throne, Alexander confirmed the following resolution adopted by the Jewish Committee on May 3, 1855: "After the lapse of twenty years no one shall be appointed rabbi or teacher of Jewish subjects, except graduates of the rabbinical schools [1] or of the general educational establishments of a higher or secondary grade."

[Footnote 1: i.e., the Government training schools for rabbis provided by the ukase of 1844. See the preceding page.]

Having fixed a term of twenty years for abolishing the institution of melammeds and religious leaders, the product of thousands of years of development, the Government frequently brandished this Damocles sword over their heads. In 1856 a strict supervision was established over heders and melammeds. A year later the Jewish communities were instructed to elect henceforward as "official rabbis" [1] only graduates of the rabbinical Crown schools or of secular educational establishments, and, in default of such, to invite educated Jews from Germany. But all these regulations proved of no avail, and in 1859 a new ukase became necessary, which loosened the official grip over the heders, but made it at the same time obligatory upon the children of Jewish merchants to attend the general Russian schools or the Jewish Crown schools.

[Footnote 1: Crown (In Russian *kazyonny*) rabbis in Russia are those that discharge the civil functions connected with their office, in distinction from

the "spiritual" or ecclesiastic rabbis who are in charge of the purely religious affairs of the community. This division has survived in Russia until to-day.]

The enforcement of school attendance would scarcely have produced the desired effect—the orthodox managed somehow to give the slip to "Russian learning"—were it not for the fact that under the influence of the inner cultural transformation of Russian Jewry the general Russian school became during that period more and more popular among the advanced classes of the Jewish population, and gymnasium and university took their place alongside of heder and yeshibah. Yet the hundreds of pupils in the new schools faded into insignificance when compared with the hundreds of thousands who were educated exclusively in the old schools. The fatal year 1875, the last of the twenty years of respite granted to the melammeds for their self-annihilation, arrived. But the huge melammed army was not willing to pass out of Jewish life, in which they exercised a definite function, with no substitute to take its place. The Government was forced to yield. After several brief postponements the melammeds were left in peace, and by an ukase issued in 1879 the idea of abolishing the heders was dropped.

Towards the end of this period the Government abandoned altogether its attempts to reform the Jewish schools, and decided to liquidate its former activity in this direction. By an ukase issued in 1873 the two rabbinical schools and all Jewish Crown schools were closed. On the ruins of the vast educational network, originally projected for the transformation of Judaism, only about a hundred "elementary schools" and two modest "Teachers Institutes," [1] which were to supply teachers for these schools, were established by the Government. The authorities were now inclined to look upon the general Russian schools as the most effective agencies of "fusion,"

and put their greatest trust in the elemental process of Russification which had begun to sweep over the upper layers of Jewry.

[Footnote 1: In Vilna and Zhitomir. The latter was closed in 1885. The former is still in existence.]

5. THE JEWS AND THE POLISH INSURRECTION OF 1863

While the official world of St. Petersburg was obsessed with the idea of the Russification of Jewry, in Warsaw the tendency of Polonization, as applied to the Jews of the Western region, cropped up in the wake of the revolutionary Polish movement in the beginning of the sixties. At the inception of Alexander's reign the Russian Government set out to equalize the legal status of the Jews in the Kingdom of Poland with that of the Empire, and to abolish the surviving special restrictions, such as the prohibition of residing in certain towns, or in certain parts of towns, disabilities in acquiring property, and others. But the highest Polish administration in Warsaw was obstructing in every possible way the liberal attempts of the Russian Government. Prior to the insurrection of 1863, the attitude of Polish society towards the Jews was one of habitual animosity, and this notwithstanding the fact that by that time Warsaw harbored already a group of Jewish intellectuals who were eager to assimilate with the Poles and were imbued with Polish patriotism. When, in 1859, the *Warsaw Gazette* published an anti-Semitic article in which the Jews were branded as foreigners, the Polish-Jewish patriots, including the banker Kronenberg, a convert, were stung to the quick, and they came forward with violent protests. This led to passionate debates in the Polish press, generally unfriendly to the Jews. The radical Polish organs, published abroad by political exiles, took occasion to denounce bitterly the anti-Semitic trend of Polish society. The veteran historian Lelevel, who had not yet forgotten

Poland's historic injustice of 1831, [1] issued a pamphlet in Brussels, calling upon the Poles to live in harmony with the race with which it had existed side by side for eight hundred years.

[Footnote 1: See above, p. 105.]

Lelevel's kindly words would scarcely have brought the anti-Semites to reason, had not the Poles at that moment embarked upon an enterprise for the success of which they sorely needed the sympathy and co-operation of their Jewish neighbors. The revolutionary movement which engulfed Russian Poland in 1860-1863 required the utmost exertion of effort on the part of the entire population, in which the half-million Jews played no small part. All of a sudden Polish society opened its arms to those whom it had but recently branded as foreigners, and out of the ranks of Warsaw Jewry came a hearty response, expressing itself not only in patriotic manifestations but also in sacrifices and achievements for the sake of the common fatherland.

At the head of the Warsaw community during this stormy period stood a man who combined Polish patriotism with rabbinic orthodoxy. Formerly rabbi in Cracow, Berush [1] Meisels had as far back as 1848 been sent as deputy to the parliament at Kremsier, [2] and stood in the forefront of the Polish patriots of Galicia. In 1856 he accepted the post of rabbi in Warsaw. When the revolutionary movement had broken out, Meisels endeavored to instruct his flock in the spirit of Polish patriotism. Revered by the Jewish masses for his piety, and by the intellectuals for his political trend of mind, this spiritual leader of Polish Jewry played in the revolutionary Polish movement a role equal in importance to that of the leading ecclesiastics of Poland. The harmonious co-operation of the orthodox Chief Rabbi Meisels, the reform preacher Marcus Jastrow, [3] and the lay representatives of the

community lent unity and organization to the part played by the Jews in preparing the rebellion.

[Footnote 1: A variant of the name *Baer*.]

[Footnote 2: A town in Moravia, where, after the rising of 1848, the Austrian parliament met provisionally till March, 1849.]

[Footnote 3: After the suppression of the Polish insurrection, Jastrow went to the United States, and became a leading rabbi in Philadelphia. He died in 1903.]

The Jews of Warsaw participated in all street manifestations and political processions which took place during the year 1860-1861. Among those pierced by Cossack bullets during the manifestation of February 27, 1861, were several Jews. The indignation which this shooting down of defenceless people aroused in Warsaw is generally regarded as the immediate cause of the mutiny. Rabbi Meisels was a member of the deputation which went to Viceroy Gorchakov to demand satisfaction for the blood that had been spilled. In the demonstrative funeral procession which followed the coffins of the victims the Jewish clergy, headed by Meisels, marched alongside of the Catholic priesthood. Many Jews attended the memorial services in the Catholic churches at which fiery patriotic speeches were delivered. Similar demonstrations of mourning were held in the synagogues. An appeal sent out broadcast by the circle of patriotic Jewish Poles reminded the Jews of the anti-Jewish hatred of the Russian bureaucracy, and called upon them "to clasp joyfully the brotherly hand held forth by them (the Poles), to place themselves under the banner of the nation whose ministers of religion have in all churches spoken of us in words of love and brotherhood."

The whole year 1861 stood, at least as far as the Polish capital was concerned, under the sign of Polish-Jewish "brotherhood." At the synagogue service held in memory of the historian Lelevel Jastrow preached a patriotic sermon. On the day of the Jewish New Year prayers were offered up in the synagogues for the success of the Polish cause, accompanied by the singing of the national Polish hymn *Boze cos Polske*. [1] When, as a protest against the invasion of the churches by the Russian soldiery, the Catholic clergy closed all churches in Warsaw, the rabbis and communal elders followed suit, and ordered the closing of the synagogues. This action aroused the ire of Lieders, the new viceroy. Rabbi Meisels, the preachers Jastrow and Kramshtyk as well as the president of the "Congregational Board" were placed under arrest. The prisoners were kept in the citadel of Warsaw for three months, but were then released.

[Footnote 1: Pronounce, *Bozhe, tzosh Polske*, "O Lord, Thou that hast for so many ages guarded Poland with the shining shield of Thy protection!"—the first words of the hymn.]

In the meantime Marquis Vyelepolski, acting as mediator between the Russian Government and the Polish people, had prepared his plan of reforms as a means of warding off the mutiny. Among these reforms, which aimed at the partial restoration of Polish autonomy and the improvement of the status of the peasantry, was included a law providing for the "legal equality of the Jews." Wielding considerable influence, first as director of the Polish Commission of Ecclesiastical Affairs and Public Instruction, and later as the head of the whole civil administration of the Kingdom, Vyelepolski was able to secure St. Petersburg's assent to his project. On May 24, 1862, Alexander II. signed an ukase revoking the suspensory decree of 1801 1808, [1] which had entailed numerous disabilities for the Jews incompatible with the new tendencies in the political and agrarian life of the Kingdom. This ukase conferred the following rights upon the Jews:

[Footnote 1: See Vol. I, p. 299.]

1. To acquire immovable property on all manorial estates on which the peasants had passed from the state of serfs into that of tenants.

2. To settle freely in the formerly prohibited cities and city districts, [1] not excluding those situated within the twenty-one verst zone along the Prussian and Austrian frontier. [2]

3. To appear as witnesses in court on an equal footing with Christians in all legal proceedings and to take an oath in a new, less humiliating form.

[Footnote 1: See above, pp. 172 and 178.]

[Footnote 2: See above, p. 95.]

Bestowing these privileges upon the Polish Jews in the hope of bringing about their amalgamation with the local Christian population, the Tzar forbids in the same ukase the further use of Hebrew and Yiddish in all civil affairs and legal documents, such as contracts, wills, obligations, also in commercial ledgers and even in business correspondence. In conclusion, the ukase directs the Administrative Council of the Kingdom of Poland to revise and eventually to repeal all the other laws which hamper the Jews in their pursuit of crafts and industries by imposing special taxes upon them.

This ukase of Alexander II., though revoking only part of the insulting restrictions in the elementary civil rights of the Jews, was given the high-sounding title of an "Act of Emancipation." The secluded hasidic mass of Poland was glad to accept the legal alleviations offered to it, without thinking of any linguistic or other kind of assimilation. On the other hand, the assimilated Jewish *intelligentzia*, which had joined the ranks of the

Polish insurgents, was dreaming of complete emancipation, and confidently hoped to attain it upon the successful termination of the revolutionary enterprise.

In the meantime the revolution was assuming ever larger proportions. The year 1863 arrived. The demonstrations on the streets of Warsaw were succeeded by bloody skirmishes between the Polish insurgents and the Russian troops in the woods of Poland and Lithuania. The Jews took no active part in this phase of the rebellion. As far as Poland proper was concerned, their participation was limited to the secret revolutionary propaganda. In Lithuania again neither the Jewish masses nor the newly arisen class of intellectuals sympathized with the Polish cause. In that part of the country the systematic Jew-baiting of the Polish peasants, or noble landowners, was still fresh in the minds, and the Jews, moreover, were pinning all their faith to the emancipation to be bestowed by St. Petersburg. The will o' the wisp of Russification had already begun to lure the Jewish professional class. In many Lithuanian localities the Jews who failed to show their sympathy with the Polish revolutionaries ran the risk of being dealt with severely. Here and there, as had been the case in 1831, the rebels were as good as their word, and hanged or shot the Jews suspected of pro-Russian sympathies.

The reserved attitude of the Lithuanian Jews throughout the mutiny proved their salvation after the suppression of the rebellion, when the ferocious Muravyov, the governor-general of Vilna, took up his bloody work of retribution. As for the Kingdom of Poland, neither the revolution nor its suppression entailed any serious consequences for them. True, the fraternization of the Warsaw Jews with the Poles during the revolutionary years weakened for a little while the hereditary Jew-hatred of the Polish people, and helped to intensify the fever of Polonization which had seized the Jewish upper classes. But indirectly the effects of the Polish rebellion

were detrimental to the Jews of the rest of the Empire. The insurrection was not only followed by a general wave of political reaction, but it also gave strong impetus to the policy of Russification which was now applied with particular vigor to the Western provinces, and was damaging to the Jews both from the civil and the cultural point of view.

CHAPTER XIX

THE REACTION UNDER ALEXANDER II.

1. CHANGE OF ATTITUDE TOWARD THE JEWISH PROBLEM

The decided drift toward political reaction in the second part of Alexander's reign affected also the specific Jewish problem, which the homoeopathic reforms, designed to "ameliorate" a fraction of the Jewish people, had tried to solve in vain. The general reaction showed itself in the fact that, after having carried out the first great reforms, such as the liberation of the peasantry, the introduction of rural self-government and the reorganization of the administration of the law, the Government considered the task of Russian regeneration to be completed, and stubbornly refused, to use the expression current at the time, "to crown the edifice" by the one great political reform, the grant of a constitution and political liberty. This refusal widened the breach between the Government and the progressive element of the Russian people, whose hopes were riveted on the ultimate goal of political reorganization. The striving for liberty, driven underground by police and censorship, assumed among the Russian youth the character of a revolutionary movement. And when the murderous hand of the "Third Section" [1] descended heavily upon the champions of liberty, the youthful revolutionaries retorted with political terrorism which darkened the last days of Alexander II. and led to his assassination.

[Footnote 1: See above, p. 21, n. 1.]

The complete emancipation of the Jews was out of place in this atmosphere of growing official reaction. The same bureaucracy which halted the march of the "great reforms" for the country at large was not inclined to allow even minor reforms when affecting the Jews only. Even the former desire for a "graded" and partial amelioration of the position of the Jews had vanished. Instead, the center of the stage was again occupied by the old red-tape activities, by discussions about the Jewish question—endless no less than fruitless—in the recesses of bureaucratic committees and sub-committees, by oracular animadversions of governors and governors-general upon the conduct of the Jews, and so on. Theory-mongering of the reactionary variety was again at a premium. Once more the authorities debated the question whether the Jews were to be regarded as useful or harmful to the State, instead of putting the diametrically opposite question of simple justice: whether the State which is called upon to serve the Jews as part of the civic organism of Russia is useful to them to an extent which may be lawfully claimed by them.

Under Nicholas I. the Government chancelleries had been busy inventing new remedies against the "separatism" of the Jews and their "harmful pursuits." During the first liberal years of Alexander's reign commerce ceased to be branded as "a harmful pursuit." Yet as soon as the Jewish merchants, stimulated by the partial extension of their right of residence and occupation, displayed a wider economic activity and became successful competitors of the "original" Russian business men, they were met with shouts of protest demanding that this Jewish "exploitation" be effectively "curbed."

In this connection it must be pointed out that the economic advancement of the Jews was not altogether due to the privileges accorded to them by the

Russian legislation, but was rather the effect of general economic conditions. The great progress in industrial life during "the era of reforms," more particularly the expansion of railroad enterprises during the sixties and seventies, opened up a wide field for the energies of Jewish capitalists. Moreover, the abolition, in 1861, of the old system of farming out the sale of liquor transferred a part of the big Jewish capital from the liquor traffic into railroad building. The Jewish "excise farmers" [1] were converted into railroad men, as shareholders, supply merchants, or contractors. A new Jewish plutocracy came into being, and its growth excited jealousy and fear among the Russian mercantile class. The Government, filled with enthusiasm for the cultivation of large industries, was not as yet prepared to discriminate against the Jews whenever big capital was concerned. But it lent an attentive ear to the "original" Russian merchants whenever they complained about Jewish competition in petty trade, on which the lower Jewish classes depended for their livelihood. The Government, which had not yet emancipated itself from the habit of "assorting" its citizens and dividing them into a protected and a tolerated class, set out to elaborate measures for "curbing" the Jews belonging to the latter category.

[Footnote 1: i.e., those that leased from the Government the collection of excise on liquor. They were designated as *aktzizniks*, from *aktziz*, the Russian word for "excise."]

The question which confronted the Government next was this: to what extent have the hopes for a fusion of the Jews with the original population been justified by the events? Here, too, the reply was unsatisfactory. The naive expectation that a few gratuities offered to the Jews in the shape of privileges would fill them with the eager desire to "fuse" with the Russians did not come true. Strong as was the trend towards Russification in the new Jewish *intelligenza* of the sixties, the broad masses of Jewry knew nothing of such a tendency. The authorities became suspicious: what if these crafty

Hebrews should fool us again and refuse to pay for the donated rights by fusing with the Christians? Russian officialdom received new food for reflection which was to last it for years, nay, for decades.

2. THE INFORMER JACOB BRAFMAN

Several occurrences were instrumental in determining the Government to embark upon a new policy, that of investigating assiduously the inner life of the Jews. At the end of the sixties a man appeared in Vilna who offered his services to the authorities as a detective and spy among the Jews. Jacob Brafman, a native of the government of Minsk, had deserted his race and religion in the last years of Nicholas' conscription, hoping thereby to escape the nets of the vigilant Kahal "captors" who wished to draft him into the army. Embittered against the Kahal agents who had become mere police tools, Brafman desired to wreak vengeance upon the Kahal as a whole, nay, upon the very idea of a Jewish communal organization.

When the "fusion," or assimilation, of the Jews became the watchword of the highest official circles, the astute convert found that he could make his way by exposing the influences which in his opinion checked the endeavors of the Government. A memorandum presented by him to Alexander II., when the latter was passing through Minsk in 1858, opened to him the doors of the Holy Synod. He was appointed instructor of Hebrew at a Greek-Orthodox seminary and entrusted with the task of finding ways to remove the difficulties placed by the Jews in the path of their coreligionists intending to go over to Christianity. His mission to facilitate apostasy among the Jews proved a failure, and his services as detective were not yet appreciated during the liberal years of Alexander's reign.

However, with the reactionary turn in Russian politics, in the middle of the sixties, these services were once more in demand. Brafman hastened to

the hot-bed of reactionary chauvinism, the city of Vilna, which was firmly held in the iron grip of Muravyov, [1] and there began "to expose the separatism of the inner life of the Jews" before the highest administration of the province. He contended that the Kahal, though officially abolished in 1844, [2] continued in reality to exist and to maintain a widely ramified judiciary (*Bet Din*), that it constituted a secret, uncanny sort of organization which wielded despotic power over the communities by employing such weapons as the *herem* (excommunication) and *hazakah* (the Jewish legal practice of securing property rights), [3] that it incited the Jewish masses against the State, the Government, and the Christian religion, and fostered in these masses fanaticism and dangerous national separatism. In the opinion of Brafman, the only way to eradicate this "secret Jewish government," was to destroy the last vestiges of Jewish communal autonomy by closing all religious and charitable societies and fraternities. The Jewish community itself ought to share the same fate, and the Jews forming part of it should be included among the Christian estates in the cities and villages. In a word, Judaism as a communal organization should pass out of existence altogether.

[Footnote 1: Michael Muravyov (see above, p. 183) was appointed in 1863 military governor of the governments of Vilna, Kovno, Grodno, Vitebsk, Minsk, and Moghilev, which he endeavored to Russify with relentless cruelty. He died in 1866.]

[Footnote 2: See p. 58 et seq.]

[Footnote 3: More exactly, the acquisition of property by continued and undisturbed possession for a period of time. This right of acquisition was formerly granted by the Kahal on the payment of a certain tax; see Vol. I, p. 190.]

The heads of the Russian administration in Lithuania listened eagerly to the sinister revelations of the new Pfefferkorn. [1] In 1866 Governor-General Kauffmann appointed a commission, which also included a few Jewish experts, to look into the material compiled by Brafman. This material consisted of the minutes of the Kahal of Minsk from the first half of the nineteenth century, recording the entirely legitimate enactments which the communal administration had passed by virtue of the autonomous rights granted to it by the Government. Brafman published his material in a series of articles in the official organ of the province, the *Vilenski Vyestnik*, "The Vilna Herald"; the articles were later republished in a separate volume, under the title *Kniga Kahala*, "The Book of the Kahal." [2] The data collected by Brafman were embellished with the customary anti-Semitic quotations from talmudic and rabbinic literature, and put in such a light that the Government was placed on the horns of a dilemma: either to destroy with one stroke the entire Jewish communal organization and all the cultural agencies attached to it, or to run the risk of seeing Russia captured by the "Universal Kahal." It may be added that the *Alliance Israélite Universelle*, which had shortly before been founded in Paris for the purpose of assisting Jews in various countries, figured in Brafman's indictment as a constituent society of the universal Jewish Kahal organization.

[Footnote 1: A medieval convert (died ab. 1521) who wrote against Judaism, especially the Talmud.]

[Footnote 2: The first edition appeared in 1869, the second in 1871.]

The "Book of the Kahal" was printed at public expense and sent out to all Government offices to serve as a guide for Russian officials and enable them to fight the "Inner enemy." It was in vain that Brafman's ignorance of rabbinic lore and his entire distortion of the role played by the Kahal in

days gone-by was exposed by Jewish writers in articles and monographs; it was in vain that the Jewish members of the commission appointed by the governor-general of Vilna protested against the barbarous proposals of the informer. The authorities of St. Petersburg seized upon Brafman's discoveries as incontrovertible evidence of the existence of Jewish separatism and as a justification for the method of "cautiousness" which they saw fit to apply to the solution of the Jewish problem.

3. THE FIGHT AGAINST JEWISH "SEPARATISM"

Another incident which took place about the same time served in the eyes of the leading Government circles as an additional illustration of Jewish separatism. In 1870 Alexander II. was on a visit to the Kingdom of Poland, and there beheld the sight of dense masses of Hasidim with their long earlocks and flowing coats. The Tzar, repelled by this spectacle, enjoined upon the Polish governors strictly to enforce in their domains the old Russian law prohibiting the Jewish form of dress. [1] Thereupon the administration of the Kingdom threw itself with special zest upon the important task of eradicating "the ugly costumes and earlocks" of the Hasidim.

[Footnote 1: See above p. 144.]

Shortly afterwards the question of Jewish separatism was the subject of discussion before the Council of State. Under the unmistakable influence of the recent revelations of Brafman, the Council of State arrived at the conclusion that "the prohibition of external differences in dress is yet far from leading to the goal pursued by the Government, viz., to destroy the exclusiveness of the Jews and the almost hostile attitude of the Jewish communities towards Christians, these communities forming in our land a secluded religious and civil caste or, one might say, a state in a state."

Hence the Council proposed to entrust a special commission with the task "of considering ways and means to weaken as far as possible the communal cohesion among the Jews" (December, 1870). As a result, a commission of the kind suggested by the Council was established in 1871, consisting of the representatives of the various ministries and presided over by the Assistant-Minister of the Interior, Lobanov-Rostovski. The Commission received the name "Commission for the Amelioration of the Condition of the Jews." [1]

[Footnote 1: Compare above, pp. 161 and 169.]

While the Government was again engaged in one of its numerous experiments over the problem of Jewish separatism, an event, unusual in those days, took place: the Odessa pogrom [1] of 1871. In this granary of the South, which owed its flourishing commerce to Jews and Greeks, an unfriendly feeling had sprung up between these two nationalities, which competed with one another in the corn trade and in the grocery business. This competition, though of great benefit to the consumers, was a thorn in the flesh of the Greek merchants. Time and again the Greeks would scare the Jews during the Christian Passover by their barbarous custom of discharging pistols in front of their church, which was situated in the heart of the Jewish district. But in 1871, with the approach of the Christian Passover, the Greeks proceeded to organize a regular pogrom.

[Footnote 1: *Pogrom*, with the accent on the last syllable, signifies *ruin*, *devastation*, and was originally applied to the ravages of an invading army.]

To arouse the mob the Greeks spread the rumor that the Jews had stolen a cross from the church fence and had thrown stones at the church building. The pogrom began on Palm Sunday (March 28). The Jews were maltreated, and their houses and shops were sacked and looted. Having started in the immediate vicinity of the church, the riot spread to the neighboring streets and finally engulfed the whole city. For three days hordes of Greeks and

Russians gave free vent to their mob instincts, demolishing, burning, and robbing Jewish property, desecrating synagogues and beating Jews to senselessness in all parts of the city, undisturbed by the presence of police and troops who did nothing to stop the atrocities. The appeal of representative Odessa Jews to Governor-General Kotzebue was met by the retort that the Jews themselves were to blame, "having started first," and that the necessary measures for restoring order had been adopted. The latter assertion proved to be false, for on the following day the pogrom was renewed with even greater vigor.

Only on the fourth day, when thousands of houses and shops had already been destroyed, and the rioters, intoxicated with their success, threatened to start a regular massacre, the authorities decided to step in and to "pacify" the riff-raff by a rather quaint method. Soldiers were posted on the market place with wagon-loads of rods, and the rioters, caught red-handed, were given a public whipping on the spot. The "fatherly" punishment inflicted by the local authorities upon their "naughty" children sufficed to put a stop to the pogrom.

As for the central Government in St. Petersburg, the only thing it wanted to know was whether the pogrom had any connection with the secret revolutionary propaganda which, beginning with the Jews, might next set the mob against the nobility and Russian bourgeoisie. Since the official inquiry failed to reveal any political motives behind the Odessa riots, the St. Petersburg authorities were set at ease, and were only too glad to take the word of the satraps of the Pale who reported that the anti-Jewish movement had started as "a crude protest of the masses against the failure to solve the Jewish question"—viz., to solve it in a reactionary spirit—and as a manifestation, of the popular resentment against Jewish exploitation.

The old charge of separatism against the Jews thus found a companion in a new accusation: their economic "exploitation" of the Christian population of the Pale. The Committee appointed at the recommendation of the Council of State was enjoined to conduct a strict inquiry into both these "charges." Concretely the work of the Committee reduced itself to a consideration of two questions, one relating to the Kahal, or "the amelioration of the spiritual life of the Jews," and the other referring to the feasibility of thinning out the Pale of Settlement with the end in view of weakening the economic competition of the Jews.

The material bearing on these questions included, apart from Brafman's "standard work," a "Memorandum concerning the more important Administrative Problems in the South-west," which had been submitted in 1871 by the governor-general of Kiev, Dondukov-Korsakov, to the Tzar. The author of the memorandum voices his conviction that "the principal endeavors of the Government must be concentrated upon the Jewish question." The Jews are becoming a great economic power in the South-western provinces. They purchase or mortgage estates, and obtain control of the factories and mills as well as of the grain, timber, and liquor trade, thereby arousing the bitter resentment of the Christian population, particularly in the rural districts. [1] Moreover, the Jewish masses, refusing to follow the lead of the handful of Russified Jewish intellectuals, live entirely apart and remain in the throes of talmudic fanaticism and hasidic obscurantism. They "possess complete self-government in their Kahals, their own system of finance in the basket tax, their separate charitable institutions," their own traditional school in the heders, of which there are in the South-west no less than six thousand. In addition, the Jews possess an international organization, the "World Kahal," represented by the *Alliance Israélite "Universelle* in Paris, whose president, Adolph Crémieux, had had the audacity to protest to the Russian Government against acts of violence perpetrated upon the Jews. For all these reasons the governor-general is of

the opinion that "the revision of the whole legislation affecting the Jews has become an imperative necessity."

[Footnote 1: According to the official figures, quoted in the memorandum, the number of Jews in the three South-western governments, i.e., Volhynia, Podolia, and the Kiev province, amounted to 721,080. Of these, 14 per cent lived in rural districts and 86 per cent in cities and towns. They owned 27 sugar refineries out of 105; 619 distilleries out of 712; 5700 mills out of 6353; and so forth. The production of the industrial establishments in the hands of the Jews reached the sum of seventy million rubles.]

A similar tone was adopted in the other official documents which came into the hands of the "Committee for the Amelioration of the Condition of the Jews." The communications of the governors and the reports of the members of the Committee were all animated by the same spirit, the spirit that spoke through Brafman's "Book of the Kahal." This was but natural. The officials, to whom this book had been sent by the central Government "for guidance," drew from it their whole political wisdom in things Jewish, and in their replies endeavored to fall in with the instructions of the Council of State, conveyed to them by the Committee, viz., "to consider ways and means to weaken the communal cohesion among the Jews."

In the Kingdom of Poland the governors complained similarly in their reports that the Jews of the province, though accorded equal rights by Vyelepoliski, [1] had not complied with the conditions attached to that act, to wit, "to abandon the use of their own language and script, in exchange for the favors bestowed upon them." Outside of a handful of assimilated "Poles of the Mosaic Persuasion," who were imbued with Polish chauvinism, [2] the hasidic rank and file was permeated by extreme separatism, fostered by "the Kahal through its various agencies, the

Congregational Boards, the rabbinate, the heders, and a host of special institutions."

[Footnote 1: See above, p. 181.]

[Footnote 2: And hence objectionable from the Russian point of view.]

These and similar communications formed the groundwork of the reports, or more correctly, the bills of indictment in which the members of the Committee charged the Jews with the terrible crime of constituting "a religio-political caste," in other words, a nationality. Following the lead of Brafman, the members of the Committee laid particular emphasis in their reports on the obnoxiousness of the Talmud and the danger of Jewish separatism. Needless to say, the conclusions offered by them were of the kind anticipated in the instructions of the Council of State: the necessity of wiping out the last vestiges of Jewish self-government, such as the Jewish community, the school, the mutual relief societies, in a word, everything that tends to foster "the communal cohesion among the Jews."

The barbarism of these proposals was covered by the fig-leaf of enlightenment. When the benighted Jewish masses will have fused with the highly cultured populace of Russia. In other words, when the Jews will have ceased to be Jews, then will the Jewish question find its solution. In the meantime, however, the Jews are to be curbed by the bridle of disabilities. The referee of the Committee on the question of the Pale of Settlement, Grigoryev, frankly stated: "What is important in this question is not whether the Jews will fare better when granted the right of residence all over the Empire, but rather the effect of this measure on the economic well-being of an enormous part of the Russian people." From this point of view the referee finds that it would be dangerous to let the Jews pass beyond the Pale, since "the plague, which has thus far been restricted to the Western provinces, will then spread over the whole Empire."

For a long time the Committee was at a deadlock, held down by bureaucratic reaction. It was only toward the end of its existence that the voice from another world, the posthumous voice of dead and buried liberalism, resounded in its midst. In 1880 the Committee was presented with a memorandum by two of its members, Nekhludov and Karpov, in which the bold attempt was made to champion the heretic point of view of complete Jewish emancipation. The language of the memorandum was one which the Russian Government had not heard for a long time.

In the name of "morality and justice" the authors of the memorandum call upon the Government to abandon its grossly utilitarian attitude towards the Jews who are to be denied civil rights so long as they do not prove useful to the "original" population. They expose the selfish motive underlying the bits of emancipation which had been doled out to the Jews during the preceding spell of liberalism: the desire, not to help the Jews, but to exploit their services. First-guild merchants, physicians, lawyers, artisans were admitted into the interior for the sole purpose of developing business in those places and filling the palpable shortage in artisans and professional men. "As soon as this or that category of Jews was found to be serviceable to the Russian people, it was relieved, and relieved only in part, from the pressure of exceptional laws, and received into the dominant population of the Empire." But the millions of plain Jews, abandoned by the upper classes, have continued to languish in the suffocating Pale. [1] The Jewish population is denied the elementary rights guaranteeing liberty of pursuit, freedom of movement and land ownership, such as only a criminal may be deprived of by a verdict of the courts. As it is, discontent is rife among these disinherited masses. "The rising generation of Jews has already begun to participate in the revolutionary movement to which they had hitherto been strangers." The system of oppression must be set aside. All the Jewish defects, their separatism and one-sided economic activity, are merely the fruits of this oppression. Where the law has no confidence in the population,

there inevitably the population has no confidence in the law, and it naturally becomes an enemy of the existing order of things, "Human reason does not admit of any considerations which might justify the placing of many millions of the Jewish population, on a level with criminal offenders." The first step in the direction of complete emancipation ought to be the immediate grant of the right of domicile all over the Empire.

[Footnote 1: The narrow utilitarianism of the governmental policy in the Jewish question may also be illustrated by the official attitude towards the promotion of agriculture among the Jews. Under Alexander I. and Nicholas I. Jewish agricultural colonization in the South of Russia was encouraged by the grant of special privileges, though the Jewish settlers were subjected to the stern tutelage of bureaucratic inspectors. But under Alexander II., when Southern Russia was no longer in need of artificial colonization, the Government discontinued its policy of promoting Jewish colonization, and an ukase issued in 1866 stopped the settlement of Jews in agricultural colonies altogether. A little later the Jewish colonies in the South-west were deprived of a large part of their lands, which were distributed among the peasants.]

These bold words which turned the Jews from defendants into plaintiffs ran counter to the fundamental task of the Committee, which, according to the original instructions received by it, was expected to draft its plans in a spirit of reaction. At any rate, these words were uttered too late. A new era was approaching which in solving the Jewish question resorted to methods such as would have horrified even the conservative statesmen of the seventies: the era of pogroms and cruel disabilities.

4. THE DRIFT TOWARD OPPRESSION

During the last decade of Alexander's reign, the machinery of Jewish legislation was working at a slow rate, pending the full "revision" of Jewish rights. Yet the steps of the approaching reaction could well be discerned. Thus in 1870, during the discussion of the draft of the new Municipal Statute by a special committee of the Ministry of the Interior, which included as "experts" the burgomasters of the most important Russian cities, the question arose whether the former limitation of the number of Jewish aldermen in the municipal councils to one-third of the whole number of aldermen [1] should be upheld or not. The cities involved were those of the Pale where the Jews formed the majority of the population, and the committee was searching for ways and means to weaken "the excessive influence" of this majority upon the city administration and to subordinate it to the Christian minority.

[Footnote 1: See above, p. 41.]

One solitary member, Novoselski, the burgomaster of Odessa, advocated the repeal of the old restriction, with the one proviso that the Jewish aldermen should be required to possess certain educational qualifications, inasmuch as educated Jews were "not quite as harmful" as uneducated ones.

A minority of the members of the Committee favored the limitation of the number of Jewish aldermen to one-half, but the majority staunchly defended the old norm, which was one-third. The representatives of the majority, in particular Count Cherkaski, the burgomaster of Moscow, argued that the Jews constituted not only a religious but also a national entity, that they were still widely removed from assimilation or Russification, that education, far from transforming the Jews into Russians, made them only more successful in the struggle for existence, that it was inadvisable for this reason "to subject the whole Russian element (of the population) to the risk of falling under the domination of Judaism."

The curious principle of municipal justice by virtue of which the majority of house owners and tax-payers were to be ruled by the representatives of the minority carried the day. The new Municipal Statute sanctioned the norm of one-third for "non-Christians," and reaffirmed the ineligibility of Jews to the post of burgomaster.

The law of 1874, establishing general military service and abolishing the former method of conscription, proved the first legal enactment which imposed upon the Jews equal obligations with their fellow-citizens, prior to bestowing upon them equal rights. To be sure, the new regulation brought considerable relief to the Jews, inasmuch as the heavy burden of military duty which had formerly been borne entirely by the poor burgher class, [1] was now distributed over all estates, while the burden itself was lightened by the reduction of the term of service. Moreover, the former collective responsibility of the community for the supply of recruits, which had given rise to the institution of "captors" and many other evils, was replaced by the personal responsibility of every individual conscript. All this, however, was not sufficient to change suddenly the attitude of the Jewish populace towards military service.

[Footnote 1: On the "burghers" see Vol. I, p. 308, n. 2. Concerning the military duty imposed on them see above, p. 23.]

The formerly privileged merchantile class could not reconcile itself easily to the idea of sending their children to the army. The horrors of the old conscription were still fresh in their minds, and even in its new setting military service was still suggestive of the hideous horrors of the past. Those who but yesterday had been dragged like criminals to the recruiting stations could not well be expected to change their sentiments over night and appear there of their own free will. The result was that a considerable number of Jews of military age (21) failed to obey the summons of the first

conscription. Immediately the cry went up that the Jews evaded their military duty, and that the Christians were forced to make up the shortage. The official pens in St. Petersburg and in the provincial chancelleries became busy scribbling. The Ministry of War demanded the adoption of Draconian measures to stop this "evasion," As a result, the whole Jewish youth of conscription age was registered in 1875. At the recruiting stations the age of the young Jews was determined by their external appearance, without regard to their birth certificates. Finally, in the course of 1876-1878, a number of special provisions were enacted, by way of exception from the general military statute, for the purpose "of insuring the regular discharge of their military duty by the Jews."

According to the new legal provisions, the Jews who had been rejected as unfit for military service were to be replaced by other Jews and under no circumstances by Christians. For this purpose, the Jewish conscripts were to be segregated from the Christians after the drawing of lots, the first stage in the recruiting process. [1] Moreover, in the case of Jews a lower stature and a narrower chest were required than in that of non-Jews. In the case of a shortage of "unprivileged" recruits, permission was given to draft not only Jews enjoying, by their family status, the third and second class privileges, but also those of the first class, i.e., to deprive Jewish parents of their only sons. [2]

[Footnote 1: Since the number of men of military age greatly exceeds the required number of recruits, the Russian law provides that lots be drawn by the conscripts to determine the order in which they are to present themselves for examination to the recruiting officers. When the quota is completed, the remaining conscripts, i.e., those who, having drawn a high number, have not yet been examined, are declared exempt from military service.]

[Footnote 2: "According to Russian law, the following three categories of recruits are exempt from military service: 1) the only sons; 2) the only wage-earning sons, though there be other sons in the family; 3) those who have an elder brother or brothers in the army. The first category is exempt under all circumstances; the last two on condition that the required number of recruits be secured out of the "unprivileged" conscripts. Only in the case of the Jews is the first category drawn upon in the case of a shortage.]

In this manner the Government sought to "insure" with ruthless vigor the discharge of this most onerous duty on the part of the Jews, without making any attempt to insure at the same time the rights of this population of three millions which was made to spill its blood for the fatherland. In the Russo-Turkish War of 1877, many Jewish soldiers fought for Russia, and a goodly number of them were killed or wounded on the battlefield. Yet in the Russian military headquarters—the post of commander-in-chief was occupied by the crown prince, the future Tzar Alexander III.—no attention was paid to the thousands of Jewish victims, but rather to the fact that the "Jewish" firm of army purveyors, Greger, Horvitz & Kohan [1] was found to have had a share in the commissariat scandals. When at the Congress of Berlin in 1878 a resolution was introduced calling upon the Governments of Roumania, Servia, and Bulgaria to accord equal rights to the Jews in their respective dominions, and was warmly supported by all plenipotentiaries, such as Waddington, Beaconsfield, Bismarck, and others, the only one to oppose the emancipation of the Jews on principle was the Russian chancellor Gorchakov. In his desire to save the prestige of Russia, which herself had failed to grant equal rights to the Jews, the chancellor could not refrain from an anti Semitic sally, remarking during the debate that "one ought not to confound the Jews of Berlin, Paris, London, and Vienna, who cannot be denied civil and political rights, with the Jews of Servia, Roumania, and several Russian provinces, where they are a regular scourge to the native population."

[Footnote 1: Greger was a Greek, and Horvitz a converted Jew. See later, p. 244.]

Altogether the growth of anti-Semitism in the Government circles and in certain layers of Russian society, towards the close of the seventies, became clearly pronounced. The laurels of Brafman, whose "exposure" of Judaism had netted him many personal benefits and profitable connections in the world of officialdom, were apt to stimulate all sorts of adventurers. In 1876 a new "exposer" of Judaism appeared on the scene, a man with a stained past, Hippolyte Lutostanski. He was originally a Roman Catholic priest in the government of Kovno. Having been unfrocked by the Catholic Consistory "on account of incredible acts of lawlessness and immoral conduct," including libel, embezzlement, rape committed upon a Jewess, and similar heroic exploits, he joined the Greek-Orthodox church, entered the famous Troitza Monastery near Moscow as a monk, and was admitted as a student to the Ecclesiastical Academy of the same city.

As a subject for his dissertation for the degree of Candidate [1] the ignorant monk chose a sensational topic: "Concerning the Use of Christian Blood by the Jews." It was an unlettered and scurrilous pamphlet, in which the author, without indicating his sources, incorporated the contents of an official memorandum on the ritual murder legend from the time of Nicholas I., supplementing it by distorted quotations from talmudic and rabbinic literature, without the slightest knowledge of that literature or the Hebrew language.

[Footnote 1: See above, p. 165, n. 1.]

The monastic adventurer, finding himself in financial straits, brought his manuscript to Rabbi Minor of Moscow, declaring his willingness to forego the publication of his brochure, which no doubt would cause great harm to the Jews, for a consideration of 500 rubles (\$250). His blackmail offer was

rejected Lutostanski thereupon published his hideous book in 1876, and travelled with it to St. Petersburg where he managed to present it to the crown prince, subsequently Alexander III., and to secure from him a grateful acknowledgement. The book also found the approval of the Chief of Gendarmerie, [1] who acquired a large number of copies and distributed them among the secret police all over Russia.

[Footnote 1: See above, p. 21, n. 1.]

Encouraged by his success, Lutostanski issued a few years later, in 1879, another libellous work in two volumes, under the title "The Talmud and the Jews," which exhibits the same crudeness in style and content as his previous achievement—a typical specimen of a degraded back-yard literature. The editor of the Hebrew journal *ha-Melitz*, Alexander Zederbaum, demonstrated clearly that Lutostanski had forged his quotations, and summoned him to a public disputation, which offer was wisely declined.

Nevertheless, the agitation of this shameless impostor had a considerable effect on the highest official spheres in which an ever stronger drift toward anti-Semitism was clearly noticeable. In 1878 this anti-Semitic trend gave rise to a new ritual murder trial. The discovery in the government of Kutais, in the Caucasus, of the body of a little Gruzinian girl, named Sarra Modebadze, who had disappeared on the eve of Passover, was deemed a sufficient reason by the judicial authorities to enter a charge of murder against ten local Jews, although the ritual character of the murder was not put forward openly in the indictment. The case was tried before the District Court of Kutais, and the counsel for the defence succeeded by their brilliant speeches not only to demolish completely the whole structure of incriminating evidence but also to deal a death-blow to the sinister ritual legend. The case ended in 1879 with the acquittal of all the accused.

Withal, the "ritual" agitation left a nasty sediment in the Russian press. When in 1879 the famous Orientalist Daniel Chwolson, a convert to Christianity and professor at the Greek-Orthodox Ecclesiastical Seminary of St. Petersburg, who had written a learned apologetic treatise "Concerning the Medieval Accusations against the Jews," published a refutation of the ritual myth under the title "Do the Jews use Christian Blood?," he was attacked in the *Novoye Vremya* by the liberal historian Kostomarov who attempted to disprove the conclusions of the defender of Judaism. The paper itself, hitherto liberal in its tendency, changed front about that time, and, steering its course by the prevailing moods in the leading Government circles, launched a systematic campaign against the Jews. The anti-Semitic bacilli were floating in the social atmosphere of Russia and preparing the way for the pogrom epidemic of the following decade.

CHAPTER XX

THE INNER LIFE OF RUSSIAN JEWRY DURING THE REIGN OF ALEXANDER II.

1. THE RUSSIFICATION OF THE JEWISH INTELLIGENZIA

In the inner, cultural life of Russian Jewry a radical break took place during this period. True, the change did not affect the rank and file of Russian Jewry, being rather confined to its upper layers, to Jewish "society," or the so-called *intelligenzia*. But as far as the latter circles are concerned, the rapidity and intensity of their spiritual transformation may well be compared with the stormy eve of Jewish emancipation in Germany. This wild rush for spiritual regeneration was out of all proportion to the snail-like tardiness and piecemeal character of civil emancipation in Russia. However, the modern history of Western Europe has shown more than once that such pre-emancipation periods, including those that evidently prove abortive, offer the most favorable conditions for all kinds of mental and cultural revolutions. Liberty as a hope invariably arouses greater enthusiasm for self-rejuvenation, than liberty as a fact, when the romanticism of the unknown has vanished.

Hurled into the abyss of despair by the last events of Nicholas' régime, the Russian Jews suddenly received what may be called an earnest of civil emancipation. The Jewish "Pale" knew but vaguely what was taking place

in the recesses of the St. Petersburg chancelleries during the decade of reforms, but that a striking change in the attitude of the Government had taken place was seen and felt by all. Freedom had been granted to the victims of the military inquisition, the cantonists. The gates of the Russian interior had been opened to Jews possessing certain qualifications with regard to property, education, or labor. The educated Jews, in particular, were smiled upon benevolently "from above": they were regarded by the Government as a factor making for assimilation and as a connecting link with the lower Jewish classes. The vernal sun of Russian liberty, which flooded with its rays the social life of the whole country, just then emerging from serfdom, shone also for the hapless Jewish people, and filled their hearts with cheer and hope. The blasts of the reveille which had been sounded in the best circles of Russian society by such humanitarians as Pirogov, [1] and such champions of liberty as Herten, [2] Chernyshevski, [3] and Dobrolubov, [4] were carried through the air into the huge Jewish ghetto of Russia. True, the Jewish question received, during the decade of reforms, but scanty attention in the Russian press, but the little that was said about it was permeated by a friendly spirit. The former habit of making sport of the Zhyd was energetically repudiated.

[Footnote 1: Nicholas Pirogov (1810-1881), famous as pedagogue and administrator. He was a staunch friend of the Jews, and was deeply interested in their cultural aspirations.]

[Footnote 2: See above, p. 24, n. 1.]

[Footnote 3: Famous publicist and author, died 1889.]

[Footnote 4: A famous literary critic, died 1861.]

This change of attitude may well be illustrated by the following incident. In 1858 the magazine *Illustratzia* ("Illustration") of St. Petersburg published

an anti-Semitic article on "the Zhyds of the Russian West." The article was answered by two cultured Jews, Chatzkin and Horvitz, in the influential periodicals *Russki Vvestnik* ("The Russian Herald") and *Atyney* ("Athenaeum"). In reply to this refutation, the *Illustratzia* showered a torrent of abuse upon the two authors who were contemptuously styled "Reb Chatzkin" and "Reb Horvitz," and whose pro-Jewish attitude was explained by motives of avarice. The action of the anti-Semitic journal aroused a storm of indignation in the literary circles of both capitals. The conduct of the *Illustratzia* was condemned in a public protest which bore the signatures of 140 writers, including some of the most illustrious names in the Russian literary world. The protest declared that "in the persons of Horvitz and Chatzkin an insult has been offered to the entire (Russian) people, to all Russian literature," which has no right to let "naked slander" pass under the disguise of polemics.

Though the protesting writers were wholly actuated by the desire to protect the moral purity of Russian literature and did not at all touch upon the Jewish question, the Jewish public workers were nevertheless enchanted by this declaration of literary Russia, and were deeply gratified by the implied assumption that the Jews of Russia formed part of the Russian people.

Several sympathetic articles in influential periodicals, advocating the necessity of Jewish emancipation, seemed to complete the happiness of the progressive section of Russian Jewry. Even the Slavophile publicist Ivan Aksakov, who subsequently joined the ranks of Jew-baiters, recognized at that time, in 1862, the need of a certain measure of emancipation for the Jews. The only thing that worried him was the danger that the admission of the Jews to the Russian civil service "in all departments," might result "in filling with Jews" the Senate and Council of State, not excluding the possibility of a Jew occupying the post of Procurator-General of the Holy

Synod. Unshakable in his friendship for the Jews was the physician and humanitarian N. Pirogov, [1] who, in his capacity of superintendent of the Odessa School District, was largely instrumental in encouraging the Jewish youth in their pursuit of general culture and in creating a Russian Jewish press.

[Footnote 1: See above, p. 207, n. 1.]

The most efficient factor of cultural regeneration was the secular school, both the general Russian and the Jewish Crown school. A flood of young men, lured by the rosy prospects of a free human existence in the midst of a free Russian people, rushed from the farthestmost nooks and corners of the Pale into the *gymnazia* and universities whose doors were kept wide open for the Jews. Many children of the ghetto rapidly enlisted under the banner of the Russian youth, and became intoxicated with the luxuriant growth of Russian literature which carried to them the intellectual gifts of the contemporary European writers. The masters of thought in that generation, Chernyshevski, Dobrolubov, Pisaryev, Buckle, Darwin, Spencer, became also the idols of the Jewish youth. The heads which had but recently been bending over the Talmud folios in the stuffy atmosphere of the heders and yeshibahs were now crammed with the ideas of positivism, evolution, and socialism. Sharp and sudden was the transition from rabbinic scholasticism and soporific hasidic mysticism to this new world of ideas, flooded with the light of science, to these new revelations announcing the glad tidings of the freedom of thought, of the demolition of all traditional fetters, of the annihilation of all religious and national barriers, of the brotherhood of all mankind. The Jewish youth began to shatter the old idols, disregarding the outcry of the masses that had bowed down before them. A tragic war ensued between "fathers and children," [1] a war of annihilation, for the belligerent parties were extreme obscurantism and fanaticism, on the one hand, and the

negation of all historic forms of Judaism, both religious and national, on the other.

[Footnote 1: The title of a famous novel by Turgenieff, written in 1862, depicting the break between the old and the new generation.]

In the middle between these two extremes stood the men of the transitional period, the adepts of Haskalah, those "lovers of enlightenment" who had in younger years suffered for their convictions at the hands of fanatics and now came forward to make peace between religion and culture. Encouraged by the success of the new ideas, the Maskilim became more aggressive in their struggle with obscurantism. They ventured to expose the Tzaddiks who scattered the seeds of superstition, to ridicule the ignorance and credulity of the masses, and occasionally went so far as to complain of the burdensome ceremonial discipline, hinting at the need of moderate religious reforms. Their principal task, however, was the cultivation of the Neo-Hebraic literary style and the rejuvenation of the content of that literature. They were willing to pursue the road of the emancipated Jewry of Western Europe, but only to a certain limit, refusing to cut themselves adrift from the national language or the religious and national ideals.

On the other hand, that section of the young generation which had passed through a Russian school refused to recognize any such barriers, and rushed with elemental force on the road of self-annihilation. *Russification* became the war cry of these Jewish circles, as it had long been the watchword of the Government. The one side was anxious to Russify, the other was equally anxious to be Russified, and the natural result was an *entente cordiale* between the new Jewish *intelligenza* and the Government.

The ideal of Russification was marked by different stages, beginning with the harmless acquisition of the Russian language, and culminating in a complete identification with Russian culture and Russian national ideals,

involving the renunciation of the religious and national traditions of Judaism. The advocates of moderate Russification did not foresee that the latter was bound, by the force of circumstances, to assume a radical form, while the champions of extreme Russification saw no harm for Jewry in following the example of complete assimilation set by Western Europe. To the former all that Russification implied was the removal of the obnoxious excrescences of Judaism but not the demolition of the national organism itself. Progressive Jewry was rightly incensed against the obsolete forms of Jewish life which obstructed all healthy development; against the fierce superstition of the hasidic environment, against the charlatanism of degenerating Tzaddikism, against the impenetrable religious fanaticism which was throttling the noblest strivings of the Jewish mind. But this struggle for freedom of thought should have been fought out within the confines of Judaism, by means of a thorough-going cultural self-improvement, and not on the soil of assimilation, nor in alliance with the powers that be, which were aiming not at the rejuvenation but at the obliteration of Judaism, in accordance with the official program of "fusion."

At any rate, the league between the new Jewish *intelligenza* and the Government was an undeniable fact. The "Crown rabbis" [1] and school teachers from among the graduates of the rabbinical schools of Vilna and Zhitomir played the rôle of Government agents who were apt to resort to police force in their fight against orthodoxy. Feeling secure beneath the protecting wings of the Russian authorities, they often went out of their way to hurt the susceptibilities of the masses by their ostentatious disregard of the Jewish religious ceremonies. When the communities refused to appoint rabbis of this class, the latter obtained their posts either by direct appointment from the Government or by bringing the pressure of the provincial administration to bear upon the electors.

[Footnote 1: See above, p. 176, n. 1.]

Needless to say, the "enlightenment" propagated by these Government underlings did not win the confidence of the orthodox masses who remembered vividly how official enlightenment was disseminated by the Government of Nicholas I. during the era of juvenile conscription.

The new Jewish *intelligenzia* showed utter indifference to the sentiments of the Jewish masses, and did not hesitate to induce the Government to interfere in the affairs of inner Jewish life. Thus by a regulation issued in 1864 all hasidic books were subjected to a most rigorous censorship, and Jewish printing-presses were placed under a more vigilant supervision than theretofore. The Tzaddiks were barred from visiting their parishes for the purpose of "working miracles" and "collecting tribute," a measure which only served to surround the hasidic chieftains with a halo of martyrdom and resulted in the pilgrimage of vast numbers of Hasidim to the "holy places," the "capitals" of the Tzaddiks. All this only went to intensify the distrust of the masses toward the college-bred, officially hall-marked Jewish intellectuals and to lower their moral prestige, to the detriment of the cause of enlightenment of which they professed to be the missionaries.

A peculiar variety of assimilationist tendencies sprang up among the upper class of Jews in the Kingdom of Poland, more especially in Warsaw. It was a most repellent variety of assimilation, exhibiting more flunkeyism than pursuit of culture. The "Poles of the Mosaic Persuasion," as these assimilationists styled themselves, had long been begging for admission into Polish society, though rudely repulsed by it. During the insurrection of 1861-1863, when they were graciously received as useful allies, they were indefatigable in parading their Polish patriotism. In the Polish Jewish weekly, *Jutrzenka*, [1] "The Dawn," the organ of these assimilationists, the trite West-European theory, which looks upon Judaism as a religious sect and not as a national community, was repeated *ad nauseam*. One of the most prominent contributors to that journal, Ludwig Gumplovich, the

author of a monograph on the history of the Jews in Poland, who subsequently made a name for himself as a sociologist, and, after his conversion to Christianity, received a professorship at an Austrian university, opened his series of articles on Polish-Jewish history with the following observation: "The fact that the Jews had a history was their misfortune in Europe.... For their history inevitably presupposes an isolated life severed from that of the other nations. It is just this which constitutes the misfortune alluded to."

[Footnote 1: Pronounce *Yutzhenka*.]

After the insurrection, the Polonization of the Jewish population assumed menacing proportions. The upper layer of Polish Jewry consisted exclusively of "Poles of the Mosaic Persuasion" who rejected all elements of Jewish culture, while the broad masses, following blindly the mandates of their Tzaddiks, rejected fanatically even the most indispensable elements of European civilization. Riven between such monstrous extremes, Polish Jewry was unable to attain even to a semblance of normal development.

2. THE SOCIETY FOR THE DIFFUSION OF ENLIGHTENMENT

Though intensely engaged in this cultural movement, Russian Jewry did not yet command sufficient resources for carrying on a well-ordered and well-systematized activity. The only modern Jewish organization of that period was the "Society for the Diffusion of Enlightenment amongst the Jews," which had been founded in 1867 by a small coterie of Jewish financiers and intellectuals of St. Petersburg. It would seem that the Jewish colony of the Russian metropolis, consisting of big merchants and university graduates, who, by virtue of the laws of 1859 and 1861, enjoyed the right of residence outside the Pale, did not yet contain a sufficient number of competent public workers. For during the first decade of the Society its Executive

Committee included, apart from its Jewish founders—Baron Günzburg, Leon Rosenthal, Rabbi Neuman—, two apostates, Professor Daniel Chwolson and the court physician, I. Berthenson.

The purpose of the Society was explained by one of the founders, Leon Rosenthal, in the following unsophisticated manner:

We constantly hear men in high positions, with whom we come in contact, complain about the separatism and fanaticism of the Jews and about their aloofness from everything Russian, and we have received assurances on all hands that, with, the removal of these peculiarities, the condition of our brethren in Russia will be improved, and we shall all become full-fledged citizens of this country. Actuated by this motive, we have organized a league of educated men for the purpose of eradicating our above-mentioned shortcomings by disseminating among the Jews the knowledge of the Russian language and other useful subjects.

What the Society evidently aimed at was to place itself at the head of the Russian-Jewish *intelligenzia*, which had undertaken to act as negotiators between the Government and the Jews in the cause of Russification. In reality, the mission of the Society was carried out within exceedingly narrow limits. "Education for the sake of Emancipation" became the watchword of the Society. It promoted higher education by granting monetary assistance to Jewish students, but it did nothing either for the upbuilding of a normal Jewish school or for the improvement of the heders and yeshibahs. The dissemination of the knowledge of "useful subjects" reduced itself to the grant of a few subsidies to Jewish writers for translating a few books on history and natural science into Hebrew.

Even more circumscribed and utilitarian was the point of view adopted by the Odessa branch of the Society. This branch, founded in 1867, adopted as its slogan "the enlightenment of the Jews through the Russian language

and *in the Russian spirit*." The Russification of the Jews was to be promoted by translating the Bible and the prayer-book into the Russian language, "which must become the national tongue of the Jews." However, the headlong rush for assimilation was soon halted by the sinister spectacle of the Odessa pogrom of 1871. The moving spirits of the local branch could not help, to use the language of its president, "losing heart and becoming rather doubtful as to whether the goal pursued by them is in reality a good one, seeing that all the endeavors of our brethren to draw nearer to the Russians are of no avail so long as the Russian masses remain in their present unenlightened condition and harbor hostile sentiments towards the Jews." The pogrom put a temporary stop to the activity of the Odessa branch.

As for the central Committee in St. Petersburg, its experience was not less disappointing. For, despite all the endeavors of the Society to adapt itself to the official point of view, it was regarded with suspicion by the powers that be, having been included by the informer Brafman among the constituent organizations of the dreadful and mysterious "Jewish Kahal." The Russian assimilators, now branded as separatists, found themselves in a tragic conflict. Moreover, the work of the Society in promoting general culture among the Jews was gradually losing its *raison d'être*, since, without any effort on its part, the Jews began to flock to the *gymnazia* and universities. The former practical stimulus to general culture—the acquisition of a diploma for the sake of equal rights—was intensified by the promulgation of the military statute of 1874 which conferred a number of privileges in the discharge of military duty on those possessing a higher education. These privileges induced many parents, particularly among the merchant class which was then drafted into the army for the first time, to send their children to the middle and higher educational institutions. As a result, the role of the Society in the dissemination of enlightenment reduced

itself to a mere dispensation of charity, and the great crisis of the eighties found this organization standing irresolute at the cross-roads.

3. THE JEWISH PRESS

In the absence of a comprehensive net-work of social agencies, the driving force in this cultural upheaval came from the periodical Jewish press. The creation of several press organs in Hebrew and Russian in the beginning of the sixties was a sign of the times. Though different in their linguistic medium, the two groups of publications were equally engaged in the task of the regeneration of Judaism, each adapting itself to its particular circle of readers. The Hebrew periodicals, and partly also those in Yiddish which addressed themselves to the masses, preached *Haskalah* in the narrower sense. They advocated the necessity of a Russian elementary education and of secular culture in general; they emphasized the uselessness of the traditional Jewish school training, and exposed superstition and obscurantism. The Russian publications, again, which were intended for the Jewish and the Russian *intelligenzia*, pursued in the main a political goal, the fight for equal rights and the defence of Judaism against its numerous detractors.

In both groups one can discern the gradual ripening of the social Jewish consciousness, the advance from elementary and often naive notions to more complex ideas. The two Hebrew weeklies founded in 1860, *ha-Karmel*, "The Carmel," in Vilna, and *ha-Melitz*, "The Interpreter," in Odessa, the former edited by Fünin and the latter by Zederbaum, [1] were at first adapted to the mental level of grown-up children, expatiating upon the benefits of secular education and the "favors" of the Government consequent upon it. *Ha-Karmel* expired in 1870, while yet in its infancy, though it continued to appear at irregular intervals in the form of booklets

dealing with scientific and literary subjects. *Ha-Melitz* was more successful. It soon grew to be a live and courageous organ which hurled its shafts at Hasidism and Tzaddikism, and occasionally even ventured to raise its hand against rabbinical Judaism. The Yiddish weekly *Kol Mebasser*, [2] which was published during 1862-1871 as a supplement to *ha-Melitz* and spoke directly to the masses in their own language, attacked the dark sides of the old order of things in publicistic essays and humoristic stories.

[Footnote 1: Before that time, the only weekly in Hebrew was *ha-Maggid*, "The Herald," a paper of no particular literary distinction, published since 1856 in the Prussian border-town Lyck, though addressing itself primarily to the Jews of Russia.]

[Footnote 2: "A voice Announcing Good Tidings."]

Another step forward was the publication of the Hebrew monthly *ha-Shahar*, "The Dawn," which was founded by Perez Smolenskin in 1869. This periodical, which appeared in Vienna but was read principally in Russia, pursued a two-fold aim: to fight against the fanaticism of the benighted masses, on the one hand, and combat the indifference to Judaism of the intellectuals, on the other. *Ha-Shahar* exerted a tremendous influence upon the mental development of the young generation which had been trained in the heders and yeshibahs. Here they found a response to the thoughts that agitated them; here they learned to think logically and critically and to distinguish between the essential elements in Judaism and its mere accretions. *Ha-Shahar* was the staff of life for the generation of that period of transition, which stood on the border-line dividing the old Judaism from the new.

The various stages in the Russification of the Jewish *intelligenza* are marked by the changing tendencies of the Jewish periodical press in the Russian language. In point of literary form, it approached the European

models more closely than the contemporary Hebrew press. The contributors to the three Russian-Jewish weeklies, all of them issued in Odessa, [1] had the advantage of having before them patterns of Western Europe. Jewish publicists of the type of Riesser and Philippson [2] served as living examples. They had blazed the way for Jewish journalism, and had shown it how to fight for civil emancipation, to ward off anti-Semitic attacks, and strive at the same time for the advancement of inner Jewish life.

[Footnote 1: *Razswyet*, "The Dawn," 1860, *Sion*, "Zion," 1861, *Dyen*, "The Day," 1869-1871.]

[Footnote 2: Gabriel Riesser (died 1863), the famous champion of Jewish emancipation in Germany, established the periodical *Der Jude* in 1832. Ludwig Philippson (died 1889) founded in 1837 *Die Allgemeine Zeitung des Judentums*, which still appears in Berlin.]

However, as soon as the Russian Riessers applied themselves to their task, they met with insurmountable difficulties. When the *Razswyet*, which was edited by Osip (Joseph) Rabinovich, attempted to lay bare the inner wounds of Jewish life, it encountered the concerted opposition of all prominent Jews, who were of the opinion that an organ employing the language of the country should not, on tactical grounds, busy itself with self-revelations, but should rather limit itself to the fight for equal rights. The latter function again was hampered by the "other side," the Russian censorship. Despite the moderate tone adopted by the *Razswyet* in its articles on Jewish emancipation, the Russian censorship found them incompatible with the interests of the State. One circular sent out by the Government went even so far as to prohibit "to to discuss the question of granting the Jews equal rights with those of the other (Russian) subjects." On one occasion the editor of the *Razswyet*, __, in appealing to the authorities of St. Petersburg against the prohibition of a certain article by

the Odessa censor, had to resort to the sham argument that the incriminated article referred merely to the necessity of granting the Jews equality in the right of residence but not in other rights. But even this stratagem failed of its object. After a year of bitter struggle against the interference of the censor and against financial difficulties—the number of Russian readers among Jews was still very small at that time—the *Razswyet* passed out of existence.

Its successor *Sion* ("Zion"), edited by Solovaychik and Leon Pinsker, who subsequently became the exponent of pre-Herzlian Zionism,[1] attempted a different policy: to prove the case of the Jews by arraigning the anti-Semites and acquainting the Russian public with the history of Judaism. *Sion*, too, like its predecessors, had to give up the fight in less than a year.

[Footnote 1: See later, p. 330 et seq.]

After an interval of seven years a new attempt was made in the same city. The *Dyen* ("The Day") [1] was able to muster a larger number of contributors from among the increased ranks of the "titled" *intelligenza* than its predecessors. The new periodical was bolder in unfurling the banner of emancipation, but it also went much further than its predecessors in its championship of Russification and assimilation. The motto of the *Dyen* was "complete fusion of the interests of the Jewish population with those of the other citizens." The editors looked upon the Jewish problem "not as a national but as a social and economic" issue, which in their opinion could be solved simply by bestowing upon this "section of the Russian people" the same rights which were enjoyed by the rest. The Odessa pogrom of 1871 might have taught the writers of the *Dyen* to judge more soberly the prospects of "a fusion of interests," had not a meddlesome censorship forced this periodical to discontinue its publication after a short time.

[Footnote 1: The name was meant to symbolize the approaching day of freedom. It was a weekly publication.]

The next few years were a period of silence in the Russian-Jewish press. [1] The rank and file of the Russian Jewish intellectuals, who formed the backbone of the reading public of this press, became indifferent to it. Living up conscientiously to the principle of a "fusion of interests," they failed to recognize the special interests of their own people, whose only duty they thought was to be Russified, i.e., obliterated and put out of existence. The better elements among the *intelligenza*, however, looked with consternation upon this growing indifference to everything Jewish among the college-bred Jewish youth. As a result, a new attempt was made toward the very end of this period to restore the Russian-Jewish press. Three weeklies, the *Russki Yevrey* ("The Russian Jew"), the *Razswyet* ("The Dawn"), and later on the *Voskhod* ("The Sunrise"), were started in St. Petersburg, all endeavoring to gain the hearts of the Russian Jewish *intelligenza*. In the midst of this work they were overwhelmed by the terrific cataclysm of 1881, which decided the further destinies of Jewish journalism in Russia.

[Footnote 1: We disregard the colorless *Vyestnik Russkikh "Yevreyev"* ("The Herald of Russian Jews"), published by Zederbaum in the beginning of the seventies in St. Petersburg, and the volumes of the *Yevreyskaya Bibliotyeka* ("The Jewish Library"), issued at irregular intervals by Adolph Landau.]

4. THE JEWS AND THE REVOLUTIONARY MOVEMENT

The Russian school and literature pushed the Jewish college youth head over heels into the intellectual currents of progressive Russian society. Naturally enough a portion of the Jewish youth was also drawn into the revolutionary movement of the seventies, a movement which, in spite of the

theoretic "materialism" of its adepts, was of an essentially idealistic tendency. In joining the ranks of the revolutionaries, the young Jews were less actuated by resentment against the continued, though somewhat mitigated, rightlessness of their own people than by discontent with the general political reaction in Russia, that discontent which found expression in the movement of "Populism," [1] of "Going to the People," [2] and similar currents then in vogue. Jewish students, attending the rabbinical and teachers' institutes of the Government, or autodidacts from among former heder and yeshibah pupils, also began to "go to the people"—the Russian people, to be sure, not the Jewish. They carried on a revolutionary propaganda, both by direct and indirect means, among the Russian peasants and workingmen, known to them only from books. It was taken for granted at that time that the realization of the ideals of Russian democracy would carry with it the solution of the Jewish as well as of all other sectional problems of Russian life, so that these problems might for the moment be safely set aside.

[Footnote 1: In Russian, *narodnichestvo*, from *narod*, "People," a democratic movement In favor of the down-trodden masses, particularly the Russian peasantry.]

[Footnote 2: Under the influence of the democratic movement many Russians of higher birth and culture settled among the peasantry, to which they dedicated their lives. The name of Leo Tolstoi readily suggests itself in this connection.]

As far as the Jewish youth was concerned, the whole movement was doubly academic, for the only points of contact of that youth with younger Russia was not living reality but the book, problems of the intellect, the search for new ways, the attempt to work out a *Weltanschauung*. The fundamental article of faith of the Jewish socialists was cosmopolitanism,

and they failed to discern in Russian "Populism" the underlying elements of a Russian national movement. Jewry was not believed to be a nation, and as a religious entity it was looked upon as a relic of the past, which was doomed to disappearance.

One attempt of coupling socialism with Judaism ought not to be passed over in silence. In the beginning of the seventies there existed in Vilna a Jewish revolutionary circle made up principally of the pupils of the rabbinical school and of the teachers' institute of the same city. In 1875, the police tracked the members of the circle. Some were arrested, others escaped. One of the refugees, A. Lieberman, managed to reach London where he associated with the circle of Lavrov and the editors of the revolutionary journal *Vperyod* ("Forwards").

In the following year, Lieberman founded in London the "League of Jewish Socialists" for the purpose of carrying on a propaganda among the Jewish masses. It was a small society of students and workingmen which busied itself with arranging lectures and debates, and penning Hebrew appeals on the need of organizing the proletariat. The society was soon dissolved, and Lieberman emigrated to Vienna, where, under the name of Freeman, he started in 1877 a socialistic magazine in Hebrew under the name *ha-Emet* ("The Truth"). The first two issues of *ha-Emet* were admitted into Russia, but the third was confiscated by the censor. The magazine had to be discontinued. It yielded its place to a paper called *Asefat Hakamim* ("The Assembly of Wise Men"), published in Koenigsberg in 1878 by M. Winchevski as a supplement to the paper *ha-Kol* ("The Voice"), which was issued there by Rodkinson. Soon this whole species of socialistic literature was put out of existence. In 1879, Lieberman in Vienna and his comrades in Berlin and Koenigsberg were arrested and expelled from the borders of Austria and Prussia. They emigrated to England and America, and lost touch with Russia.

In Russia itself the Jewish revolutionaries were heart and soul devoted to the cause. The children of the ghetto displayed considerable heroism and self-sacrifice in the revolutionary upheaval of the seventies. Jews figured in all important political trials and public manifestations; they languished in the gaols, and suffered as exiles in Siberia. But this idealistic fight for general freedom lacked a Jewish note, the endeavor to free their own nation which lived in greater thralldom than any other. And no one at that time ever dreamt that after all these sacrifices the Jews of Russia would be visited by still greater misfortunes, by pogroms and increased disabilities.

5. THE NEO-HEBRAIC RENAISSANCE

With all deflections from the course of normal development, such as are unavoidable in times of violent mental disturbances, the main line of the whole cultural movement, the resultant of the various forces within it, was headed towards the healthy progress of Judaism. The most substantial product of this movement was the Neo-Hebraic literary renaissance which had already appeared in faint outlines on the sombre background of external oppression and internal obscurantism during the preceding period. The Haskalah, formerly anathematized, was now able to unfold all its creative powers. What in the time of Isaac Baer Levinsohn had been accomplished stealthily by a few isolated conspirators of enlightenment in some petty society in Vilna or in some out-of-the-way town like Kamenetz-Podolsk was now done in the full light of the day. Instead of a few stray writers, the harbingers of the new literature, there now appeared this literature itself, new both in form and content. The restoration of the Hebrew language to its biblical purity and the removal of the linguistic excrescences of the later rabbinic idiom became for some writers an end in itself, for others a weapon in the fight for enlightenment. *Melitzah*, a conventionalized style, which, moving strictly within the confines of the biblical diction,

endeavored to adapt the form of an ancient language to the content of a modern life, became the fashion of the day.

In point of content rejuvenated Hebrew literature was of necessity elementary. Mental restlessness and naiveness of thought were not conducive to the development of that "science of Judaism" which had attained to such luxurious growth in Germany. The Hebrew writers of Russia during that period had no means of propagating their ideas, except through the medium of poetry, fiction, or journalism. The results of historic research were squeezed into the mould of a poem or novel, or it furnished the material for a press article, in which the Jewish past was considered from the point of view of the present. Objective scientific investigation could find no place, and the little that was accomplished in that direction did not bear the character of a living account of the past, but was rather in the nature of crude archaeological material. At the same time, as the crest of the social progress was rising, the border-line between poetry and fiction, on the one hand, and topical journalism, on the other, was gradually obliterated. The poet or novelist was often turned into a fighter, who attacked the old order of things and defended the new.

Even before the first blush of dawn, when every one in Russia was yet groaning under the strokes of an autocratic tyranny, which the presentiment of its speedy end had driven into madness, the bewitching strains of the new Hebrew lyre resounded through Lithuania. They came from Micah Joseph Lebensohn, the son of "Adam" Lebensohn, author of high-flown Hebrew odes [1]—a contemplative Jewish youth, suffering from tuberculosis and *Weltschmerz*. He began his poetic career in 1840 by a Hebrew adaptation of the second book of Virgil's *Aeneid* [2] but soon turned to Jewish *motifs*. In the musical rhymes of the "Songs of the Daughter of Zion" (*Shire bat Zion*, Vilna, 1851), the author poured forth the anguish of his suffering soul, which was torn between faith and science, weighed down by the oppression

from without and stirred to its depth by the tragedy of his homeless nation. [3] A cruel disease cut short the poet's life in 1852, at the age of twenty-four. A small collection of lyrical poems, published after his death under the title *Kinnor bat Zion* ("The Harp of the Daughter of Zion"), exhibited even more brilliantly the wealth of creative energy which was hidden in the soul of this prematurely cut-off youth, who on the brink of the grave sang so touchingly of love, beauty, and the pure joys of life.

[Footnote 1: See above, p. 134 et seq.]

[Footnote 2: It was made from the German translation of Schiller]

[Footnote 3: See the poems "Solomon and Koheleth," "Jael and Sisera," and "Judah ha-Levi."]

A year after the death of our poet, in 1853, there appeared in the same capital of Lithuania the historic novel *Ahabat Zion* ("Love of Zion"). Its author, Abraham Mapu of Kovno (1808-1867), was a poor melammed who had by his own endeavors and without the help of a teacher raised himself to the level of a modern Hebrew pedagogue. He lived in two worlds, in the valley of tears, such as the ghetto presented during the reign of Nicholas, and in the radiant recollections of the far-off biblical past. The inspired dreamer, while strolling on the banks of the Niemen, among the hills which skirt the city of Kovno, was picturing to himself the luminous dawn of the Jewish nation. He published these radiant descriptions of ancient Judaea in the dismal year of the "captured recruits." [1] The youths of the ghetto, who had been poring over talmudic folios, fell eagerly upon this little book which breathed the perfumes of Sharon and Carmel. They read it in secret—to read a novel openly was not a safe thing in those days—and their hearts expanded with rapture over the enchanting idyls of the time of King Hezekiah, the portrayal of tumultuous Jerusalem and peaceful Beth-lehem. They sighed over the fate of the lovers Amnon and Tamar, and in their flight

of imagination were carried far away from painful reality. The naive literary construction of the plot was of no consequence to the reader who tasted a novel for the first time in his life. The *naïveté* of the plot was in keeping with the naive, artificially reproduced language of the prophet Isaiah and the biblical annals, which intensified the illusion of antiquity.

[Footnote 1: See on this expression above, p. 148 et seq.]

Several years after the publication of his "Love of Zion," when social currents had begun to stir Russian Jewry, Mapu began his five volume novel of contemporary life, under the title '*Ayit Tzabua*', "The Speckled Bird," or "The Hypocrite" (1857-1869). In his naive diction, which is curiously out of harmony with the complex plot in sensational French style, the author pictures the life of an obscure Lithuanian townlet: the Kahal bosses who hide their misdeeds beneath the cloak of piety; the fanatical rabbis, the Tartuffes of the Pale of Settlement, who persecute the champions of enlightenment. As an offset against these shadows of the past, Mapu lovingly paints the barely visible shoots of the new life, the *Maskil*, who strives to reconcile religion and science, the misty figure of the Jewish youth who goes to the Russian school in the hope of serving his people, the profiles of the Russian Jewish intellectuals, and the captains of industry from among the rising Jewish plutocracy.

Toward the end of his life Mapu returned to the historical novel, and in the "Transgression of Samaria" (*Ashmat Shomron*, 1865) he attempted to draw a picture of ancient Hebrew life during the declining years of the Northern Kingdom. But this novel, appearing as it did at the height of the cultural movement, failed to produce the powerful effect of his *Ahabat Zion*, although its charming biblical diction enraptured the lovers of *Melitzah*. [1]

[Footnote 1: An imitation of the biblical Hebrew diction. Compare p. 225.]

The noise of the new Jewish life, with its constantly growing problems, invaded the precincts of literature, and even the poets were impelled to take sides in the burning questions of the day. The most important poet of that era, Judah Leib Gordon (1830-1892), who began by composing biblical epics and moralistic fables, soon entered the field of "intellectual poetry," and became the champion of enlightenment and a trenchant critic of old-fashioned Jewish life. As far back as 1863, while active as a teacher at a Crown school [1] in Lithuania, he composed his "Marseillaise of Enlightenment" (*Hakitzah 'ammi*, "Awake, My People"). In it he sang of the sun shedding its rays over the "Land of Eden," where the neck of the enslaved was freed from the yoke and where the modern Jew was welcomed with a brotherly embrace. The poet calls upon his people to join the ranks of their fellow-countrymen, the hosts of cultured Russian citizens who speak the language of the land, and offers his Jewish contemporaries the brief formula: "Be a man on the street and a Jew in the house," [2] i.e., be a Russian in public and a Jew in private life.

[Footnote 1: See on the Crown schools pp. 74 and 77.]

[Footnote 2: *Heye adam be-tzeteka, wihudi be-oholeka.*]

Gordon himself defined his function in the work of Jewish regeneration to be that of exposing the inner ills of the people, of fighting rabbinical orthodoxy and the tyranny of ceremonialism. This carping tendency, which implies a condemnation of the whole historic structure of Judaism, manifested itself as early as 1868 in his "Songs of Judah" (*Shire Yehudah*), in strophes radiant with the beauty of their Hebrew diction:

To live by soulless rites hast thou been taught,
To swim against life, and the lifeless letter to keep;
To be dead upon earth, and in heaven alive,
To dream while awake, and to speak while asleep.

During the seventies, Gordon joined the ranks of the official agents of enlightenment. He removed to St. Petersburg, and became secretary of the Society for the Diffusion of Enlightenment. The new Hebrew periodical *ha-Shahar* [1] published several of his "contemporary epics" in which he vented his wrath against petrified Rabbinism. He portrays the misery of a Jewish woman who is condemned to enter married life at the bidding of the marriage-broker, without love and without happiness, or he describes the tragedy of another woman whose future is wrecked by a "Dot over the *i*." [2] He lashes furiously the orthodox spiders, the official leaders of the community, who catch the young pioneers of enlightenment in the meshes of Kabbal authority, backed by police force. Climbing higher upon the ladder of history, the poet registers his protest against the predominance of the spiritual over the worldly element in the whole evolution of Judaism. He assails the prophet Jeremiah who in beleaguered Jerusalem preaches submission to the Babylonians and strict obedience to the Law: the prophet, dressed up in the garb of a contemporary orthodox rabbi, was to be exhibited as a terrifying incarnation of the soulless formula "Law above Life." [3]

[Footnote 1: See p. 218.]

[Footnote 2: The title of a famous poem by Gordon, *Kotzo shel Yod*, literally "the tittle of the Yod" the smallest letter in the Hebrew alphabet. The poem in question pictures the tragedy of a woman who remained unhappy the rest of her life because the Hebrew bill of divorce which she

had obtained from her husband was declared void on account of a trifling error in spelling.]

[Footnote 3: The author alludes to Gordon's poem "*Tzidkiyyahu be-bet hapekuddot*" ("Zedekiah in Prison"), in which the defeated and blinded Judean ruler (see Jer. 52. 11) bitterly complains of the evil effects of the prophetic doctrine.]

The implication is obvious: the power of orthodoxy must be broken and Jewish life must be secularized. But while unmasking the old, Gordon could not fail to perceive the sore spots in the new, "enlightened" generation. He saw the flight of the educated youth from the Jewish camp, its ever-growing estrangement from the national tongue in which the poet uttered his songs, and a cry of anguish burst from his lips: "For Whom Do I Labor?" [1] It seemed to him that the rising generation, detached from the fountain-head of Jewish culture, would no more be able to read the "Songs of Zion," and that the poet's rhymes were limited in their appeal to the last handful of the worshippers of the Hebrew Muse:

[Footnote 1: Title of a poem by Gordon, *Lemi ani 'amel!*]

Who knows, but I am the last singer of Zion,
And you are the last who my songs understand.

These lines were penned on the threshold of the new era of the eighties. The exponent of Jewish self-criticism lived to see not only the horrors of the pogroms but also the misty dawn of the national movement, and he could comfort himself with the conviction that he was destined to be the singer for more than one generation.

The question "For whom do I labor?" was approached and solved in a different way by another writer, whose genius expanded with the increasing

years of his long life. During the first years of his activity, Shalom Jacob Abramovich (born in 1836) tried his strength in various fields. He wrote Hebrew essays on literary criticism (*Mishpat Shalom* [1] 1859), adapted books on natural science written in modern languages (*Toldot ha-teba'*, "Natural History," 1862, ff.), composed a social *Tendenzroman* under the title "Fathers and Children" (*Ha-abot we-ha-banim*, 1868 [2]); but all this left him dissatisfied. Pondering over the question "For whom do I labor?," he came to the conclusion that his labors belonged to the people at large, to the down-trodden masses, instead of being limited to the educated classes who understood the national tongue. A profound observer of Jewish conditions in the Pale, he realized that the concrete life of the masses should be portrayed in their living daily speech, in the Yiddish vernacular, which was treated with contempt by nearly all the Maskilim of that period.

[Footnote 1: "The Judgment of Shalom," with reference to the author's first name and with a clever allusion to the Hebrew text of Zech. 8.16.]

[Footnote 2: Written under the influence of Turgenyev's famous novel which bears the same title. See above, p. 210, n. 1.]

Accordingly, Abramovich began to write in the dialect of the people, under the assumed pen-name of *Mendele Mokher Sforim* (Mendele the Bookseller). Choosing his subjects from the life of the lower classes, he portrayed the pariahs of Jewish society and their oppressors (*Dos kleine Menshele*, "A Humble Man"), the life of Jewish beggars and vagrants (*Fishke der Krummer*, "Fishke the Cripple"), and the immense cobweb which had been spun around the destitute masses by the contractors of the meat tax and their accomplices, the alleged benefactors of the community (*Die Taxe, oder die Bande Stodt Bale Toyvos*, "The Meat Tax, or the Gang of Town Benefactors"). His trenchant satire on the "tax" hit the mark, and the author had reason to fear the ire of those who were hurt to the quick by

his literary shafts. He had to leave the town of Berdychev in which he resided at the time, and removed to Zhitomir.

Here he wrote in 1873 one of his ripest works, "The Mare, or Prevention of Cruelty to Animals" (*Die Klache*). In his allegorical narrative he depicts a homeless mare, the personification of the Jewish masses, which is pursued by the "bosses of the town" who do not allow her to graze on the common pasture-lands with the "town cattle," and who set street loafers and dogs at her heels. "The Society for the Prevention of Cruelty to Animals" (the Government) cannot make up its mind whether the mare should be granted equal rights with the native horses, or should be left unprotected, and the matter is submitted to a special commission. In the meantime, certain horsemen from among the "communal benefactors" jump upon the back of the unfortunate mare, beat and torment her well-nigh to death, and drive her for their pleasure, until she collapses.

Leaving the field of polemical allegory, Abramovich published the humorous description of the "Travels of Benjamin the Third" (*Masse'ot Benyamin ha-Shelishi*, 1878), [1] portraying a Jewish Don Quixote and Sancho Panza, who make an oversea journey to the mythical river Sambation—on the way from Berdychev to Kiev. A subtle observation of existing conditions combined with a profound analysis of the problems of Jewish life, artistic power matched with publicistic skill—such are the salient features of the first phase of Abramovich's literary activity.

[Footnote 1: A famous Jewish traveller by the name of Benjamin lived in the twelfth century. Another modern Jewish traveller by the name of Joseph Israel, who died in 1864, adopted the name Benjamin II. Abramovich humorously designates his fictitious travelling hero as Benjamin III.]

In the following period, beginning with the eighties, his literary creations exhibit greater artistic harmony in their content. As far as their linguistic garb is concerned, they combine the Yiddish vernacular with the Hebrew national tongue, which are employed side by side by our author as the vehicles of his thought, and reach at his hands an equally high state of perfection.

6. THE HARBINGER OF JEWISH NATIONALISM (PEREZ SMOLENSKIN)

The artistic portrayer of life was, however, a rare exception in the literature of the Haskalah. Riven by social and cultural strife, the period of enlightenment called rather for theories than for art, and the novelist no less than the publicist was called upon to supply the want. This theoretic element was paramount in the novels of Perez Smolenskin. (1842-1885),

the editor of the popular Hebrew magazine *ha-Shahar*. [1] The pupil of a White Russian yeshibah, he afterwards drifted into frivolous Odessa and still later to Vienna, suffering painfully from the shock of the contrast. Personally he had emerged unscathed from this conflict of ideas. But round about him he witnessed "the dead bodies of enlightenment, which are just as numerous as the victims of ignorance." He saw the Jewish youth fleeing from its people and forgetting its national language. He saw Reform Judaism of Western Europe which had retained nothing of Jewish culture except the modernized superficialities of the synagogue. Repelled by this spectacle, Smolenskin decided from the very beginning to fight on two fronts: against the fanatics of orthodoxy in the name of European progress, and against the champions of assimilation in the name of national Jewish culture, and more particularly of the Hebrew language. "You say," Smolenskin exclaims, addressing himself to the assimilators, "let us be like the other nations. Well and good. Let us, indeed, be like the other nations: cultured men and women, free from superstition, loyal citizens of the country. But let us also remember, as the other nations do, that we have no right to be ashamed of our origin, that it is our duty to hold dear our national language and our national dignity."

[Footnote 1: See above, p. 218.]

In his first great novel "A Rover on Life's Paths" (*Ha-to-'eh bedarke ha-hayyim*, 1869-1876), Smolenskin carries his hero through all the stages of cultural development, leading from an obscure White Russian hamlet to the centers of European civilization in London and Paris. But at the end of his "rovings" the hero ultimately attains to a synthesis of Jewish nationalism and European progress, and ends by sacrificing his life while defending his brethren during the Odessa pogrom of 1871. The other *Tendenz*-novels of Smolenskin reflect the same double-fronted struggle: against the stagnation

of the orthodox, particularly the Hasidim, and against the disloyalty of the "enlightened."

Smolenskin's theory of Judaism is formulated in two publicistic works: "The Eternal People" (*'Am 'olam*, [1] 1872) and "There is a Time to Plant" (*'Et la-ta'at* [2], 1875-1877). As a counterbalance to the artificial religious reforms of the West, he sets up the far-reaching principle of Jewish evolution, of a gradual amalgamation of the national and humanitarian element within Judaism. The Messianic dogma, which the Jews of the West had completely abandoned because of its alleged incompatibility with Jewish citizenship in the Diaspora, is warmly defended by Smolenskin as one of the symbols of national unity. In the very center of his system stands the cult of Hebrew as a national language, "without which there is no Judaism." In order the more successfully to demolish the idea of assimilation, Smolenskin bombards its substructure, the theory of enlightenment as formulated by Moses Mendelssohn, with its definition of the Jews as a religious community, and not as a nation, though in his polemical ardor he often goes too far, and does occasional violence to historic truth.

[Footnote 1: From Isa. 44. 7.]

[Footnote 2: From Eccles. 3. 2.]

In both works one may discern, though in vague outlines only, the theory of a "spiritual nation." [1] However, Smolenskin did not succeed in developing and consolidating his theory. The pogroms of 1881 and the beginning of the Jewish exodus from Russia upset his equilibrium once more. He laid aside the question of the national development of Jewry in the Diaspora, and became an enthusiastic preacher of the restoration of the Jewish people in Palestine. In the midst of this propaganda the life of the talented publicist was cut short by a premature death.

[Footnote 1: The conception of a "spiritual nation" as applied to Judaism has been formulated and expounded by the author of the present volume in a number of works. See his "Jewish History" (Jewish Publication Society, 1903) p. 29 et seq., and the translator's essay "Dubnow's Theory of Jewish Nationalism" (reprinted from the Maccabaeon, 1905). More about this theory will be found in Vol. III.]

The same conviction was finally reached, after a prolonged inner struggle, by Moses Leib Lilienblum (1843-1910), who might well be called a "martyr of enlightenment." However, during the period under consideration he moved entirely within the boundaries of the Haskalah, of which he was a most radical exponent. Persecuted for his harmless liberalism by the fanatics of his native town of Vilkomir, [1] Lilienblum began to ponder over the question of Jewish religious reforms. In advocating the reform of Judaism, he was not actuated, as were so many in Western Europe, by the desire of adapting Judaism to the non-Jewish environment, but rather by the profound and painful conviction that dominant Rabbinism in its medieval phase did not represent the true essence of Judaism. Reform of Judaism, as interpreted by Lilienblum, does not mean a revolution, but an evolution of Judaism. Just as the Talmud had once reformed Judaism in accordance with the requirements of its time, so must Judaism be reformed by us in accordance with the demands of our own times. When the youthful writer embodied these views in a series of articles, published in the *ha-Melitz* under the title *Orhot ha-Talmud* ("The Ways of the Talmud," 1868-1869), his orthodox townsmen were so thoroughly aroused that his further stay in Vilkomir was not free from danger, and he was compelled to remove to Odessa. Here he published in 1870 his rhymed satire *Kehal refa'im*, [2] in which the dark shadows of a Jewish town, the Kahal elders, the rabbis, the Tzaddiks, and other worthies, move weirdly about in the gloom of the nether-world.

[Footnote 1: In the government of Kovno.]

[Footnote 2: "The Congregation of the Dead," with allusion to Prov. 21.16.]

In Odessa Lilienblum joined the ranks of the Russified college youth, and became imbued with the radical ideas of Chernyshevski and Pisaryev, gaining the reputation of a "nihilist." His theory of Jewish reform, superannuated by his new materialistic world view, was thrown aside, and a gaping void opened in the soul of the writer. This frame of mind is reflected in Lilienblum's self-revelation, "The Sins of Youth" (*Hattot ne'urim*, 1876), this agonizing cry of one of the many victims of the mental cataclysm of the sixties. The book made a tremendous impression, for the mental tortures depicted in it were typical of the whole age of transition. However, the final note of the confession, the shriek of a wasted soul, which, having overthrown the old idols, has failed to find a new God, did not express the general trend of that period, which was far from despair.

As for our author, his tempestuous soul was soon set at rest. The events which filled the minds of progressive Jewry with agitation, the horrors of the pogroms and the political oppression of the beginning of the eighties, brought peace to the aching heart of Lilienblum. He found the solution of the Jewish problems in the "Love of Zion," of which he became the philosophic exponent. At a later stage he became an ardent champion of political Zionism.

7. JEWISH LITERATURE IN THE RUSSIAN LANGUAGE

The left wing of "enlightenment" was represented during this period by Jewish literature in the Russian language, which had several noteworthy exponents. It is interesting to observe that, whereas all the prominent

writers in Hebrew were children of profoundly nationalistic Lithuania, those that wrote in Russian, with the sole exception of Levanda, were natives of South Russia, where the two extremes, stagnant Hasidism and radical Russification, fought for supremacy. The founder of this branch of Jewish literature was Osip (Joseph) Rabinovich (1817-1869), a Southerner, a native of Poltava and a resident of Odessa. [1] Alongside of journalistic articles he wrote protracted novels. His touching "Pictures of the Past," his stories "The Penal Recruit" and "The Inherited Candlestick" (1859-1860) called up before the generation living at the dawn of the new era of reforms the shadows of the passing night: the tortures of Nicholas' conscription and the degrading forms of Jewish rightlessness.

[Footnote 1: See above, p, 219.]

The fight against this rightlessness was the goal of his journalistic activity which, prior to the publication of the *Razsuyet*, he had carried on in the columns of the liberal Russian press. The problems of inner Jewish life had but little attraction for him. Like Riesser, he looked upon civil emancipation as a panacea for all Jewish ailments. He was snatched away by death before he could be cured of this illusion.

Rabinovich's work was continued by a talented youth, the journalist Ilya (Elias) Orshanski of Yekaterinoslav (1846-1875), who was the main contributor to the *Dyen* of Odessa and to the *Yevreyskaya Biblioteka*. [1] To fight for Jewish rights, not to offer humble apologies, to demand emancipation, not to beg for it, this attitude lends a charm of its own to Orshanski's writings. His brilliant analysis of "Russian Legislation concerning the Jews" [2] offers a complete anatomy of Jewish disfranchisement in Russia, beginning with Catherine II. and ending with Alexander II.

[Footnote 1: Compare above, p. 220 et seq.]

[Footnote 2: The title of his work on the same subject which appeared in St. Petersburg in 1877.]

Nevertheless, being a child of his age, he preached its formula. While a passionate Jew at heart, he championed the cause of Russification, though not in the extreme form of spiritual self-effacement. The Odessa pogrom of 1871 staggered his impressionable soul. He was tossing about restlessly, seeking an outlet for his resentment, but everywhere he knocked his head against the barriers of censorship and police. Had he been granted longer life, he might, like Smolenskin, have chosen the road of a nationalistic-progressive synthesis, but the white plague carried him off in his twenty-ninth year.

The literary work of Lev (Leon) Levanda (1835-1888) was of a more complicated character. A graduate of one of the official rabbinical schools, he was first active as teacher in a Jewish Crown school in Minsk, and afterwards occupied the post of a "learned Jew" [1] under Muravyov, the governor-general of Vilna. He thus moved in the hot-bed of "official enlightenment" and in the headquarters of the policy of Russification as represented by Muravyov, a circumstance which left its impress upon all the products of his pen. In his first novel, "The Grocery Store" (1860), of little merit from the artistic point of view, he still appears as the naive bard of that shallow "enlightenment," the champion of which is sufficiently characterized by wearing a European costume, calling himself by a well-sounding German or Russian name (in the novel under discussion the hero goes by the name of Arnold), cultivating friendly relations with noble-minded Christians and making a love match unassisted by the marriage-broker.

[Footnote 1: In Russian, *Uchony Yevrey*, an expert in Jewish matters, attached, according to the Russian law of 1844, to the superintendents of

school districts and to the governors-general within the Pale.]

During this stage of his career, Levanda was convinced that "no educated Jew could help being a cosmopolitan." But a little later his cosmopolitanism displayed a distinct propensity toward Russification. In his novel "A Hot Time" (1871-1872), Levanda renounces his former Polish sympathies, and, through the mouth of his hero Sarin, preaches the gospel of the approaching cultural fusion between the Jews and the Russians which is to mark a new epoch in the history of the Jewish people. Old-fashioned Jewish life is cleverly ridiculed in his "Sketches of the Past" ("The Earlocks of my Mellammed," "Schoolophobia," etc., 1870-1875). His peace of mind was not even disturbed by the manifestation, towards the end of the sixties, of the anti-Semitic reaction in those very official circles in which the "learned Jew" moved and in which Brafman was looked up to as an authority in matters appertaining to Judaism. [1] But the catastrophe of 1881 dealt a staggering blow to Levanda's soul, and forced him to overthrow his former idol of assimilation. With his mind not yet fully settled on the new theory of nationalism, he joined the Palestine movement towards the end of his life, and went down to his grave with a clouded soul.

[Footnote 1: Levanda sat side by side with this renegade and informer in the Commission on the Jewish Question which had been appointed by the governor-general of Vilna. (See p. 189.)]

One who stuck fast in his denial of Judaism was Grigory Bogrov (1825-1885). The descendant of a family of rabbis in Poltava, he passed "from darkness to light" by way of the curious educational institution of Nicholas' brand, the office of an excise farmer in which he was employed for a number of years. The enlightened *Aktziznik* [1] became conscious of his literary talent late in life. His protracted "Memoirs of a Jew," largely made up of autobiographic material, were published in a Russian magazine as late

as 1871-1873. [2] They contain an acrimonious description of Jewish life in the time of Nicholas I. No Jewish artist had ever yet dipped his brush in colors so dismal and had displayed so ferocious a hatred as did Bogrov in painting the old Jewish mode of life within the Pale, with its poverty and darkness, its hunters and victims, its demoralized Kahal rule of the days of conscription. Bogrov's account of his childhood and youth is not relieved by a single cheerful reminiscence, except that of a young *Russian* girl. The whole patriarchal life of a Jewish townlet of that period is transformed into a sort of inferno teeming with criminals or idiots.

[Footnote 1: See p. 186, n. 1.]

[Footnote 2: Shortly afterwards the "Memoirs" were supplemented by another autobiographic novel, "The Captured Recruit."]

To the mind of Bogrov, only two ways promised an escape from this hell: the way of cosmopolitanism and rationalism, opening up into humanity at large, or the way leading into the midst of the Russian nation. Bogrov himself stood irresolute on this fateful border-line. In 1878 he wrote to Levanda that as "an emancipated cosmopolitan he would long ago have crossed over to the opposite shore," where "other sympathies and ideals smiled upon him," were he not kept within the Jewish fold "by four million people innocently suffering from systematic persecutions."

Bogrov's hatred of the persecutors of the Jewish people was poured forth in his historic novel "A Jewish Manuscript" (1876), the plot of which is based on events of the time of Khmelnitzki. [1] But even here, while describing, as he himself puts it, the history of the struggle between the spider and the fly, he finds in the life of the fly nothing worthy of sympathy except its sufferings. In 1879 Bogrov began a new novel, "The Scum of the Age," picturing the life of the modern Jewish youth who were engulfed in the Russian revolutionary propaganda. But the hand which knew how to

portray the horrors of the old conscription was powerless to reproduce, except in very crude outlines, the world of political passions which was foreign to the author, and the novel remained unfinished.

[Footnote 1: See on that period Vol. I, p. 144 et seq.]

The reaction of the eighties produced no change in Bogrov's attitude. He breathed his last in a distant Russian village, and was buried in a Russian cemetery, having embraced Christianity shortly before his death, as a result of a sad concatenation of family circumstances.

Before the young generation which entered upon active life in the eighties lay the broken tablets of Russian Jewish literature. New tablets were needed, partly to restore the commandments of the preceding period of enlightenment, partly to correct its mistakes.

CHAPTER XXI

THE ACCESSION OF ALEXANDER III. AND THE INAUGURATION OF POGROMS

1. THE TRIUMPH OF AUTOCRACY

On March 1, 1881, Alexander II. met his death on one of the principal thoroughfares of St. Petersburg, smitten by dynamite bombs hurled at him by a group of terrorists. The Tzar, who had freed the Russian peasantry from personal slavery, paid with his life for refusing to free the Russian people from political slavery and police tyranny. The red terrorism of the revolutionaries was the counterpart of the white terrorism of the Russian authorities, who for many years had suppressed the faintest striving for liberty, and had sent to gaol and prison, or deported to Siberia, the champions of a constitutional form of government and the spokesmen of social reforms. Forced by the persecutions of the police to hide beneath the surface, the revolutionary societies of underground Russia found themselves compelled to resort to methods of terrorism. This terrorism found its expression during the last years of Alexander II. in various attempts on the life of that ruler, and culminated in the catastrophe of March 1.

Among the members of these revolutionary societies were also some representatives from among the young Jewish *intelligenzia*. They were in

large part college students, who had been carried away by the ideals of their Russian comrades. But few of them were counted among the active terrorists. The group which prepared the murder of the Tzar comprised but one Jewish member, a woman by the name of Hesia Helfman, who, moreover, played but a secondary role in the conspiracy, by keeping a secret residence for the revolutionaries. Nevertheless, in the official circles, which were anxious to justify their oppression of the Jews, it became customary to refer to the "important role" played by the Jews in the Russian revolution.

It was with preconceived notions of this kind that Alexander III. ascended the throne of Russia, a sovereign with unlimited power but with a very limited political horizon. Being a Russian of the old-fashioned type and a zealous champion of the Greek-Orthodox Church, he shared the anti-Jewish prejudices of his environment. Already as crown prince he ordered that a monetary reward be given to the notorious Lutostanski, who had presented him with his libellous pamphlet "Concerning the Use of Christian Blood by the Jews." [1] During the Russo-Turkish war of 1877, when as heir-apparent he was in command of one of the Balkan armies, he allowed himself to be persuaded that the abuses in the Russian commissariat were due to the "Jewish" purveyors who supplied the army. [2] This was all that was known about Judaism in the circles from which the ruler of five million Jews derived his information.

[Footnote 1: See p. 203.]

[Footnote 2: The business firm in question was that of Greger, Horvitz, and Kohan, of whom the first was a Greek, and the second a converted Jew. See above, p. 202, n. 1.]

In March and April, 1881, the destinies of Russia were being decided at secret conferences, which were held between the Tzar and the highest dignitaries of state in the palace of the quiet little town of Gatchina, whither

Alexander III. had withdrawn after the death of his father. Two parties and two programs were struggling for mastery at these conferences. The party of the liberal Minister Loris-Melikov, championing a program of moderate reforms, pleaded primarily for the establishment of an advisory commission to be composed of the deputies of the rural and urban administrations for the purpose of considering all legal projects prior to their submission to the Council of State. This plan of a paltry popular representation, which had obtained the approval of Alexander II. during the last days of his life, assumed in the eyes of the reactionary party the proportions of a dangerous "constitution," and was execrated by it as an encroachment upon the sacred prerogatives of autocracy. The head of this party was the procurator-general of the Holy Synod, Constantine Petrovich Pobedonostzev, a former professor at the University of Moscow, who had been Alexander III.'s tutor in the political sciences when the latter was crown prince. As the exponent of an ecclesiastical police state, Pobedonostzev contended that enlightenment and political freedom were harmful to Russia, that the people must be held in a state of patriarchal submission to the authority of the Church and of the temporal powers, and that the Greek-Orthodox masses must be shielded against the influence of alien religions and races, which should accordingly occupy in the Russian monarchy a position subordinate to that of the dominant nation. The ideas of this fanatic reactionary, who was dubbed "The Grand Inquisitor" and whose name was popularly changed into *Byedonostzev* [1] carried the day at the Gatchina conferences. The deliberations culminated in the decision to refrain from making any concessions to the revolutionary element by granting reforms, however however modest in character, and to maintain at all cost the regime of a police state as a counterbalance to the idea of a legal state prevalent in the "rotten West."

[Footnote 1: *Byedonostzev* means in Russian "Misfortune-bearer," a play on the name *Pobedonostzev* which signifies "Victory-bearer."]

Accordingly, the imperial manifesto [1] promulgated on April 29, 1881, proclaimed to the people that "the Voice of God hath commanded us to take up vigorously the reins of government, inspiring us with the belief in the strength and truth of autocratic power, which we are called upon to establish and safeguard." The manifesto "calls upon all faithful subjects to eradicate the hideous sedition and to establish faith and morality." The methods whereby faith and morality were to be established were soon made known, in the "Police Constitution" which was bestowed upon Russia in August, 1881, under the name of "The Statute concerning Enforced Public Safety."

[Footnote 1: A manifesto is a pronouncement issued by the Tzar on solemn occasions, such as accession to the throne, events in the imperial family, declaration of war, conclusion of peace, etc., accompanied, as a rule, by acts of grace, such as conferring privileges, granting pardons, and so on. Compare also above, p. 115.]

This statute confers upon the Russian satraps of the capitals (St. Petersburg and Moscow) and of many provincial centers—the governors-general and the governors—the power of issuing special enactments and thereby setting aside the normal laws as well as of placing under arrest and deporting to Siberia, without the due process of law, all citizens suspected of "political unsafety." This travesty of a *habeas corpus* Act, insuring the inviolability of police and gendarmerie, and practically involving the suspension of the current legislation in a large part of the monarchy, has ever since been annually renewed by special imperial enactments, and has remained in force until our own days. The genuine "Police Constitution" of 1881 has survived the civil sham Constitution of 1905, figuring as a symbol of legalized lawlessness.

2. THE INITIATION OF THE POGROM POLICY

The catastrophe of March 1 had the natural effect of pushing not only the Government but also a large part of the Russian people, who had been scared by the spectre of anarchy, in the direction of reactionary politics. This retrograde tendency was bound to affect the Jewish question. The bacillus of Judaeophobia [1] became astir in the politically immature minds which had been unhinged by the acts of terrorism. The influential press organs, which maintained more or less close relations with the leading Government spheres, adopted more and more a hostile attitude towards the Jews. The metropolitan newspaper *Novoye Vremya* ("The New Time") [2] which at that time embarked upon its infamous career as the semi-official organ of the Russian reaction, and a number of provincial newspapers subsidized by the Government suddenly began to speak of the Jews in a tone which suggested that they were in the possession of some terrible secret.

[Footnote 1: The term used in Russia for anti-Semitism.]

[Footnote 2: See above, p. 205.]

Almost on the day following the attempt on the life of the Tzar, the papers of this ilk began to insinuate that the Jews had a hand in it, and shortly thereafter the South-Russian press published alarming rumors about proposed organized attacks upon the Jews of that region. These rumors were based on facts. A sinister agitation was rife among the lowest elements of the Russian population, while invisible hands from above seemed to push it on toward the commission of a gigantic crime. In the same month of March, mysterious emissaries from St. Petersburg made their appearance in the large cities of South Russia, such as Yelisavetgrad (Elizabethgrad), Kiev, and Odessa, and entered into secret negotiations with the highest police officials concerning a possible "outburst of popular indignation against the Jews" which they expected to take place as part of the economic

conflict, intimating the undesirability of obstructing the will of the Russian populace by police force. Figures of Great-Russian tradesmen and laborers, or *Katzaps*, as the Great Russians are designated in the Little-Russian South, began to make their appearance in the railroad cars and at the railroad stations, and spoke to the common people of the summary punishment soon to be inflicted upon the Jews or read to them anti-Semitic newspaper articles. They further assured them that an imperial ukase had been issued, calling upon the Christians to attack the Jews during the days of the approaching Greek-Orthodox Easter.

Although many years have passed since these events, it has not yet been possible to determine the particular agency which carried on this pogrom agitation among the Russian masses. Nor has it been possible to find out to what extent the secret society of high officials, which had been formed in March, 1881, under the name of "The Sacred League," with the object of defending the person of the Tzar and engaging in a terroristic struggle with the "enemies of the public order," [1] was implicated in the movement. But the fact itself that, the pogroms were carefully prepared and engineered is beyond doubt: it may be inferred from the circumstance that they broke out almost simultaneously in many places of the Russian South, and that everywhere they followed the same routine, characterized by the well-organized "activity" of the mob and the deliberate inactivity of the authorities.

[Footnote 1: The League existed until the autumn of 1882. Among its members were Pobyedonostzev and the anti-Jewish Minister Ignatyev.]

The first outbreak of the storm took place in Yelisavetgrad (Elizabethgrad), a large city in New Russia, [1] with a Jewish population of fifteen thousand souls. On the eve of the Greek-Orthodox Easter, the local Christians, meeting on the streets and in the stores, spoke to one another of

the fact that "the Zhyds are about to be beaten." The Jews became alarmed. The police, prepared to maintain public order during the first days of the Passover, called out a small detachment of soldiers. In consequence, the first days of the festival passed quietly, and on the fourth day, [2] on April 15, the troops were removed from the streets.

[Footnote 1: On the term New Russia see p. 40, n. 3.]

[Footnote 2: The Greek-Orthodox Passover lasts officially three days, but an additional day is celebrated by the populace.]

At that moment the pogrom began. The organizers of the riots sent a drunken Russian into a saloon kept by a Jew, where he began to make himself obnoxious. When the saloon-keeper pushed the trouble maker out into the street, the crowd, which was waiting outside, began to shout: "The Zhyds are beating our people," and threw themselves upon the Jews who happened to pass by.

This evidently was the prearranged signal for the pogrom. The Jewish stores in the market-place were attacked and demolished, and the goods looted or destroyed. At first, the police, assisted by the troops, managed somehow to disperse the rioters. But on the second day the pogrom was renewed with greater energy and better leadership, amidst the suspicious inactivity both of the military and police authorities. The following description of the events is taken from the records of the official investigation which were not meant for publication and are therefore free from the bureaucratic prevarications characteristic of Russian public documents:

During the night from the 15th to the 16th of April, an attack was made upon Jewish houses, primarily upon liquor stores, on the outskirts of the town, on which occasion one Jew was killed. About seven o'clock

in the morning, on April 16, the excesses were renewed, spreading with extraordinary violence all over the city. Clerks, saloon and hotel waiters, artisans, drivers, flunkeys, day laborers in the employ of the Government, and soldiers on furlough—all of these joined the movement. The city presented an extraordinary sight: streets covered with feathers and obstructed with broken furniture which had been thrown out of the residences; houses with broken doors and windows; a raging mob, running about yelling and whistling in all directions and continuing its work of destruction without let or hindrance, and, as a finishing touch to this picture, complete indifference displayed by the local non-Jewish inhabitants to the havoc wrought before their eyes. The troops which had been summoned to restore order were without definite instructions, and, at each attack of the mob on another house, would wait for orders of the military or police authorities, without knowing what to do. As a result of this attitude of the military, the turbulent mob, which was demolishing the houses and stores of the Jews before the eyes of the troops, without being checked by them, was bound to arrive at the conclusion that the excesses in which it indulged were not an illegal undertaking but rather a work which had the approval of the Government. Toward evening the disorders increased in intensity, owing to the arrival of a large number of peasants from the adjacent villages, who were anxious to secure part of the Jewish loot. There was no one to check these crowds; the troops and police were helpless. They had all lost heart, and were convinced that it was Impossible to suppress the disorders with the means at hand. At eight o'clock at night a rain came down accompanied by a cold wind which helped in a large measure to disperse the crowd. At eleven o'clock fresh troops arrived on the spot. On the morning of April 17 a new battalion of infantry came, and from that day on public order was no longer violated in Yelisavetgrad.

The news of the "victory" so easily won over the Jews of Yelisavetgrad aroused the dormant pogrom energy in the unenlightened Russian masses. In the latter part of April riots took place in many villages of the Yelisavetgrad district and in several towns and townlets in the adjoining government of Kherson. In the villages, the work of destruction was limited to the inns kept by Jews—many peasants believing that they were acting in accordance with imperial orders. In the towns and townlets, all Jewish houses and stores were demolished and their goods looted. In the town of Ananyev, in the government of Kherson, the people were incited by a resident named Lashchenko, who assured his townsmen that the central Government had given orders to massacre the Jews because they had murdered the Tzar, and that these orders were purposely kept back by the local administration. The instigator was seized by the police, but was wrested from it by the crowd which thereupon threw itself upon the Jews. The riots resulted in some two hundred ruined houses and stores in the outskirts of the town, where the Jewish proletariat was cooped up. The central part of the town, where the more well-to-do Jews had their residences, was guarded by the police and by a military detachment, and therefore remained intact.

3. THE POGROM AT KIEV

The movement gained constantly in momentum, and the instincts of the mob became more and more unbridled. The "Mother of Russian cities," ancient Kiev, where at the dawn of Russian history the Jews, together with the Khazars, had been the banner-bearers of civilization, became the scene of the lawless fury of savage hordes. Here the pogrom was carefully prepared by a secret organization which spread the rumor that the new Tzar had given orders to exterminate the Jews, who had murdered his father, and that the civil and military authorities would render assistance to the people,

whilst those who would fail to comply with the will of the Tzar would meet with punishment. The local authorities, with Governor-General Drenteln at their head, who was a reactionary and a fierce Jew-hater, were aware not only of the imminence of the pogrom, but also of the day selected for it, Sunday, April 26.

As early as April 23 a street fight took place which was accompanied by assaults on Jewish passers-by—a prelude to the pogrom. On the day before the fateful Sunday, the Jews were warned by the police not to leave their houses, nor to open their stores on the morrow. The Jews were nonplussed. They failed to understand why in the capital of the governor-general, with its numerous troops, which, at a hint from their commander, were able to nip in the bud disorders of any kind, peaceful citizens should be told to hide themselves from an impending attack, instead of taking measures to forestall the attack itself. Nevertheless, the advice of the police was heeded, and on the fateful day no Jews were to be found on the streets. This, however, did not prevent the numerous bands of rioters from assembling on the streets and embarking upon their criminal activities. The pogrom started in Podol, a part of the town densely populated by Jews. The following is the description of an eye-witness:

At twelve o'clock at noon, the air suddenly resounded with, wild shouts, whistling, jeering, hooting, and laughing. An immense crowd of young boys, artisans, and laborers was on the march. The whole city was obstructed by the "bare-footed brigade." [1] The destruction of Jewish houses began. Window-panes, and doors began to fly about, and shortly thereafter the mob, having gained access to the houses and stores, began to throw upon the streets absolutely everything that fell into their hands. Clouds of feathers began to whirl in the air. The din of broken window-panes and frames, the crying, shouting, and despair on the one hand, and the terrible yelling and jeering on the other, completed the picture which

reminded many of those who had participated in the last Russo-Turkish war of the manner in which the Bashi-buzuks [2] had attacked Bulgarian villages. Soon afterwards the mob threw itself upon the Jewish synagogue, which, despite its strong bars, locks and shutters, was wrecked in a moment. One should have seen the fury with which the riff-raff fell upon the [Torah] scrolls, of which there were many in the synagogue. The scrolls were torn to shreds, trampled in the dirt, and destroyed with incredible passion. The streets were soon crammed with the trophies of destruction. Everywhere fragments of dishes, furniture, household utensils, and other articles lay scattered about. Barely two hours after the beginning of the pogrom, the majority of the "bare-footed brigade" were transformed into well-dressed gentlemen, many of them having grown excessively stout in the meantime. The reason for this sudden change was simple enough. Those that had looted the stores of ready-made clothes put on three or four suits, and, not yet satisfied, took under their arms all they could lay their hands on. Others drove off in vehicles, carrying with them bags filled with loot.... The Christian population saved itself from the ruinous operations of the crowd by placing holy ikons in their windows and painting crosses on the gates of their houses.

[Footnote 1: The Russian nickname for a crowd of tramps.]

[Footnote 2: Name of the Turkish irregular troops noted for their ferocity.]

While the pogrom was going on, troops were marching up and down on the streets of the Podol district, Cossaks were riding about on their horses, and patrols on foot and horse-back were moving to and fro.

Here and there army officers would pass through, among them generals and high civil officials. The cavalry would hasten to a place

whence the noise came. Having arrived there, it would surround the mob and order it to disperse, but the mob would only move to another place. Thus, the work of destruction proceeded undisturbed until three o'clock in the morning. Drums were beaten, words of command were shouted, the crowd was encircled by the troops and ordered to disperse, while the mob continued its attacks with ever-increasing fury and savagery.

While some of the robber bands were "busy" in Podol, others were active in the principal thoroughfares of the city. In each case, the savage and drunken mob—"not a single sober person could be found among them," is the testimony of an eye-witness—did its hideous work in the presence of soldiers and policemen, who in a few instances drove off the rioters, but, more often, accompanied them from place to place, forming, as it were, an honorary escort. Occasionally, Governor-General Drenteln himself would appear on the streets, surrounded by a magnificent military suite, including the governor and chief of police. These representatives of State authority "admonished the people," and the latter, "preserving a funereal silence, drew back," only to resume their criminal task after the departure of the authorities.

In some places there were neither troops nor police on the spot, and the rioters were able to give full vent to their beastly instincts. Demiovka, a suburb of Kiev, was invaded by a horde of rioters during the night. They first destroyed the saloons, filling themselves with alcohol, and then proceeded to lay fire to the Jewish houses. Under the cover of night indescribable horrors were perpetrated, numerous Jews were beaten to death or thrown into the flames, and many women were violated. A private investigation carried on subsequently brought out more than twenty cases of rape committed on Jewish girls and married women. Only two of the sufferers confessed their misfortune to the public prosecutor. The others

admitted their disgrace in private or concealed it altogether, for fear of ruining their reputation.

It was only on April 27—when the pogrom broke out afresh—that the authorities resolved to put a stop to it. Wherever a disorderly band made its appearance, it was immediately surrounded by soldiers and Cossaks and driven off with the butt ends of their rifles. Here and there it became necessary to shoot at these human beasts, and some of them were wounded or killed. The rapidity with which the pogrom was suppressed on the second day showed incontrovertibly that if the authorities had only been so minded the excesses might have been suppressed on the first day and the crime nipped in the bud. The indifference of the authorities was responsible for the demolition of about a thousand Jewish houses and business places, involving a monetary loss of several millions of rubles, not to speak of the scores of killed and wounded Jews and a goodly number of violated women. In the official reports these orgies of destruction were politely designated as "disorders," and *The Imperial Messenger* limited its account of the horrors perpetrated at Kiev to the following truth-perverting dispatch:

On April 26, disorders broke out in Kiev which were directed against the Jews. Several Jews received blows, and their stores and warehouses were plundered. On the morning of the following day the disorders were checked with the help of the troops, and five hundred men from among the rioters were arrested.

The later laconic reports are nearer to the facts. They set the figure of arrested rioters at no less than fourteen hundred, and make mention of a number of persons who had been wounded during the suppression of the excesses, including one gymnasium and one university student. Yet even these later dispatches contain no reference to Jewish victims.

4. FURTHER OUTBREAKS IN SOUTH RUSSIA

The barbarism displayed in the metropolis of the south-west communicated itself with the force of an infectious disease to the whole region. During the following days, from April to May, some fifty villages and a number of townlets in the government of Kiev and the adjacent governments of Volhynia and Podolia were swept by the pogrom epidemic. The Jewish population of the town of Smyela [1] and the surrounding villages, amounting to some ten thousand souls, experienced, on a smaller scale, all the horrors perpetrated at Kiev. It was not until the second day, May 4, that the troops proceeded to put an end to the violence and pillage which had been going on in the town and which resulted in a number of killed and wounded. In a near-by village a Jewish woman of thirty was attacked and tortured to death, while the seven year old son of another woman, who had saved herself by flight, was killed in beastly fashion for his refusal to make the sign of the cross.

[Footnote 1: In the government of Kiev.]

In many cases the pogroms had been instigated by the newly arrived Great-Russian "bare-footed brigade" who having accomplished their "work," vanished without a trace.

A similar horde of tramps arrived at the railway station of Berdychev. But in this populous Jewish center they were met at the station by a large Jewish guard who, armed with clubs, did not allow the visiting "performers" to leave the railway cars, with the result that they had to turn back. This rare instance of self-defence was only made possible by the indulgence of the local police commissioner, or *Ispravnik*, who, for a large consideration, blinked at the endeavor of the Jews to defend themselves against the rioters. In other places, similar attempts at self-defence were frustrated by the

police; occasionally they made things worse. Such was the case in the town of Konotop, in the government of Chernigov, where, as a result of the self-defence of the Jews, the mob passed from plunder to murder. In the villages the ignorant peasants scrupulously discharged their "pogrom duty," in the conviction that it had been imposed upon them by the Tzar. In one village in the government of Chernigov, the following characteristic episode took place. The peasants of the village had assembled for their work of destruction. When the rural chief, or Elder, [1] called upon the peasants to disperse, the latter demanded a written guarantee that they would not be held to account for their failure to comply with the imperial "orders" to beat the Jews. This guarantee was given to them. However, the sceptical rustics were not yet convinced, and, to make assurance doubly sure, destroyed six Jewish houses. In various villages the priests found it exceedingly difficult to convince the peasants that no "order" had been issued to attack the Jews.

[Footnote 1: The president of the village assembly.]

The series of spring pogroms was capped by a three days' riot in the capital of the South, in Odessa (May 3-5), which harbored a Jewish population of 100,000. In view of the immense riff-raff, which is generally found in a port of entry of this size, the excesses of the mob might have assumed terrifying dimensions, had not the authorities remembered that the task entrusted to them was not exactly that of forming an honorary escort for the rioters, as had actually been the case in Kiev. The police and military forces of Odessa attacked the rioting hordes which had spread all over the city, and, in most cases, succeeded in driving them off. The Jewish self-defence, organized and led by Jewish students of the University of Odessa, managed in a number of cases to beat off the bloodthirsty crowds from the gates of Jewish homes. However, when the police began to make arrests among the street mob, they drew no line between the defenders and the assailants, with the result that among the eight hundred arrested persons

there were one hundred and fifty Jews, who were locked up on the charge of carrying fire-arms. In point of fact, the "arms" of the Jews consisted of clubs and iron rods, with the exception of a very few who were provided with pistols. Those arrested were loaded on three barges which were towed out to sea, and for several days were kept in that swimming jail.

The Odessa pogrom, which had resulted in the destruction of several city districts populated by poor Jews, did not satisfy the appetites of the savage crowd, whose imagination had been fired by stories of the "successes" attained at Kiev. The mob threatened the Jews with a new riot and even with a massacre. The panic resulting from this threat induced many Jews to flee to more peaceful places, or to leave Russia altogether. The same lack of completeness marked the pogroms which took place simultaneously in several other cities within the jurisdiction of the governor-general of New Russia. In the beginning of May the destructive energy characterizing the first pogrom period began to ebb. A lull ensued in the "military operations" of the Russian barbarians which continued until the month of July of the same year.

CHAPTER XXII

THE ANTI-JEWISH POLICIES OF IGNATYEV

1. THE VACILLATING ATTITUDE OF THE AUTHORITIES

In the beginning of May, 1881, the well-known diplomatist Nicholas Pavlovich Ignatyev was called by the Tzar to the post of Minister of the Interior. At one time ambassador in Constantinople and at all times a militant Pan-Slavist, Ignatyev introduced the system of diplomatic intrigues into the inner politics of Russia, earning thereby the unenviable nickname of "Father of Lies."

A programmatic circular, issued by him on May 6, declared that the principal task of the Government consisted in the "extirpation of sedition," i.e., in carrying on a struggle not only against the revolutionary movement but also against the spirit of liberalism in general. In this connection, Ignatyev took occasion to characterize the anti-Jewish excesses in the following typical sentences:

The movement against the Jews which has come to light during the last few days in the South is a sad example, showing how men, otherwise devoted to Throne and Fatherland, yet yielding to the instigations of ill-minded agitators who fan the evil passions of the popular masses, give way to self-will and mob rule and, without being

aware of it, act in accordance with the designs of the anarchists. Such violation of the public order must not only be put down vigorously, but must also be carefully forestalled, for it is the first duty of the Government to safeguard the population against all violence and savage mob rule.

These lines reflect the theory concerning the origin of the pogroms, which was originally held in the highest Government spheres of St. Petersburg. This theory assumed that the anti-Jewish campaign had been entirely engineered by revolutionary agitators and that the latter had made deliberate endeavors to focus the resentment of the popular masses upon the Jews, as a pre-eminently mercantile class, for the purpose of subsequently widening the anti-Jewish campaign into a movement directed against the Russian mercantile class, land-owners and capitalists in general. [1] Be this as it may, there can be no question that the Government was actually afraid lest the revolutionary propaganda attach itself to the agitation of those "devoted to Throne and Fatherland" for the purpose of giving the movement a more general scope, "in accordance with the designs of the anarchists." As a matter of fact, even outside of Government circles, the apprehension was voiced that the anti-Jewish movement would of itself, without any external stimulus, assume the form of a mob movement, directed not only against the well-to-do classes but also against the Government officials. On May 4, 1881, Baron Horace Günzburg, a leading representative of the Jewish community of St. Petersburg, waited upon Grand Duke Vladimir, a brother of the Tzar, who expressed the opinion that the anti-Jewish "disorders, as has now been ascertained by the Government, are not to be exclusively traced to the resentment against the Jews, but are rather due to the endeavor to disturb the peace in general."

[Footnote 1: John W. Foster, United States Minister to Russia, in reporting to the Secretary of State, on May 24, 1881, about the recent

excesses, which "are more worthy of the dark ages than of the present century," makes a similar observation: "It is asserted also that the Nihilist societies have profited by the situation to incite and encourage the peasants and lower classes of the towns and cities in order to increase the embarrassments of the Government, but the charge is probably conjectural and not based on very tangible facts." See *House of Representatives, 51st Congress, 1st Session. Executive Document No. 470, p. 53*]

A week after this visit, the deputies of Russian Jewry had occasion to hear the same opinion expressed by the Tzar himself. The Jewish deputation, consisting of Baron Günzburg, the banker Sack, the lawyers Passover and Bank, and the learned Hebraist Berlin, was awaiting this audience with, considerable trepidation, anticipating an authoritative imperial verdict regarding the catastrophe that had befallen the Jews. On May 11, the audience took place in the palace at Gatchina. Baron Günzburg voiced the sentiments of "boundless gratitude for the measures adopted to safeguard the Jewish population at this sad moment," and added: "One more imperial word, and the disturbances will disappear." In reply to the euphemistic utterances concerning "the measures adopted," the Tzar stated in the same tone that all Russian subjects were equal before him, and expressed the assurance "that in the criminal disorders in the South of Russia the Jews merely serve as a pretext, and that it is the work of anarchists."

This pacifying portion of the Tzar's answer was published in the press. What the public was not allowed to learn was the other portion of the answer, in which the Tzar gave utterance to the view that the source of the hatred against the Jews lay in their economic "domination" and "exploitation" of the Russian population. In reply to the arguments of the talented lawyer Passover and the other deputies, the Tzar declared: "State all this in a special memorandum."

Such a memorandum was subsequently prepared. But it was not submitted to the Tzar. For only a few months later the official attitude towards the Jewish question took a turn for the worse. The Government decided to abandon its former view on the Jewish pogroms and to adopt, instead, the theory of Jewish "exploitation," using it as a means of justifying not only the pogroms which had already been perpetrated upon the Jews but also the repressive measures which were being contemplated against them. Under these circumstances, Ignatyev did not see his way clear to allow the memorandum in defence of Jewry to receive the attention of the Tzar.

It is not impossible that the pacifying portion of the imperial reply which had been given at the audience of May 11 was also prompted by the desire to appease the public opinion of Western Europe, for at that time European opinion still carried some weight with the bureaucratic circles of Russia. Several days before the audience at Gatchina, [1] the English Parliament discussed the question of Jewish persecutions in Russia. In the House of Commons the Jewish members, Baron Henry de Worms and Sir H.D. Wolff, calling attention to the case of an English Jew who had been expelled from St. Petersburg, interpellated the Under-Secretary of State for Foreign Affairs, Sir Charles Dilke, "whether Her Majesty's Government have made any representations to the Government at St. Petersburg, with regard to the atrocious outrages committed on the Jewish population in Southern Russia," Dilke replied that the English Government was not sure whether such a protest "would be likely to be efficacious." [2]

[Footnote 1: On May 16 and 19=May 4 and 7, according to the Russian Calendar.]

[Footnote 2: The Russian original has been amended in a few places in accordance with the report of the parliamentary proceedings published in the *Jewish Chronicle* of May 20, 1881.]

A similar reply was given by the Secretary of State for Foreign Affairs, Lord Granville, to a joint deputation of the Anglo-Jewish Association and the Board of Deputies, two leading Anglo-Jewish bodies, which waited upon him on May 13, [1] two days after the Gatchina audience. After expressing his warm sympathy with the objects of the deputation, the Secretary pointed out the inexpediency of any interference on the part of England at a moment when the Russian Government itself was adopting measures against the pogroms, referring to "the cordial reception lately given by the emperor to a deputation of Jews"

[Footnote 1: May 25, according to the European Calendar. From the issue of the *Jewish Chronicle* of May 27, 1881, p. 12b, it would appear that the deputation was received on Tuesday, May 24.]

Subsequent events soon made it clear that the Government, represented by Ignatyev, was far from harboring any sympathy for the victims of the pogroms. The public did not fail to notice the fact that the Russian Government, which was in the habit of rendering financial help to the population in the case of elemental catastrophes, such as conflagrations or inundations, had refrained from granting the slightest monetary assistance to the Jewish sufferers from the pogroms. Apart from its material usefulness, such assistance would have had an enormous moral effect, inasmuch as it would have stood forth in the public eye as an official condemnation of the violent acts perpetrated against the Jews—particularly if the Tzar himself had made a large donation for that purpose, as he was wont to do in other cases of this kind. As it was, the authorities not only neglected to take such a step, but they even went so far as to forbid the Jews of St. Petersburg to start a public collection for the relief of the pogrom victims. Nay, the governor-general of Odessa refused to accept a large sum of money offered to him by well-to-do Jews for the benefit of the sufferers.

Nor was this the worst. The local authorities did everything in their power to manifest their solidarity with the enemies of Judaism. The street pogroms were followed by administrative pogroms *sui generis*. Already in the month of May, the police of Kiev began to track all the Jews residing "illegally" in that city [1] and to expel these "criminals" by the thousands. Similar wholesale expulsions took place in Moscow, Oryol, and other places outside the Pale of Settlement. These persecutions constituted evidently an object-lesson in religious toleration, and the Russian masses which had but recently shown to what extent they respected the inviolability of Jewish life and property took the lesson to heart.

[Footnote 1: It will be remembered that the right of residence in Kiev was restricted in the case of the Jews to a few categories: first-guild merchants, graduates from institutions of higher learning, and artisans.]

One hope was still left to the Jews. The law courts, at least, being the organs of the public conscience of Russia, were bound to condemn severely the sinister pogrom heroes. But this hope, too, proved illusory. In the majority of cases the judges treated act of open pillage and of violence committed against life and limb as petty street brawls, as "disturbances of the public peace," and imposed upon their perpetrators ridiculously slight penalties, such as three months' imprisonment—penalties, moreover, which were simultaneously inflicted upon the Jews who, as in the case of Odessa, had resorted to self-defence. When the terrible Kiev pogrom was tried in the local Military Circuit Court, the public prosecutor Strelnikov, a well-known reactionary who subsequently met his fate at the hands of the revolutionaries, delivered himself on May 18 of a speech which was rather an indictment against the Jews than against the rioters. He argued that these disorders had been called forth entirely by the "exploitation of the Jews," who had seized the principal economic positions in the province, and he conducted his cross-examination of the Jewish witnesses in the same hostile

spirit. When one of the witnesses retorted that the aggravation of the economic struggle was due to the artificial congestion of the Jews in the pent-up Pale of Settlement, the prosecutor shouted: "If the Eastern frontier is closed to the Jews, the Western frontier is open to them; why don't they take advantage of it?" This summons to leave the country, doubly revolting in the mouth of a guardian of the law, addressed to those who under the influence of the pogrom panic had already made up their minds to flee from the land of slavery, produced a staggering effect upon the Jewish public. The last ray of hope, the hope for legal justice, vanished. The courts of law had become a weapon in the hands of the anti-Jewish leaders.

2. THE POGROM PANIC AND THE BEGINNING OF THE EXODUS

The feeling of safety, which had been restored by the published portion of the imperial reply at the audience of May 11, was rapidly evaporating. The Jews were again filled with alarm, while the instigators of the pogroms took courage and decided that the time had arrived to finish their interrupted street performance. The early days of July marked the inauguration of the second series of riots, the so-called summer pogroms.

The new conflagration started in the city of Pereyaslav, in the government of Poltava, which had not yet discarded its anti-Jewish Cossack traditions. [1] Pereyaslav at that time harbored many fugitives from Kiev, who had escaped from the spring pogroms in that city. The increase in the Jewish population of Pereyaslav was evidently displeasing to the local Christian inhabitants. Four hundred and twenty Christian burghers of Pereyaslav, avowed believers in the Gospels which enjoin Christians to love those that suffer, passed a resolution calling for the expulsion of the Jews from their city, and, in anticipation of this legalized violence, they decided to teach the Jews a "lesson" on their own responsibility. On June 30 and

July 1, Pereyaslav was the scene of a pogrom, marked by all the paraphernalia of the Russian ritual, though unaccompanied this time by human sacrifices. The epilogue to the pogrom was marked by an originality of its own. A committee consisting of representatives of the municipal administration, four Christians and three Jews, was appointed to inquire into the causes of the disorders. This committee was presented by the local Christian burghers with a set of demands, some of which were in substance as follows:

[Footnote 1: Comp. Vol. I, p. 145.]

That the Jewish aldermen of the Town Council, as well as the Jewish members of the other municipal bodies, shall voluntarily resign from these honorary posts, "as men deprived of civic honesty" [1]; that the Jewish women shall not dress themselves in silk, velvet, and gold; that the Jews shall refrain from keeping Christian domestics, who are "corrupted" in the Jewish homes religiously and morally; that all Jewish strangers, who have sought refuge in Pereyaslav, shall be immediately banished; that the Jews shall be forbidden to buy provisions in the surrounding villages for reselling them; also, to carry on business on Sundays and Russian festivals, to keep saloons, and so on.

[Footnote 1: This insolent demand of the unenlightened Russian burghers met with the following dignified rebuttal from the Jewish office-holders: "What bitter mockery! The Jews are accused of a lack of honesty by the representatives of those very people who, with clubs and hatchets in their hands, fell in murderous hordes upon their peaceful neighbors and plundered their property." The replies to the other demands of the burghers were coached in similar terms.]

Thus, in addition to being ruined, the Jews were presented with an ultimatum, implying the threat of further "military operations."

As in previous cases, the example of the city of Pereysslav was followed by the townlets and villages in the surrounding region. The unruliness of the crowd, which had been trained to destroy and plunder with impunity, knew no bounds. In the neighboring town of Borispol a crowd of rioters, stimulated by alcohol, threatened to pass from pillage to murder. When checked by the police and Cossacks, they threw themselves with fury upon these untoward defenders of the Jewish population, and began to maltreat them, until a few rifle shots put them to flight.

The same was the case in Nyezhin, [1] where a pogrom was enacted on July 20 and 22. After several vain attempts to stop the riots, the military was forced to shoot at the infuriated crowd, killing and wounding some of them. This was followed by the cry: "Christian blood is flowing—beat the Jews!"—and the pogrom was renewed with redoubled vigor. It was stopped only on the third day.

[Footnote 1: In the government of Chernigov.]

The energy of the July pogroms had evidently spent itself in these last ferocious attempts. The murderous hordes realized that the police and military were fully in earnest, and this was enough to sober them from their pogrom intoxication. Towards the end of July, the epidemic of vandalism came to a stop, though it was followed in many cities by a large number of conflagrations. The cowardly rioters, deprived of the opportunity of plundering the Jews with impunity, began to set fire to Jewish neighborhoods. This was particularly the case in the north-western provinces, in Lithuania and White Russia, where the authorities had from the very beginning set their faces firmly against all organized violence.

The series of pogroms perpetrated during the spring and summer of that year had inflicted its sufferings on more than one hundred localities populated by Jews, primarily in the South of Russia. Yet the misery

engendered by the panic, by the horrible apprehension of unbridled violence, was far more extensive, for the entire Jewish population of Russia proved its victim. Just as in the bygone Middle Ages whenever Jewish suffering had reached a sad climax, so now too the persecuted nation found itself face to face with the problem of emigration. And as if history had been anxious to link up the end of the nineteenth century with that of the fifteenth, the Jewish afflictions in Russia found an echo in that very country, which in 1492 had herself banished the Jews from her borders: the Spanish Government announced its readiness to receive and shelter the fugitives from Russia. Ancient Catholic Spain held forth a welcoming hand to the victims of modern Greek-Orthodox Spain. However, the Spanish offer was immediately recognized as having but little practical value. In the forefront of Jewish interest stood the question as to the land toward which the emigration movement should be directed: toward the United States of America, which held out the prospect of bread and liberty, or toward Palestine, which offered a shelter to the wounded national soul.

While the Jewish writers were busy debating the question, life itself decided the direction of the emigration movement. Nearly all fugitives from the South of Russia had left for America by way of the Western European centers. The movement proceeded with elemental force, and entirely unorganized, with the result that in the autumn of that year some ten thousand destitute Jewish wanderers found themselves huddled together at the first halting-place, the city of Brody, which is situated on the Russo-Austrian frontier. They had been attracted hither by the rumor that the agents of the French *Alliance Israélite Universelle* would supply them with the necessary means for continuing their journey across the Atlantic. The central committee of the *Alliance*, caught unprepared for such a huge emigration, was at its wit's end. It sent out appeals, warning the Jews against wholesale emigration to America by way of Brody, but it was powerless to stem the tide. When the representatives of the French *Alliance*,

the well-known Charles Netter and others, arrived in Brody, they beheld a terrible spectacle. The streets of the city were filled with thousands of Jews and Jewesses, who were exhausted from material want, with hungry children in their arms. "From early morning until late at night, the French delegates were surrounded by a crowd clamoring for help. Their way was obstructed by mothers who threw their little ones under their feet, begging to rescue them from starvation."

The delegates did all they could, but the number of fugitives was constantly swelling, while the process of dispatching them to America went on at a snail's pace. The exodus of the Jews from Russia was due not only to the pogroms and the panic resulting from them, but also to the new blows which were falling upon them from all sides, dealt out by the liberal hand of Ignatyev.

3. THE GUBERNATORIAL COMMISSIONS

After wavering for some time, the anti-Semitic Government of Ignatyev finally made up its mind as to the attitude it was henceforth to adopt towards the Jewish problem. Taken aback at the beginning of the pogrom movement, the leading spheres of Russia were first inclined to ascribe it to the effects of the revolutionary propaganda, but they afterwards came to the conclusion that, in the interest of the reactionary policies pursued by them and as a means of justifying the disgraceful anti-Jewish excesses before the eyes of Europe, it was more convenient to throw the blame upon the Jews themselves. With this end in view, a new theory was put forward by the Russian Government, the quasi-economic doctrine of "the exploitation of the original population by the Jews." This doctrine consisted of two parts, which, properly speaking, were mutually exclusive:

First, the Jews, as a pre-eminently mercantile class, engage in "unproductive" labor, and thereby "exploit" the productive classes of the Christian population, the peasantry in particular.

Second, the Jews, having "captured" commerce and industry—here the large participation of the Jews in industrial life, represented by handicrafts and manufactures, is tacitly admitted—compete with the Christian urban estates, in other words, interfere with them in their own "exploitation" of the population.

The first part of this strange theory is based upon, primitive economic notions, such as are in vogue during periods of transition, when natural economic production gives way to capitalism, and when all complicated forms of mediation are regarded as unproductive and harmful. The thought expressed in the second part of the thesis is implied in the make-up of a police state, which looks upon the occupation of certain economic positions by a given national group as an illegitimate "capture" and regards it as its function to check this competition for the sole purpose of insuring the success of the dominant nationality.

The Russian Government was disturbed neither by the primitive character of this theory nor by the resort to brutal police force implied in it—the idea of supporting the "exploitation" practised by the Russians at the expense of that carried on by the Jews; nor was it abashed by its inner logical contradictions. What the Government needed was some means whereby it could throw off the responsibility for the pogroms and prove to the world that they were a "popular judgment," the vengeance wreaked upon the Jews either by the peasants, the victims of exploitation, or by the Russian burghers, the unsuccessful candidates for the rôle of exploiters. This point of view was reflected in the report of Count Kutaysov, who had

been sent by the Tzar to South Russia to inquire into the causes of the "disorders." [1]

[Footnote 1: It may be added that Kutaysov recognized that the Russian masses were equally the victims of the commercial exploitation of the Russian "bosses," but was at a loss to find a reason for the pogroms perpetrated in the Jewish agricultural colonies, i.e., against those who, according to this theory, were themselves the victims of exploitation.]

Ignatyev seized upon this flimsy theory, and embodied it in a more elaborate form in his report to the Tzar of August 22. In this report he endeavored to prove the futility of the policy hitherto pursued by the Russian Government which "for the last twenty years [during the reign of Alexander II.] had made efforts to bring about the fusion of the Jews with the remaining population and had nearly equalized the rights of the Jews with those of the original inhabitants." In the opinion of the Minister, the recent pogroms had shown that "the injurious influence" of the Jews could not be suppressed by such liberal measures.

The principal source of this movement [the pogroms], which is so incompatible with the temper of the Russian people, lies—according to Ignatyev—in circumstances which are of an exclusively economic nature. For the last twenty years the Jews have gradually managed to capture not only commerce and industry but they have also succeeded in acquiring, by means of purchase and lease, a large amount of landed property. Owing to their clannishness and solidarity, they have, with few exceptions, directed their efforts not towards the increase of the productive forces [of the country] but towards the exploitation of the original inhabitants, primarily of the poorest classes of the population, with the result that they have called forth a protest from this population, manifesting itself in deplorable forms—In violence.... Having taken

energetic means to suppress the previous disorders and mob rule and to shield the Jews against violence, the Government recognizes that it is justified in adopting, without delay, no less energetic measures to remove the present abnormal relations that exist between the original inhabitants and the Jews, and to shield the Russian population against this harmful Jewish activity, which, according to local information, was responsible for the disturbances.

Alexander III. hastened to express his agreement with these views of his Minister, who assured him that the Government had taken "energetic measures" to suppress the pogroms—which was only true in two or three recent cases. At the same time he authorized Ignatyev to adopt "energetic measures" of genuine Russian manufacture against those who had but recently been ruined by these pogroms.

The imperial ukase published on August 22, 1831, dwells on "the abnormal relations subsisting between the original population of several governments and the Jews." To meet this situation it provides that in those governments which harbor a considerable Jewish population special commissions should be appointed consisting of representatives of the local estates and communes, to be presided over by the governors. These commissions were charged with the task of finding out "which aspects of the economic activity of the Jews in general have exerted *an injurious influence* upon the life of the original population, and what measures, both legislative and administrative, should be adopted" for the purpose of weakening that influence. In this way, the ukase, in calling for the appointment of the commissions, indicated at once the goal towards which their activity was to be directed: to determine the "injurious influence" of the Jews upon Russian economic life.

The same thought was expressed even more directly by Ignatyev, who in his circular to the governors-general, dated August 25, reproduced his report to the Tzar, and firmly established the dogma of "the harmful consequences of the economic activity of the Jews for the Christian population, their racial separatism, and religious fanaticism."

We are thus made the witnesses of a singular spectacle: the ruined and plundered Jewish population, which had a right to impeach the Government for having failed, to protect it from violence, was itself put on trial. The judges in this legal action were none other than the agents of the ruling powers—the governors, some of whom had been guilty of connivance at the pogroms—on the one hand, and, on the other hand, the representatives of the Christian estates, urban and rural, who were mostly the appointees of these governors. In addition, every commission was allotted two Jewish representatives, who were to act in the capacity of experts but without voting power; they were placed in the position of defendants, and were made to listen to continuous accusations against the Jews, which they were constantly forced to deny. Altogether there were sixteen such commissions: one in each of the fifteen governments of the Pale of Settlement—exclusive of the Kingdom of Poland—and one in the government of Kharkov. The commissions were granted a term of two months within which to complete their labors and present the results to the Minister.

The sessions of all these "gubernatorial commissions" [1] took place simultaneously during the months of September and October.

[Footnote 1: In Russian, *Gubernskiya Kommissit*, literally, "Government Commissions," using "Government" in the sense of "Province."]

The prisoner at the bar was the Jewish people which was tried on the charges contained in the official bill of indictment—the imperial ukase as supplemented and interpreted in the ministerial circular. A well-informed

contemporary gives the following description of these sessions in an official memorandum:

The first session of each commission began with the reading of the ministerial circular of August 25. The reading invariably produced a strong effect in two different directions: on the members from among the peasantry and on those from among the Jews. The former became convinced of the hostile attitude of the Government towards the Jewish population and of their leniency towards the instigators of the disorders, which, according to an assertion made in Ignatyev's circular, were due exclusively to the Jewish exploitation of the original inhabitants. Needless to say, the peasants did not fail to communicate this conviction, which was strengthened at the subsequent sessions by the failure to put any restraint upon the wholesale attacks on the Jews on the part of the anti-Semitic members, to their rural communes.

As for the Jewish members (of the commissions), the effect of the ministerial circular upon them was staggering. In their own persons they beheld the three millions of Russian Jewry placed at the prisoner's bar: one section of the population put on trial before another. And who were the judges? Not the representatives of the people, duly elected by all the estates of the population, such as the rural assemblies, but the agents of the administration, bureaucratic office-holders, who were more or less subordinate to the Government. The court proceedings themselves were carried on in secret, without a sufficient number of counsel for the defendants who in reality were convicted beforehand. The attitude adopted by the presiding governors, the speeches delivered by the anti-Semitic members, who were in an overwhelming majority, and characterized by attacks, derisive remarks, and subtle affronts, subjected the Jewish members to moral torture and made them lose all hope that they could be of any assistance in attempting a dispassionate, impartial,

and comprehensive consideration of the question. In the majority of the commissions, their voice was suppressed and silenced. In these circumstances the Jewish members were forced, as a last resort, to defend the interests of their coreligionists in writing, by submitting memoranda and separate opinions. However, the instances were rare in which these memoranda and protests were dignified by being read during the sessions.

This being the case, it is not to be wondered at that the commissions brought in their "verdicts" in the spirit of the indictment framed by the authorities. The anti-Semitic officials exhibited their "learning" in ignorant criticisms of the "spirit of Judaism," of the Talmud and the national separatism of the Jews, and they proposed to extirpate all these influences by means of cultural repression, such as the destruction of the autonomy of the Jewish communities, the closing up of all special Jewish schools, and the placing of all phases of the inner life of the Jews under Government control. The representatives of the Russian burghers and peasants, many of whom had but recently co-operated or, at least, sympathized with the perpetrators of the pogroms, endeavored to prove the economic "injuriousness" of the Jews, and demanded that they should be restricted in their urban and rural pursuits, as well as in their right of residence outside the cities. Notwithstanding the prevailing spirit, five commissions voiced the opinion, which, from the point of view of the Russian Government, seemed rank heresy, that it was necessary to grant the Jews the right of domicile all over the empire so as to relieve the excessive congestion of the Jewish population in the Pale of Settlement.

4. THE SPREAD OF ANTI-SEMITISM

While the gubernatorial commissions—gubernatorial in the literal sense of the word, because entirely dominated by the governors—were holding their sessions, the satraps-in-chief of the Pale of Settlement, the governors-general, were busy sending their expressions of opinion to St. Petersburg. The governor-general of Kiev, Drenteln, who himself was liable to prosecution for allowing a two days' pogrom in his own residential city, condemned the entire Jewish people in emphatic terms, and demanded the adoption of measures calculated "to shield the Christian population against so arrogant a tribe as the Jews, who refuse on religious grounds to have close contact with the Christians." It was necessary, in his opinion, to resort to legal repression in order to counteract "the intellectual superiority of the Jews," which enables them to emerge victorious in the struggle for existence.

Similar condemnations of Judaism came from the governors-general of Odessa, Vilna, and Kharkov, although they disagreed as to the dimensions which this repression should assume. Totleben, the master of the Vilna province, who had refused to countenance the perpetration of pogroms in Lithuania, nevertheless agreed that the Jews should henceforth be forbidden to settle in the villages, though he was generous enough to add that he found it somewhat inconvenient "to rob the whole Jewish nation of the possibility of earning a livelihood by its labor." The impression prevailed that militant Judaeophobia was determined to deprive the Jews even of the right of securing a piece of bread.

The Government was well aware beforehand that the labors of the gubernatorial commissions would yield results satisfactory to it. It, therefore, found it unnecessary to wait for their reports and resolutions, and proceeded to establish in St. Petersburg, on October 19, "a Central Committee for the Revision of the Jewish Question." The committee was attached to the Ministry of the Interior, and consisted of several officials,

under the chairmanship of Assistant-Minister Gotovtzev. The officials were soon busy framing "temporary measures" in the spirit of their patron Ignatyev, and, as the resolutions of the gubernatorial commissions were coming in, they were endeavoring to strengthen the foundations for the projected enactment. In January, 1882, the machinery for the manufacture of Jewish disabilities was in full swing.

This organized campaign of the enemies of Judaism, who were preparing administrative pogroms as a sequel to the street pogroms, met with no organized resistance on the part of Russian Jewry. The small conference of Jewish notables in St. Petersburg, which met in September in secret session, presented a sorry spectacle. The guests from the provinces, who had been invited by Baron Günzburg, engaged in discussions about the problem of emigration, the struggle with the anti-Semitic press, and similar questions. After being presented to Ignatyev, who assured them in diplomatic fashion of the "benevolent intentions of the Government," they returned to their homes, without having achieved anything.

The only social factor in Jewish life was the press, particularly the three periodicals published in Russian, the *Razsvyet* ("the Dawn"), the *Russki Yevrey* ("the Russian Jew"), and the *Voskhod* ("the Sunrise"), [1] but even they revealed the lack of a well-defined policy.

[Footnote 1: See on these papers, p. 219 et seq.]

The political movements in Russian Jewry were yet in an embryonic stage, and their rise and development were reserved for a later period. True, the Russian-Jewish press applied itself assiduously to the task of defending the rights of the Jews, but its voice remained unheard in those circles of Russia in which the poisonous waters of Judaeophobia gushed forth in a broad current from the columns of the semi-official *Novoye Vremya*, the pan-Slavic *Russ*, and many of their anti-Semitic contemporaries.

While the summer pogroms were in full swing, the *Novoye Vremya*, reflecting the views of the official spheres, seriously formulated the Jewish question in the paraphrase of Hamlet: "to beat or not to beat." Its conclusion was that it was necessary to "beat" the Jews, but, in view of the fact that Russia was a monarchical state with conservative tendencies, this function ought not to be discharged by the people but by the Government, which by its method of legal repression could beat the Jews much more effectively than the crowds on the streets.

The editor of the Moscow newspaper *Russ*, Ivan Aksakov, [1] attacked the Russian liberal press for expressing its sympathy with the Jewish pogrom victims, contending that the Russian people demolished the Jewish houses under the effect of a "righteous indignation," though he failed to explain why that indignation also took the form of plundering and stealing Jewish property, or violating Jewish women. Throwing into one heap the arguments of the medieval Church and those of modern German anti-Semitism, Aksakov maintained that Judaism was opposed to "Christian civilization," and that the Jewish people were striving for "world domination" which they hoped to attain through their financial power.

[Footnote 1: Compare above, p. 208.]

The bacillus of German anti-Semitism had penetrated even into the circles of the Russian radical *intelligenza*. Among the "Populists," [1] who were wont to idealize the Russian peasantry, it became the fashion to look upon the Jew as an economic exploiter, with this distinction, however, that they bracketed him with the host of Russian exploiters from among the bourgeois class. This resulted in a most unfortunate misunderstanding. A faction of South Russian revolutionaries from among the party known as "The People's Freedom" [2] conceived the idea that the same peasants and laborers who had attacked the Jews as the representatives of the non-

Russian bourgeoisie might easily be directed against the representatives of the ruling classes in general. During the spring and summer pogroms, several attempts were made by mysterious persons, through written appeals and oral propaganda, to turn the pogrom movement also against the Russian nobles and officials. [3] Towards the end of August, 1881, the Executive Committee of "The People's Freedom" issued an appeal in which it voiced the thought that the Tzar had enslaved the free Ukrainian people and had distributed the lands rightfully belonging to the peasants among the pans [4] and officials, who extended their protection to the Jews and shared the profits with them. Therefore, the people should march against the Jews, the landlords, and the Tzar. "Assist us, therefore," the appeal continues, "arise, laborers, avenge yourselves on the landlords, plunder the Jews, and slay the officials!"

[Footnote 1: See above, p. 222.]

[Footnote 2: In Russian, *Narodnaya Vola*. It was organized in 1879, and was responsible for the assassination of Alexander II.]

[Footnote 3: These endeavors were evidently the reason why the Russian Government was originally inclined to ascribe the anti-Jewish movement to revolutionary tactics.]

[Footnote 4: The Polish noble landowners. See Vol. I, p. 93, n. 2.]

True, the appeal was the work of only a part of the Revolutionary Executive Committee, which at that time had its headquarters in Moscow. It failed to obtain the approval of the other members of the Committee and of the party as a whole, and, being a document that might compromise the revolutionary movement, was withdrawn and destroyed after a number of copies had been circulated. Nevertheless, the champions of "The People's Freedom" continued for some time to justify theoretically the utilization of

the anti-Jewish movement for the aims of the general social revolution. Only at a later stage did this section of the revolutionary party realize that these tactics were not only mistaken but also criminal. For events soon made it clear that the anti-Jewish movement served as an unfailing device in the hands of the black reactionaries to divert the popular wrath from the source of all evil—the rule of despotism—and direct it towards the most unfortunate victims of that despotism.

5. THE POGROM AT WARSAW

When the July pogroms were over, it seemed as if the pogrom epidemic had died out, and no one expected that it would soon break out afresh. The greater was the surprise when, in December, 1881, the news spread that a pogrom, lasting three days, had taken place in the capital of the Kingdom of Poland, in Warsaw. Least of all was this pogrom expected in Warsaw itself, where the relations between the Poles and the Jews were not yet marked by the animosity they assumed subsequently. But the organizers of the pogrom who received their orders from above managed to adapt themselves to local conditions, and the unexpected came to pass. On the Catholic Christmas day, when the Church of the Holy Cross in the center of the town was crowded with worshippers, somebody suddenly shouted "Fire!" The people rushed to the doors, and in the terrible panic that ensued twenty-nine persons were crushed to death, and many others were maimed. The alarm proved a false one. There was no trace of a fire in the church, and nobody doubted but that the alarm had been given by pick-pockets—there were a goodly number of them in Warsaw—who had resorted to this well-known trick to rob the public during the panic. But right there, among the crowd which was assembled in front of the church, gazing in horror at the bodies of the victims, some unknown persons spread the rumor—which, it

may be parenthetically remarked, proved subsequently unfounded—that two Jewish pickpockets had been caught in the church.

At that moment whistles were suddenly heard—nobody knew whence they came—which served as the signal for a pogrom. The street mob began to assault the Jews who happened to pass by, and then started, according to the established procedure, to attack the Jewish stores, saloons, and residences in the streets adjoining the church. The hordes were under the command of thieves, well known to the police, and of some unknown strangers who from time to time gave signals by whistling, and directed the mob into this or that street. As in all other cases in which the danger did not threaten the authorities directly, there were but few policemen and soldiers on hand—which circumstance stimulated the rioters in their further activity.

On the following day the rioters were "busy" on many other streets, both in the center of the town and in its outskirts, except for the streets which were densely populated by Jews, where they were afraid of meeting with serious resistance. [1]

[Footnote 1: In some places the Jews defended themselves energetically, and in the ensuing fight there were wounded on both sides.]

The police and the troops arrested many rioters, and carried them off to the police stations. But for some unknown reason they did not summon enough courage to disperse the crowd, so that the mob frequently engaged in its criminal work in the very presence of the guardians of public safety.

In accordance with the well-known pogrom routine, the authorities remembered only on the third day that it was time to suppress the riots, the "lesson" being over. On December 15, the governor-general of Warsaw, Albedinski, issued an order dividing the town into four districts and placing every district under the command of a regimental chief. Troops were

stationed in the streets and ordered to check all crowds, with the result that on the same day the disorders were stopped.

This, however, came too late. For in the meantime some fifteen hundred Jewish residences, business places, and houses of prayer had been demolished and pillaged, and twenty-four Jews had been wounded, while the monetary loss amounted to several million rubles. Over three thousand rioters were arrested—among them a large number of under-aged youths. On the whole, the rioters were recruited from the dregs of the Polish population, but there were also found among them a number of unknown persons that spoke Russian. The *Novoye Vremya*, in commenting upon the pogrom, made special reference to the friendly attitude of the Polish hooligans to the Russians in general and to the officers and soldiers in particular—a rather suspicious attitude, considering the inveterate hatred of the Poles towards the Russians, especially towards the military and official class. Here and there the soldiers themselves got drunk in the demolished saloons, and took part in looting Jewish property.

The Polish patriots from among the higher classes were shocked by this attempt to engineer a barbarous Russian pogrom in Warsaw. In an appeal which the representatives of the Polish intellectuals addressed to the people not later than on the second day of the pogrom they protested emphatically against the hideous scenes which had been disgracing the capital of Poland. The archbishop of Warsaw acted similarly, and the Catholic priests frequently marched through the streets with crosses in their hands, admonishing the crowds to disperse. It is interesting to note that, while the pogrom was going on, the governor-general of Warsaw refused to comply with the request of a number of Poles, who applied for permission to organize a civil guard, pledging themselves to restore order in the city in one day. It would seem as if the official pogrom ritual did not allow of the slightest modification. The disorders had to proceed in accordance with the

established routine, so as not to violate the humane commandment: "Two days shalt thou plunder, and on the third day shalt thou rest." Evidently some one had an interest in having the capital of Poland repeat the experiment of Kiev and Odessa, and in seeing to it that the "cultured Poles" should not fall behind the Russian barbarians in order to convince Europe that the pogrom was not exclusively a Russian manufacture.

As a matter of fact, the opposite result was attained. The revolting events at Warsaw, which completed the pogrom cycle of 1881, made a much stronger impression upon Europe and America than all the preceding pogroms, for the reason that Warsaw stood in close commercial relations with the West, and the havoc wrought there had an immediate effect upon the European market.

CHAPTER XXIII

NEW MEASURES OF OPPRESSION AND PUBLIC PROTESTS

1. THE DESPAIR OF RUSSIAN JEWRY

The civil New Year of 1882 found the Jews of Russia in a depressed state of mind: they were under the fresh impression of the excesses at Warsaw and were harassed by rumors of new measures of oppression. The sufferings of the Jewish people, far from stilling the anti-Jewish fury of the Government, had merely helped to fan it. "You are maltreated, *ergo* you are guilty"—such was the logic of the ruling spheres of Russia. The official historian of that period is honest enough to confess that "the enforced role of a defender of the Jews against the Russian population [by suppressing the riots] weighed heavily upon the the Government." Upon reading the report of the governor-general of Warsaw for the year 1882, in which reference was made to the suppression of the anti-Jewish excesses by military force, Alexander III. appended the following marginal note: "This is the sad thing in all these Jewish disorders."

Those among Russian Jewry who could look further ahead were not slow in realizing the consequences which were bound to result from this hostile attitude of the ruling classes. Those of a less sensitive frame of mind found it necessary to inquire of the Government itself concerning the Jewish future, and received unequivocal replies. Thus, in January, 1882, Dr.

Orshanski, a brother of the well-known publicist, [1] approached Count Ignatyev on the subject, and was authorized to publish the following statement:

[Footnote 1: See above, p. 238 et seq.]

The Western frontier is open for the Jews. The Jews have already taken ample advantage of this right, and their emigration has in no way been hampered. [1] As regards your question concerning the transplantation of Jews into the Russian interior, the Government will, of course, avoid everything that may further complicate the relations between the Jews and the original population. For this reason, though keeping the Pale of Jewish Settlement intact, I have already suggested to the Jewish Committee [attached to the Ministry] [2] to indicate those localities which, being thinly populated and in need of colonization, might admit of the settlement of the Jewish element ... without injury to the original population.

[Footnote 1: According to an old Russian law which had come into disuse, departure from the country without a special Government permit is punishable as a criminal offence.]

[Footnote 2: See p. 277.]

This reply of the all-powerful Minister, which was published as a special supplement to the Jewish weekly *Razsvyet*, increased the panic among the Jews of Russia. The Jews were publicly told that the Government wished to get rid of them, and that the only "right" they were to be granted was the right to depart; that no enlargement of the Pale of Settlement could possibly be hoped for, and that only as an extreme necessity would the Government allow groups of Jews to colonize the uninhabitable steppes of central Asia or the swamps of Siberia. Well-informed people were in possession of much

more serious information: they knew that the Jewish Committee attached to the Ministry of the Interior was preparing a monstrous plan of reducing the territory of the Pale of Settlement itself by expelling the Jews from the villages and driving them into the over-crowded cities.

The soul of the Jewish people was filled with sorrow, and yet there was no way of protesting publicly in the land of political slavery. The Jews had to resort to the old medieval form of a national protest by pouring forth their feelings in the synagogue. Many Jewish communities seemed to have come to an understanding to appoint the 18th of January as a day of mourning to be observed by fasting and by holding religious services in the synagogues. This public mourning ceremony proved particularly impressive in St. Petersburg. On the appointed day the whole Jewish population of the Russian capital, with its numerous Jewish professionals, assembled in the principal synagogue and in the other houses of prayer, reciting the hymns of perpetual Jewish martyrdom, the *Selihot*. In the principal synagogue the rabbi delivered a discourse dealing with the Jewish persecutions.

When the preacher—an eye-witness narrates—began to picture in a broken voice the present position of Jewry, one long moan, coming, as it were, from one breast, suddenly burst forth and filled the synagogue. Everybody wept, the old, the young, the long-robed paupers, the elegant dandies dressed in latest fashion, the men in Government service, the physicians, the students, not to speak of the women. For two or three minutes did these heart-rending moans resound—this cry of common sorrow which had issued from the Jewish heart. The rabbi was unable to continue. He stood upon the pulpit, covered his face with his hands, and wept like a child.

Similar political demonstrations in the presence of the Almighty were held during those days in many other cities. In some places the Jews

observed a three days' fast. Everywhere the college youth, otherwise estranged from Judaism, took part in the national mourning, full of the presentiment that it, too, was destined to endure decades of sorrows and tears.

2. THE VOICE OF ENGLAND AND AMERICA

The political protest, which could not be uttered in Russia, was soon to be heard in England. During the very days on which the Russian Jews were weeping in their synagogues, their English coreligionists, in conjunction with prominent English political leaders, organized indignation meetings to protest against the horrors of Russian Judaeophobia. Already at an earlier date, shortly after the pogrom of Warsaw, the London *Times* had published a series of articles under the heading "The Persecutions of the Jews in Russia," containing a heartrending description of the pogroms of 1881 and an account of the anti-Semitic policy of the Russian rulers. [1] The articles produced a sensation. Reprinted in the form of a special publication, which in a short time went through three editions, they spread far beyond the confines of England. Numerous voices were soon to be heard demanding diplomatic intercession in favor of the oppressed Jews and calling for the organization of material relief for the victims of the pogroms.

[Footnote 1: The author of these articles was Joseph Jacobs who afterwards settled in New York, where he died in 1916.]

Russian diplomacy was greatly disconcerted by the growth of this anti-Russian agitation in a country, whose Government, headed at that time by Gladstone, endeavored to maintain friendly relations with Russia. The organ of the Russian Ministry of Foreign Affairs, the *Journal de St. Petersbourg*, published two articles, attempting to refute the most revolting facts contained in the articles of the *Times*; it denied that there had been

cases of rape, and asserted that "murders were exceedingly rare." [1] The official organ further stated that "the Government has already begun, to consider new legislative measures concerning the Jews," without mentioning, however, that these "measures" were of a repressive character. The mouthpiece of Russian diplomacy asked In an irritated tone whether the pro-Jewish agitators wished "to sow discord between the Russian and the English people" and spoil the friendly relations between these two Powers which Gladstone's Government had established, reversing the contrary policy of Beaconsfield.

[Footnote 1: It is true that the account in the *Times* contained a few exaggerations as far as the number of victims and the dimensions of the catastrophe in general are concerned, but the picture as a whole was entirely in keeping with the facts, and the cases of murder and rape, as, for instance, in Kiev, were, on the whole, stated correctly.]

However, these diplomatic polemics were unable to restrain the English political leaders from proceeding with the arrangements for the projected demonstrations. After a whole series of protest meetings in various cities of England, a large mass meeting was called at the Mansion House in London, [1] under the chairmanship of the Lord Mayor. The élite of England was represented at the meeting, including Members of Parliament, dignitaries of the Church, the titled aristocracy, and men of learning, A number of prominent persons who were unable to be present sent letters expressing their warm sympathy with the aims of the gathering; among them were Tennyson, Sir John Lubbock, and others.

[Footnote 1: On February 1, 1882.]

The first speaker, the Earl of Shaftesbury, pointed out that the English people did not wish to meddle in the inner affairs of Russia, but desired to influence it by "moral weapons," in the name of the principle of the

"solidarity of nations." The official denials of the atrocities he brushed aside with the remark that, if but a tenth part of the reports were true, "it is sufficient to draw down the indignation of the world." It was necessary, in the opinion of Shaftesbury, to appeal directly to the Tzar and ask him "to be a Cyrus to the Jews, and not an Antiochus Epiphanes."

The Bishop of London, speaking in the absence of the Archbishop of Canterbury, the Primate of the Anglican Church, reminded his audience that only several years previously England had been horrified by the outrages perpetrated by the Turkish Bashi-buzuks[1] upon the Bulgars, who were then defended by Russia, and it had now a right to protest against Christian Russia as it had formerly done against Mohammedan Turkey.

[Footnote 1: See above, p. 253, n. 2.]

The most powerful speech was delivered by Cardinal Manning, the great Catholic divine. He pointed to the fact that the Russian Jews were not only the object of temporary pogroms but that they constantly groaned under the yoke of a degrading legislation which says to the Jew: "You may not pass beyond that boundary; you must not go within eighteen miles of that frontier; you must not dwell in that town; you must live only in that province." He caused laughter in the audience by quoting from Ignatyev's famous circular concerning the appointment of the gubernatorial commissions, in which, commenting upon the terrible atrocities recently perpetrated upon the *Jews*, the Minister lamented "the sad condition of the *Christian* inhabitants of the southern provinces." Cardinal Manning concluded his eloquent address with the following words marked by a lofty, prophetic strain:

There is a book which is common to the race of Israel and to us Christians. That book is the bond between us, and in that book I read that the people of Israel are the eldest people upon the earth. Russia and

Austria and England are of yesterday, compared with the imperishable people, which, with an inextinguishable life and immutable traditions, and faith in God and in the laws of God, scattered, as it is, all over the world, passed through the fires unscathed, trampled into the dust, and yet never combining with the dust into which it is trampled, lives still, a witness and a warning to us. [1]

[Footnote 1: In reproducing the quotations I have followed in the main the account of the Mansion House Meeting contained in the pamphlet published In New York under the title *Proceedings of Meetings held February 1, 1882, at New York and London, to Express Sympathy with the Oppressed Jews in Russia*. The account of the *Jewish Chronicle* of February 8, 1882, offers a number of variations.]

After several more speeches by Canon Farrar, Professor Bryce,[1] and others, the following resolutions were adopted:

[Footnote 1: James Bryce, the famous writer and statesman, subsequently British ambassador at Washington.]

1. That, in the opinion of this meeting, the persecution and the outrages which the Jews in many parts of the Russian dominions have for several months past suffered are an offence to Christian civilization, and to be deeply deplored.

2. That this meeting, while disclaiming any right or desire to interfere in the internal affairs of another country, and desiring that the most amicable relations between England and Russia should be preserved, feels it a duty to express its opinion that the laws of Russia relating to Jews tend to degrade them in the eyes of the Christian population, and expose Russian Jewish subjects to the outbreaks of fanatical ignorance.

3. That the Lord Mayor be requested to forward a copy of these resolutions to the Right Honourable W.B. Gladstone and the Right Honourable Earl Granville, in the hope that Her Majesty's Government may be able, when an opportunity arises, to exercise a friendly influence with the Russian Government in accordance with the spirit of the preceding resolutions.

Finally a resolution was adopted to open a relief fund for the sufferers of the pogroms and for improving the condition of Russian Jewry by emigration as well as by other means. The committee chosen by the meeting for this purpose included the Lord Mayor, the Archbishop of Canterbury, Cardinal Manning, the Bishop of London, Nathaniel de Rothschild, and others.

A few days after the Mansion House Meeting the English Government responded to the resolutions adopted on that occasion. The following dispatch, dated London, February 9, appeared in the Russian papers:

In the House of Commons, Gladstone, replying to an interpellation of Sir John Simon, stated that reports concerning the persecutions of the Jews in Russia had been received from the English consuls, and could not but inspire sentiments of the utmost pain and horror. But the matter being an internal affair of another country, it could not become the object of official correspondence or inquiry on the part of England. All that could be done was to make casual and unofficial representations. All other actions touching the question of the relations of the Russian Government to the Jews were more likely to harm than to help the Jewish population. [1]

[Footnote 1: On this occasion Gladstone merely repeated the words of the Russian official communication which had been published on the eye of the Mansion House Meeting in the hope of scaring the organizers of the protest:

"The Russian Government, which has always most scrupulously refrained from interfering in the inner affairs of other countries, is correspondingly unable to allow a similar violation of international practice by others. Any attempt on the part of another Government to intercede on behalf of the Jewish people can only have the result of calling forth the resentment of the lower classes and thereby affect unfavorably the condition of the Russian Jews." In addition to this threat, the *Imperial Messenger* endeavored to prove that the measures adopted by the Government against the pogroms "were not weak," as may be seen from the large number of those arrested by the police after the disorders, which amounted to 3675 in the South and to 3151 in Warsaw.]

Another telegram sent from London on February 14 contained the following communication:

In the House of Commons, Gladstone, replying to Baron Worms, stated that no humane purposes would be achieved by parliamentary debates about the Jews of Russia, Such debates were rather likely to arouse the hostility of a certain portion of the Russian population against the Jews and that therefore no day would be appointed for the debate, as requested by Worms. [1]

[Footnote 1: Compare the *Jewish Chronicle* of February 17, 1882.]

In this way matters were smoothed over, to the great satisfaction of Russian diplomacy. The public and Government of England confined themselves to expressing their feelings of "disgust" at the treatment of the Jews in Russia, but no immediate representations to St. Petersburg were attempted by Gladstone's Cabinet. For the same reason the English Prime Minister refused to forward to its destination a petition addressed to the Russian Government by the Jews of England, with Baron Rothschild at their head. Count Ignatyev had no cause for worry. The misunderstanding

with the friendly Government had been removed, and the fiery protests at the English meetings interfered but little with his peace of mind. He pursued his course, unabashed by the "disgust" which it aroused in the whole civilized world.

The voice of protest against the Russian barbarities which resounded throughout England was seconded in far-off America. Long before the accession of Alexander III. the Government of the United States had repeated occasion to make representations to the Russian Government with reference to its treatment of the Jews. These representations were prompted by the fact that American citizens of the Jewish faith were subjected during their stay in Russia to the same disabilities and discriminations which the Russian Government imposed upon its own Jews. [1] Yet, actuated by broader humanitarian considerations, the United States Government became interested in the general question of the position of Russian Jewry, and invited reports from its representatives at St. Petersburg on the subject. [2] On April 14, 1880, the Secretary of State, William M. Evarts, responding to a petition of the Union of American Hebrew Congregations, who had complained about "the extraordinary hardships" which the Jews of Russia were made to suffer at that time, directed the United States Minister at St. Petersburg, John W. Foster, to bear in mind "the liberal sentiments of this Government" and to express its views "in a manner which will subserve the interests of religious freedom." [3] Acting upon these instructions, Foster took occasion to discuss the Jewish question in his conversations with leading Russian officials about which he reported fully to his Government. [4]

[Footnote 1: See the correspondence between the United States and Russia collected in *House of Representatives, 51st Congress, 1st Session. Executive Document No. 470*, dated October 1, 1890.]

[Footnote 2: A "memorandum on the legal position of the Hebrews in Russia" was transmitted by the American legation to the Secretary of State on September 29, 1872 (*loc. cit.* pp. 9-13). An abstract from a Russian memorandum on the Jewish right of residence was forwarded in the same manner on March 15, 1875 (*loc. cit.*, pp. 25-28). The circular of Tolstoi against the pogroms (see later in the text, p. 314) is reproduced in full, *loc. cit.*, p. 68 et seq.]

[Footnote 3: *loc. cit.*, p. 33.]

[Footnote 4: An account of Foster's conversation on the problem of Russian Jewry with de Giers, the Russian Minister for Foreign Affairs, Loris-Melikov, the Minister of the Interior, and "the Minister of Worship" is found in his dispatch of December 30, 1880, *loc. cit.*, p. 43 et seq.]

On May 22 of the same year a resolution was passed by the House of Representatives requesting the President to lay before it all available information relating to the cases of expulsion of American citizens of the Jewish faith from Russia, and at the same time "to communicate to this House all correspondence in reference to the proscription of Jews by the Russian Government." [1]

[Footnote 1: Compare *Congressional Record*, Vol. 13, part 7, *Appendix*, p. 651. The same request for information was repeated by the House of Representatives on January 30, 1882 (*loc. cit.*, Vol. 13, p. 738; see also p. 645). In reply to the latter resolution President Arthur submitted, under date of May 22, 1882, all the diplomatic papers on the subject which were printed as *Executive Document* No. 192. These papers were reprinted on October 1, 1890, as part of *Executive Document* No. 470, under President Harrison]

The pogroms of 1881, and the indignation they aroused among the American people induced the United States Government to adopt a more energetic form of protest. In his dispatch to the United States Minister at St. Petersburg, dated April 15, 1882, the new Secretary of State, Frederic T. Frelinghuysen, takes account of the prevailing sentiment in the country in these words: "The prejudice of race and creed having in our day given way to the claims of our common humanity, the people of the United States have heard with great regret the stories of the sufferings of the Jews in Russia." He therefore notifies the Minister "that the feeling of friendship which the United States entertains for Russia prompts this Government to express the hope that the Imperial Government will find means to cause the persecution of these unfortunate beings to cease." [1]

[Footnote 1: *Executive Document* No. 470, p. 65.]

A more emphatic note of protest was sounded in the House of Representatives by Samuel S. Cox, of New York, who, in his lengthy speech delivered on July 31, 1882, scathingly denounced the repressive methods practiced by the Russian Government against the Jews, and, more particularly, the outrages which had been perpetrated upon them during the preceding year. [1] He makes the former directly responsible for the latter. In his opinion the pogroms were not merely a spontaneous and sudden outburst of the Eussian populace against the Jews, but rather the slow result of the disabilities and discriminations which are imposed upon the Jews by the Russian Government and are bound to degrade them in the eyes of their fellow-citizens:

[Footnote 3: *Congressional Record*, Vol. 13, part 7, *Appendix*, p. 651 et seq. The speech is accompanied by an elaborate tabulated statement of the pogroms and a map of the area in which they had taken place.]

Is it said that the Russian peasantry, and not the Government, are responsible, I answer: If the peasantry of Russia are too ignorant or debased to understand the nature of this cruel persecution, they have warrant for their conduct in the customs and laws of Russia to which I have referred. These discriminate against the Jews. They have reference to their isolation, their separation from Russian protection, their expulsion from certain parts of the Empire, and their religion. When a peasant observes such forceful movements and authoritative discriminations in a Government against a race, it arouses his ignorance, and inflames his fanatical zealotry. Adding this to the jealousy of the Jews as middlemen and business-men, and you may account for, but not justify, these horrors. The Hebraic-Russian question has been summed up in a few words: "Extermination of two and one-half millions of mankind because they are—Jews!" [1]

[Footnote 1: *loc. cit.*, p. 653.]

After giving an elaborate account of the horrors which had taken place in Russia during 1881, he wound up his speech with the following eloquent appeal:

This people is one of the survivors, with Egypt, China and India, of the infancy of mankind. It is at the mercy of the cruel despot of the North. With a lineage unrivalled for purity, a religious sentiment and ethics drawn out of the glory and greatness of Mount Sinai ... with an eternal influence from its law-givers, prophets, and psalmists never vouchsafed to any language, race or creed, It outlives the philosophies and myths of Greece and the grandeur and power of Rome. It is this race, broken-hearted and scattered, to which the Czar of all the Russias adds the enormities of his rule upon the victims of the ignorance and slander of the ages. The birthright of this race is thus despoiled; and, Sir,

have we no word of protest? Struggling against adversities which no other people have encountered, do they not yet survive—the wine from the crushed grape? [1]

[Footnote 1: *loc. cit.*, p. 656.]

The resolution introduced by him on that occasion was to the following effect:

Whereas the Government of the United States should exercise its influence with the Government of Russia to stay the spirit of persecution as directed against the Jews, and protect the citizens of the United States resident in Russia, and seek redress for injuries already inflicted, as well as to secure by wise and enlightened administration the Hebrew subjects of Russia and the Hebrew citizens of the United States resident in Russia against the recurrence of wrongs; Therefore

Resolved, That the President of the United States, if not incompatible with the public service, report to this House any further correspondence in relation to the Jews in Russia not already communicated to this House." [1] [Footnote 1: *Congressional Record*, Vol. 13, p. 6691.]

The resolution, which was referred to the Committee on Foreign Affairs, was finally passed by the House on February 23, 1883.

The sentiments of the broad masses of the American people had found utterance somewhat earlier at a big protest meeting which was held in February, 1882, in the city of New York, where the first refugees from Russia had begun to arrive. [1] A resolution was adopted protesting "against the spirit of medieval persecution thus revived in Russia" and calling upon the Government of the United States to make energetic representations to

St. Petersburg. One of the speakers at the New York meeting, Judge Noah Davis, said, amidst the enthusiastic applause of the audience:

[Footnote 1: The meeting was held on Wednesday, February 1, 1882, on the same day as the Mansion House Meeting in London. The chair was occupied by the Mayor, William R. Grace. See the *American Hebrew* of February 3, 1882, p. 138 et seq.]

Let them come! I would to Heaven it were in our power to take the whole three million Jews of Russia. The valley of the Mississippi alone could throw her strong arms around, and draw them all to her opulent bosom, and bless them with homes of comfort, prosperity, and happiness. Thousands of them are praying to come. The throne of Jehovah is besieged with prayers for the powers of escape, and if they cannot live in peace under Russian laws without being subject to these awful persecutions, let us aid them in coming to us. [1]

[Footnote 1: See *Proceedings of Meetings held February 1, 1882, at New York and London, to Express Sympathy with the Oppressed Jews in Russia*. New York, p. 20 et seq.]

These words of the speaker, uttered in a moment of oratorical exultation, voiced the secret wish cherished by many enthusiasts of the Russian ghetto.

3. THE PROBLEM OF EMIGRATION AND THE POGROM AT BALTA

In Russia itself a large number of emigration societies came into being about the same time, which had for their object the transfer of Russian Jews to the United States, the land of the free. The organizers of these societies evidently relied on some miraculous assistance from the outside, such as the

Alliance Israélite of Paris and similar Jewish bodies in Europe and America. Under the immediate effect of Ignatyev's statement to Dr. Orshanski in which the Russian Minister referred to the "Western frontier" as the only escape for the Jews, the Russian-Jewish press was flooded with reports from hundreds of cities, particularly in the South of Russia, telling of the formation, of emigrant groups. "Our poor classes have only one hope left to them, that of leaving the country. 'Emigration, America,' are the slogans of our brethren"—this phrase occurs at that time with stereotyped frequency in all the reports from the provinces.

Many Russian-Jewish intellectuals dreamed of establishing Jewish agricultural and farming colonies in the United States, where some batches of emigrants who had left during the year 1881 had already managed to settle on the land. A part of the Jewish youth was carried away by the idea of settling in Palestine, and conducted a vigorous propaganda on behalf of this national idea among the refugees from the modern Egypt. There was urgent need of uniting these emigration societies scattered all over the Pale of Settlement and of establishing central emigration committees to regulate the movement which had gripped the people with elemental force.

Unfortunately, there was no unity of purpose among the Jewish leaders in Russia. The intellectuals who stood nearer to the people, such as the well-known oculist, Professor Mandelstamm, who enjoyed great popularity in Kiev, and others like him, as well as a section of the Jewish press, particularly the *Bazsvyet*, insisted continually on the necessity of organizing the emigration movement, which they regarded as the most important task confronting Russian Jewry at that time. The Jewish oligarchy in St. Petersburg, on the other hand, was afraid lest such an undertaking might expose it to the charge of "disloyalty" and of a lack of Russian patriotism. Others again, whose sentiments were voiced by the Russian-Jewish periodical *Voskhod* and who were of a more radical turn of mind, looked

upon the attempt to encourage a wholesale emigration of Jews as a concession to the Government of Ignatyev and as an indirect abandonment of the struggle for emancipation in Russia itself.

In the spring of 1882, the question of organizing the emigration movement had become so pressing that it was decided to convene a conference of provincial Jewish leaders in St. Petersburg to consider the problem. Before the delegates had time to arrive in the capital, the sky of South Russia was once more lit up by a terrible flare. Balta, a large Jewish center in Podolia, where a Jewish emigration society had had sprung into being shortly before the catastrophe, became the scene of a frightful pogrom.

It was shortly before the Russian Passover, the high season of pogroms, when the Russian public was startled by a strange announcement published towards the end of March in the *Imperial Messenger* to the effect that from now on it would accurately report all cases of "Jewish disorders" in accordance with the official information received from the governors. The announcement clearly implied that the Government knew beforehand of the imminence of new pogroms. Even the conservative *Moscow News* commented on the injudicious statement of the official organ in emphatic and sarcastic terms:

The *Imperial Messenger* is comforting the public by the announcement that it would in due time and at due length report all cases of excesses perpetrated upon the Jews. One might think that these are every-day occurrences forming part of the natural course of events which demand nothing else than timely communication to the public. Is there indeed no means to put a stop to this crying scandal?

Events soon made it clear that there was no desire to put a stop to this "scandal," as the Moscow paper politely termed the exploits of the Russian

robber bands. The local authorities of Balta were forewarned in time of the approaching pogroms. Beginning with the middle of March the people in Balta and the surrounding country were discussing them openly. When the Jews of that town made their apprehensions known to the local police commissioner, they received from him an evasive reply. In view of the fact that the Jewish population of Balta was three times as large as the Christian, it would not have been difficult for the Jews to organize some sort of self-defence. But they knew that such an organization was strictly forbidden by the Government, and, realizing the consequences, they had to confine themselves to a secret agreement entered into by a few families to stand up for one another in the hour of distress. On the second day of the Russian Easter, corresponding to the seventh day of the Jewish festival, on March 29, the pogrom began, surpassing by the savagery of the mob and the criminal conduct of the authorities all the bacchanalia of 1881. A contemporary observer, basing his statements on the results of a special investigation, gives the following account of the events at Balta:

At the beginning of the pogrom, the Jews got together and forced a band of rioters to draw back and seek shelter in the building of the fire department. But when the police and soldiers appeared on the scene, the rioters decided to leave their place of refuge. Instead of driving off the disorderly band, the police and soldiers began to beat the Jews with their rifle butts and swords. This served as a signal to start the pogrom. At that moment, somebody sounded an alarm bell, and, in response, the mob began to flock together. Fearing the numerical superiority of the Jews in that part of the town, the crowd passed across the bridge to the so-called Turkish side, where there were fewer Jews. The crowd was accompanied by the military commander, the police commissioner, the burgomaster, and a part of the local battalion, which fact, however, did not prevent the mob, while passing the Cathedral street, from demolishing a Jewish store and breaking the windows in the house of another Jew, a member of the

town-council. After the mob had crossed over to the Turkish side, the authorities drew up military cordons on all the three bridges leading from that side to the rest of the town, with the order not to allow any Jews to pass. Needless to say, the order was carried out. At the same time the Christians of the remaining sections of the town and of the village of Alexandrovka were allowed to pass unhindered. Thanks to these arrangements, the Turkish side was sacked in the course of three to four hours, so that by one o'clock in the morning the rioters found nothing left to do. During the night, the police and military authorities arrested twenty-four rioters and a much larger number of Jews. The latter were arrested because they ventured to stay near their homes. The following morning, the Christians were released and allowed to swell the ranks of the pillaging mob, while the Jews were kept in jail until the following day and freed only when the governor arrived.

On the following day, March 30, at four o'clock in the morning, a large number of peasants, amounting to about five thousand and armed with clubs, began to arrive in town, having been summoned by the Ispravnik [1] from the adjacent villages. The arrival of the peasants was welcomed by the Jews, who thought that they had been called to come to their aid. But they soon found out their mistake, for the peasants declared that they had come to beat and plunder the Jews. Simultaneously with the arrival of the peasants, large numbers from among the local mob began to assemble around the Cathedral, and at eight o'clock in the morning signals were given to renew the pogrom. At first this was prevented. The officers of the local battalion, who patrolled the city, ordered the soldiers to surround the mob and hold it off for about an hour, during which time the Greek-Orthodox bishop [2] Radzionovski admonished the rioters and tried to make them understand that such doings were contrary to the laws of the Church and the State. But when the police commissioner, the military chief, and Ispravnik

arrived before the Cathedral, the military cordon was withdrawn, and the crowd, now let loose, threw itself upon a near-by liquor store, and, after demolishing it and filling itself with alcohol, resumed its work of destruction, with the co-operation of the peasants who had been summoned by the Ispraynik and the assistance of the soldiers and policemen. It was on this occasion that those wild, savage scenes of murder, rapine, and plunder took place, the account of which as published in the newspapers is but the pale shadow of the real facts.... The pogrom of Balta was called forth not by the mere inactivity but by the direct activity of the local authorities.

[Footnote 1: The head of the district (or county) police. The police in the larger towns of the county is subject to the police commissioner of the town, who is referred to earlier in the text.]

[Footnote 2: In Russian, *Protoyerey*, a term borrowed from the Greek. It corresponds roughly to the title of bishop.]

What these "savage scenes" were we do not learn from the newspapers, which were forbidden by the censor to report them, but we know them partly from unpublished sources and partly from the later court proceedings. Aside from the demolition of twelve hundred and fifty houses and business places and the destruction and pillage of property and merchandise—according to a statement of the local rabbi, "all well-to-do Jews were turned into beggars, and more than fifteen thousand people were sent out into the wide world"—a large number of people were killed and maimed, and many women were violated. Forty Jews were slain or dangerously wounded; one hundred and seventy received slight wounds; many Jews, and particularly Jewesses, became insane from fright. There were more than twenty cases of rape. The seventeen year old daughter of a poor polisher, Eda Maliss by name, was attacked by a horde of bestial lads before the eyes of her brother.

When the mother of the unfortunate girl ran into the street and called to her aid a policeman who was standing near-by, the latter followed the woman into the house, and then, instead of helping her, dishonored her on the spot. The fiendish hordes invaded the home of Baruch Shlakhovski, and began their bloody work by slaying the master of the house, whereupon his wife and daughter fled and hid themselves in a near-by orchard. Here a Russian neighbor lured them into his house under the pretext of defending their honor against the rioters, but, once in his house, he disgraced the daughter in the presence of her mother. In many cases the soldiers of the local garrison assaulted and beat the Jews who showed themselves on the streets while the "military operations" of the mob were going on. In accordance with the customary pogrom ritual, the human fiends were left undisturbed for two days, and only on the third day were troops summoned from a near-by city to put a stop to the atrocities.

On the same day the governor of Podolia arrived to make an investigation. It was soon learned that the local authorities, the police commissioner, the Ispravnik, the military commander, the burgomaster, and the president of the nobility [1] had either directly or indirectly abetted the pogrom. Many rioters, who had been arrested by the police, were soon released, because they threatened otherwise to point out to the higher authorities the ringleaders from among the local officials and the representatives of Russian society. The Jews, again, were constantly terrorized by these scoundrels and cowed by the fear of massacres and complete annihilation, in case they dared to expose their hangmen before the courts.

[Footnote 1: The nobility of each government forms an organization of its own. It is headed by a president for the entire government who has under his jurisdiction a president for each district (or county). Such a county president is referred to in the text.]

The pogrom of Balta found but a feeble echo in the immediate neighborhood—in a few localities of the governments of Podolia and Kherson. It seemed as if the energy of destruction and savagery had spent itself in the exploits at Balta. On the whole, the pogrom campaign conducted in the spring of 1882 covered but an insignificant territory when compared with the pogrom enterprise of 1881, though surpassing it considerably in point of quality. The horrors of Balta were a substantial earnest of the Kishinev atrocities of 1903 and the October pogroms of 1905.

4. THE CONFERENCE OF JEWISH NOTABLES AT ST. PETERSBURG

The horrors of Balta cast their shadow upon the conference of Jewish delegates which met in St. Petersburg on April 8-11, 1882. The conference, which had been called by Baron Horace Günzburg, with the permission of Ignatyev, was made up of some twenty-five delegates from the provinces—among them Dr. Mandelstamm of Kiev, Rabbi Isaac Elhanan Specter of Kovno—and fifteen notables from the capital, including Baron Günzburg himself, the railroad magnate Polakov, and Professor Bakst. The question of Jewish emigration was the central issue of the conference, although, in connection with it, the general situation of Russian Jewry came up for discussion. There was a mixed element of tragedy and timidity in the deliberations of this miniature congress, at which neither the voice of the masses nor that of the *intelligentzia* were given a full hearing. On the one hand, the conference listened to heartrending speeches, picturing the intolerable position of the Jews; and one of the delegates, Shmerling from Moghilev, who had just delivered such a speech, was so overcome that he fainted and died in a few hours. On the other hand, the most influential delegates, particularly those from the capital, were looking about timorously, fearing lest the Government suspect them of a lack of

patriotism. Others again looked upon emigration as an illicit form of protest, as "sedition," and they clung to this conviction, even when the conference had been told in the name of the Minister of the Interior that it was expected to consider the question of "thinning out the Jewish population in the Pale of Settlement, in view of the fact that the Jews will not be admitted into the interior governments of Russia."

At the second meeting of the conference, the rabbi of St. Petersburg, Dr. Drabkin, reported to the delegates about his last conversation with Ignatyev. In reply to the rabbi who had stated that the Jews were waiting for an imperial word ordering the suppression of the pogroms, and were anticipating the removal of their legal disabilities, the Minister had characterized these assertions as "commonplaces," and had added in an irritated tone: "The Jews themselves are responsible for the pogroms. By joining the Nihilists they thereby deprive the Government of the possibility of sheltering them against violence." The sophistry of the Minister was refuted on the spot by his own confession that the Balta pogrom was due to "a false rumor charging the Jews with having undermined the local Greek-Orthodox church," in other words, that the cause of the Balta pogrom was not to be traced to any tendencies within Jewry but rather to the agitation of evil-minded Jew-baiters.

At the same session, the discussion of the emigration question was side-tracked by a new design of the slippery Minister. The financier Samuel Polakov, who was close to Ignatyev, declared in a spirit of base flunkeyism that the labors of the conference would prove fruitless unless they were carried on in accordance with "Government instructions." On this occasion he informed the conference that in a talk which he had with the Minister the latter had branded the endeavors to stimulate emigration as "an incitement to sedition," on the ground that "emigration does not exist for Russian citizens." Asked by the Minister for suggestions as to the best means of

relieving the congestion of the Jews in the Pale, Polakov had replied: "By settling them all over Russia." To this the Minister had retorted that he could not allow the settlement of Jews except in Central Asia and in the newly conquered oasis of Akhal-Tekke, [1] In obedience to these ministerial utterances, the obsequious financier sharply opposed the plan of a Jewish emigration to foreign lands, and seriously recommended to the conference to consider the proposal made by Ignatyev. The Minister's suggestion was bitterly attacked by Dr. Mandelstamm, who saw in it a new attempt to make sport of the Jews, Even Professor Bakst, who objected to emigration on principle, declared that the proposed scheme of settling the Jews amounted in reality to "a deportation to far-off places" and was tantamount to an official "classification of the Jews as criminals."

[Footnote 1: In the Trans-Caspian region. It had been occupied by Russian troops shortly before—in 1880.]

From the project of deportation, which failed to meet with the sympathy of the conference, the delegates proceeded to discuss the burning question of pogroms. It was proposed to send a deputation to the Tzar, appealing to him to put a stop to the legislative restrictions, which were bound to inspire the Russian population with the belief that the Jews were outside the pale of the law.

In the question of foreign emigration the majority of the conference voted against the establishment of emigration committees, on the ground that the latter might give the impression as if the Jews were desirous of leaving Russia.

After a debate lasting four days the following resolutions were adopted:

First, to reject completely the thought of organizing emigration, as being subversive of the dignity of the Russian body politic and of the

historic rights of the Jews to their present fatherland.

Second, to point to the necessity of abolishing the present discriminating legislation concerning the Jews, this abolition being the only means to regulate the relationship of the Jewish population to the original inhabitants.

Third, to bring to the knowledge of the Government the passive attitude of the authorities which had clearly manifested itself during the time of the disorders.

Fourth, to petition the Government to find means for compensating the Jewish population, which had suffered from the pogroms as a result of inadequate police protection.

At the same time the conference took occasion to refute the old accusation, which had again been brought up in the gubernatorial commissions, that the Jews still retained their ancient autonomous Kahal organization, and that the latter was operating secretly and was fostering Jewish separatism to the detriment of the other elements of the population.

The resolution of the conference on this score read as follows:

We, the undersigned, the representatives of various centers of Jewish settlement in Russia, rabbis, members of religious organizations and synagogue boards, consider it our sacred duty, calling to witness God Omniscient, to declare publicly, in the presence of the whole of Russia, that there exists neither an open nor a secret Kahal administration among the Russian Jews; that Jewish life is entirely foreign to any organization of this kind and to any of the attributes ascribed to such an organization by evil minded persons.

The signers of this solemn pronouncement were evidently unaware of the degrading renunciation of national rights which was implied in the declaration that not only had the Jews lost their former comprehensive communal organization—this was in accordance with the facts—but that, were such an inner autonomous organization to exist, they would regard it as a criminal offence, subversive of the public order and punishable by the forfeiture of civil rights.

CHAPTER XXIV

LEGISLATIVE POGROMS

1. THE "TEMPORARY RULES" OF MAY 3, 1882

During the interval between the pogrom of Warsaw and that of Balta the Government was preparing for the Jews a series of legislative pogroms. In the recesses of the Russian Government offices, which served as the laboratories of police barbarism, the authorities were busy forging a chain of legal and administrative restrictions in order to "regulate" Jewish life in the spirit of complete civil disfranchisement. The Central Committee on Jewish Affairs, attached to the Ministry of the Interior, which was called for short "the Jewish Committee" but might far more appropriately have been called "the Anti-Jewish Committee," was basing its labors upon the opinions submitted by the gubernatorial commissions and rearing on this foundation a monstrous structure of disabilities.

The new project was based upon the following theory: The old Russian legislation was marked by its hostility to the Jews as a secluded group of alien faith and race. A departure from this attitude was attempted during the reign of Alexander II., when the rights of certain categories of Jews were enlarged, and "a period of toleration was inaugurated." But subsequent experience proved the inexpediency of this tolerant attitude towards the Jews, as has been demonstrated by the recent manifestation "of an anti-

Jewish movement abroad" (German anti-Semitism) and "the popular protest" in Russia itself, where it assumed the form of pogroms. Since Russia has now chosen the path of a "national policy," it follows also in regard to the Jewish question that this country cannot but "turn to its ancient tradition, throw aside the innovations which have proved useless, and follow vigorously the principles, evolved by the whole past history of the monarchy, according to which the Jews must be regarded as aliens," and therefore can lay no claim to full toleration.

This barbarous theory, which brought Russia back to the traditions of ancient Muscovy, was expounded elaborately in the protocol of the session of the "anti-Jewish Committee," as a sort of preamble to the legal project submitted by it.

While engaged in these labors, the members of the committee received the news of the pogrom in Warsaw, and were greatly heartened by it. They did not fail to make an entry in the protocol to the effect that the "disorders" which had taken place in the Kingdom of Poland "where the Jews enjoy equal rights" (i.e., the right of residence) tend to support the theory of the "injuriousness" of the Jewish people. Official pens began to scribble more rapidly, and within a short time, by the spring of 1882, a project was ready, to be inflicted as a severe punishment upon the Jews for the atrocities perpetrated upon them. The "conquered foe," represented by the Jewish population, was to be dislodged from a large area within, the Pale of Settlement, overcrowded though the latter had become, by forbidding the Jews to settle anew outside of the cities and towns, i.e., in the country-side. Those already settled there were either to be evicted by the verdict of the rural communes[1], or to be deprived of a livelihood by the prohibition to buy or lease immovable property and to trade in liquor.

[Footnote 1: "To allow the communes to evict the Jews by a verdict," according to the exact wording of the law.]

This project was submitted by Ignatyev to the Committee of Ministers, accompanied by the suggestion that the new disabilities be enacted not in due legal procedure (by the Council of State) but in the form of "Temporary Rules" to be sanctioned in an extra-legal way by the Tzar, with the end in view "to do away with the aggravated relations between the Jews and the original population."

However, even the members of the reactionary Committee of Ministers were embarrassed by Ignatyev's project. The Committee felt that it was impossible to carry out the expropriation of personal and property rights on so extensive a scale without the due process of law and that the permission to be granted to rural communes of expelling the Jews from the villages was tantamount to leaving the latter to the tender mercies of the benighted Russian masses, which would thus more than ever be strengthened, in their conviction that the Jews might be expelled and assaulted with impunity, so that the relations between the two elements of the population, instead of improving, would only become more aggravated. On the other hand, the Committee of Ministers went on record that it considered it necessary to adopt rigorous measures against the Jews in order that the peasants should not think "that the Tzar's will in ridding them of Jewish exploitation was not put into execution."

As a result of these contentions, several concessions were made by Ignatyev, and the following compromise was reached: The clause ordering the expulsion of the hundreds of thousands of Jews already settled in the villages was eliminated, and the prohibition was restricted to the Jews who wished to settle outside of the towns and townlets *anew*. In turn, the Committee of Ministers yielded to Ignatyev's demand that the project

should be enacted with every possible dispatch, without preliminary submission to the Council of State.

Such was the genesis of the famous "Temporary Rules" which were sanctioned by the Tzar on May 3, 1882. Shorn of all bureaucratic rhetoric, the new laws may be reduced to the following laconic provisions:

First, to forbid the Jews henceforth to settle anew outside of the towns and townlets.

Second, to suspend the completion of instruments of purchase of real property and merchandise in the name of Jews outside of the towns and townlets.

Third, to forbid the Jews to carry on business on Sundays and Christian holidays.

The first two "Rules" contained in their harmless wording a cruel punitive law which dislodged the Jews from nine-tenths of the territory hitherto accessible to them, and tended to coop up millions of human beings within the suffocating confines of the towns and townlets of the Western region. And yet, notwithstanding its tremendous implications, the law was passed outside the ordinary course of legal procedure—under the disguise of "Temporary Rules," which, in spite of their title, have been enforced with merciless cruelty for more than a generation.

2. ABANDONMENT OF THE POGROM POLICY

After imposing a severe and immediately effective penalty upon Russian Jewry for having been ruined by the pogroms, the Government suddenly remembered its duty, and dangled the threat of future penalties before the prospective instigators of Jewish disorders. On the same fateful third of

May, the Tzar sanctioned the decision of the Committee of Ministers concerning the necessity of declaring solemnly that "the Government is firmly resolved to prosecute invariably any attempt at violence on the person and property of the Jews, who are under the protection of the general laws." In accordance with this declaration, a senatorial ukase dated May 10 was sent out to the governors, warning them that "the heads of the gubernatorial administrations would be held responsible for the adoption of timely measures looking to the prevention of the conditions leading to similar disorders and for the suppression of these disorders at the very outset, and that any negligence in this regard on the part of the administration and the police authorities would result in the dismissal from office of those found guilty." This warning was accompanied by the following confession:

In view of the fact that sad occurrences in the past have made it evident that the local population, incited by evil-minded persons from covetous or other motives, has taken part in the disorders, it is the duty of the gubernatorial administration to make it clear to the local communes that they are obliged to adopt measures for the purpose ... of impressing upon the inhabitants the gross criminal offence implied in willfully perpetrating violent acts against anybody's person and property.

It would almost seem as if the Government, by promulgating on one and the same day the "Temporary Rules" against the Jews and the circular against the pogroms, wished to intimate to the Russian people that, inasmuch as the Jews were now being exterminated through the agency of the law, there was no further need to exterminate them on the streets. The originators of the "Temporary Rules" did not seem to realize that the latter were nothing but a variation of those "violent acts against person and property," from which the street mob was warned to refrain, for the loss of the freedom of movement is violence against the person, and the denial of

the right of purchasing real estate is violence against property. Even the Russian press, though held at that time in the grip of censorship, could not help commenting on the fact that the effect of the official circular against the pogroms had been greatly weakened, by the simultaneous promulgation of the "Temporary Rules."

It would seem as if the terrible atrocities at Balta had made the highest Government spheres realize that the previous policy of connivance at the pogroms, which had been practised for a whole year, could not but disgrace Russia in the eyes of the world and undermine public order in Russia itself. As soon as this was realized, the luckless Minister, who had been the pilot of Russian politics throughout that terrible year, was bound to disappear from the scene. On May 30, Count Ignatyev was made to resign, and Count Demetrius Tolstoi was appointed Minister of the Interior.

Tolstoi was a grim reactionary and a champion of autocracy and police power, but he was at the same time an enemy of all manifestations of mob rule which tended to undermine the authority of the State. A few days after his appointment the new Minister issued a circular in which he reiterated the recent declaration of his predecessor concerning the "resolve of the Government to prosecute every kind of violence against the Jews," announcing emphatically that "any manifestation of disorders would unavoidably result in the immediate prosecution of all official persons who are in duty bound to concern themselves with the prevention of disorders."

This energetic pronouncement of the Government had a magic effect. All provincial administrators realized that the central Government of St. Petersburg had ceased to trifle with the promoters of the pogroms, and the pogrom epidemic was at an end. Beginning with June, 1882, the pogroms assumed more and more a sporadic character. Here and there sparks of the old conflagration would flare up again, but only to die out quickly. In the

course of the next twenty years, until the Kishinev massacre of 1903, no more than about ten pogroms of any consequence may be enumerated, and these disorders were all isolated movements, with a purely local coloring, and without the earmarks of a common organization or the force of an epidemic, such as characterized the pogrom campaigns of 1881, or those of 1903-1905. This is an additional proof for the contention that systematic pogroms in Russia are impossible as long as the central Government and the local authorities are honestly and firmly set against them.

The stringent measures adopted by Tolstoi were soon reflected in the legal trials arising out of the pogroms. Formerly, the local authorities refrained as a rule from putting the rioters on trial lest their testimony might implicate the local administration, and even when action was finally brought against them, the culprits mostly escaped with slight penalties, such as imprisonment for a few months. But after the declaration of the Government in June the courts adopted a more rigorous attitude towards the rioters. [1] In the summer of 1882, a number of cases arising out of the pogroms at Balta and in other cities were tried in the courts. The penalties imposed by the courts were frequently severe, though fully deserved, such as deportation and confinement at hard labor, drafting into penal military companies, etc. In one case, two soldiers, having been convicted of pillage and murder, were court-martialled and sentenced to death. When the sentence was submitted for ratification to Drenteln, governor-general of Kiev, the rabbi of Balta, acting on behalf of the local Jewish community, betook himself to Kiev to support the culprits in their petition for pardon. It was strange to listen to this appeal for mercy on behalf of criminals guilty of violence and murder, coming from the camp of their victims, from the demolished homes which still resounded with the moans of the wounded and with the weeping over lost lives and dishonored women. One finds it difficult to believe that this appeal for mercy was due entirely to an impulse of forgiveness. Associated with it was probably the apprehension that the

death of the murderers would be avenged by their like-minded accomplices who were still at liberty.

[Footnote 1: This, by the way, was not always the case. The court of Chernigov, which was compelled to bring in a verdict of guilty against the perpetrators of the pogrom in the townlet of Karpovitchin the same government, decided to recommend the culprits to the clemency of the superior authorities, in view of the dissatisfaction of the people with the "exploitation" of the Jews. There were many instances of these anti-Jewish political manifestations in the law-courts.]

The Jews of Balta were soon to learn that their humility was ill-requited by the highly-placed promoters of the riots. In the beginning of August, Governor-General Drenteln came to Balta. He was exceedingly irritated, not only on account of the recent circular of Tolstoi which implied a personal threat against him as one who had connived at a number of pogroms within his dominions, but also because of the steps taken by the representatives of the Balta Jewish community at St. Petersburg in the direction of exposing the spiritual fathers of the local riots. Having arrived in the sorely stricken city, the head of the province, who *ex officio* should have conveyed his expression of sympathy to the sufferers, summoned the rabbi and the leaders of the Jewish community, and, in the presence of his official staff, treated them to a speech full of venomous hatred. He told them that by their actions the Jews had "armed everybody against themselves," that they were universally hated, that "they lived nowhere as happily as in Russia," and that the deputation they had sent to St. Petersburg for the purpose of presenting their complaints and "slandering the city authorities and representatives as if they had incited the tumultuous mob against the Jews" had been of no avail. In conclusion, he branded the petition of the Balta community for a commutation of the death sentence

passed upon the rioters as an act of hypocrisy, adding impressively that "these persons have been pardoned irrespective of the requests of the Jews."

The speech of the bureaucratic Jew-baiter, whose proper place was in the dock, side by side with the convicted murderers, produced a terrible panic in the whole region of Kiev. The militant organ of the Jewish press, the *Voskhod*, properly remarked:

After the speech of General-Adjutant Drenteln, our confidence in the impossibility of a repetition of the pogroms has been decidedly shaken. Of what avail can ministerial circulars be when the highest administrators on the spot paralyze their actions in public by the living word?

The apprehensions voiced by the Jewish organ were fortunately unfounded. True, the Minister Tolstoi was not able to punish the criminal harangue of the savage governor-general who had powerful connections at the Russian court. But the firm resolution of the central Government to hold the heads of the administration to account for their connivance at pogroms had the desired effect. All that the snarling dogs could do was to bark.

3. DISABILITIES AND EMIGRATION

The pogrom machinery was thus stopped by a word of command from St. Petersburg. As a counterbalance, the machinery for the manufacture of Jewish disabilities continued in full operation. The "Temporary Rules" of May third established a system of legal persecutions which were directed against the Jews on the ground of their "economic injuriousness." The fact that the Jewish population was in many regards outside the operation of the general laws of Russia opened up a wide field for the grossest forms of arbitrariness and lawlessness. At one stroke, all the exits from the

overcrowded cities into the villages within the Pale of Settlement were tightly closed. All branches of industry connected with Jewish land ownership outside the cities were curtailed and in some places entirely cut off. In many villages the right bestowed on the rural communes of ostracising "vicious members" by a special verdict [1] was used as a weapon to expel those Jews who had long been settled there.

[Footnote 1: The official term applied to the resolutions passed by the village communes. Compare p. 310.]

It will be remembered that Ignatyev had proposed to encourage the peasants officially in the use of this weapon against the Jews, and that the Committee of Ministers had rejected his proposal. There were now administrators who did the same thing unofficially. Prompted by selfish motives, the local *Kulaks* [1] or "bosses," from among the Russian tradesmen, acting in conjunction with the rural elders, would convene peasant assemblies which were treated to liberal doses of alcohol. The intoxicated, half-illiterate *moujiks* would sign a "verdict" demanding the expulsion of the Jews from their village; the verdict would be promptly confirmed by the governors and would immediately become law. Such expulsions were particularly frequent in the governments under the jurisdiction of Drenteln, governor-general of Kiev, and no one doubted but that this ferocious Jew-baiter had passed the word to that effect throughout his dominions.

[Footnote 1: Literally "Fists."]

The economic misery within the Pale drove a number of Jews into the Russian interior, but here they were met by the whip of the law, made doubly painful by the scorpions of administrative caprice. Wholesale expulsions of Jews took place in St. Petersburg, Moscow, Kiev, Kharkov, and other forbidden centers. The effect of these expulsions upon the

commercial life of the country was so disastrous that the big Russian merchants of Moscow and Kharkov appealed to the Government to relax the restrictions surrounding the visits of Jews to these cities.

The civil authorities were now joined by the military powers in hounding the Jews. There were in the Russian army a large number of Jewish physicians, many of whom had distinguished themselves during the preceding Russo-Turkish war. The reactionary Government at the helm of Russian affairs could not tolerate the sight of a Jewish physician exercising the rights of an army officer which were otherwise utterly unattainable for a Jewish soldier. Accordingly, the Minister of War, Vannovski, issued a rescript dated April 10, 1882, to the following effect:

First, to limit the number of Jewish physicians and *feldshers*[1] in the Military Department to five per cent of the general number of medical men.

Second, to stop appointing Jews on the medical service in the military districts of Western Russia, and to transfer the surplus over and above five per cent into the Eastern districts.

Third, to appoint Jewish physicians only in those contingents of the army in which the budget calls for at least two physicians, with the proviso that the second physician must be a Christian.

[Footnote 1: See p. 167, n. 2.]

The reason for these provisions was stated in a most offensive form:

It is necessary to stop the constant growth of the number of physicians of the Mosaic persuasion in the Military Department, in view of their

deficient conscientiousness in discharging their duties and their unfavorable influence upon the sanitary service in the army.

This revolting affront had the effect that many Jewish physicians handed in their resignations immediately. The resignation of one of these physicians, the well-known novelist Yaroshevski, was couched in such emphatic terms, and parried the moral blow directed at the Jewish professional men with such dignity that the Minister of War deemed it necessary to put the author on trial. Among other things, Yaroshevski wrote:

So long as the aspersions cast upon the Jewish physicians so pitilessly are not removed, every superfluous minute spent by them in serving this Department will merely add to their disgrace. In the name of their human dignity, they have no right to remain there where they are held in abhorrence.

Under these circumstances it seemed quite natural that the tendency toward emigration, which had called forth a number of emigration societies as far back as the beginning of 1882 [1], took an ever stronger hold upon the Jewish population of Russia. The disastrous consequences of the resolution adopted by the conference of notables in St. Petersburg [2] were now manifest. By rejecting the formation of a central agency for regulating the emigration, the conference had abandoned the movement to the blind elemental forces, and a catastrophe was bound to follow. The pogrom at Balta called forth a new outburst of the emigration panic, and in the summer of 1882 some twenty thousand Jewish refugees were again huddled together in the Galician border-town of Brody. They were without means for continuing their journey to America, having come to Brody in the hope of receiving help from the Jewish societies of Western Europe. The relief committees established in the principal cities of Europe were busily engaged in "evacuating" Brody of this destitute mass of fugitives. In the

course of the summer and autumn this task was successfully accomplished. A large number of emigrants were dispatched to the United States, and the rest were dispersed over the various centers of Western Europe.

[Footnote 1: See above, p. 297 et seq.]

[Footnote 2: See above, p. 307.]

Aside from the highway of American emigration went, along a tiny parallel path, the Jewish emigration to Palestine. The Palestinian movement which had shortly before come into being [1] attracted many enthusiasts from among the Jewish youth. In the spring of 1882, a society of Jewish young men, consisting mostly of university students, was formed in Kharkov under the name *Bilu*, from the initial letters of their Hebrew motto, *Bet Ya'akob leku we-nelka*"O house of Jacob, come ye, and let us go." [2] The aim of the society was to establish a model agricultural settlement in Palestine and to carry on a wide-spread propaganda for the idea of colonizing the ancient homeland of the Jews. As a result of this propaganda, several hundred Jews in various parts of Russia joined the *Bilu* society. Of these only a few dozen pioneers left for Palestine —between June and July of 1882.

[Footnote 1: See later, p. 268.]

[Footnote 2: From Isa. 2.5.]

At first, the leaders of the organization attempted to enter into negotiations with the Turkish Government, with a view to obtaining from it a large tract of land for colonizing purposes, but the negotiations fell through. The handful of pioneers were obliged to work in the agricultural settlements near Jaffa, in *Mikweh Israel*, a foundation of the *Alliance Israélite* in Paris, and in the colony *Rishon le-Zion*, which had been recently

established by private initiative. The youthful idealists had to endure many hardships in an unaccustomed environment and in a branch of endeavor entirely alien to them. A considerable part of the pioneers were soon forced to give up the struggle and make way for the new settlers who were less intelligent perhaps but physically better fitted for their task. The foundations of Palestinian colonization had been laid, though within exceedingly narrow limits, and the very idea of the national restoration of the Jewish people in Palestine was then as it was later a much greater social factor in Jewish life than the practical colonization of a country which could only absorb an insignificant number of laborers. At those moments, when the Russian horrors made life unbearable, the eyes of many sufferers were turned Eastward, towards the tiny strip of land on the shores of the Mediterranean, where the dream of a new life upon the resuscitated ruins of gray antiquity held out the promise of fulfilment.

A contemporary writer, in surveying recent events in the Russian valley of tears, makes the following observations:

Jewish life during the latter part of 1882 has assumed a monotonously gloomy, oppressively dull aspect True, the streets are no longer full of whirling feathers from torn bedding; the window-panes no longer crash through the streets. The thunder and lightning which were recently filling the air and gladdening the hearts of the Greek-Orthodox people are no more. But have the Jews actually gained by the change from the illegal persecutions [in the form of pogroms] to the legal persecutions of the third of May? Maltreated, plundered, reduced to beggary, put to shame, slandered, and dispirited, the Jews have been cast out of the community of human beings. Their destitution, amounting to beggary, has been firmly established and definitely affixed to them. Gloomy darkness, without a ray of light, has descended upon that bewitched and narrow world in which this unhappy tribe has been languishing so long,

gasping for breath in the suffocating atmosphere of poverty and contempt. Will this go on for a long time? Will the light of day break at last?

CHAPTER XXV

INNER UPHEAVALS

1. DISILLUSIONMENT OF THE INTELLIGENZIA AND THE NATIONAL REVIVAL

The catastrophe at the beginning of the eighties took the Jews of Russia unawares, and found them unprepared for spiritual self-defence. The impressions of the recent brief "era of reforms" were still fresh in their minds. They still remembered the initial steps of Alexander II's Government in the direction of the complete civil emancipation of Russian Jewry, the appeals of the intellectual classes of Russia calling upon the Jews to draw nearer to them, the bright prospects of a rejuvenated Russia. The niggardly gifts of the Russian Government were received by Russian Jewry with an outburst of gratitude and devotion which bordered on flunkeyism. The intellectual young Jews and Jewesses who had passed through the Russian public schools made frantic endeavors, not only towards association but also towards complete cultural amalgamation with the Russian people. Assimilation and Russification became the watchwords of the day. The literary ideals of young Russia became the sacred tablets of the Jewish youth.

But suddenly, lo and behold! that same Russian people, in which the progressive forces of Jewry were ready to merge their identity, appeared in the shape of a monster, which belched forth hordes upon hordes of rioters

and murderers. The Government had changed front, and adopted a policy of reaction and fierce Jew-hatred, while the liberal classes of Russia showed but scant sympathy with the downtrodden and maltreated nation. The voice of the hostile press, the *Novoye Vremya*, the *Russ*, and others, resounded through the air with fall vigor, whereas the liberal press, owing partly—but only partly—to the tightening grip of the censor, defended the Jews in a perfunctory manner. Even the publicists of the radical type, who were principally grouped around the periodical *Otyechestvennyia Zapiski* ("Records of the Fatherland"), looked upon the pogroms merely as the brutal manifestation of an economic struggle, and viewed the whole complicated Jewish problem, with all its century-long tragic implications, in the light of a subordinate social-economic question.

The only one whose soul was deeply stirred by the sight of the new sufferings of an ancient people was the Russian satirist, Shchedrin-Saltykov, and he poured forth his sentiments in the summer of 1882, after the completion of the first cycle of pogroms, in an article marked by a lyric strain, so different from his usual style. [1] But Shchedrin was the only Russian writer of prominence who responded to the Jewish sorrow. Turgenyev and Tolstoi held their peace, whereas the literary celebrities of Western Europe, Victor Hugo, Renau, and many others, came forward with passionate protests. The Russian *intelligenzia* remained cold in the face of the burning tortures of Jewry. The educated classes of Russian Jewry were hurt to the quick by this chilly attitude, and their former enthusiasm gave way to disillusionment.

[Footnote 1: The article appeared in the *Otyechestvennyia Zapiski* in August, 1882. The following sentences in that article are worthy of reproduction: "History has never recorded in its pages a question more replete, with sadness, more foreign to the sentiments of humanity, and more filled with tortures than the Jewish question. The history of mankind as a

whole is one endless martyrology; yet at the same time it is also a record of endless progress. In the records of martyrology the Hebrew tribe occupies the first place; in the annals of progress it stands aside, as if the luminous perspectives of history could never reach it. There is no more heart-rending tale than the story of this endless torture of man by man."

In the same article the Russian satirist draws a clever parallel between the merciless Russian *Kulak*, or "boss," who ruins the peasantry, and the pitiful Jewish "exploiter," the half-starved tradesman, who in turn is exploited by everyone.]

This disillusionment found its early expression in the lamentations of repentant assimilators. One of these assimilators, writing in the first months of the pogroms, makes the following confession:

The cultured Jewish classes have turned their back upon their history, have forgotten their traditions, and have conceived a contempt for everything which might make them realize that they are the members of the "eternal people." With no definite ideals, dragging their Judaism behind them as a fugitive galley-slave drags his heavy chain, how could these men justify their belonging to the tribe of "Christ-killers" and "exploiters"?... Truly pitiful has become the position of these assimilators, who but yesterday were the champions of national self-effacement. Life demands self-determination. To sit between two stools has now become an impossibility. The logic of events has placed them before the alternative: either to declare themselves openly as renegades, or to take their proper share in the sufferings of their people.

Another representative of the Jewish *intelligenzia* writes in the following strain to the editor of a Russian-Jewish periodical:

When I remember what has been done to us, how we have been taught to love Russia and Russian speech, how we have been induced and compelled to introduce the Russian language and everything Russian, into our families so that our children know no other language but Russian, and how we are now repulsed and persecuted, then our hearts are filled with sickening despair from which there seems to be no escape. This terrible insult gnaws at my vitals. It may be that I am mistaken, but I do honestly believe that even if I succeeded in moving to a happier country where all men are equal, where there are no pogroms by day and "Jewish commissions" by night, I would yet remain sick at heart to the very end of my life—to such an extent do I feel worn out by this accursed year, this universal mental eclipse which has visited our dear fatherland.

Russian-Jewish literature of that period is full of similar self-revelations of disillusioned intellectuals. However, this repentant mood did not always lead to positive results. Some of these intellectuals, having become part and parcel of Russian cultural life, were no longer able to find their way back to Judaism, and they were carried off by the current of assimilation, culminating in baptism. Others stood at the cross-roads, wavering between assimilation and Jewish nationalism. Still others were so stunned by the blow they had received that they reeled violently backward, and proclaimed as their slogan the return "home," in the sense of a complete renunciation of free criticism and of all strivings for inner reforms.

However, in the healthy part of Russian Jewry this change of mind resulted in turning their ideals definitely in the direction of national rejuvenation upon modern foundations. The idea of a struggle for national rejuvenation in Eussia itself had not yet matured. It appeared as an active force only in the following decade. [1] During the era of pogroms the salvation of Judaism was primarily associated with the idea of emigration.

The champions of American emigration were prone to idealize this movement, which had in reality sprung from practical necessity, and they saw in it, not without justification, the beginning of a new free center of Judaism in the Diaspora. The Hebrew poet Judah Leib Gordon [2] addresses "The Daughter of Jacob [the Jewish people], disgraced by the son of Hamor [the Russian Government]" [3] in the following words:

[Footnote 1: That idea was subsequently championed by the writer of this volume. See more about it in Vol. III.]

[Footnote 2: See p. 228 et seq.]

[Footnote 3: An allusion to Gen. 34, with a play on the words *Bem-hamor*, "the son of an ass."]

Come, let us go where liberty's light
Doth shine upon all with equal might,
Where every man, without disgrace,
Is free to adhere to his creed and his race,
Where thou, too, shalt no longer fear
Dishonor from brutes, my sister dear![1]

[Footnote 1: From his Hebrew poem *Ahoti Ruhama*, "My Beloved Sister."]

The exponents of American emigration were inspired by the prospect of an exodus from the land of slavery into the land of freedom. Many of them looked forward to the establishment of agricultural and farming settlements in that country and to the concentration of large Jewish masses in the thinly populated States of the Union where they hoped the Jews might be granted a considerable amount of self-government.

Side by side with the striving for a transplantation of Jewish centers within the Diaspora, another idea, which negatives the Diaspora altogether and places in its stead the resuscitation of the Jewish national center in Palestine, struggled to life amidst the birth pangs of the pogroms. The first theoretic exponent of this new movement, called "Love of Zion," [1] was M.L. Lilienblum, who in a former stage of radicalism had preached the need of religious reforms in Judaism. [2] As far back as in the autumn of the first pogrom year Lilienblum published a series of articles in which he interpreted the idea of Palestinian colonization, which had but recently sprung to life, in the light of a common national task for the whole of Jewry. Lilienblum endeavored to show that the root of all the historic misfortunes of the Jewish people lay in the fact that it was in all lands an alien element which refuses to assimilate in its entirety with the dominant nation—with the landlord, as it were. The landlord tolerates his tenant only so long as he finds him convenient; let the tenant make the slightest attempt at competing with the landlord, and he will be promptly evicted. During the Middle Ages the Jews were persecuted in the name of religious fanaticism. Now a beginning has been made to persecute them in the name of national fanaticism, coupled with economic factors, and this "second chapter of our history will no doubt contain many a bloody page."

[Footnote 1: A translation of the Hebrew term *Hibbat Zion*. In Russian it was generally termed *Palestinophilstvo*, i.e., "Love of Palestine."]

[Footnote 2: See p. 236 et seq.]

Jewish suffering can only be removed by removing its cause. We must cease to be strangers in every land of the globe, and establish ourselves in a country where we ourselves may be the landlords. Such a country can only be our ancient fatherland, Palestine, which belongs to us by the right of history. "We must undertake the colonization of Palestine on so

comprehensive a scale that in the course of one century the Jews may be able to leave inhospitable Europe almost entirely and settle in the land of our forefathers to which we are legally entitled."

These thoughts, expounded with that simplified logic which will strike certain types of mind as incontrovertible, were fully attuned to the sentiments of the Jewish masses which were standing with "girded loins," ready for their exodus from, the new Egypt. The emigration societies formed in the beginning of 1882 counted in their ranks many advocates of Palestinian colonization. Bitter literary feuds were waged between the "Americans" and "Palestinians." A young poet, Simon Frug^[1], composed the following enthusiastic exodus march, which he prefaced by the biblical verse "Speak unto the children of Israel, that they go forward" (Ex. 14.15):

[Footnote 1: He became later a celebrated poet in Russian and Yiddish. He died in 1916.]

Thine eyes are keen, thy feet are strong, thy staff is firm—
why then, my nation,
Dost thou on the road stop and droop, thy gray head
lost in contemplation?
Look up and see: in numerous bands
Thy sons return from all the lands.
Forward then march, through a sea of sorrow,
Through a chain of tortures, towards the dawn of the
morrow!
Forward—to the strains of the song of days gone by!
For future ages like thunder to us cry:
"Arise, my people, from thy grave,
And live once more, a nation free and brave!"

And in our ears songs of a *new* life ring,
And hymns of triumph the storms to as sing.

This march voiced the sentiments of those who dreamed of the Promised Land—whether it be on the shores of the Jordan or on the banks of the Mississippi.

2. PINSKER'S "AUTOEMANCIPATION"

The conception of emigration as a means of national rejuvenation, which had sprung to life amidst the "thunder and lightning" of the pogroms, found a thoughtful exponent in the person of Dr. Leon Pinsker, a prominent communal worker in Odessa, who had at one time looked to assimilation as promising a solution of the Jewish problem. In his pamphlet "Autoemancipation" (published in September, 1882), which is marked by profound thinking, Pinsker vividly describes the mental agony experienced by him at the sight of the physical slavery of the Jewry of Russia and the spiritual slavery of the emancipated Jewry of Western Europe. To him the Jewish people in the Diaspora is not a living nation, but rather the ghost of a nation, haunting the globe and scaring all living national organisms. The salvation of Judaism can only be brought about by transforming this ghost into a real being, by re-establishing the Jewish people upon a territory of its own which might be obtained through the common endeavor of Jewry and through international Jewish co-operation in some convenient part of the globe, be it Palestine or America. Such is the way of Jewish autoemancipation, in contradistinction from the civic emancipation, which had been bestowed by the dominant nationalities upon the Jews as an act of grace and which does not safeguard them against anti-Semitism and the humiliating position of second-rate citizens. The Jewish people can be restored, if, instead of many places of refuge scattered all over the globe, it

will be concentrated in one politically guaranteed place of refuge. For this purpose a general Jewish congress ought to be called which should be entrusted with the financial and political issues involved in the plan. The present generation must take the first step towards this national restoration; posterity will do the rest.

Pinsker's pamphlet, which was written in German and printed abroad [1] with the intention of appealing to the Jews of Western Europe, failed to produce any effect upon that assimilated section of the Jewish people. In Russia, however, it became the catechism of the "Love of Zion" movement and eventually of Zionism and Territorialism. The theory expounded in Pinsker's pamphlet made a strong appeal to the Russian Jews, not only on account of its close reasoning but also because it gave powerful utterance to that pessimistic frame of mind which seemed to have seized upon them all. Its weakest point lay in the fact that it rested on a wrong historic premise and on a narrow definition of the term "nation" in the sense of a territorial and political organism. Pinsker seems to have overlooked that the Jews of the Diaspora, taken as a whole, have not ceased to form a nation, though of a type of its own, and that in modern political history nations of this "cultural" complexion have appeared on the scene more and more frequently.

[Footnote 1: The first edition appeared in Berlin, in 1882. It bears the sub-title: "An Appeal to his Brethren by a Russian Jew," It was published anonymously.]

Lacking a definite practical foundation, Pinsker's doctrine could not but accommodate itself to the Palestinian colonization movement, although its insignificant dimensions were entirely out of proportion to the far-reaching plans conceived by the author of "Autoemancipation." Lilienblum and Pinsker were joined by the old nationalist Smolenskin and the former

assimilator Levanda. *Ha-Shahar* and *ha-Melitz* in Hebrew and the *Razsvyet* in Russian became the literary vehicles of the new movement. In opposition to these tendencies, the *Voskhod* of St. Petersburg[1] reflected the ideas of the progressive Russian-Jewish *intelligenza*, and defended their old position which was that of civil emancipation and inner Jewish reforms. In the middle between these two extremes stood the Russian weekly *Russki Yevrey* ("The Russian Jew"), in St. Petersburg, and the Hebrew weekly *ha-Tzefirah* ("The Dawn"), in Warsaw, voicing the moderate views of the Haskalah period, with a decided bent towards the nationalistic movement.

[Footnote 1: See p. 221, It appeared simultaneously as a weekly and a monthly.]

3. MISCARRIED RELIGIOUS REFORMS

The storm of pogroms not only broke many young twigs on the tree of "enlightenment," which had attained to full bloom in the preceding period, but it also bent others into monstrous shapes. This abnormal development is particularly characteristic of the idea of religious reforms in Judaism which sprang to life in the beginning of the eighties. A fortnight before the pogrom at Yelisavetgrad, which inaugurated another gloomy chapter in the annals of Russian Jewry, the papers reported that a new Jewish sect had appeared in that city under the name of "The Spiritual Biblical Brotherhood." Its members denied all religious dogmas and ceremonies, and acknowledged only the moral doctrines of the Bible; they condemned all mercantile pursuits, and endeavored to live by physical labor, primarily by agriculture.

The founder of this "Brotherhood" was a local teacher and journalist, Jacob Gordin, who stood at that time under the influence of the South-Russian Stundists [1] as well as of the socialistic Russian Populists. [2] The "Spiritual Biblical Brotherhood" was made up altogether of a score of

people. In a newspaper appeal which appeared shortly after the spring pogroms of 1881 the leader of the sect, hiding his identity under the pen-name of "A Brother-Biblist," called upon the Jews to divest themselves, of those character traits and economic pursuits which excited the hatred of the native population against them: the love of money, the hunt for barter, usury, and petty trading. This appeal, which, sounded in unison with the voice of the Russian Jew-baiters and appeared at a time when the wounds of the pogrom victims were not yet healed, aroused profound indignation among the Jews. Shortly afterwards the "Spiritual Biblical Brotherhood" fell asunder. Some of its members joined a like-minded sect in Odessa which had been founded there in the beginning of 1883 by a teacher, Jacob Priluker, under the name of "New Israel."

[Footnote 1: A Russian sect with rationalistic tendencies which are traceable to Western Protestantism.]

[Footnote 2: See above, p. 222.]

The aim of "New Israel" was to facilitate, by means of radical religious reforms conceived in the spirit of rationalism, the contact between Jews and Christians and thereby pave the way for civil emancipation. The twofold religio-social program of the sect was as follows:

The sect recognizes only the teachings of Moses; it rejects the Talmud, the dietary laws, the rite of circumcision, and the traditional form of worship; the day of rest is transferred from Saturday to Sunday; the Russian language is declared to be the "native" tongue of the Jews and made obligatory in every-day life; usury and similar distasteful pursuits are forbidden.

As a reward for all these virtuous endeavors the sect expected from the Russian Government, which it petitioned to that effect, complete civil

equality for its members, permission to intermarry with Christians, and the right to wear a special badge by which they were to be marked off from the "Talmudic Jews." As an expression of gratitude for the anticipated governmental benefits, the members of the sect pledged themselves to give their boys and girls who were to be born during the coming year the names of Alexander or Alexandra, in honor of the Russian Tzar.

The first religious half of the program of "New Israel" might possibly have attracted a few adherents. But the second "business-like" part of it opened the eyes of the public to the true aspirations of these "reformers," who, in their eagerness for civil equality, were ready to barter away religion, conscience, and honor, and who did not balk at betraying such low flunkeyism at a time when the blood of the victims of the Balta pogrom had not yet dried.

Thus it was that the withering influence of reactionary Judaeophobia compromised and crippled the second attempt at inner reforms in Judaism. Both movements soon passed out of existence, and their founders subsequently left Russia. Gordin went to America, and, renouncing his sins of youth, became a popular Yiddish playwright. Priluker settled in England, and entered the employ of the missionaries who were anxious to propagate Christianity among the Jews. A few years later, during 1884 and 1885, "New Israel" cropped up in a new shape, this time in Kishinev, where the puny "Congregation of New Testament Israelites" was founded by I. Rabinovich, having for its aim "the fusion of Judaism with Christianity." In the house of prayer, in which this "Congregation," consisting altogether of ten members, worshipped, sermons were also delivered by a Protestant clergyman.

A few years later this new missionary device was also abandoned. The pestiferous atmosphere which surrounded Russian-Jewish life at that time

could do no more than produce these poisonous growths of "religious reform." For the wholesome seeds of such a reform were bound to wither after the collapse of the ideals which had served as a lode star during the period of "enlightenment."

CHAPTER XXVI

INCREASED JEWISH DISABILITIES

1. THE PAHLEN COMMISSION AND NEW SCHEMES OF OPPRESSION

The "Temporary Rules" of May 3, 1882, had been passed, so to speak, as an extraordinary "war measure," outside the usual channel of legislative action. Yet the Russian Government could not but realize that sooner or later it would be bound to adopt the customary legal procedure and place the Jewish question before the highest court of the land, the Council of State. To meet this eventuality, it was necessary to prepare materials of a somewhat better quality than had been manufactured by the "gubernatorial commissions" and the "Central Jewish Committee" which owed their existence to Ignatyev, forming part and parcel of the general anti-Jewish policy of the discharged Minister. Even prior to the promulgation of the "Temporary Rules," the Council of Ministers had called the Tzar's attention to the necessity of appointing a special "High Commission" to deal with the Jewish question and to draft legal measures for submission to the Council of State.

This suggestion was carried out on February 4, 1883, on which day an imperial ukase was issued calling for the formation of a "High Commission for the Revision of the Current Laws concerning the Jews." The chairmanship of the Commission was first entrusted to Makov, a former

Minister of the Interior, and after his untimely death, to Count Pahlen, a former Minister of Justice, who guided the work of the Commission during the five years of its existence—hence its popular designation as the "Pahlen Commission." The membership of the Commission was made up of six officials representing the various departments of the Ministry of the Interior, and of one official for each of the Ministries of Finance, Justice, Public Instruction, Crown Domains, and Foreign Affairs, and, lastly, of a few experts who were consulted casually.

The new bureaucratic body received no definite instructions as to the period of time within which it was expected to complete its labors. It was evidently given to understand that the work entrusted to it could well afford to wait. The first session of the High Commission was held fully ten months after its official appointment by the Tzar, and its business proceeded at a snail's pace, surrounded by the mysterious air characteristic of Russian officialdom. For several years the High Commission had to work its way through the sad inheritance of the defunct "gubernatorial commissions," represented by mounds of paper with the most fantastic projects of solving the Jewish question, endeavoring to bring these materials into some kind of system. It also received a number of memoranda on the Jewish question from outsiders, among them from public-minded Jews, who in most cases used Baron Horace Günzburg as their go-between—memoranda which sought to put the various aspects of the question in their right perspective. After four years spent on the examination of the material, the Commission undertook to formulate its own conclusions, but, for reasons which will become patent later on, these conclusions were never crystallized in the form of legal provisions.

While the High Commission was assiduously engaged in the "revision of the current laws concerning the Jews," in other words, was repeating the Sisyphus task abandoned by scores of similar bureaucratic creations in the

past, the Government pursued with unabated vigor its old-time policy of making the life of the Jews unbearable by turning out endless varieties of new legal restrictions. These restrictions were generally passed "outside the law," i.e., without their being previously submitted to the Council of State; they were simply brought up as suggestions before the Council of Ministers, and, after adoption by the latter, received legal sanction through ratification by the Tzar. Without awaiting the results of the revision of Jewish legislation which it had itself undertaken, the Russian Government embarked enthusiastically upon the task of forging new chains for the hapless Jewish race. For a number of years the High Commission was nothing more than a cover to screen these cruel experiments of the powers at the helm of the state. At the very time in which the ministerial officials serving on the High Commission indulged in abstract speculations about the Jewish question and invented various methods for its solution, the Council of Ministers anticipated this solution in the spirit of rabid anti-Semitism, and was quick to give it effect in concrete life.

The wind which was blowing from the heights of Russian bureaucracy was decidedly unfavorable to the Jews. The belated coronation of Alexander III., which took place in May, 1883, and, in accordance with Russian tradition, brought, in the form of an imperial manifesto, [1] various privileges and alleviations for different sections of the Russian population, left the Jews severely alone. The Tzar lent an attentive ear to those zealous governors and governors-general, who in their "most humble reports" propounded the new-fangled theory of the "injuriousness" of the Jews; the marginal remarks frequently attached by him to these reports assumed the force of binding resolutions. [2] In the beginning of 1883, the governor-general of Odessa, Gurko, took occasion in his report to the Tzar to comment on the excessive growth of the number of Jewish pupils in the *gymnazia* [3] and on their "injurious effect" upon their Christian fellow-pupils. Gurko proposed to fix a limited percentage for the admission of

Jews to these schools, and the Tzar made the annotation: "I share this conviction; the matter ought to receive attention."

[Footnote 1: See above, p. 246, n. 1]

[Footnote 2: See on the term "Resolution," Vol. I, p. 253, n. 1.]

[Footnote 3: See above, p. 161, n. 1.]

The matter did of course "receive attention." It was brought up before the Committee of Ministers. But the latter was reluctant to pass upon it at once, and thought it wiser to have it prepared and duly submitted for legislative action at some future time. However, when the governor-general of Odessa and the governor of Kharkov, in their reports for the following year, expatiated again on the necessity of fixing a school norm for the Jews, the Tzar made another annotation, in a more emphatic tone: "It is desirable to decide this question finally." This sufficed to impress the Committee of Ministers with the conviction "that the growing influx of the non-Christian element into the educational establishments exerts, from a moral and religious point of view, a most injurious influence upon the Christian children." The question was submitted for consideration to the High Commission under the chairmanship of Count Pahlen. The Minister of Public Instruction was ordered to frame post-haste an enactment embodying the spirit of the imperial resolution. Soon the new fruit of the Russian bureaucratic genius was ready to be plucked—"the school norm," which was destined to occupy a prominent place in the fabric of Russian-Jewish disabilities.

The center of gravity of the system of oppression lay, as it always did, in the restrictions attaching to the right of domicile and free movement—restrictions which frequently made life for the Jews physically impossible by cutting off their access to the sources of a livelihood. The "Temporary

Rules" of the third of May displayed in this domain a dazzling variety of legal tortures such as might have excited the envy of medieval inquisitors. The "May laws" of 1882 barred the Jews from settling outside the cities "anew," i.e. in the future, exempting those who had settled in the rural districts prior to 1882. These old-time Jewish rustics were a thorn in the flesh of the Russian anti-Semites, who hoped for a sudden disappearance of the Jewish population from the Russian country-side. Accordingly, a whole set of administrative measures was put in motion, with a view to making the life of the village Jews unbearable. In another connection [1] we had occasion to point out that the Russian authorities as well as the Christian competitors of the Jews made it their business to expel the latter from the rural localities as "vicious members," by having the peasant assemblies render special "verdicts" against them. This method was now supplemented by new contrivances to dislodge the Jews. A village Jew who happened to absent himself for a few days or weeks to go to town was frequently barred by the police from returning to his home, on the ground that he was "a new settler." There are cases of Jewish families on record which, according to custom, had left the village for the High Holidays to attend services in an adjacent town or townlet, and which, on their return home, met with considerable difficulties; because their return was interpreted by the police as a "new settlement." In the dominions of the anti-Jewish satrap Drenteln the administration construed the "Temporary Rules" to mean that Jews were not allowed to move from one village to another, or even from, one house to another within the precincts of their native village. [2]

[Footnote 1: See p. 318 et seq.]

[Footnote 2: Evidence of this is found in the circular of the governor of Chernigov, issued In 1883.]

Moreover, the police was authorized to expel from the villages all those Jews who did not possess their own houses upon their own land, on the ground that these Jews, in renting new quarters, would have to make a new lease with their owners, and such a lease was forbidden by the May laws. [1] These malicious misinterpretations of the law affected some ten thousand Jews in the villages of Chernigov and Poltava. These Jews lived habitually in rented houses or in houses which were their property but were built upon ground belonging to peasants, and they were consequently liable to expulsion. The cry of these unfortunates, who were threatened with eviction in the dead of the winter, was heard not in near-by Kiev but in far-off St. Petersburg. By a senatorial ukase, published in January, 1884, a check was put on these administrative highway methods. The expulsion was stopped, though a considerable number of Jewish families had in the meantime been evicted and ruined.

[Footnote 1: See p. 312.]

At the same time other restrictions which were in like manner deduced from the "Temporary Rules" were allowed to remain in full force. One of these was the prohibition of removing from one village to another, even though they were contiguous, so that the rural Jews were practically placed in the position of serfs, being affixed to their places of residence. This cruel practice was sanctioned by the law of December 29, 1887. As a contemporary writer puts it, the law implied that when a village in which a Jew lived was burned down, or when a factory in which he worked was closed, he was compelled to remove into one of the towns or townlets, since he was not allowed to search for a shelter and a livelihood in any other rural locality. In accordance with the same law, a Jew had no right to offer shelter to his widowed mother or to his infirm parents who lived in another village. Furthermore, a Jew was barred from taking over a commercial or industrial establishment bequeathed to him by his father, if the latter had lived in

another village. He was not even allowed to take charge of a house bequeathed to him by his parents, if they had resided in another village, though situated within the confines of the Pale.

While this network of disabilities was ruining the Jews, it yielded a plentiful harvest for the police, from the highest to the lowest officials. "Graft," the Russian *habeas Corpus* Act, shielded the persecuted Jew against the caprice and Violence of the authorities in the application of the restrictive laws, and Russian officialdom held on tightly to Jewish rightlessness as their own special benefice. Hatred of the Jews has at all times gone hand in hand with love of Jewish money.

2. JEWISH DISABILITIES OUTSIDE THE PALE

Outside the Pale of Settlement the net of disabilities was stretched out even more widely and was sure to catch the Jew in its meshes. Throughout the length and breadth of the Russian Empire, outside of the fifteen governments of Western Russia and the ten governments of the Kingdom of Poland, there was scattered a handful of "privileged" Jews who were permitted to reside beyond the Pale: men with an academic education, first guild merchants who had for a number of years paid their guild dues within the Pale, and handicraftsmen, so long as they confined themselves to the pursuit of their craft. The influx of "illegal" Jews into this tabooed region was checked by measures of extraordinary severity. The example was set by the Russian capital, "the window towards Europe," which had been broken through by Peter the Great. The city of St. Petersburg, harboring some 20,000 privileged Jews who lived there legally, became the center of attraction for a large number of "illegal" Jews who flocked to the capital with the intention, deemed a criminal offence by the Government, of engaging in some modest business pursuit, without paying the high guild

dues, or of devoting themselves to science or literature, without the diploma from a higher educational institution in their pockets. The number of these Jews who obtained their right of residence through a legal fiction, by enrolling themselves as artisans or as employees of the "privileged" Jews, was very considerable, and the police expended a vast amount of energy in waging a fierce struggle against them. The city-governor of St. Petersburg, Gresser, who was notorious for the cruelty of his police régime, made it his specialty to hunt down the Jews. A contemporary writer, in reviewing the events of the year 1883, gives the following description of the exploits of the metropolitan police:

The campaign was started at the very beginning of the year and continued uninterruptedly until the end of it. Early in March the metropolitan police received orders to search most rigorously the Jewish residences and examine the passports. In the police stations special records were instituted for the Jews. St. Petersburg was to be purged of the odious Hebrew tribe. The contrivances employed were no longer novel, and were the same which had been successfully tried in other cities. The Jews were raided in regular fashion. Those that were found with doubtful claims to residence in the capital were, frequently accompanied by their families, immediately dispatched to the proper railroad stations, escorted by policemen.... The time for departure was measured by hours. The term of expulsion was generally limited to twenty-four hours, or forty-eight hours, as if it involved the execution of a court-martial sentence. And yet, the majority of the victims of expulsion were people who had lived in St. Petersburg for many years, and had succeeded in establishing homes and business places, which could not be liquidated within twenty-four hours or thereabout.... The hurried expulsions from the capital resulted in numerous conversions to Christianity.... Amusing stories circulated all over town concerning Jews who had decided to join the Christian Church, and had applied for

permission to remain in the capital for one or two weeks—the time required by law for a preliminary training in the truths of the new faith—but whose petition was flatly refused because the police believed that a similar training might also be received within the boundaries of the Pale of Settlement.

As a matter of fact, fictitious conversions of this kind were but seldom resorted to in the fight against governmental violence. As a rule, the evasion of the "law" was effected by less harmful, perhaps, but no less humiliating and even tragic fictions. Many a Jewish newcomer would bring with him on his arrival in St. Petersburg an artisan's certificate and enrol himself as an apprentice of some "full-fledged" Jewish artisan. But woe betide if the police happened to visit the workshop and fail to find the fictitious apprentice at work. He was liable to immediate expulsion, and the owner of the shop was no less exposed to grave risks. Some Jews, in their eagerness to obtain the right of residence, registered as man-servants in the employ of Jewish physicians or lawyers. [1] These would-be servants were frequently summoned to the police stations and cross-examined as to the character of their "service." The answers expected from them were something like: "I clean my master's boots, carry behind him his portfolio to court," etc. Several prominent Jewish writers lived for many years in St. Petersburg on this "flunkeyish" basis—among them the talented young poet Simon Frug, [2] the singer of Jewish sorrow who was fast establishing for himself a reputation both in Jewish and in Russian literature.

[Footnote 1: Under the Russian law [see p. 166] Jews possessing a university diploma of the first degree were entitled to employ two "domestic servants" from among their coreligionists.]

[Footnote 2: See p. 330.]

It can easily be realized how precarious was the position of these men. Any day their passports might be found ornamented by a red police notation ordering their expulsion from the capital within twenty-four hours. All Russia was stirred at that time by the sensational story of a young Jewess, who had come to St. Petersburg or Moscow to enter the college courses for women, and in order to obtain the right of residence found herself compelled to register fictitiously as a prostitute and take out "a yellow ticket." When the police discovered that the young woman was engaged in studying, instead of plying her official "trade," she was banished from the capital. In 1886, England was shocked by the expulsion from Moscow of the well-known English Member of Parliament, the banker Sir Samuel Montagu (later Lord Swaythling). Despite his influential position, Montagu was ordered out of the Russian capital "within twenty-four hours," like an itinerant vagrant.

None of these tragedies, however, was able to produce any effect upon the ringleaders and henchmen of the Russian inquisition. The energy of the authorities spent itself primarily in the fight against the natural, yet, according to the Russian code, "illegal" struggle of the Jews for their existence and against the sacred right of man to move about freely. The merciless Russian law, trampling upon this inviolable right, drove human beings from village to town and from one town to another. In the hotbed of militant Judaeophobia, in Kiev, raids upon "illegal" Jewish residents were the order of the day. During the year 1886 alone more than two thousand Jewish families were evicted from the town. [1] Not satisfied with the expulsion of the Jews from the towns prohibited to them by law, the authorities contrived to swell the number of these towns by adding new localities which were part of the Pale and as such open to the Jews. In 1887, the large South-Russian cities Rostov-on-the Don and Taganrog were transferred from the Pale of Settlement [2] to the tabooed territory of the Don Army. Those Jews who had lived in these cities before the

promulgation of the law were allowed to remain, but the new settling of Jews was strictly forbidden.

[Footnote 1: These intensified persecutions were popularly explained as an act of revenge on the part of the highest administration of the region, owing to a quarrel which had taken place between a rich Kiev Jew and a Russian dignitary.]

[Footnote 2: They formed part of the government of Yekaterinoslav.]

Not satisfied with constantly lessening the area in which, without any further restrictions, the Jewish population was gasping for breath, the Government was on the look-out for ways and means to narrow also the sphere of Jewish economic activity. The medieval system of Russian society with its division into estates and guilds became an instrument of Jewish oppression. The authorities openly followed the maxim that the Jew was to be robbed of his profession, to the end that it may be turned over to his Christian rival. Under Alexander II, the Government had endeavored to promote handicrafts among the Jews as a counterbalance against their commercial pursuits, and had therefore conferred upon Jewish artisans the right of residence all over the Empire. The change of policy under Alexander III is well illustrated by the ukase of 1884 closing the Jewish school of handicrafts in Zhitomir which had been in existence for twenty-three years. The reason for the enactment is stated with brazen impudence:

Owing to the fact that the Jews living in the towns and townlets of the south-western region form the majority of handicrafts-men, and thereby hamper the development of handicrafts among the original population of that region, which is exploited by them, the existence of a specific Jewish school of handicrafts seems, in view of the lack of similar schools among the Christians, an additional weapon in the hands of the Jews for the exploitation of the original population of that region.

Here the pursuit of handicrafts is actually stigmatized as a means of "exploitation." The true meaning of that terrible word, an invention of the Russian Government, is thereby put in a glaring light: the Jew is an "exploiter" so long as he follows any pursuit, however honorable and productive, in which a Christian might engage in his stead.

The slightest attempt of the Jew to enlarge his economic activity met with the relentless punishment of the law. The Jewish artisan, though permitted to live outside the Pale, had only the right to sell the products of his own workmanship. When found to sell other merchandise which was not manufactured by him he was liable, under Article 1171 of the Penal Code, not only to be immediately expelled from his place of residence but also to have his goods confiscated. The Christian competitors of the Jews, shoulder to shoulder with the police, kept a careful watch over the Jewish artisans and saw to it that a Jewish tailor should not dare to sell a piece of material, a watchmaker—a new factory-made watch with a chain (being only allowed to repair old watches), a baker—a pound of flour or a cup of coffee. The discovery of such a "crime" was followed immediately by cutting short the career of the poor artisan, in accordance with the provisions of the law.

3. RESTRICTIONS IN EDUCATION AND IN THE LEGAL PROFESSION

A salient feature of that gloomy era of counter-reforms was the endeavor of the Government to dislodge the Jews from the liberal professions, and, as a corollary, to bar them from the secondary and higher schools which were the training ground for these professions. What the Government had in view was to reduce the number of those "privileged" Jews, who, under the law passed in the time of Alexander II., had been rewarded for their completion of a course of studies in an institution of higher learning by the right of unrestricted residence throughout the Empire. The authorities now found it

to their purpose to hamper the spread of education among the Jews rather than promote it. The highly-placed obscurantists contended that the Jewish students exerted an injurious influence upon their Christian comrades from the religious and moral point of view, while the political police [1] reported that the Jewish college men "are quick in joining the ranks of the revolutionary workers." The fear of educated Russian subjects who were not of the dominant faith was natural in a country in which Pobyedonostzev, the moving spirit of inner Russian politics, looked upon popular education in general as a destructive force, fraught with danger to throne and altar. There can be but little doubt that the previously-mentioned imperial "resolutions" [2] indicating the necessity of curtailing the number of Jews in the Russian educational establishments were inspired by the "Grand Inquisitor."

[Footnote 1: The secret police charged with tracking the followers of liberal and revolutionary tendencies.]

[Footnote 2: See p. 339_et seq_.]

Notwithstanding the opposition of the majority of the Pahlen Commission, whose members had not yet entirely discarded the enlightened traditions of the reign of Alexander II., the question was decided in accordance with the wishes of the Tzar. Here, too, as in the case of the "Temporary Rules," the Government was resolved to enact the new disabilities by the sovereign will of the emperor, without submitting them to the highest legislative body of the land, the Council of State, for fear that undesirable debates might arise in that august body concerning the expediency of putting an embargo on education. On December 5, 1886, the Tzar, acting on the suggestion of the Committee of Ministers, directed the Minister of Public Instruction, Dyelanov, to adopt measures for the

limitation of the admission of Jews to the secondary and higher educational establishments.

For six long months the Minister, whose official duty was the promotion of education, was wavering between a number of schemes designed to restrict education among the Jews. Suggestions for such restrictions came from officials of the ministry and from superintendents of school districts. Some proposed to close the schools only to the children of the lower classes among the Jews; in which "the unsympathetic traits of the Jewish character" were particularly conspicuous. Others recommended a restrictive percentage for Jews in general, without any class discrimination. Still others pleaded for moderation lest excessive restriction in admission to Russian universities should force the Jewish youth to go to foreign universities and make them even "more dangerous," since they were bound to return to Russia with liberal notions concerning the political form of government.

At last, in July, 1887, the Minister of Public Instruction, acting on the above-mentioned imperial "resolution," published his two famous circulars limiting the admission of Jews to the universities and to secondary schools. The following norm was established: in the Pale of Settlement the Jews were to be admitted to the schools to the extent of ten per cent of the Christian school population; outside the Pale the norm was fixed at five per cent, and in the two capitals, St. Petersburg and Moscow, at three per cent. Although decreed before the very beginning of the new scholastic year, the percentage norm was nevertheless immediately applied in the case of the *gymnazia*, the "Real schools," [1] and the universities. In the higher professional institutions, such as the technological, veterinarian, and agronomical schools, the restrictions had been, practised even before the promulgation of the circular, or were introduced immediately after it.

[Footnote 1: Or *Real Gymnazia*, see above, p. 163, n, 1.]

This was the genesis of the educational "percentage norm," the source of sorrow and tears for two generations of Russian Jews—both fathers and sons now having run the gauntlet. In the months of July and August of every year, thousands of Jewish children were knocking at the doors of the *gymnazia* and universities, but only tens and hundreds obtained admission. In the towns of the Pale where the Jews form from thirty to eighty per cent of the total population, the admission of Jewish pupils to the *gymnazia* and "Real schools" was limited to ten per cent, so that the majority of Jewish children were deprived of a secondary education.

The position of the *gymnazium* and "Real school" graduates who were unable to continue their studies in the institutions of higher learning was particularly tragic. Many of these unfortunates addressed personal appeals to the Minister of Public Instruction, Dyelanov, who, being good-natured, would, despite his reactionary proclivities, frequently sanction the admission of the petitioners over and above the school norm. But the majority of the young men, barred from the colleges, found themselves compelled to go abroad in search of education, and, being generally without means, suffered untold hardships.

Nevertheless, the cruel restrictions could not suppress the need for education in a people with an ancient culture. Those that had failed to gain admission to the *gymnazia* completed the prescribed course of studies at home, under the guidance of private tutors or by private study, and afterwards presented themselves for examination for the "maturity certificate" [1] as "externs," braving all the difficulties of this thorny path. Having successfully passed their secondary course, they found again their way barred as soon as they wished to enter the universities, and the "martyrs of learning" had no choice left except to take up their pilgrim staff and travel abroad. Year in, year out, two processions of emigrants wended their way from Russia to the West: the one was travelling across the

Atlantic, in search of bread and liberty; the other was headed towards Germany, Austria, England, and France, in search of a higher education. The former were driven from their homes by a peculiar *interdictio ignis et aquae*; the other—by an *interdictio scientiae*.

[Footnote 1: The name given in Russian (and German) to the diploma of a *gymnazium*.]

Having closed the avenues of higher education to the bulk of Russian Jewry, the Government now went a step further and contrived to dispossess even those Jews who had already managed to obtain a higher education, in spite of all difficulties. It was not satisfied with barring college-bred Jews from the civil service and an academic career, thus limiting the Jewish physicians and lawyers to private practice; it was anxious to restrict even this narrow field of activity still open to Jews. In view of the fact that the Jewish jurists had no chance to apply their knowledge in the civil service, and were entirely excluded from the bench, they naturally turned to the bar, with the result that they soon occupied a conspicuous place there, both quantitatively and qualitatively. Their success was a source of annoyance to the Russian anti-Semites, both those who hated the Jews on principle and those who did so selfishly, being themselves members of the bar. These enemies of Judaism called the attention of the Government to the large number of Jewish lawyers at the St. Petersburg bar—a circumstance due partly to the natural gravitation towards the administrative and legal center of the country, and partly to the fact that the admission of Jews to the bar met with less obstruction from the judicial authorities in the capital than in the provinces, where professional jealousy frequently stood in the way of the Jews.

The reactionary Minister of Justice, Manasseïn, managed to convince the Tzar that it was necessary to check the further admission of Jews to the bar. However, from diplomatic considerations, it was thought wiser to carry this restriction into effect not under an anti-Jewish flag, but rather as a general measure directed against all members of "non-Christian persuasions." The restriction was therefore extended to Mohammedans and the handful of privileged Karaites, [1] and the religious intolerance of the new measure was thus thrown into even bolder relief.

[Footnote 1: See on the Karaites, Vol. I, p. 318.]

On November, 1889, an imperial ukase decreed as follows:

That, pending the enactment of a special law dealing with this subject, the admission of public and private attorneys of non-Christian denominations by the competent judicial institutions and bar associations [1] shall not take place, except with the permission of the Minister of Justice, on the recommendation of the presidents of the above-mentioned institutions and associations.

[Footnote 1: "Public (literally, sworn) attorneys" are lawyers of academic standing admitted to the bar by the bar associations. "Private attorneys" are lawyers without educational qualifications who receive permission to practise from the "judicial institutions," i.e., the law courts. They are not members of the bar.]

It goes without saying that the Russian Minister of Justice made ample use of the right conferred upon him of denying admission to Jews as public and private attorneys. While readily sanctioning the admission of Mohammedans and Karaites, the Minister almost invariably refused to confirm the election of young Jewish barristers, however warmly they may

have been recommended by the judicial institutions and bar associations. [1] In this way, many a talented Jewish jurist, who might have filled a university chair with distinction or might have attained brilliant success in the legal profession, was forced out of his path and deprived of an opportunity to serve his country by his labors and pursue a career for which he had fitted himself at the university. Instead, these derailed professionals went to swell the hosts of those who had been wronged and disinherited by the injustice of the law.

[Footnote 1: During the following five years, until 1895, not a single Jew received the sanction of the Minister.]

4. DISCRIMINATION IN MILITARY SERVICE

It seemed as if the Government was intent on making a one-sided compact with Russian Jewry: "We shall deprive you of all the elementary rights due to you as men and citizens; we shall rob you of the right of domicile and freedom of movement, and of the chance of making a livelihood; we shall expose you to physical and spiritual starvation, and shall cast you out of the community of citizens—yet you dare not swerve an inch from the path of your civic obligations." A lurid illustration of this unique exchange of services was provided by the manner in which military duty was imposed upon the Jews. Russian legislation had long since contrived to establish revolting restrictions for the Jews also in this domain. Jews with physical defects which rendered Christians unfit for military service, such as a lower stature and narrower chest, were nevertheless taken into the army. In the case of a shortage of recruits among the Jewish population even only sons, the sole wage-earners of their families or of their widowed mothers, were drafted, whereas the same category of conscripts among Christians were

unconditionally exempt. [1] Moreover, a Jew serving in the army always remained a private and could never attain to an officer's rank.

[Footnote 1: Compare p. 201.]

As if the Government intended to make sport of the Jewish soldiers, the latter were deprived of their right of residence in the localities outside the Pale where they had been stationed, and as soon as their term of service had expired, were sent back into the territory of the Russian-Jewish ghetto. Thus, even Nicholas I, was out-Nicholased. The discharged Jewish soldiers who had served under the old recruiting law enjoyed, both for themselves and their families, the right of residence throughout the Empire. [1] The new military statute of 1874 [2] withdrew from the retired Jewish soldiers this reward for faithfully performed duty, and in 1885 the Senate sustained the disfranchisement of these Jews who had spent years of their life in the service of their fatherland. A Jew from Berdychev, Vilna, or Odessa, who had served five or six years somewhere in St. Petersburg, Moscow, or Kazan, was forced to leave these tabooed cities and return home on the very day on which he had taken off his soldier's uniform.

[Footnote 1: See above, p. 172.]

[Footnote 2: See p. 199 et seq.]

Yet, despite this curious encouragement of Jewish patriotism, the Government had the audacity to charge the Jews continually with the "evasion of their military duty." That a tendency towards such evasion was in vogue among the Jews admits of no doubt. It would have been contrary to human nature if people who were subject to assaults from above and kicks from below, whose right of residence was limited to one-twentieth of the territory of their fatherland, who were robbed of shelter, air, and bread, and deprived of the hope to place themselves, even by means of military

service, on an equal footing with the lowest Russian moujik, should have felt a profound need of sacrificing themselves for their country, and should not have shirked this heaviest of civil obligations to a larger extent than the privileged Russian population, in which cases of evasion were by no means infrequent. In reality, however, the complaints about the shortage of Jewish recruits were vastly exaggerated. Subsequent statistical investigations brought out the fact that, owing to irregular apportionment, the Government demanded annually from the Jews a larger quota of recruits than was justified by their numerical relation to the general population in the Pale of Settlement. On an average, the Jews furnished twelve per cent of the total number of recruits in the Pale, whereas the Jewish population of the Pale formed but eleven per cent of the total population. The Government further refused to consider the fact that, owing to inaccurate registration, the conscription lists often carried the names of persons who had long since died, or who had left the country to emigrate abroad. In fact, the annual emigration of Jews from Russia, the result of uninterrupted persecutions, reduced the number of young men of conscription age. But the Russian authorities were of the opinion that the Jews who remained behind should serve in the Russian army instead of those of their brethren who had become citizens of the free American Republic. The "evasion of military duty" and the annual shortage of a few hundred recruits, as against the many thousands of those enlisted, was charged as a grave crime against that very people towards which the Government on its part failed to fulfil even its most elementary obligations. Reams of paper were covered with all kinds of official devices to "cut short" this evasion of military duty by the Jews. On one beautiful April morning of 1886, the Government came out with the following enactment:

The family of a Jew guilty of evading military service is liable to a fine of three hundred rubles (\$150). The collection of the fine shall be decreed by the respective recruiting station and carried out by the police.

It shall not be substituted by imprisonment in the case of destitute persons liable to that fine.

In addition, a military reward was promised for the seizure of a Jew who had failed to present himself to the recruiting authorities.

By virtue of this barbarous principle of collective responsibility, new hardships were inflicted upon the Jews of Russia. Since the law provided that the fine for evading military service be imposed upon the *family* of the culprit, the police interpreted that term "liberally," taking it to include parents, brothers, and near relatives. The following procedure gradually came into vogue. In the autumn of every year, the Russian conscription season, the names of the young Jews who have completed their twenty-first year are called out at the recruiting station from a prepared list. When a Jew whose name has been called has failed to present himself on the same day, the recruiting authorities issue an order on the spot imposing a fine on his family. The police then appear in the house of his parents to collect the sum of three hundred rubles. In default of cash, they attach the property of the paupers and have it subsequently sold at public auction. In the case of those who possess nothing that can be taken from them the police insist on their giving a signed promise not to leave the town. Their passports are taken from them, so that, not being able to absent themselves from town to earn a living, they are frequently left to starve. If the parents are dead or absent, the brothers and sisters of the culprit, and then his grandfathers and grandmothers are held answerable with their property.

Thus, a large number of Jewish families were completely ruined, merely because one of their members had emigrated abroad, or, as was frequently the case, had surrendered his soul to God in his beloved fatherland itself, and the relatives had failed to see to it that the dead soul was stricken from the recruiting lists. Yet, despite all these efforts, there still remained a

considerable number of uncollected fines—"arrears," as they were officially termed—to the profound regret of the Russian Jew-baiters, who had to look on while the victims were slipping unpunished from their hands.

CHAPTER XXVII

RUSSIAN REACTION AND JEWISH EMIGRATION

1. AFTERMATH OF THE POGROM POLICY

In this wise, beginning with the May laws of 1882, the Government gradually succeeded in monopolizing all anti-Jewish activities by letting bureaucratic persecutions take the place of street pogroms. However, in 1883 and 1884, the "street" made again occasional attempts to compete with the Government. On May 10, 1883, on the eve of Alexander III.'s coronation, a pogrom took place in the large southern city of Rostov-on-the-Don. About a hundred Jewish residences and business places were demolished and plundered. All portable property of the Jews was looted by the mob, and the rest was destroyed. As was to be expected, "the efforts of the police and troops were unable to stop the disorders," and only after completing their day's work the rioters fled, pursued by lashes and shots from the Cossaks. The Russian censorship strictly barred all references to the pogroms in the newspapers, for fear of spoiling the solemnity of the coronation days. The press was only allowed to hint at "alarming rumors," the effect of which extended even to the stock exchange of Berlin. Not before a year had passed was permission given to make public mention of the Rostov events.

There was reason to fear that the pogrom at Rostov was only a prelude to a new series of riots in the South. But more than two months had passed, and all seemed to be quiet. Suddenly, however, on July 20, on the Greek-Orthodox festival dedicated to the memory of the prophet Elijah, the Russian mob made an attack upon the descendants of the ancient prophet at Yekaterinoslav. The memory of the great biblical Nazirite who abhorred strong drink was appropriately celebrated by his Russian votaries in Yekaterinoslav who filled themselves with an immense quantity of alcohol and became sufficiently intoxicated to embark upon their daring exploits as robbers.

The ringleaders of the pogrom movement were not local residents but itinerant laborers from the Great-Russian governments, who were employed in building a railroad in the neighborhood of the South-Russian city. These laborers, to quote the expression of a contemporary, attended to the "military part of the undertaking," whereas the "civil functions" were discharged by the local Russian inhabitants:

While the laborers and the stronger half of the residents were demolishing the houses and stores and throwing all articles and merchandise upon the street, the women and children grabbed everything that came into their hands and carried them off, by hand or in wagons, to their homes.

The looting and plundering continued on the second day, July 21, until a detachment of soldiers arrived. The mob, intoxicated with their success, attempted to beat off the soldiers, but naturally suffered defeat. The sight of a score of killed and wounded had a sobering effect upon the crowd. The pogrom was stopped, after five hundred Jewish families had been ruined and a Jewish sanctuary had been defiled. In one devastated synagogue the human fiends got hold of eleven Torah scrolls, tearing to pieces some of

them and hideously desecrating other copies of the Holy Writ, inscribed with the commandments, "Thou shalt not murder," "Thou shalt not steal," "Thou shalt not commit adultery"—which evidently ran counter to the beliefs of the rioters.

The example set by Yekaterinoslav, the capital of the government of the same name, proved to be contagious, for during August and September pogroms took place in several neighboring towns and townlets. Among these the pogrom at Novo-Moskovsk on September 4 was particularly violent, nearly all Jewish houses in that town having been destroyed by the mob.

The year 1884 was marked by a novel feature in the annals of pogroms: an anti-Jewish riot outside the Pale of Jewish Settlement, in the ancient Russian city of Nizhni-Novgorod, which sheltered a small Jewish colony of some twenty families. While comparatively circumscribed as far as the material loss is concerned, the Nizhni-Novgorod pogrom stands out in ghastly relief by the number of its human victims. A report, based upon official data, which endeavors to tone down the colors, gives the following description of the terrible events:

The "disorders" [a euphemism for excesses accompanied by murder] began on June 7 about nine o'clock in the evening, due to the instigation of several half-drunk laborers who happened to overhear a Christian mother telling her child, who was playing with a Jewish girl, to stop playing with her, as the Jews might slaughter her. The work of destruction began with the Jewish house of prayer which was crowded with worshippers. It was followed by the demolition of five more houses owned by Jews. In these houses the mob destroyed everything that fell into its hands. The doors and windows were broken and everything inside was thrown into the streets. On this occasion six adults and one

boy was killed; five Jews were wounded, two of whom died soon afterwards.

The governor of Nizhni-Novgorod reported that the disorders could not possibly have been foreseen. Yet there can be no doubt that the people were to a certain extent prepared for them. The investigations of the police and the judicial inquiry both converged to prove that the Nizhni-Novgorod excesses were prompted primarily, if not exclusively, by the desire for plunder. In all demolished houses not a single article of value that could be removed was destroyed, and not only money but anything at all that was fit for use was looted. That the disorders broke out on the seventh of June was, in the opinion of the governor, entirely accidental, but that they were directed against the Jews was due to the fact that the *people had been led to believe that even the the gravest crimes were practically unpunishable, so long as they were were committed against the Jews, and not against other nationalities.*

An additional reason for the pogrom was the reputed wealth of a goodly number of the Jewish families of Nizhni-Novgorod. The judicial investigation brought out the fact that before attacking the offices of Daitzelman, a big Moscow merchant, the mob was directed by shouts: "Let us go to Daitzelman; there is a lot to be gotten there." The murder of Daitzelman, who was beloved by his Russian laborers, and that of other Jews, was not prompted by revenge, but by mere purposeless savagery. It is impossible to assume that the mob was moved to action by the rumor which had been spread by the ringleaders of the rioting hordes concerning the kidnapping of a Christian child by the Jews—the more so since at the very beginning of the excesses the police produced the supposedly kidnapped child whole and intact, and showed it to the crowd. The pogrom was due primarily to the savagery of brutal and unenlightened mobs, who found an

opportunity to vent their beastly instincts, fortified by the conviction of complete immunity, which is referred to in the report of the governor.

Even the central Government in St. Petersburg was alarmed by the St. Bartholemew night which had been enacted at Nizhni-Novgorod. At the recommendation of Governor Baranov, the murderers were tried by court-martial and suffered heavy punishment. Nevertheless, the same governor thought it his duty to appease the Russian popular conscience by ordering the expulsion of those Jews whom the police had found to live outside the Pale "without a legal basis." In this wise, the Russian administration once more managed to follow up a street pogrom by a legal one, not realizing the fact that the atrocities perpetrated upon the Jews by the mob were merely a crude copy of the atrocities perpetrated upon them by the Government, and that the outlawed condition of the Jews bred the lawlessness and violence of the mob, which was fully aware of the anti-Semitic sentiments of the official world. The bloody saturnalia of Nizhni-Novgorod had, however, the beneficent effect that the Government, fearing the spread of the conflagration outside the Pale and even outside Jewry, took energetic steps to prevent all further excesses. As a matter of fact, the Nizhni-Novgorod pogrom was the last in the annals of the eighties—with the exception of a few unimportant occurrences in various localities. For six years "the land was quiet," and the monopoly of "silent pogroms," in the shape of the systematic denial of Jewish rights, remained firmly in the hands of the Government.

2. THE CONCLUSIONS OF THE PAHLEN COMMISSION

Whilst the Russian bureaucrats who had been ordered by the Tzar to take "active" measures towards solving the Jewish problem abandoned themselves entirely to a policy of repression, those of their fellow-

bureaucrats who had been commissioned to consider and judge the same question from a purely theoretic point of view came to the conclusion that the repressive policy pursued by the Government was not only injurious but even dangerous. Contrary to expectations, the "High Commission" under the chairmanship of Count Pahlen, consisting of aged dignitaries and members of various ministries, approached the Jewish question, at least as far as the majority of the Commission was concerned, in a much more serious frame of mind than did the promoters of the "active" anti-Jewish policies, who had no time for contemplation and were driven by the pressure of their reactionary energy to go ahead at all cost. In the course of five years the Pahlen Commission succeeded in investigating the Jewish question in all its aspects. It studied and itself prepared a large mass of historic, juridic, as well as economic and statistical material. It probed the labors of Ignatyev's gubernatorial commissions, quickly ascertaining their biased tendency, and examined the entire history of the preceding legislation concerning the Jews. It finally came to the conclusion that the whole century-long system of restrictive legislation had failed of its purpose, and must give way to a system of emancipatory measures, to be carried out gradually and with extreme caution. The majority of the members of the Commission concurred in this opinion, including Count Pahlen, its chairman. In the following we present a few brief extracts from the conclusions formulated by this conservative and bureaucratic commission in its comprehensive "General Memoir" which was written in the beginning of 1888:

Can the attitude of the State towards a population of five millions, forming one-twentieth of its subjects—though belonging to a race different from that of the majority—whom that State itself had incorporated, together with the territories populated by them, into the Russian body politic, differ from its attitude towards all its other subjects?.... Hence, from the political point of view, the Jew is entitled

to equality of citizenship. Without granting him equal rights, we cannot, properly speaking, demand from him equal civic obligations.... Repression and disfranchisement, discrimination and persecution have never yet led to improve groups of human beings and make them more devoted to their rulers. It is, therefore, not surprising that the Jews, trained in the spirit of a century-long repressive legislation, have remained in the category of those subjects, who are less accurate in the discharge of their civic duty, who shirk their obligations towards the State, and do not fully join Russian life. *No less than six hundred and fifty restrictive laws directed against the Jews may be enumerated in the Russian Code*, and the discriminations and disabilities implied in these laws are such that they have naturally resulted in making until now the life of an enormous majority of the Jews in Russia exceedingly onerous....

The prejudice against the Jews is largely nurtured by the dislike which the common people secretly harbor towards them until to-day as non-Christians.... The names "Non-Christian" and "Christ-killer" may often be heard from the lips of the Russian common man as abusive terms directed against the Jew. The attitude of our Church and of the law of the State towards the Jewish religion is different. For, while they designate the Jewish religion as a "pseudo-doctrine," they nevertheless sanction religious toleration on as large a scale as possible [?!], and refrain from carrying on a compulsory and official missionary propaganda.

In the course of the last twenty-five years a new accusation has been brought forward against the Jews in Russia and those outside of Russia. The Jews have been found to form a considerable percentage among the champions of anarchistic and revolutionary doctrines, consisting mostly of half-educated youngsters who have drifted away from one shore and have not succeeded in reaching the other. This extremely deplorable fact

is used as evidence for the purpose of showing that Judaism itself contains within it a destructive force, and is, therefore, doubly dangerous to State and society. The Jewish progressives and socialists are wont to speak of their mission to reconstruct the world and of their innate love of mankind.... These statements need hardly be taken seriously, for present-day Jewry, by the very essence of its nature, professes strictly conservative principles, which to a large extent are egotistic and have for their aim the practical welfare of its adherents. The interpretation of the spirit of Judaism in a directly opposite sense is but an unsuccessful attempt on the part of Jewish anarchists who wish to proclaim themselves as the apostles of a new national mission invented by them. The fact of their forming a large percentage in the camp of those opposed to the Russian civic order may be explained by the artificial manner in which vast numbers of pupils from among the lowest classes of the Jewish population are attracted into the secondary and elementary educational establishments. These pupils are without means of a livelihood, and they lack, moreover, all religious beliefs; they are embittered not only by their personal unfortunate position but also by the pressure of the restrictive laws which weigh heavily upon their fellow-Jews in Russia.

The defects which should be truly combated by Government and society are: a) Jewish exclusiveness and separatism; b) the endeavor of the Jews to bring the economic forces of the population, in the midst of which they live, under their influence (i.e., exploitation)....

Having established the true dimensions and characteristics of the "Jewish evil," we are naturally expected to answer a question of an opposite nature: are the Jews to any extent useful to State and society? This question, though very frequently heard, is not quite intelligible, for every subject, who fulfils his obligations, is useful to State and society. It

would be strange to put a similar question concerning other nationalities of Eastern origin in Russia, such as the Greeks, Armenians, and Tartars. And yet this question is raised with great frequency in the case of the Jews, for the purpose of proving the need of repressive measures and framing a stronger indictment against the Jewish population. There is no doubt that in certain lines of endeavor the Jews are extremely useful. This was already realized by Catherine, who admitted them to the South-Russian coast in order to introduce commercial activities and bring life into the country,.... The peculiar nature of their commerce and credit is useful to the State, because they connect the remotest regions by commercial ties and are satisfied with considerably smaller profits than are the Christian merchants....

We must not, first of all, engage in too comprehensive plans of reform and imagine that the Jewish question can be considered in all its aspects and solved at one stroke.... Gradation and cautiousness must above all become the guiding principles of the future activity of the legislator.

The repressive policy, taken by itself, has been and will always be the first and main source of the clannishness of the Jews and their aloofness from Russian life.... The prohibitive laws have not improved the Jews. On the contrary, they have developed in them the spirit of opposition, and have prompted them to devise all the time most dexterous means of evading the law, thereby corrupting the lower executives of the State power. These laws affect the daily doings of every member of the Jewish population, and they extend to such spheres of life and activity in which State control is almost impossible. They touch the domain of private contract law (the prohibition of land leases), the domain of physical liberty and the need of human locomotion (the prohibition to transgress the Pale of Settlement, or to live in villages within fifty versts of the

border), the domain of daily pursuits and earnings (the prohibition of several professions), and many others.

No law will ever be able to check effectively the legal violations in these hourly acts and common relations of life. It is impossible to attach a policeman or a public prosecutor or a justice of the peace to every Jew. And yet it is perfectly natural that, being restricted in the most elementary rights of a subject—to take as one instance only the right of free movement—every Jew should daily attempt to violate and evade such burdensome regulations. This is perfectly natural and intelligible....

About ninety per cent of the whole Jewish population form a mass of people that are entirely unprovided for, and come near being a proletariat—a mass that lives from hand to mouth, amidst poverty, and most oppressive sanitary and general conditions. This very proletariat is occasionally the target of tumultuous popular uprisings. The Jewish mass lives in fear of pogroms and in fear of violence. It looks with envy upon the Jews of the adjacent governments of the Kingdom of Poland, who are almost entirely emancipated, though living under the jurisdiction of the same State. [1] The law itself places the Jews in the category of "alien races," on the same level with the Samoyeds and pagans. [2] In a word the abnormal condition of the present position of the Jews in Russia is evidenced by the instability and vagueness of their juridic rights.

[Footnote 1: The law of 1862 conferred upon the Jews of "the Kingdom of Poland," i.e., of Russian Poland, the right of unrestricted residence throughout the Kingdom, including the villages (see p. 181). This privilege was practically annulled by the enactment of June 11, 1891, which severely restricts the property rights of the Polish Jews.]

[Footnote 2: The Russian Code of Laws classifies the Jews as follows (Volume IX., Laws of Social Orders, Article 762): "Among the Aliens inhabiting the Russian Empire are the following: 1) The Siberian Aliens; 2) The Samoyeds of the Government of Archangel; 3) The nomadic Aliens of the Government of Stavropol; 4) The Kalmycks leading a nomadic life in the Governments of Astrakhan and Stavropol; 5) The Kirgiz of the Inner Ord; 6) The Aliens of the Territories of Akmolinsk, Semipalatinsk, Semiryechensk, Ural, and Turgay; 7) the alien populations of the Trans-Caspian Territory; 8) The Jews."]

Looking at the problem, not at all as Jewish apologetes or sympathizers, but purely from the point of view of civic righteousness and the highest principles of impartiality and justice, we cannot but admit that the Jews have a right to complain about their situation.... However unpleasant it might sound to the enemies of Judaism, it is nevertheless an axiom which no one can deny that the whole five million Jewish population of Russia, unattractive though it may appear to certain groups and individuals, is yet an integral part of Russia and that the questions affecting this population are at the same time purely Russian questions. We are not dealing with foreigners, whose admission to Russian citizenship might be conditioned by their usefulness or uselessness to Russia. The Jews of Russia are not foreigners. For more than one hundred years they have formed a part of that same Russian Empire, which has incorporated scores of other tribes many of which count by the millions....

The very history of Russian legislation, notwithstanding the fact that this legislation has developed largely under the influence of a most severe outlook on Judaism, teaches us that there is only one way and one solution—to emancipate and unite the Jews with the rest of the population under the protection of the same laws. All this is attested not

by theories and doctrines but by the living experience of centuries.... Hence the final goal of any legislation concerning the Jews can be no other than its abrogation, a course demanded equally by the needs of the times, the cause of enlightenment, and the progress of the popular masses.

The fitness of the Jews for full civil equality, to be attained by degrees and in the course of many long years, will be the final goal of the reforms, and will lead at last to the disentangling of that age-long knot. In saying this, we do not mean to imply that by that time the Jews will have cast off or transformed all those obnoxious qualities which are at present responsible for the fight in which all are engaged against them. But, as in the case of Europe, this fight can only be terminated by according them full emancipation and equal citizenship. To place obstacles in the way of this solution would be nothing more than a fruitless attempt to check the course of development of human society and Russian civil life. Unsympathetic as the Jews may be to the Russian masses, it is impossible not to agree with this axiomatic truth.

Turning now to the execution of its task, the High Commission has up to the present been able to carry out but a very small part of the program indicated. It was tied down by that gradation and cautiousness which it considers an indispensable condition for every improvement in the status of the Jews.... The principal task of the legislation, as far as it affects the Jews, must consist in uniting them as closely as possible with the general Christian population. It is not advisable to frame a new legislation in the form of a special "Statute" or "Regulation," since such a course would be fundamentally subversive of the efforts of the Government to remove Jewish exclusiveness. *The system of repressive and discriminating measures must give way to a graduated system of emancipatory and*

equalizing laws. The greatest possible *cautiousness* and *gradation* are the principles to be observed in the solution of the Jewish question.

3. THE TRIUMPH OF REACTION

With all their moderate and cautious phraseology, the conclusions of the Pahlen Commission, whose members, as hide-bound conservatives, were forced to reckon with the anti-Semitic trend of the governing circles, implied an annihilating criticism of the repressive policy of that very Government by which the Commission had been appointed. From the loins of Russian officialdom issued the enemy who opposed it in its manner of dealing with the Jewish question.

It must be added, however, that the opinions voiced by the Commission in its memorandum were by no means shared by its entire membership. For while the majority of the Commission were in favor of gradual reforms, the minority advocated the continuation of the old repressive policy. Owing to these internal disagreements, the Commission was slow in submitting its conclusions to the Government. One more attempt was made to procrastinate the matter. At the end of 1888 the Commission invited a group of Jewish "experts," being desirous, as it were, to listen to the last words of the prisoner at the bar. The choice fell upon the same Jewish notables of St. Petersburg, who had displayed so little courage at the Jewish conference of 1882. [1] The cross-examination of these Jewish representatives turned on the question of the internal Jewish organization, the existence of a secret Kahal, the purposes of the "basket tax," [2] and so on. Needless to say the replies were given in an apologetic spirit. The Jewish "experts" renounced the idea of a self-governing communal Jewish organization, and pleaded merely for a limited communal autonomy under the strict supervision of the Government. True, a few of the questions referred besides to the legal

position of the Jews, but this was done more as a matter of form. Everybody knew that the opinion of the majority of the Commission, favoring "cautious and gradual" reforms, did not have the same prospects of success as the views of the anti-Semitic minority which advocated the continuance of the old-time repressive policy.

[Footnote 1: See p. 304 et seq. In addition to those mentioned, M. Margolis was invited as an expert.]

[Footnote 2: See above, p. 61, n. 1.]

Soon the worst apprehensions proved to be true. Count Tolstoi, the reactionary Minister of the Interior, blocked the further progress of the plans formulated by the Pahlen Commission which should have been submitted in due course to the Council of State. There were persistent rumors to the effect that Alexander III., being decidedly in favor of continuing the policy of oppression towards the Jews, had "attached himself to the opinion of the minority" of the Pahlen Commission. According to another version, the question was actually brought up before the Council of State, and there, too, the anti-Semites proved to be in the minority, but the Tzar threw the weight of his opinion on their side. The project of the Commission, being out of harmony with the current Government policies, was disposed of at some secret session of leading dignitaries. The labor of five years was buried in the official archives.

As for the Jews themselves, they were at no time deceived about the effects that were likely to attend the work of the High Commission. They clearly understood that, if the Government had been genuinely desirous of "revising" the system of Jewish disabilities, it would have stopped, for a time at least, to manufacture new legislative whips and scorpions. The dark polar night of Russian reaction reigned supreme. There seemed to be no end to these orgies of the Russian night owls, the Pobyedonostzevs and Tolstois,

who were anxious to resuscitate the savagery of ancient Muscovy, and who kept the people in the grip of ignorance, drunkenness, and political barbarism. Every one in Russia kept his peace and held his breath. The progressive elements of the Empire were held down tightly by the lid of reaction. The press groaned under the yoke of a ferocious censorship. The mystic doctrine of non-resistance preached by Leo Tolstoi was attuned to the mood prevailing among educated Russians, for, in the words of the Russian poet, "their hearts, subdued by storms, were filled with silence and lassitude."

In Jewish life, too, silence reigned supreme. The sharp pangs of the first pogrom year were now dulled, and only suppressed moans echoed the uninterrupted "silent pogrom" of oppression. These were years of which the Jewish poet, Simon Frug, could sing:

Round about all is silent and cheerless,
Like a lonesome and desert-like plain.
If but one were courageous and fearless
And would cry out aloud in his pain!
Neither storm-wind nor starshine by night,
And the days neither cloudy nor bright:
O my people, how sad is thy state,
How gray and how cheerless thy fate!

But in this silence the national idea was slowly maturing and gaining in depth and in strength. The time had not yet arrived for clearly marked tendencies or well-defined systems of thought. But the temper of the intellectual classes of Russian Jewry was a clear indication that they were at the cross-roads. The "titled" *intelligenza*, reared in the Russian schools, who had drifted away from Judaism, was now joined by that other *intelligenza*, the product of heder and yeshibah, who had acquired European culture

through the medium of neo-Hebraic literature, and was in closer contact with the masses of the Jewish people.

True, the Jewish periodical press in the Russian language, which had arisen towards the end of the seventies, had lost in quantity. The *Razvyet* had ceased to appear in 1883, and the *Russki Yevrey* in 1884. The only press organ to remain on the battlefield was the militant *Voskhod*, which was the center for the publicistic, scientific, and poetic endeavors of the advanced intellectuals of that period. But the loss of the Russian branch of Jewish literature was made up by the growth of the Hebrew press. The old Hebrew organs *ha-Melitz* and *ha-Tzefirah* took on a new lease of life, and grew from weeklies into dailies. Voluminous annuals with rightful claims to scientific and literary importance, such as the *ha-Asif* ("The Harvest") and *Keneset Israel* ("The Community of Israel") in Warsaw, and other similar publications, began to make their appearance in Russia. New literary forces began to rise from the ground, though only to attain their full bloom during the following years. Taken as a whole, the ninth decade of the nineteenth century may well be designated as a period of transition from the older Haskalah movement to the more modern national revival.

4. AMERICAN AND PALESTINIAN EMIGRATION

As for the emigration movement, which had begun during the storm and stress of the first pogrom year, this passive but only effective protest against the new Egyptian oppression proceeded at a slow pace. The Jewish emigration from Russia to the United States served as a barometer of the persecutions endured by the Jews in the land of bondage. During the first three years of the eighties the new movement showed violent fluctuations. In 1881 there were 8193 emigrants; in 1882, 17,497; in 1883, 6907. During the following three years, from 1884 to 1886, the movement remained

practically on the same level, counting 15,000 to 17,000 emigrants annually. But in the last three years of that decade, it gained considerably in volume, mounting in 1887 to 28,944, in 1888 to 31,256, and in 1889 to 31,889. The exodus from Russia was undoubtedly stimulated by the law imposing a fine for evading military service and by the introduction of the educational percentage norm—two restrictions which threw into bold relief the disproportionate relation between rights and duties in Russian Jewry. In the Empire of the Tzars the Jews were denied the right of residence and the privilege of a school education, but forced at the same time to serve in the army. In the United States they at once received full civil equality and free schooling without any compulsory military service.

It goes without saying that the emigrants who had no difficulty in obtaining equality of citizenship were nevertheless compelled, during their first years of residence in the New World, to engage in a severe struggle for their material existence. Among the emigrants who came to America in those early years there were many young intellectuals who had given up their liberal careers in the land of bondage and were now dreaming of becoming plain agriculturists in the free republic. They managed to obtain a following among the emigrant masses, and founded, in the face of extraordinary difficulties, and with the help of charitable organizations, a number of colonies and farms in various parts of the United States, in Louisiana, North and South Dakota, New Jersey, and elsewhere. After a few years of vain struggling against material want and lack of adaptation to local conditions, a large number of these colonies were abandoned, and only a few of them have survived until to-day.

In the course of time the idealistic pioneer spirit which had animated the Russian intellectuals gave way to a sober realism which was more in harmony with the conditions of American life. The bulk of the emigrant masses settled in the cities, primarily in New York. They worked in

factories or at the trades, the most important of which was the needle trade; they engaged in business, in peddling, and in farming, and, lastly, in the liberal professions. Many an immigrant passed successively through all these economic stages before obtaining a secure economic position.

The result of all these wanderings and vicissitudes was a well-established community in the United States of some 200,000 Jews, who formed the nucleus for the rapidly growing new Jewish center in America. One of the active participants and leaders in this movement, who had in his own life experienced all the hardships connected with it, concludes his account of the emigration to the United States at the end of the eighties with the following words:

No one who has seen the poor, down-trodden, faint-hearted inhabitant of the infamous Pale, with the Damocles sword of brutal mob rule dangling constantly over his head, shaking like an autumn leaf at the sight of an inspector or even a plain policeman; who has seen this little Jew transformed, under the influence of the struggle for existence and an independent life, into a free American Jew who holds his head proudly, whom no one would dare to offend, and who has become a citizen in the full sense of the word—no one who has seen this wonderful transformation can doubt for a moment the enormous significance of the emigration movement for the 200,000 Jews that have found shelter in America.

Idealistic influences rather than realistic factors were at work in the Palestinian colonization movement, which proceeded on a parallel line with the American emigration, as a small stream sometimes accompanies a large river. The ideas preached by the first "Lovers of Zion" were but slowly assuming concrete shape. The pioneer colonists in the ancient fatherland met with enormous obstacles in their path: the opposition of the Turkish

Government which hindered in every possible way the purchase of land and acquisition of property; the neglected condition of the soil, the uncivilized state of the neighboring Arabs, the lack of financial means and of agricultural experience. Despite all these drawbacks, the efforts of a few men led to the establishment in the very first year of the movement, in 1882, of the colony Rishon le-Zion, near Jaffa. Subsequently a few more colonies were founded, such as Ekron and Ghederah in Judea, Yesod Hama'alah, Rosh-Pinah, Zikhron Jacob in Galilee—the last two founded by Roumanian Jews. Called into life by enthusiasts with inadequate material resources, these colonies would have scarcely been able to survive, had not their plight aroused the interest of Baron Edmond de Rothschild in Paris. Beginning with 1884, the baron, pursuing purely philanthropic aims, gave his support to the colonies, spending enormous sums on cultivating in them the higher forms of agriculture, particularly wine-growing. Gradually, the baron became the actual owner of a majority of the colonies which were administered by his appointees, and most of the colonists were reduced to the level of laborers or tenants who were entirely in the hands of the baron's administration. This state of affairs was unquestionably humiliating and almost too hard to bear for men who had dreamed of a free life in the Holy Land. Yet there can be no doubt that under the conditions prevailing at the time the continued existence of the colonies was only made possible through the liberal assistance which came from the outside.

The progress of the Palestinian colonization, slow though it was, provided a concrete basis for the doctrines preached by the "Lovers of Zion" in Russia. The propaganda of these *Hobebe Zion*—the Hebrew equivalent for "Lovers of Zion"—who acknowledged as their leaders the first exponents of the territorial restoration of Jewry, Pinsker and Lilienblum, led to the organization of a number of societies in various cities. Towards the end of 1884 the delegates of these societies met at a conference in the Prussian border-town Kattowitz, such a conference being

impossible in Russia, in view of the danger of police interference. On that occasion a fund was established under the name of *Mazkeret Moshe*, "A Memorial to Moses," in honor of the English philanthropist Sir Moses Montefiore, whose hundredth birthday was celebrated in that year. The fund, which formed the main channel for all donations in favor of the Palestinian colonies, was administered by the two *Hobebe Zion* centers in Odessa and Warsaw. The movement which had been called into life by representatives of the *intelligenza* succeeded in winning over several champions of rabbinical orthodoxy, among them Samuel Mohilever, the well known rabbi of Bialystok; their affiliation with the new party was largely instrumental in weakening the opposition of the orthodox masses which were inclined to look upon this political movement as a rival of the traditional Messianic idea of Judaism. The lack of governmental sanction hampered the *Hobebe Zion* societies in Russia in their activities, and the funds at their disposal were barely sufficient for the upkeep of one or two colonies in Palestine. Realizing this, the conference of the "Lovers of Zion" which met at Druskeniki [1] in 1887 decided to apply to the Russian Government for the legalization of the *Hobebe Zion* organization, a consummation which was realized a few years later, in 1890.

[Footnote 1: A watering-place in the government of Grodno.]

Thus did, during the first decade of the war waged by the Tzars against their Jewish subjects, the tide of Russian-Jewish emigration slowly roll towards various shores, until a fresh storm in the beginning of the new decade whipped its waves to unprecedented heights. Whereas in the course of the eighties the Russian Government wished to give the impression as if it merely "tolerated" the departure of the Jews from Russia—although in reality it was the ultimate aim of its policies—in the beginning of the nineties it suddenly cast off its mask and gave its public sanction to a Jewish exodus from the Russian Empire. As if to strengthen the effect of

this sanction, the Jews were to taste even more fully the whip of persecution and expulsion than they had done during the preceding decade.

CHAPTER XXVIII

JUDAEOPHOBIA TRIUMPHANT

1. INTENSIFIED REACTION

The poisonous Judaeophobia bacilli seemed to thrive more than ever in the highest Government circles of St. Petersburg. However, not only the hatred against the Jews but also the fury of general political reaction became more rabid than ever after the "miraculous escape" of the imperial family in the railroad accident near Borki on October 17, 1888. [1] Amidst the ecclesiastic and mystic haze with which Pobyedonostzev and his associates managed to veil this episode the conviction became deeply ingrained in the mind of the Tzar that it was the finger of God which pointed to him the way in which Russia might be saved from "Western" reforms and brought back into the fold of traditional Russian orthodoxy. This conviction of Alexander III. led to the counter-reforms which marked the concluding years of his reign, having for their purpose the strengthening of the police and Church régime in Russia, such as the curtailment of rural and urban self-government, the increase of the power of the nobility and clergy, the institution of Zemstvo chiefs, [2] and the multiplication of Greek-Orthodox parochial schools at the expense of secular schools. The same influences also stimulated the luxurious growth of Judaeophobia which from now on assumed in the highest Government circles a most malignant character. A manifestation of this frame of mind may be found in

the words of the Tzar which he penned on the margin of a report submitted to him in 1890 by a high official, describing the sufferings of the Jews and pleading for the necessity of stopping the policy of oppression: "*But we must not forget that it was the Jews who crucified our Lord and spilled his priceless blood.*" Representatives of the court clergy publicly preached that a Christian ought not to cultivate friendly relations with a Jew, since it was the command of the gospel "to hate the murderers of the Savior." The Ministry of the Interior, under the direction of two fanatic reactionaries, Durnovo and Plehve, [3] set on foot all the inquisitorial contrivances of the Police Department, of which both these officials had formerly been the chiefs.

[Footnote 1: Borki is a village in the government of Kherson. Of the fifteen cars of the imperial train only five remained intact. Fifty-eight persons were injured, twenty-one fatally. The members of the imperial family were saved, although their car had been completely wrecked.]

The following quotation from Harold Frederic, *The New Exodus*, p. 168 et seq., is of interest in this connection: "It was reported about that the Tzar regarded the escape alive of himself and family from the terrible railway accident at Borki as the direct and miraculous intervention of Providence. The facts were that the imperial train was being driven at the rate of ninety versts an hour over a road calculated to withstand at the utmost a speed of thirty-five versts; that the engineer humbly warned the Tzar of the danger, and was gruffly ordered to go still faster if possible, and that the miracle would have been the avoidance of calamity."]

[Footnote 2: On the Zemstvos compare p. 173, n. 1. The reactionary law of June 12, 1890 (see later, p. 358 et seq.) puts in place of the executives formerly elected by the people the "Zemstvo chiefs," officials appointed from among the landed proprietors.]

[Footnote 3: Durnovo became Minister of the Interior in 1889, after the demise of Tolstoi; Plehve was assistant-minister.]

The press was either tamed or used as a tool of the governmental policies. The most widely read press organs of the capital, with the exception of the moderately liberal *Novosti* ("The News") which managed to survive the shipwreck of the liberal press, became either openly or secretly the official mouthpieces of the Government. The venal *Novoye Vremya*, which the Russian satirist Shchedrin had branded as "the sewer," embarked, towards the end of the eighties, on the noble enterprise of hunting down the Jews with a zeal which was clear evidence of a higher demand for Judaeophobia in the official world. There was no accusation, however hideous, which Suvorin's paper, steered simultaneously by the Holy Synod and by the Police Department, failed to hurl in the face of the Jews. As an organ generally reflecting the views of the Government, the *Novoye Vremya* served at that time as a source of political information for all dignitaries and officials. The ministers, governors and the vast army of subordinate officials, who wished to ascertain the political course at a given moment, consulted this "well-informed" daily, which, as far as the Jewish question was concerned, pursued but one aim: to make the life of the Jews in Russia unbearable. Apart from the *Novoye Vremya*, which was read by the Tzar himself, the work of Jew-baiting was also carried on with considerable zeal by the Russian weekly *Grazhdanin* ("The Citizen"), whose editor, Count Meshcherski, enjoyed not only the personal favor of Alexander III. but also a substantial Government subsidy. These metropolitan organs of publicity gave the tone to the whole official and semi-official press in the provinces, and the public opinion of Russia was systematically poisoned by the venom of Judaeophobia.

When the Pahlen Commission was discharged, the Tzar having "attached himself to the opinion of the minority," [1] the Government had no

difficulty in finding a few kind-hearted officials who were eager to carry the project framed by this reactionary minority into effect. The project itself, which had been elaborated in the Ministry of the Interior under the direction of Plehve, the sinister Chief of Police, was guarded with great secrecy, as if it concerned a plan of military operations against a belligerent Power. But the secret leaked out very soon. The Minister had sent out copies of the project to the governors-general, soliciting their opinions, and ere long copies of the project were circulating in London, Paris, and Vienna. In the spring of 1890, Russia and Western Europe were filled with alarming rumors concerning an enactment of some "forty clauses," which was designed to curtail the commercial activities of the Jews, to increase the rigor of the "Temporary Rules" within the Pale, and restrict the privileges conferred upon several categories of Jews outside of it, to establish medieval Jewish ghettos in St. Petersburg, Moscow, and Kiev, and similar measures. The foreign press made a terrible outcry against these contemplated new acts of barbarism.

[Footnote 1: See p. 370.]

The voice of protest was particularly strong in England. The *London Times* assailed in violent terms the reactionary policies of Russia, and a special organ, called *Darkest Russia*, was published for this purpose by Russian political refugees in England. The Russian Government denied these rumors through its diplomatic channels, though at the very same time the well-informed *Novoye Vremya* and *Grazhdanin* were not barred from printing news items concerning the projected disabilities or from recommending ferocious measures against the Jews for the purpose "of removing them from all branches of labor."

This comedy was well understood abroad. At the end of July and in the beginning of August interpellations were introduced in both Houses of the

English Parliament, as to whether Her Majesty's Government found it possible to make diplomatic representations in defence of the persecuted Russian Jews for whom England would have to provide, were they to arrive there in large masses. Premier Salisbury, in the House of Lords, and Fergusson, the Under-Secretary of State for Foreign Affairs, in the House of Commons, replied that "these proceedings, which, if rightly reported to us, are deeply to be regretted, concern the internal affairs of the Russian Empire, and do not admit of any interference on the part of Her Majesty's Government." [1] When shortly afterwards preparations were set on foot for calling a protest meeting in London, the Russian Government hastened to announce through the British ambassador in St. Petersburg that no new measures against the Jews were in contemplation, and the meeting was called off. Rumor had it that the Lord Mayor of London, Henry Isaacs, who was a Jew, did not approve of this meeting, over which, according to the English custom, he would have to preside. The action of the Lord Mayor may have been "tactful," but it was certainly not free from an admixture of timidity.

[Footnote 1: See *The Jewish Chronicle* of August 8, 1890, p. 18b.]

2. CONTINUED HARASSING

While anxiously endeavoring to appease public opinion abroad, the Russian Government at home did all it could to keep the Jews in an agitated state of mind. The legal drafts and the circulars which had been sent out secretly by the central Government in St. Petersburg elicited the liveliest sympathy on the part of the provincial administrators. Not satisfied with signifying to the Ministry their approval of the contemplated disabilities, many officials of high rank began to display openly their bitter hatred of the Jews.

At one and the same time, during the months of June, July, and August of 1890, the heads of various local provincial administrations published circulars calling the attention of the police to the "audacious conduct" of the Jews who, on meeting Russian officials, failed to take off their hats by way of greeting. The governor of Moghilev instructed the police of his province to impress the local Jewish population with the necessity of "polite manners," in the sense of a more reverent attitude towards the representatives of Russian authority. In compliance with this order, the district chiefs of police compelled the rabbis to inculcate their flock in the synagogues with reverence for Russian officialdom. In Mstislavl, a town in the government of Moghilev, the president of the nobility [1] assembled the leading members of the Jewish community, and cautioned them that those Jews who would fail to comply with the governor's circular would be subjected to a public whipping by the police. The governor of Odessa, the well-known despot Zelenoy, issued a police ordinance for the purpose of "curbing the impudence displayed by the Jews in places of public gathering and particularly in the suburban trolley cars" where they do not give up their seats and altogether show disrespect towards "persons of advanced age or those wearing a uniform, testifying to their high position." Even more brutal was the conduct of the governor-general of Vilna, Kakhanov, who, despite his high rank, allowed himself, in replying to the speech of welcome of a Jewish deputation, to animadvert not only on Jewish "clannishness" but also on the "licentiousness" of the Jewish population, manifesting itself in congregating on the streets, and similar grave crimes.

[Footnote 1: See above, p. 303.]

The simultaneous occurrence of this sort of official actions in widely separated places point to a common source, probably to some secret instructions from St. Petersburg. It would seem, however, that the provincial henchmen of the central Government had overreached

themselves in their eagerness to carry out the behest of "curbing the Jews." The pettiness of their demands, which, moreover, were illegal, such as the order to take off the hats before the officials, or to give up the seats in the trolley cars, merely served to ridicule the representatives of Russian officialdom, giving frequent rise to tragi-comic conflicts in public and to utterances of indignation in the press. The public pronouncements of these genteel *chinovniks* who were anxious to train the Jewish masses in the fear of Russian bureaucracy and inculcate in them polite manners aroused the attention both of the Russian and the foreign press. It was universally felt that these farcical performances of uncouth administrators were only the manifestations of a bottomless hatred, of a morbid desire to insult and to humble the Jews, and that these administrators were capable at any moment to proceed from moralizing to more tangible forms of ill-treatment. This danger intensified the state of alarm.

While making preparations for storming the citadel of Russian Jewry, the Government took good care to keep it meanwhile in its normal state of siege. The resourcefulness of the administration brought the *technique* of repression to perfection. The officials were no longer content with inventing cunning devices for expelling old Jewish residents from the villages. [1] They now made endeavors to reduce even the area of the *urban* Pale in which the Jews were huddled together, panting for breath. In 1890, the provincial authorities, acting evidently on a signal from above, began to change numerous little townlets into villages, which, as rural settlements, would be closed to the Jews. As a result, all the Jews who had settled in these localities after the issuance of the "Temporary Rules" of May 3, 1882, were now expelled, and even the older residents who were exempt from the operation of the May laws shared the same fate unless they were able (which in very many cases they were not) to produce documentary evidence that they had lived there prior to 1882. Simultaneously a new attempt was made to drive the Jews from the forbidden fifty verst zone along the

Western border of the Empire, particularly in Bessarabia. These expulsions had the effect of filling the already over-crowded cities of the Pale with many more thousands of ruined people.

[Footnote 1: There are cases on record when Jewish soldiers who returned home after the completion of their term of service were refused admission to their villages, on the ground that they were "new settlers."]

At the same time the life of the outlawed Jews was made unbearable in the cities outside the Pale, particularly in the large centers, such as Kiev, Moscow, and St. Petersburg. The governor-general of Kiev prohibited the wives of Jewish artisans who were legally entitled to residence in that city to sell eatables in the market, on the technical ground that under the law artisans could only trade in the articles of their own manufacture, thus robbing the poor Jewish workman of the miserable pittance which his wife was anxious to contribute by her honest labor towards the maintenance of the family.

A great *political* blow for the Jews was the clause in the new reactionary "Statute Concerning the Zemstvo Organizations" issued on June 12, 1890, [1] under which the Jews, though paying the local taxes, were completely barred from participating in the election of deputies to the organization of local self-government. This clause was inserted in the legal draft by the three shining lights of the political inquisition active at that time, Pobyedonostzev, Durnovo, and Plehve. They justified this restriction on the following grounds: the object of the new law is to transform local self-government into a state administration and to strengthen in the former the influence of the central Government at the expense of the local Government; hence the Jews, "being altogether an element hostile to Government," are not fit to participate in the Zemstvo administration. The

Council of State agreed with this bureaucratic motivation, and the humiliating clause passed into law.

[Footnote 1: The new law invalidated to a large extent the liberties granted to the Zemstvos by Alexander II. in 1864 (compare p. 173) by placing them under state control.]

While a large part of the Russian public and of the Russian press had succumbed to the prevailing tendencies under the high pressure of the anti-Semitic atmosphere, the progressive elements of the Russian *intelligenzia* were gradually aroused to a feeling of protest. Vladimir Solovyov, "the Christian philosopher," a friend of the Jewish people, who had familiarized himself thoroughly with its history and literature, conceived the idea of issuing a public protest against the anti-Semitic movement in the "Russian Press," [1] to be signed by the most prominent Russian writers and other well-known men. During the months of May and June, 1890, he succeeded under great difficulties to collect for his protest sixty-six signatures in Moscow and over fifty signatures in St. Petersburg, including those of Leo Tolstoi, Vladimir Korolenko, and other literary celebrities. Despite its mild tone, the protest which had been framed by Solovyov [2] was barred from publication by the Russian censor. Professor Ilovaiski, of Moscow, a historian of doubtful reputation, but a hide-bound Jew-baiter, had informed the authorities of St. Petersburg of the attempt to collect signatures in Moscow for a "pro-Jewish petition." As a result, all newspapers received orders from the Russian Press Department to refuse their columns to any collective pronouncements touching the Jewish question.

[Footnote 1: The latter expression was a euphemism designating the Russian Government and its reactionary henchmen in the press. The severity of the police made this evasion necessary.]

[Footnote 2: The following extracts from this meek appeal deserve to be quoted: "The movement against the Jews which is propagated by the Russian press represents an unprecedented violation of the most fundamental demands of righteousness and humanity. We consider it our duty to recall these elementary demands to the mind of the Russian public.... In all nationalities there are bad and ill-minded persons but there is not, and cannot be, any bad and ill-minded nationality, for this would abrogate the moral responsibility of the individual.... It is unjust to make the Jews responsible for those phenomena in their lives which are the result of thousands of years of persecution in Europe and of the abnormal conditions in which this people has been placed.... The fact of belonging to a Semitic tribe and professing the Mosaic creed is nothing prejudicial and cannot of itself serve as a basis for an exceptional civil position of the Jews, as compared with the Russian subjects of other nationalities and denominations.... The recognition and application of these simple truths is important and is first of all necessary for ourselves. The increased endeavor to kindle national and religious hatred, which is so contradictory to the spirit of Christianity and suppresses the feelings of justice and humaneness, is bound to demoralize society at its very root and bring about a state of moral anarchy, particularly so in view of the decline of humanitarian ideas and the weakness of the principle of justice already noticeable in our life. For this reason, acting from the mere instinct of national self-preservation, we must emphatically condemn the anti-Semitic movement not only as immoral in itself but also as extremely dangerous for the future of Russia."]

Solovyov addressed an impassioned appeal to Alexander III., but received through one of the Ministers the impressive advice to refrain from raising a cry on behalf of the Jews, under pain of administrative penalties. In these circumstances, the plan of a public protest had to be abandoned. Instead, the following device was resorted to as a makeshift. Solovyov's teacher of Jewish literature, F. Goetz, was publishing an apology of Judaism

under the title "A Word from the Prisoner at the Bar." Solovyov wrote a preface to this little volume, and turned over to its author for publication the letters of Tolstoi and Korolenko in the defence of the Jews. No sooner had the book left the press than it was confiscated by the censor, and, in spite of all petitions, the entire edition of this innocent apology was thrown into the flames. In this way the Russian Government succeeded in shutting the mouths of the few defenders of Judaism, while according unrestricted liberty of speech to its ferocious assailants.

3. THE GUILDHALL MEETING IN LONDON

The cry of indignation against Jewish oppression, which had been smothered in Russia, could not be stifled abroad. The Jews of England took the initiative in this matter. On November 5, 1890, the *London Times* published a letter from N.S. Joseph, honorary secretary to the Russo-Jewish Committee in London, passionately appealing to the public men of England to intercede on behalf of his persecuted coreligionists. The writer of the letter called attention to the fact that, while the Russian Government was officially denying that it was contemplating new restrictions against the Jews, it was at the same time applying the former restrictions on so comprehensive a scale and with such extraordinary cruelty that the Jews in the Pale of Settlement were like a doomed prisoner in a cell with its opposite walls gradually approaching, contracting by slow degrees his breathing space, till they at last immure him in a living tomb.

The writer concludes his appeal in these terms:

It may seem a sorry jest but the Russian law, in very truth, now declares: The Jew may live here only and shall not live there; if he lives here he must remain here; but wherever he lives he shall not live—he shall not have the means of living. This is the operation of the law as it

stands, without any new edict. This is the sentence of death that silently, insidiously, and in the veiled language of obscurely worded laws has been pronounced against hundreds of thousands of human beings.... Shall civilized Europe, shall the Christianity of England behold this slow torture and bloodless massacre, and be silent?

The appeal of the Russo-Jewish Committee and the new gloomy tidings from Russia published by the *Times* decided a number of prominent Englishmen to call the protest meeting which had been postponed half a year previously. Eighty-three foremost representatives of English society addressed a letter to the Lord Mayor of London calling upon him to convene such a meeting. The office of Lord Mayor at that time was occupied by Joseph Savory, a Christian, who did not share the susceptibilities which had troubled his Jewish predecessor. Immediately on assuming office, Savory gave his consent to the holding of the meeting.

On December 10, 1890, the meeting was held in the magnificent Guildhall, belonging to the City of London, and was attended by more than 2000 people. The Lord Mayor who presided over the gathering endeavored in his introductory remarks to soften the bitterness of the protest for the benefit of official Russia.

As I hear—he said—the Emperor of Russia is a good husband and a tender father, and I cannot but think that such a man must necessarily be kindly disposed to all his subjects. On his Majesty the Emperor of Russia the hopes of the Russian Jews are at the present moment fixed. He can by one stroke of his pen annul those laws which now press so grievously upon them and he can thus give a happy life to those Jewish subjects of his who now can hardly be said to live at all.

In conclusion, the Lord Mayor expressed the wish that Alexander III. may become the "emancipator" of the Russian Jews, just as his father

Alexander II. had been the emancipator of the Russian serfs.

Cardinal Manning, the warm-hearted champion of Jewish emancipation, who was prevented by illness from being present, sent a long letter which was read to the meeting. The argument against interfering with the inner politics of a foreign country, the cardinal wrote, had found its first expression in Cain's question, "Am I my brother's keeper?" There is a united Jewish race scattered all over the world, and the pain inflicted upon it in Russia is felt by the Jewish race in England. It is wrong to keep silent when we see six million men reduced to the level of criminals, particularly when they belong to a race "with a sacred history of nearly four thousand years."

The speakers who followed the Lord Mayor pictured in vivid colors the political and civil bondage of Russian Jewry.

The first speaker, the Duke of Westminster, after recounting the sufferings of Russian Jewry, moved the adoption of the protest resolution, notwithstanding the fact that the "great protest of 1882" (at the Mansion House meeting)[1] had brought no results. "We read in the history of the Jewish race that 'God hardened the heart of Pharaoh so that he would not let the people of Israel go'; but deliverance came at last by the hand of Moses."

[Footnote 1: See p. 288 et seq.]

After brilliant speeches by the Bishop of Ripon, the Earl of Meath, and others, the following resolution was adopted:

That in the opinion of this meeting the renewed sufferings of the Jews in Russia from the operation of severe and exceptional edicts and disabilities are deeply to be deplored, and that in this last decade of the nineteenth century religious liberty is a principle which should be

recognized by every Christian community as among the natural human rights.

At the same time a second resolution was adopted to the following effect:

That a suitable memorial be addressed to his Imperial Majesty the Emperor of all the Russias, respectfully praying his Majesty to repeal all the exceptional and restrictive laws and disabilities which afflict his Jewish subjects; and begging his Majesty to confer upon them equal rights with those enjoyed by the rest of his Majesty's subjects; and that the said memorial be signed by the Right Hon. the Lord Mayor, in the name of the citizens of London, and be transmitted by his Lordship to his Majesty.

A few extracts from the memorandum may be quoted by way of illustrating the character of this remarkable appeal to the Russian emperor:

We, the citizens of London, respectfully approach your Majesty and humbly beg your gracious leave to plead the cause of the afflicted.

Cries of distress have reached us from thousands of suffering Israelites in your vast empire; and we Englishmen, with pity in our souls for all who suffer, turn to your Majesty to implore for them your Sovereign aid and clemency.

Five millions of your Majesty's subjects groan beneath the yoke of exceptional and restrictive laws. Remnants of a race, whence all religion sprung—ours and yours, and every creed on earth that owns one God—men who cling with all devotion to their ancient faith and forms of worship, these Hebrews are in your empire subject to such laws that under them they cannot live and thrive....

Pent up in narrow bounds within your Majesty's wide empire, and even within those bounds forced to reside chiefly in towns that reek and overflow with every form of poverty and wretchedness; forbidden all free movement; hedged in every enterprise by restrictive laws; forbidden tenure of land, or all concern in land, their means of livelihood have become so cramped as to render life for them well-nigh impossible.

Nor are they cramped alone in space and action. The higher education is denied them, except in limits far below the due proportion of their needs and aspirations. They may not freely exercise professions, like other subjects of your Majesty, nor may they gain promotion in the Army, however great their merit and their valour....

Sire! we who have learnt to tolerate all creeds, deeming it a principle of true religion to permit religious liberty, we beseech your Majesty to repeal those laws that afflict these Israelites. Give them the blessing of equality! In every land where Jews have equal rights, the nation prospers. We pray you, then, annul those special laws and disabilities that crush and cow your Hebrew subjects....

Sire! your Royal Sister, our Empress Queen (whom God preserve!) bases her throne upon her people's love, making their happiness her own. So may your Majesty gain from your subjects' love all strength and happiness, making your mighty empire mightier still, rendering your Throne firm and impregnable, reaping new blessings for your House and Home.

The memorial was signed by Savory, who was Lord Mayor at that time, and forwarded by him to St. Petersburg. It was accompanied by a letter, dated December 24, from the Lord Mayor to Lieutenant-General de Richter, aide-de-camp of the Tzar for the reception of petitions, with the request to transmit the document to the emperor.

It is almost unnecessary to add that this touching appeal for justice by the citizens of London failed to receive a direct reply. There were rumors that the London petition threw the Tzar into a fury, and the future court annalist of Russia will probably tell of the scene that took place in the imperial palace when this document was read. An indirect reply came through the cringing official press. The mouthpiece of the Russian Government abroad, the newspaper *Le Nord* in Brussels, which was especially engaged in the task of whitewashing the black politics of its employers, published an article under the heading "A Last Word concerning Semitism," in which the rancor of the highest Government circles in Russia found undisguised expression:

The Semites—quoth the semi-official organ with an impudent disregard of truth—have never yet had such an easy life in Russia as they have at the present time, and yet they have never complained so bitterly. There is a reason for it. It is a peculiarity of Semitism: a Semite is never satisfied with anything; the more you give him the more he wishes to have.

In the evident desire to fool its readers, *Le Nord* declared that the protesters at the London meeting might have saved themselves the trouble of demanding "religious liberty" for the Jews—which in the London petition was understood, of course, to imply civil liberty for the professors of Judaism—since nobody in Russia restricted the Jews in their worship. Nor did the civil disabilities weigh heavily upon the Jews. On the contrary, they felt so happy in Russia that even the Jewish emigrants in America dreamt of returning to their homeland.

4. THE PROTEST OF AMERICA

The same attitude of double-dealing was adopted by the smooth-tongued Russian diplomats toward the Government of the United States. Aroused over the inhuman treatment of the Jews in Russia, and alarmed by the effects of a sudden Russian-Jewish immigration to America, which was bound to follow as a result of this treatment, the House of Representatives adopted a resolution on August 20, 1890, requesting the President—

To communicate to the House of Representatives, if not incompatible with the public interests, any information in his possession concerning the enforcement of proscriptive edicts against the Jews in Russia, recently ordered, as reported in the public press; and whether any American citizens have, because of their religion, been ordered to be expelled from Russia, or forbidden the exercise of the ordinary privileges enjoyed by the inhabitants.

In response to this resolution, President Harrison laid before Congress all the correspondence and papers bearing on the Jewish question in Russia. [1]

[Footnote 1: The material was printed as *Executive Document* No. 470, dated October 1, 1890. It reproduced all the documents originally embodied in *Executive Document* No. 192 (see above, p. 294, n. 1), in addition to the new material.]

A little later, on December 19 of the same year, the following resolution of protest was introduced in the House of Representatives and referred to the Committee on Foreign Affairs:

Resolved, That the members of the House of Representatives of the United States have heard with profound sorrow, and with feelings akin to horror, the reports of the persecution of the Jews in Russia, reflecting the barbarism of past ages, disgracing humanity, and impeding the progress of civilization.

Resolved, That our sorrow is intensified by the fact that such occurrences should happen in a country which has been, and now is, the firm friend of the United States, and in a nation that clothed itself with glory, not long since, by the emancipation of its serfs and by its defense of helpless Christians from the oppression of the Turks.

Resolved, That a copy of this resolution be forwarded to the Secretary of State, with a request that he send it to the American Minister at St. Petersburg, and that said Minister be directed to present the same to his Imperial Majesty Alexander III., Czar of all the Russias. [1]

[Footnote 1:*Congressional Record*, Vol. 22, p. 705.—The resolution was reported back on February 5, 1891, in the following amended form (loc. cit., p. 2219):

Resolved, That the members of the House of Representatives of the United States have heard with profound sorrow the reports of the sufferings of the Jews in Russia; and this sorrow is intensified by the fact that these occurrences should happen in a country which is, and long has been the friend of the United States, which emancipated millions of its people from serfdom, and which defended helpless Christians in the East from persecution for their religion; and we earnestly hope that the humanity and enlightened spirit then so strikingly shown by His Imperial Majesty will now be manifested in checking and mitigating the severe measures directed against men of the Jewish religion.]

In the meantime the Department of State was flooded with protests against the Russian atrocities.

Almost every day—Secretary of State, James G. Blaine, writes to Charles Emory Smith, United States Minister at St. Petersburg, on February 27, 1891—communications are received on this subject;

temperate, and couched in language respectful to the Government of the Czar; but at the same time indicative and strongly expressive of the depth and prevalence of the sentiment of disapprobation and regret. [1]

[Footnote 1: *Foreign Relations of the United States*, 1891, p. 740.]

The American Minister was therefore instructed to exert his influence with the Russian Government in the direction of mitigating the severity of the anti-Jewish measures. He was to point out to the Russian authorities that the maltreatment of the Jews in Russia was not purely an internal affair of the Russian Government, inasmuch as it affected the interests of the United States. Within ten years 200,000 Russian Jews had come over to America, and continued persecutions in Russia were bound to result in a large and sudden immigration which was not unattended with danger. While the United States did not presume to dictate to Russia, "nevertheless, the mutual duties of nations require that each should use his power with a due regard for the other and for the results which its exercise produces on the rest of the world." [1]

[Footnote 1: *Loc. cit.*, p. 737.]

The remonstrances of the American people which were voiced by their representatives at St. Petersburg were received by the Russian Government in a manner which strikingly illustrates the well-known duplicity of its diplomatic methods. While endeavoring to justify its policy of oppression by all kinds of libellous charges against the Russian Jews, it gave at the same time repeated assurance to the American Minister that no new proscriptive laws were contemplated, and the latter reported accordingly to his Government. [1] On February 10, 1891, the American Minister, writing to Secretary Blaine, gives a detailed account of the conversation he had had with the Russian Minister for Foreign Affairs, de Giers. The latter went out of his way to discuss with him unreservedly the entire Jewish situation in

Russia, and, while making all kinds of subtle insinuations against the character of the Russian Jew, he expressed himself in a manner which was calculated to convince the American representative of the conciliatory disposition of the Russian Government. [2] Less than three weeks later followed the cruel expulsion edict against the Jews of Moscow.

[Footnote 1: Compare in particular his dispatch, dated September 25, 1890, published in *Executive Document* No. 470, p. 141.]

[Footnote 2: *Foreign Relations*, 1891, p. 734.]

While the Russian Government, abashed by the voices of protest, made an effort to justify itself in the eyes of Europe and America and perverted the truth with its well-known diplomatic skill, the *Russkaya Zhizn* ("Russian Life"), a St. Petersburg paper, which was far from being pro-Jewish, published a number of heart-rending facts illustrating the trials of the outlawed Jews at Moscow. It told of a young talented Jew who maintained himself and his family by working on a Moscow newspaper and, not having the right of residence in that city, was wont to save himself from the night raids of the police by hiding himself, on a signal of his landlord, in the wardrobe. Many Jews who lived honestly by the sweat of their brow were cruelly expelled by the police when their certificates of residence contained even the slightest technical inaccuracy. By way of illustrating the "religious liberty" of the Jews in the narrower sense of the word, the paper mentioned the fact that after the opening of the new synagogue in Moscow, which accommodated five hundred worshippers, the police ordered the closing of all the other houses of prayer, to the number of twenty, which had been attended by some ten thousand people.

The governor of St. Petersburg, Gresser, made a regular sport of taunting the Jews. One ordinance of his prescribed that the signs on the stores and workshops belonging to Jews should indicate not only the family names of

their owners but also their full first names as well as their fathers' names, exactly as they were spelled in their passports, "with the end in view of averting possible misunderstandings." The object of this ordinance was to enable the Christian public to boycott the Jewish stores and, in addition, to poke fun at the names of the owners, which, as a rule, were mutilated in the Russian registers and passports to the point of ridiculousness by semi-illiterate clerks.

Gresser's ordinance was issued on November 17, 1890, a few days before the protest meeting in London. As the Russian Government was at that time assuring Europe that the Jews were particularly happy in Russia, the ordinance was not published in the newspapers but nevertheless applied secretly. The Jewish storekeepers, who realized the malicious intent of the new edict, tried to minimize the damage resulting from it by having their names painted in small letters so as not to catch the eyes of the Russian anti-Semites. Thereupon Gresser directed the police officials (in March 1891) to see to it that the Jewish names on the store signs should be indicated "clearly and in a conspicuous place, in accordance with the prescribed drawings" and "to report immediately" to him any attempt to violate the law. In this manner St. Petersburg reacted upon the cries of indignation which rang at that time through Europe and America.

CHAPTER XXIX

THE EXPULSION FROM MOSCOW

1. PREPARING THE BLOW

The year 1891 had arrived. The air was full of evil forebodings. In the solitude of the Government chancelleries of St. Petersburg the anti-Jewish conspirators were assiduously at work preparing for a new blow to be dealt to the martyred nation. A secret committee attached to the Ministry of the Interior, under the chairmanship of Plehve, was engaged in framing a monstrous enactment of Jewish counter-reforms, which were practically designed to annul the privileges conferred upon certain categories of Jews by Alexander II. The principal object of the proposed enactment was to slam the doors to the Russian interior, which had been slightly opened by the laws of 1859 and 1865, by withdrawing the privilege of residing outside the Pale which these laws had conferred upon Jewish first guild merchants and artisans, subject to a number of onerous conditions.

The first object of the reactionary conspirators was to get rid of those "privileged" Jews who lived in the two Russian capitals. In St. Petersburg this object was to be attained by the edicts of Gresser, referred to previously, which were followed by other similarly harassing regulations. In February, 1891, the governor of St. Petersburg ordered the police "to examine the kind of trade" pursued by the Jewish artisans of St. Petersburg,

with the end in view of expelling from the city and confiscating the goods of all those who should be caught with articles not manufactured by themselves [1]. A large number of expulsion followed upon this order. The principal blow, however, was to fall in Moscow.

[Footnote 1: See above, p. 170 et seq., and p. 347 et seq.]

The ancient Muscovite capital was in the throes of great changes. The post of governor-general of Moscow, which had been occupied by Count Dolgoruki, was entrusted in February, 1891, to a brother of the Tzar, Grand Duke Sergius. The grand duke, who enjoyed an unenviable reputation in the gambling circles of both capitals, was not burdened by any consciously formulated political principles. But this deficiency was made up by his steadfast loyalty to the political and religious prejudices of his environment, among which the blind hatred of Judaism occupied a prominent place. The Russian public was inclined to attach extraordinary importance to the appointment of the Tzar's brother. It was generally felt that his selection was designed to serve as a preliminary step to the transfer of the imperial capital from St. Petersburg to Moscow, symbolizing the return "home"—to the old-Muscovite political ideals. It is almost superfluous to add that the contemplated change made it necessary to purge the ancient capital of its Jewish inhabitants.

The Jewish community of Moscow, numbering some thirty thousand souls who lived there legally or semi-legally, had long been a thorn in the flesh of certain influential Russian merchants. The burgomaster of Moscow, Alexeyev, an ignorant merchant, with a very shady reputation, was greatly wrought up over the far-reaching financial influence of a local Jewish capitalist, Lazarus Polakov, the director of a rural bank, with whom he had clashed over some commercial transaction. Alexeyev was only too grateful for an occasion to impress upon the highest Government spheres that it was

necessary "to clear Moscow of the Jews," who were crowding the city, owing to the indulgence of Dolgoruki, the former governor-general. The reactionaries of Moscow and St. Petersburg joined hands in the worthy cause of extirpating Judaism, and received the blessing of the head of the Holy Synod, Pobyedonostzev. This inquisitor-in-chief appointed Istomin, a ferocious anti-Semite, who had been his general utility man at the Holy Synod, the bureau-manager of the new governor-general, and thus succeeded in establishing his influence in Moscow through his acting representative who was practically the master of the second capital.

The secret council of Jew-haters decided to accomplish the Jewish evacuation of Moscow prior to the solemn entrance of Grand Duke Sergius into the city, either for the purpose of clearing the way for the new satrap, or in order to avoid the unpleasantness of having his name connected with the first cruel act of expulsion. Pending the arrival of Sergius the administration of Moscow was entrusted to Costanda, the chief of the Moscow Military District, an adroit Greek, who was to begin the military operations against the Jewish population. The first blow was timed to take place on the festival of Israel's liberation from Egyptian bondage, as if the eternal people needed to be reminded of the new bondage and of the new Pharaohs.

2. THE HORRORS OF EXPULSION

It was on March 29, 1891, the first day of the Jewish Passover, when in the synagogues of Moscow which were filled with worshippers an alarming whisper ran from mouth to mouth telling of the publication of an imperial ukase ordering the expulsion of the Jews from the city. Soon afterwards the horror-stricken Jews read in the papers the following imperial order, dated March 28:

Jewish mechanics, distillers, brewers, and, in general, master workmen and artisans shall be forbidden to remove from the Jewish Pale of Settlement as well as to come over from other places of the Empire to the City and Government of Moscow.

This prohibition of settling in Moscow *anew* was only one half of the edict. The second, more terrible half, was published on the following day:

A recommendation shall be made to the Minister of the Interior, after consultation with the Governor-General of Moscow, to see to it that measures be taken to the effect that the above-mentioned Jews should gradually depart from the City and Government of Moscow into the places established for the permanent residence of the Jews.

At first sight it seemed difficult to realize that this harmless surface of the ukase, with its ambiguous formulation, [1] concealed a cruel decree ordering the uprooting of thousands of human beings. But those who were to execute this written law received definite unwritten instructions which were carried out according to all the rules of the strategic game.

[Footnote 1: The Byzantine perfidy of this formulation lies in the phrase "above-mentioned Jews," which gives the impression of referring to those that had "removed" to Moscow from other parts of the Empire, i.e., settled there *anew*, whereas the real object of the law was to expel *all* the Jews of the "above-mentioned" categories of master workmen and artisans, even though they may have lived in the city for many years. This amounted to a repeal, illegally enacted outside the Council of State, of the law of 1865, conferring the right of universal residence upon Jewish artisans. Moreover, the enactment was given retroactive force—a step which even the originators of the "Temporary Rules" of May 3 were not bold enough to make. In distinction from the May Laws, the present decree was not even submitted to the Council of Ministers, where a discussion of it might have

been demanded; it was passed as an extraordinary measure, at the suggestion of the Ministry of the Interior represented by Durnovo and Plehve. This is indicated by the heading of the ukase: "The Minister of the Interior has applied most humbly to his Imperial Majesty begging permission to adopt the following measures." This succession of illegalities was to be veiled by the ambiguous formulation of the ukase and the addition of the hackneyed stipulation: "Pending the revision of the enactments concerning the Jews in the ordinary course of legislation."]

The first victims were the Jews who resided in Moscow illegally or semi-legally, the latter living in the suburbs. They were subjected to a sudden nocturnal attack, a "raid," which was directed by the savage Cossack general Yurkovski, the police commissioner-in-chief. During the night following the promulgation of the ukase large detachments of policemen and firemen made their appearance in the section of the city called Zaryadye, where the bulk of the "illegal" Jewish residents were huddled together, more particularly in the immense so-called Glebov Yard, the former ghetto of Moscow. The police invaded the Jewish homes, aroused the scared inhabitants from their beds, and drove the semi-naked men, women, and children to the police stations, where they were kept in filthy cells for a day and sometimes longer. Some of the prisoners were released by the police which first wrested from them a written pledge to leave the city immediately. Others were evicted under a police convoy and sent out of the city like criminals, through the transportation prison. [1] Many families, having been forewarned of the impending raid, decided to spend the night outside their homes to avoid arrest and maltreatment at the hands of the police. They hid themselves in the outlying sections of the city and on the cemeteries; they walked or rode all over the city the whole night. Many an estimable Jew was forced to shelter his wife and children, stiffened from cold, in houses of ill repute which were open all night. But even these fugitives ultimately fell into the hands of the police inquisition.

[Footnote 1: Transportation prisons are prisons in which convicts sentenced to deportation (primarily to Siberia) are kept pending their deportation. Such prisons were to be found in the large Russian centers, among them in Moscow.]

Such were the methods by which Moscow was purged of its rightless Jewish inhabitants a whole month before Grand Duke Sergius made his entrance into the city. The grand duke was followed soon afterwards, in the month of May, by the Tzar himself, who stopped in the second Russian capital on his way to the Crimea. A retired Jewish soldier was courageous enough to address a petition to the Tzar, imploring him in touching terms to allow the former Jewish soldiers to remain in Moscow. The request of the Jewish soldier met with a quick response: he was sent to jail and subsequently evicted.

The establishment of the new régime in Moscow was followed, in accordance with the provisions of the recent ukase, by the "gradual" expulsion of the huge number of master workmen and artisans who had enjoyed for many years the right of residence in that city and were now suddenly deprived of this right by a despotic caprice. The local authorities included among the victims of expulsion even the so-called "circular Jews," i.e., those who had been allowed to remain in Moscow by virtue of the ministerial circular of 1880, granting the right of domicile to the Jews living there before that date. This vast host of honest and hard-working men—artisans, tradesmen, clerks, teachers—were ordered to leave Moscow in three installments: those having lived there for not more than three years and those unmarried or childless were to depart within three to six months; those having lived there for not more than six years and having children or apprentices to the number of four were allowed to postpone their departure for six to nine months; finally the old Jewish settlers, who had big families

and employed a large number of workingmen, were given a reprieve from nine to twelve months.

It would almost seem as if the maximum and minimum dates within each term were granted specifically for the purpose of yielding an enormous income to the police, which, for a substantial consideration, could postpone the expulsion of the victims for three months and thereby enable them to wind up their affairs. At the expiration of the final terms the unfortunate Jews were not allowed to remain in the city even for one single day; those that stayed behind were ruthlessly evicted. An eye-witness, in summing up the information at his disposal, the details of which are even more heart-rending than the general facts, gives the following description of the Moscow events:

People who have lived in Moscow for twenty, thirty, or even forty years were forced to sell their property within a short time and leave the city. Those who were too poor to comply with the orders of the police, or who did not succeed in selling their property for a mere song—there were cases of poor people disposing of their whole furniture for one or two rubles—were thrown into jail, or sent to the transportation prison, together with criminals and all kinds of riff-raff that were awaiting their turn to be dispatched under convoy. Men who had all their lives earned their bread by the sweat of their brow found themselves under the thumb of prison inspectors, who placed them at once on an equal footing with criminals sentenced to hard labor. In these surroundings they were sometimes kept for several weeks and then dispatched in batches to their "homes" which many of them never saw again. At the threshold of the prisons the people belonging to the "unprivileged" estates—the artisans were almost without exception members of the "burgher class"—had wooden handcuffs put on them....[1]

It is difficult to state accurately how many people were made to endure these tortures, inflicted on them without the due process of law. Some died in prison, pending their transportation. Those who could manage to scrape together a few pennies left for the Pale of Settlement at their own expense. The sums speedily collected by their coreligionists, though not inconsiderable, could do nothing more than rescue a number of the unfortunates from jail, convoy, and handcuffs. But what can there be done when thousands of human nests, lived in for so many years, are suddenly destroyed, when the catastrophe comes with the force of an avalanche so that even the Jewish heart which is open to sorrow cannot grasp the whole misfortune?....

Despite the winter cold, people hid themselves on cemeteries to avoid jail and transportation. Women were confined in railroad cars. There were many cases of expulsions of sick people who were brought to the railroad station in conveyances and carried into the cars on stretchers.... In those rare instances in which the police physician pronounced the transportation to be dangerous, the authorities insisted on the chronic character of the illness, and the sufferers were brought to the station in writhing pain, as the police could not well be expected to wait until the invalids were cured of their chronic ailments. Eye-witnesses will never forget one bitterly cold night in January, 1892. Crowds of Jews dressed in beggarly fashion, among them women, children, and old men, with remnants of their household belongings lying around them, filled the station of the Brest railroad. Threatened by police convoy and transportation prison and having failed to obtain a reprieve, they had made up their mind to leave, despite a temperature of thirty degrees below zero. Fate, it would seem, wanted to play a practical joke on them. At the representations of the police commissioner-in-chief, the governor-general of Moscow had ordered to stop the expulsions until the great colds had passed, but ... the order was not published until the expulsion

had been carried out. In this way some 20,000 Jews who had lived in Moscow fifteen, twenty-five, and even forty years were forcibly removed to the Jewish Pale of Settlement.

[Footnote 1: Under the Russian law (compare Vol. I, p. 308, n. 2) burghers are subject to corporal punishment, whereas the higher estates, among them the merchants, enjoy immunity in this direction.]

3. EFFECT OF PROTESTS

All these horrors, which remind one of the expulsion from Spain in 1492, were passed over in complete silence by the Russian public press. The cringing and reactionary papers would not, and the liberal papers could not, report the exploits of the Russian Government in their war against the Jews. The liberal press was ordered by the Russian censor to refrain altogether from touching on the Jewish question. The only Russian-Jewish press organ which, defying the threats of the censor, had dared to fight against official Russian Judaeophobia, the *Voskhod*, had been suppressed already in March, before the promulgation of the Moscow expulsion edict, "for the extremely detrimental course pursued by it." A similar fate overtook the *Novosti* of St. Petersburg which had printed a couple of sympathetic articles on the Jews.

In this way the Government managed to gag the independent press on the eve of its surprise attack upon Moscow Jewry, so that everything could be carried out noiselessly, under the veil of a state secret. Fortunately, the foreign press managed to unveil the mystery. The Government of the United States, faced by a huge immigration tide from Russia, sent in June, 1891, two commissioners, Weber and Kempster, to that country. They visited Moscow at the height of the expulsion fever, and, travelling through the principal centers of the Pale of Settlement, gathered carefully sifted

documentary evidence of what was being perpetrated upon the Jews in the Empire of the Tzar.

While decimating the Jews, the Russian Government was at the same time anxious that their cries of distress should not penetrate beyond the Russian border. Just about that time Russia was negotiating a foreign loan, in which the Rothschilds of Paris were expected to take a leading part, and found it rather inconvenient to stand forth in the eyes of Europe as the ghost of medieval Spain. It was this consideration which prompted the softened and ambiguous formulation of the Moscow expulsion decree and made the Government suppress systematically all mention of what happened afterwards.

Notwithstanding these efforts, the cries of distress were soon heard all over Europe. The Russian censorship had no power over the public opinion outside of Russia. The first Moscow refugees, who had reached Berlin, Paris, and London, reported what was going on at Moscow. Already in April, 1891, the European financial press began to comment on the fact that "the Jewish population of Russia is altogether irreplaceable in Russian commercial life, forming a substantial element which contributes to the prosperity of the country," and that, therefore, "the expulsion of the Jews must of necessity greatly alarm the owners of Russian securities who are interested in the economic progress of Russia." Soon afterwards it became known that Alphonse de Rothschild, the head of the great financial firm in Paris, refused to take a hand in floating the Russian loan of half a billion. This first protest of the financial king against the anti-Semitic policy of the Russian Government produced a sensation, and it was intensified by the fact that it was uttered in France at a time when the diplomats of both countries were preparing to celebrate the Franco-Russian alliance which was consummated a few months afterwards.

The expulsion from Moscow found a sympathetic echo on the other side of the Atlantic. President Harrison took occasion, in a message to Congress, to refer to the sufferings of the Jews and to the probable effects of the Russian expulsions upon America:

This Government has found occasion to express in a friendly spirit, but with much earnestness, to the Government of the Czar its serious concern because of the harsh measures now being enforced against the Hebrews in Russia. By the revival of anti-Semitic laws, long in abeyance, great numbers of those unfortunate people have been constrained to abandon their homes and leave the Empire by reason of the impossibility of finding subsistence within the Pale to which it is sought to confine them. The immigration of these people to the United States—many other countries being closed to them—is largely increasing, and is likely to assume proportions which may make it difficult to find homes and employment for them here and to seriously affect the labor market. It is estimated that over 1,000,000 will be forced from Russia within a few years. The Hebrew is never a beggar; he has always kept the law—life by toil—often under severe and oppressive restrictions. It is also true that no race, sect, or class has more fully cared for its own than the Hebrew race. But the sudden transfer of such a multitude under conditions that tend to strip them of their small accumulations and to depress their energies and courage is neither good for them nor for us.

The banishment, whether by direct decree or by not less certain indirect methods, of so large a number of men and women is not a local question. A decree to leave one country is in the nature of things an order to enter another—some other. This consideration, as well as the suggestion of humanity, furnishes ample ground for the remonstrances which we have presented to Russia; while our historic friendship for that

Government cannot fail to give assurance that our representations are those of a sincere well-wisher.[1]

[Footnote 1: Third Annual Message to Congress by President Harrison, December 9, 1891, *Messages and Papers of the Presidents*, Vol. IX, p. 188.]

The sentiments of the American people were voiced less guardedly in a resolution which was passed by the House of Representatives on July 21, 1892:

Resolved, That the American people, through their Senators and Representatives in Congress assembled, do hereby express sympathy for the Russian Hebrews in their present condition, and the hope that the Government of Russia, a power with which the United States has always been on terms of amity and good will, will mitigate as far as possible the severity of the laws and decrees issued respecting them, and the President is requested to use his good offices to notify the Government of Russia to mitigate the said laws and decrees. [1]

[Footnote 1: *Congressional Record*, Vol. 23, p. 6533.]

The highly-placed Jew-baiters of St. Petersburg were filled with rage, The *Novoye Vremya* emptied its invectives upon the *Zhydovski* financiers, referring to the refusal of Alphonse de Rothschild to participate in the Russian loan. Nevertheless, the Government found itself compelled to stem the tide of oppression for a short while.

We have already had occasion to point out that the Government had originally planned to reduce the Jewish element also in the city of St. Petersburg, whose head, the brutal Gresser, had manifested his attitude toward the Jews in a series of police circulars. Following upon the first raid of the Moscow police on the Jews, Gresser ordered his gendarmes to search

at the St. Petersburg railroad stations for all Jewish fugitives from that city who might have ventured to flee to St. Petersburg, and to deport them immediately. In April there were persistent rumors afloat that the Government had decided to remove by degrees all Jews from St. Petersburg and thus make both Russian capitals *judenrein*. The financial blow from Paris cooled somewhat the ardor of the Jew-baiters on the shores of the Neva. The wholesale expulsions from St. Petersburg were postponed, and the Russian anti-Semites were forced to satisfy their cannibal appetite with the consumption of Moscow Jewry, whose annihilation was carried out systematically under the cover of bureaucratic secrecy.

4. POGROM INTERLUDES

Under the effect of the officially perpetrated "legal" pogroms little attention was paid to the street pogrom which occurred on September 29, 1891, in the city of Starodub, in the government of Chernigov, recalling the horrors of the eighties. Though caused by economic factors, the pogrom of Starodub assumed a religious coloring. The Russian merchants of that city had long been gnashing their teeth at their Jewish competitors. Led by a Russian fanatic, by the name of Gladkov, they forced a regulation through the local town-council barring all business on Sundays and Christian holidays. The regulation was directed against the Jews who refused to do business on the Sabbath and the Jewish holidays, and who would have been ruined had they also refrained from trading on Sundays and the numerous Greek-Orthodox holidays, thus remaining idle on twice as many days as the Christians. The Jews appealed to the governor of Chernigov to revoke or at least to mitigate the new regulation. The governor's decision fell in favor of the Jews who were allowed to keep their stores open on Christian holidays from noon-time until six o'clock in the evening. The reply of the local Jew-baiters took the form of a pogrom.

On Sunday, the day before Yom Kippur, when the Jews opened their stores for a few hours, a hired crowd of ruffians from among the local street mob fell upon the Jewish stores and began to destroy and loot whatever goods it could lay its hands on. The stores having been rapidly closed, the rioters invaded the residences of the Jews, destroying the property contained there and filling the streets with fragments of broken furniture and leathers from torn bedding. The plunderers were assisted by the peasants who had arrived from the adjacent villages. In the evening, a drunken mob, which had assembled on the market-place, laid fire to a number of Jewish stores and houses, inflicting on their owners a loss of many millions.

All this took place during the holy Yom Kippur eve. The Jews, who did not dare to worship in their synagogues or even to remain in their homes, hid themselves with their wives and children in the garrets and orchards or in the houses of strangers. Many Jews spent the night in a field outside the city, where, shivering from cold, they could watch the glare of the ghastly flames which destroyed all their belongings. The police, small in numbers, proved "powerless" against the huge hordes of plunderers and incendiaries. On the second day, the pogrom was over, the work of destruction having been duly accomplished. The subsequent judicial inquiry brought out the fact clearly that the pogrom had been engineered by Gladkov and his associates, a fact of which the local authorities could not have been ignorant. Gladkov fled from the city but returned subsequently, paying but a slight penalty for his monstrous crime.

It should be added, however, that the Government was greatly displeased with the reappearance of the terrible spectre of 1881, as it only tended to throw into bolder relief the policy of legal pogroms by which Western Europe was alarmed. As a matter of fact, already in October, the semi-official *Grazhdanin* had occasion to print the following news item:

Yesterday [October 15] the financial market [abroad] was marked by depression; our securities have fallen, owing to new rumors concerning alleged contemplated measures against the Jews.

Commenting upon this, the paper declared that these rumors were entirely unfounded, for the reason that "at the present time all our Government departments are weighed down with problems of first-rate national importance which brook no delay, [1] and they could scarcely find time to busy themselves with such matters as the Jewish question, which requires mature consideration and slow progress in action."

[Footnote 1: The paper had in mind the crop failures of that year and the famine which prevailed in consequence in the larger part of Russia.]

The subdued tone adopted by Count Meshcherski, the court journalist, was only partially in accord with the facts. He was right in stating that the terrible country-wide distress had compelled the deadly enemies of Judaism to pause in the execution of their entire program. But he forgot to add that the one clause of that program, the realization of which had already begun—the expulsion from Moscow—was being carried into effect with merciless cruelty. The huge emigration wave resulting from this expulsion threw upon the shores of Europe and America the victims of persecution who re-echoed the cries of distress from the land of the Tzars.

Soon afterwards a new surprise, without parallel in history, was sprung upon a baffled world: the Russian Government was negotiating with the Jewish philanthropist Baron Hirsch concerning the gradual removal of the three millions of its Jewish subjects from Russia to Argentina.

CHAPTER XXX

BARON HIRSCH'S EMIGRATION SCHEME AND UNRELIEVED SUFFERING

1. NEGOTIATIONS WITH THE RUSSIAN GOVERNMENT

Towards the end of the eighties the plan of promoting Jewish emigration from Russia, which had been abandoned with the retirement of Count Ignatyev, was again looked upon favorably by the leading Government circles. The sentiments of the Tzar were expressed in a marginal note which he attached to the report of the governor of Podolia for the year 1888. The passage of the report in which it was pointed out that "the removal of the Jewish proletariat from the monarchy would be very desirable" was supplemented in the Tzar's handwriting by the words "and even very useful." In reply to the proposal of the governor of Odessa to deprive Jewish emigrants of the right to return to Russia, the Tzar answered with a decided "yes." The official Russian chronicler goes even so far as to confess "that it was part of the plan to stimulate the emigration of the Jews (as well as that of the German colonists) by a more rigorous enforcement of the military duty"—a design which, from the political point of view, may well be pronounced criminal and which was evidently at the bottom of the severe military fines imposed upon the Jews. The same open-hearted chronicler adds:

It may be easily understood how sympathetically the Government received the proposal of the Jewish Colonization Association in London, which had been founded by Baron de Hirsch in 1891, to remove, in the course of twenty-five years, 3,250,000 Jews from Russia. [1]

[Footnote 1: This figure represents the official estimate of the number of Russian Jews. In other words, the Government hoped to get rid of all Jews.]

The name of Maurice de Hirsch was not unknown to the Russian Government. For a few years previously it had had occasion to carry on negotiations with him, with results of which it had scant reason to boast. This great German-Jewish philanthropist, who was resolved to spend hundreds of millions on the economic and agricultural advancement of his co-religionists in Eastern Europe, had donated in 1888 fifty million francs for the purpose of establishing in Russia arts and crafts schools, as well as workshops and agricultural farms for the Jews. It was natural for him to assume that the Russian Government would only be too glad to accept this enormous contribution which was bound to stimulate productive labor in the country and raise the welfare of its destitute masses. But he had forgotten that the benefits expected from the fund would accrue to the Jewish proletariat, which, according to the catechism of Jew-hatred, was to be "removed from the monarchy." The stipulation made by the Russian Government to the representatives of Baron Hirsch was entirely unacceptable: it insisted that the money should not be handed over to Jewish public agencies but to the Russian Government which would expend it as it saw fit. Somebody conceived the shameful idea, which was accepted by the representatives of Baron Hirsch, of propitiating Pobyedonostzev by a gift of a million francs for the needs of his pet institution, the Greek-Orthodox parochial schools. The "gift" was accepted, but Hirsch's proposal was declined. Thus it came about that the Russian Jews were deprived of a network of model schools and educational establishments, while a million

of Jewish money went to swell the number of the ecclesiastic Russian schools which imbued the Russian masses with crass ignorance and anti-Semitic prejudices. The Hirsch millions, originally intended for Russia, went partly towards the establishment of Jewish schools in Galicia, a work which met with every possible encouragement from the Austrian Government.

The generous Jewish philanthropist now realized that the assistance he was anxious to render to his Russian coreligionists could not take the form of improving their condition in their own country but rather that of settling them outside of it—by organizing the emigration movement. Hirsch's attention was called to the fact that, beginning with 1889, several groups of Russian Jews had settled in Argentina and, after incredible hardships, had succeeded in establishing there several agricultural colonies. The baron sent an expedition to Argentina, under the direction of Professor Loewenthal, an authority on hygiene, for the purpose of investigating the country and finding out the places fit for colonization. The expedition returned in March, 1891, and Hirsch decided to begin with the purchase of land in Argentina, in accordance with the recommendations of the expedition.

This happened at the very moment when the Moscow catastrophe had broken out, resulting in a panicky flight from "Russia to North and South America, and partly to Palestine. Baron Hirsch decided that it was his first duty to regulate the emigration movement from Russia, and he made another attempt to enter into negotiations with the Russian Government. With this end in view he sent his representative to St. Petersburg, the Englishman Arnold White, a Member of Parliament, belonging to the parliamentary anti-alien group, who was opposed to foreign immigration into England, on the ground of its harmful effect upon the interests of the native workingmen. Simultaneously White was commissioned to travel

through the Pale of Settlement and find out whether it would be possible to obtain there an element fit for agricultural colonization in Argentina.

White arrived in St. Petersburg in May and was received by Pobyedonostzev and several Ministers. The martyrdom of the Moscow Jews was then at its height. Shouts of indignation were ringing through the air of Europe and America, protesting against the barbarism of the Russian Government, and the latter was infuriated both by these protests and the recent refusal of Rothschild to participate in the Russian loan. The high dignitaries of St. Petersburg who had been disturbed in their work of Jew-baiting by the outcry of the civilized world gave full vent to their hatred in their conversations with Baron Hirsch's deputy. White reported afterwards that the functionaries of St. Petersburg had painted to him the Russian Jew as "a compound of thief and usurer." Pobyedonostzev delivered himself of the following malicious observation: "The Jew is a parasite. Remove him from the living organism in which and on which he exists and put this parasite on a rock—and he will die." While thus justifying before the distinguished foreigner their system of destroying the five million Jewish "parasites," the Russian Ministers were nevertheless glad to lend a helping hand in removing them from Russia, on condition that in the course of twelve years a large part of the Jews should be transferred from the country—in the confidential talks with White three million emigrants were mentioned as the proposed figure. White was furnished with letters of recommendation from Pobyedonostzev and the Minister of the Interior to the highest officials in the provinces, whither the London delegate betook himself to get acquainted with the living export material. He visited Moscow, Kiev, Berdychev, Odessa, Kherson, and the Jewish agricultural colonies in South Russia.

After looking closely at Jewish conditions, White became convinced that the perverted type of Jew which had been painted to him in St. Petersburg

"was evolved from the inner consciousness of certain orthodox statesmen, and has no existence in fact." Wherever he went he saw men who were sober, industrious, enterprising business men, efficient artisans, whose physical weakness was merely the result of insufficient nourishment. His visit to the South-Russian colonies convinced him of the fitness of the Jews for colonization.

In short—he writes in his report—if courage—moral courage,—hope, patience, temperance are fine qualities, then the Jews are a fine people. Such a people, under wise direction, is destined to make a success of any well-organized plan, of colonization, whether in Argentina, Siberia, or South Africa.

On his return to London, White submitted a report to Baron Hirsch, stating the above facts, and also pointing out that the assistance which should be rendered to the emigration work by the Russian Government ought to take the form of granting permission to organize in Russia emigration committees, of relieving the emigrants of the passport tax, [1] and of allowing them free transportation up to the Russian border.

[Footnote 1: The tax levied on passports for travelling abroad amounting to fifteen rubles (\$7.50).]

2. THE JEWISH COLONIZATION ASSOCIATION AND COLLAPSE OF THE ARGENTINIAN SCHEME

White's report was discussed by Baron Hirsch in conjunction with the leading Jews of Western Europe. As a result, the decision was reached to establish a society which should undertake on a large scale the colonization of Argentina and other American territories with Russian Jews. The society was founded in London in the autumn of 1891, under the name of the

Jewish Colonization Association (JCA), in the form of a stock company, with a capital of fifty million francs which was almost entirely subscribed by Baron Hirsch. White was dispatched to St. Petersburg a second time to obtain permission for organizing the emigration committees in Russia and to secure the necessary privileges for the emigrants. The English delegate, who was familiar with the frame of mind of the leading Government circles in Russia, unfolded before them the far-reaching plans of Baron Hirsch. The Jewish Colonization Association was to transplant 25,000 Jews to Argentina in the course of 1892 and henceforward to increase progressively the ratio of emigrants, so that in the course of twenty-five years, 3,250,000 Jews would be taken out of Russia.

This brilliant perspective of a Jewish exodus cheered the hearts of the neo-Egyptian dignitaries. Their imagination caught fire. When the question came up before the Committee of Ministers, the Minister of the Navy, Chikhachev, proposed to pay the Jewish Colonization Association a bonus of a few rubles for each emigrant and thus enable it to transfer no less than 130,000 people during the very first year, so that the contemplated number of 3,250,000 might be distributed evenly over twenty-five years. A suggestion was also made to transplant the Jews with their own money, i.e., to use the residue of the Jewish meat tax for that purpose, but the suggestion was not considered feasible. The official chronicler testifies that "the fascinating proposition of Baron Hirsch appeared to the Russian Government hardly capable of realization." Nevertheless, prompted by the hope that at least part of the contemplated millions of Jews would leave Russia, the Government sanctioned the establishment of a Central Committee of the Jewish Colonization Association in St. Petersburg, with branches in the provinces. It further promised to issue to the emigrants free of charge permits to leave the country and to relieve them from military duty on condition that they never return to Russia.

In May, 1893, the constitution of the Jewish Colonization Association was ratified by the Tzar. At that time the emigration tide of the previous year was gradually ebbing. The flight from Russia to North and South America had reached its climax in the summer and autumn of 1891. The expulsion from Moscow as well as alarming rumors of imminent persecutions, on the one hand, and exaggerated news about the plans of Baron Hirsch, on the other, had resulted in uprooting tens of thousands of people. Huge masses of refugees had flocked to Berlin, Hamburg, Antwerp, and London, imploring to be transferred to the United States or to the Argentinian colonies. Everywhere relief committees were being organized, but there was no way of forwarding the emigrants to their new destination, particularly to Argentina, where the large territories purchased by Hirsch were not yet ready for the reception of colonists. Baron Hirsch was compelled to send out an appeal to all Jewish communities, calling upon them to stem for the present this disorderly human avalanche.

Ere long Baron Hirsch's dream of transplanting millions of people with millions of money proved an utter failure. When, after long preparations, the selected Jewish colonists were at last dispatched to Argentina, it was found that the original figure of 25,000 emigrants calculated for the first year had shrunk to about 2500. Altogether, during the first three years, from 1892 to 1894, the Argentinian emigration absorbed some six thousand people. Half of these remained in the capital of the republic, in Buenos Ayres, while the other half managed to settle in the colonies, after enduring all the hardships connected with an agricultural colonization in a new land and under new climatic conditions. A few years later it was commonly realized that the mountain had given birth to a mouse. Instead of the million Jews, as originally planned, the Jewish Colonization Association succeeded in transplanting during the first decade only 10,000 Jews, who were distributed over six Argentinian colonies.

The main current of Jewish emigration flowed as heretofore in the direction of North America, towards the United States and Canada. In the course of the year 1891, with its numerous panics, the United States alone absorbed more than 100,000 emigrants, over 42,000 of whom succeeded in arriving the same year, while 76,000 were held back in various European centers and managed to come over the year after. The following two years show again the former annual ratio of emigration, wavering between 30,000 to 35,000.

The same fateful year of 1891 gave rise to a colonization fever even in quiet Palestine. Already in the beginning of 1890 the Russian Government had legalized the Palestinian colonization movement in Russia by sanctioning the constitution of the "Society for Granting Assistance to Jewish Colonists and Artisans in Syria and Palestine," which had its headquarters in Odessa. [1] This sanction enabled the *Hobebe Zion* societies which were scattered all over the country to group themselves around a legalized center and collect money openly for their purposes. The Palestinian propaganda gained a new lease of life. This propaganda, which was intensified in its effect by the emigration panic of the "terrible year," resulted in the formation of a number of societies in Russia with the object of purchasing land in Palestine. In the beginning of 1891 delegates of these societies suddenly appeared in Palestine *en masse*, and, with the co-operation of a Jaffa representative of the Odessa Palestine Society, began feverishly to buy up the land from the Arabs. This led to a real estate speculation which artificially raised the price of land. Moreover, the Turkish Government became alarmed, and forbade the wholesale colonization of Jews from Russia. The result was a financial crash.

[Footnote 1: The first president of the Society was the exponent of the idea of "Antoemancipation," Dr. Leon Pinsker, who occupied this post until his death, at the end of 1891.]

The attempt at a wholesale immigration into destitute Palestine with its primitive patriarchal conditions proved a failure. During the following years the colonization of the Holy Land with Russian Jews proceeded again at a slow pace. One colony after another rose gradually into being. A large part of the old and the new settlers were under the charge of Baron Rothschild's administration, with the exception of two or three colonies which were maintained by the Palestine Society in Odessa. It was evident that, in view of the slow advance of the Palestinian colonization, its political and economic importance for the Russian-Jewish millions was practically nil and that its only advantage over and against the American emigration lay in its spiritual significance, in the fact that on the historic soil of Judaism there rose into being a small Jewish center with a purer national culture than was possible in the Diaspora. This idea was championed by Ahad Ha'am^[1], the exponent of the neo-Palestine movement, who had made his first appearance in Hebrew literature in 1889 and in a short time forged his way to the front.

[Footnote 1: "One of the People," the Hebrew pen-name of Asher Ginzberg.]

3. CONTINUED HUMILIATIONS AND DEATH OF ALEXANDER III.

In the meantime, in the land of the Tzars events went their own course. The Moscow tragedy was nearing its end, but its last stages were marked by scenes reminiscent of the times of the inquisition. After banishing from Moscow the larger part of the Jewish population, the governor-general, Grand Duke Sergius, made up his mind to humble the remaining Jewish population of the second Russian capital so thoroughly that its existence in the center of Greek Orthodoxy might escape public notice. The eyes of the Russian officials at Moscow were offended by the sight of the new

beautiful synagogue structure which had been finished in the fateful year of the expulsion. At first, orders were given to remove from the top of the building the large cupola capped by the Shield of David, which attracted the attention of all passers-by. Later on, the police, without any further ado, shut down the synagogue, in which services had already begun to be held, pending the receipt of a new special permit to re-open it. Rabbi Minor of Moscow and the warden of the synagogue addressed a petition to the governor-general, in which they begged permission to hold services in the building, the construction of which had been duly sanctioned by the Government, pointing to the fact that Judaism was one of the religions tolerated in Russia. In answer to their petition, they received the following stern reply from St. Petersburg, dated September 23, 1892:

His Imperial Majesty, after listening to a report of the Minister of the Interior concerning the willful opening of the Moscow Synagogue by Rabbi Minor and Warden Schneider, was graciously pleased to command as follows:

First. Rabbi Minor of Moscow shall be dismissed from his post and transferred for permanent residence to the Pale of Jewish Settlement.

Second. Warden Schneider shall be removed from the precincts of Moscow for two years.

Third. The Jewish Synagogue Society shall be notified that, unless, by January 1, 1893, the synagogue structure will have been sold or transformed into a charitable institution, it will be sold at public auction by the gubernatorial administration of Moscow.

The rabbi and the warden went into exile, while the dead body of the murdered synagogue—its structure—was saved from desecration by placing in it one of the schools of the Moscow community.

The fight against the places of Jewish worship was renewed by the police a few years later, during the reign of Nicholas II. The principal synagogue being closed, the Jews of Moscow were compelled to hold services in uncomfortable private premises. There were fourteen houses of prayer of this kind in various parts of the city, but, on the eve of the Jewish Passover of 1894, the governor-general gave orders to close nine of these houses, so that the religious needs of a community of ten thousand souls had to be satisfied in five houses of worship, situated in narrow, unsanitary quarters. The Government had achieved its purpose. The synagogue was humbled into the dust, and its sight no longer offended the eyes of the Greek-Orthodox zealots. The Jews of Moscow were forced to pour out their hearts before God in some back yards, in the stuffy atmosphere of private dwellings. As in the days of the Spanish inquisition, these private houses of worship would, on the solemn days of Rosh ha-Shanah and Yom Kippur, be stealthily visited by the "marranos" of Moscow, those Jews who had saved themselves from the wholesale expulsions by fictitious conversion to Christianity. The passionate prayers of repentance of these involuntary apostates rose up to heaven as they had done in centuries gone-by from the underground synagogues of Seville, Toledo, and Saragossa.

By and by, the attempt to take the Jewish citadel by storm gave way to the former regular state of siege, which had for its object to starve out the Jews. The municipal counterreform of 1892 dealt a severe political blow to Russian Jewry. Under the old law, the number of Jewish aldermen in the municipal administration had been limited to one-third of the total number of aldermen, aside from the prohibition barring the Jews from the office of burgomaster [1]. Notwithstanding these restrictions, the Jews played a conspicuous part in municipal self-government, and could boast of a number of prominent municipal workers. This activity of the Jews went against the grain of the inquisitorial trio, Pobyedonostzev, Durnovo, and

Plehve, and they decided to bar the Jews completely from participation in the municipal elections.

[Footnote 1: See p. 198 et seq.]

The reactionary, anti-democratic "Municipal Regulation" of 1892 proclaimed publicly this new Jewish disfranchisement. The new law deprived the Jews of their right of passive and active election to the municipal Dumas, merely granting the local administration the right to *appoint* at its pleasure a number of Jewish aldermen, not to exceed one-tenth of the total membership of the Duma. Moreover, these Jewish aldermen "by the grace of the police" were prohibited from serving on the executive organs of the Duma, the administrative council, and the various standing committees. As a result, even there where the Jews formed sixty and seventy per cent of the total urban population, their only representatives in the municipal administration were men who were the willing tools of the municipal powers and who, moreover, were quantitatively restricted to five or ten per cent of the total number of aldermen.

In this wise, the law providing for an inverse ratio of popular representation came into effect: four-fifths of the population were limited to one-tenth of the number of aldermen, while one-fifth of it were granted nine-tenths of aldermen in the city government. The law seemed to tell the Jews: "True, in a given city you may form the overwhelming majority of tax-payers, yet the city property shall not be managed by you but by the small Christian, minority which shall do with you as it pleases."

It goes without saying that the Christian minority, which was not infrequently hostile to the Jews, managed the city affairs in a manner subversive of the interests of the majority. Even the imposts on special Jewish needs, such as the meat and candle tax, were often used by the the municipal Dumas towards the maintenance of institutions and schools to to

which Jews were admitted in an insignificant number or not admitted at all. This condition of affairs was in full accord with the medieval medieval Church canons: A Jew living in a Christian country has no right to to dispose of any property and must remain in slavish subjection to his his Christian fellow-citizens.

A number of laws passed during that period are of such a nature as to admit of but one explanation, the desire to insult and humiliate the Jew and to brand him by the medieval Cain's mark of persecution. The law, issued in 1893, "Concerning Names" threatens with criminal prosecution those Jews who in their private life call themselves by names differing in form from those recorded in the official registers. The practice of many educated Jews to Russianize their names, such as Gregory, instead of Hirsch, Vladimir, instead of Wolf, etc., could now land the culprits in prison. It was even forbidden to correct the disfigurements to which the Jewish names were generally subjected in the registers, such as Yosel, instead of Joseph; Srul, instead of Israel; Itzek, instead of Isaac, and so on. In several cities the police brought action against such Jews "for having adopted Christian names" in newspaper advertisements, on visiting cards, or on door signs.

The new Passport Regulation of 1894 orders to insert in *all* Jewish passports a physical description of their owners, even in the case of their being literate and, therefore, being able to affix their signature to the passport, whereas such description was omitted from the passports of literate Christians. In some places the police deliberately tried to make the Jewish passports more conspicuous by marking on them the denomination of the owner in red ink. Even in those rare instances in which the law was intended to bring relief, the Government managed to emphasize its hostile intent. The law of 1893, legalizing the Jewish heder and putting an end to the persecutions, which this traditional Jewish school had suffered at the hands of the police, narrowed at the same time its function to that of an

exclusively religious institution and indirectly forbade the teaching in it of general secular subjects. There are cases on record in which the keepers of these heders, the so-called melammeds, were put on trial for imparting to their pupils a knowledge of Russian and arithmetic.

However, the most effective whip in the hands of the Government remained as theretofore the expulsion from the governments of the interior. In 1893, this whip cracked over the backs of thousands of Jewish families. Durnovo, the Minister of the Interior, issued a circular, repealing the old decree of 1880, which had sanctioned the residence outside the Pale of Settlement of all those Jews who had lived there previously.[1] That decree had been prompted by the motive to prevent the complete economic ruin of the Jews who were settled in places outside the Pale and had created there industrial enterprises. But such a motive, which even the anti-Semitic Ministry of Tolstoi had not been bold enough to disregard, did not appeal to the new Hamans. Many thousands of Jewish families, who had lived outside the Pale for decades, were threatened with exile. The difficulties attending the execution of this wholesale expulsion forced the Government to make concessions. In the Baltic provinces the banishment of the old settlers was repealed, while in the Great Russian governments it was postponed for a year or two.

[Footnote 1: Compare p. 404.]

There was a particularly spiteful motive behind the imperial ukase of 1893, excluding the Crimean resort place Yalta from the Pale of Settlement, [1] and ordering the expulsion from there of hundreds of families which were not enrolled in the local town community. No official reason was given for this new disability, but everybody knew it. In the neighborhood of Yalta was the imperial summer residence Livadia, where Alexander III. was fond of spending the autumn, and this circumstance made it imperative to

reduce the number of the local Jewish residents to a negligible quantity. To avert the complete ruin of the victims, many were granted reprieves, but after the expiration of their terms they were ruthlessly deported. The last batches of exiles were driven from Yalta in the month of October and in the beginning of November, 1894, during the days of public mourning for the death of Alexander III. On October 20, the Tzar was destined to die in the neighborhood of the town which was purged of the Jewish populace for his benefit. While the earthly remains of the dead emperor were carried on the railroad tracks to St. Petersburg, trains filled with Jewish refugees from Yalta were rolling on the parallel tracks, speeding towards the Pale of Settlement.

[Footnote 1: The Crimean peninsula, forming part of the government of Tavrida, is situated within the Pale.]

Such was the symbolic *finale* of the reign of Alexander III. which lasted fourteen years. Having begun with pogroms, it ended with expulsions. The martyred nation stood at the threshold of the new reign with a silent question on its lip: "What next?"

*** END OF THE PROJECT GUTENBERG EBOOK HISTORY OF THE
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